

**THE
EVOLUTION
OF THE
JUVENILE
COURT**

Race, Politics, and
the Criminalizing of
Juvenile Justice

BARRY C. FELD

THE EVOLUTION OF THE JUVENILE COURT

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The Evolution of the Juvenile Court: Race, Politics, and the Criminalizing of Juvenile Justice

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For Patricia, love of my life

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Barry C. Feld
Effie, MN

Introduction

The juvenile court lies at the intersection of two domains—youth policy and crime policy. How should the legal system respond when the kid is a criminal and the criminal is a kid? This raises another question: how and why do we think about children and criminals as we do? To further complicate these questions, how do race, ethnicity, and gender affect the ways we think about children and crime control? Moreover, how and why have these ideas changed over the past century and affected juvenile and criminal justice policies? Finally, how should the lessons of the recent past affect the justice system we design for youth going forward?

Since the juvenile court's creation more than a century ago, it has evolved through four periods—the Progressive Era, the Due Process Era, the Get Tough Era, and the contemporary Kids Are Different Era. These historical periods reflect larger social processes, do not divide neatly, and features from one era continue into and overlap with those of the next. But in each period, juvenile justice policies have reflected different views about children, crime control, race and gender, and appropriate ways to address youths' misconduct. In the midst of the current era in which we recognize again that children are not miniature adults, we have an opportunity to reimagine a policy and legal foundation for a more effective justice system for youth. This book examines the relationship between social structural factors and changes in juvenile justice policy, especially the complex changes that have occurred over the past half century.

Ideas about childhood, crime control, race, and gender are socially constructed. Social constructions assign meaning to objects or events and to people's relationships or understanding of them. Although these ideas appear natural or obvious to the people within a society who accept and internalize them, they are cultural artifacts and change with social conditions. In this analysis, I treat the juvenile court as the dependent variable—an institution whose meaning and practices change

in response to other factors. Our ideas about children and crime control are intervening variables that influence the structure and function of juvenile courts. Changes in the economy, cities, families, and racial and ethnic demography affect our ideas about youth, crime, and the juvenile court. These societal factors operate through political processes in which legislators enact and courts apply laws that shape juvenile justice. Juvenile courts are statutory entities and state legislatures have considerable latitude to define their jurisdiction, procedures, and jurisprudence.

Over the past century, two competing social constructions or visions of adolescents have influenced policies toward young offenders. On the one hand, judges and law makers may characterize them as children—immature, vulnerable, and dependent. In this view, the state would take a protectionist stance to nurture and promote their welfare. On the other hand, law makers may characterize young people as quasi-adults—mature and responsible. In this view, the state would endorse a liberationist perspective, emphasize their autonomy and self-determination, and hold them accountable for their misbehavior. Despite the seeming contradiction between these characterizations, I argue that judges and legislators selectively choose between the two constructs—immature versus responsible—to maximize social control of young people. States treat juveniles like adults when formal equality results in practical inequality and use special juvenile court procedures that prove an advantage to the state.

Strategies of crime control mark the second idea shaping juvenile justice. When people violate the criminal law, legal scholars and criminologists typically differentiate between retributivist and utilitarian sanctions—deterrence, incapacitation, or rehabilitation. Theories of punishment reflect assumptions about whether peoples' behavior is deliberately chosen or the product of antecedent forces—free will versus determinism. Juvenile courts' historic claims to rehabilitate young offenders elicit the traditional dichotomy between treatment and punishment. Treatment focuses on offenders—what antecedent forces caused them to act as they did and how can we reform them and improve their life chances. Punishment focuses on the offense committed and imposes sanctions to denounce the act, alter the offender's calculus, or prevent its reoccurrence. Juvenile courts' founders believed that children were not autonomous, more dependent than adults on their families and com-

munities, their behavior more determined than chosen, and that they should be treated rather than punished.

Although Progressive reformers proffered rehabilitation as the main justification for a separate juvenile court, diversion from criminal courts provided a second rationale at its inception and remains its primary virtue today. Regardless of juvenile courts' ability to rehabilitate children, simply deflecting them from criminal courts avoids their destructive consequences. Diversion constitutes a passive alternative that does less harm. Although juvenile courts then and now seldom achieve their rehabilitative goals, they shield youths from far worse life-altering punishment and collateral consequences.

The competing conceptions of childhood—immaturity and incompetence versus maturity and competence—and differing strategies of crime control—treatment or diversion versus punishment—affect the substantive goals and procedural means that juvenile courts use. Substantive law defines rights, obligations and duties, and how members of society are to behave. Procedural law defines the process for making, administering, and enforcing substantive law. Juvenile courts' ends and means—substance and procedure—represent the purposes of intervention and the process to achieve them when children break the law. How has the child become what he is, what can be done to change him, and how and who makes these determinations? These questions involve judgments about adolescents' culpability and competence. Culpability focuses on youths' mental state at the time of the crime and criminal responsibility. To what extent is a youth responsible for his actions and his conduct blameworthy? Substantive goals raise issues of treatment and punishment, diminished responsibility, and deserved consequences. Substantive questions—such as what should be done with this youth—arise when juvenile courts detain and sentence delinquents, transfer them to criminal court, and sentence them as adults. Competence involves the ability to do something successfully or efficiently. It focuses on youths' capacity to employ rights and ability to understand and participate in the legal process. Procedural issues involve youths' competence to stand trial, ability to exercise *Miranda* rights, right to counsel, and right to a jury trial.

Historical variations in juvenile courts' substantive goals—delinquency dispositions, transfer, and criminal sentencing—reflect

lawmakers' and judges' ambivalent assessments of youths' culpability, criminal responsibility, and treatment or punishment. Juvenile courts' procedural means reflect conflicted appraisals of their developmental characteristics, decision-making capacities, and ability to exercise legal rights. Competing characterizations of youths' culpability and competence—immature or responsible, treatment/diversion or punishment, capable or inept—influenced juvenile courts' procedure and substance from their inception.

What independent factors account for changes in ideas about youth, crime control, and juvenile courts? Figure I.1 depicts some structural factors—economy, urbanization, family, ethnicity/race, and politics—that shape ideas and epochs of juvenile justice. These, as well as other, independent factors interact with and influence each other. Figure I.1 represents a generic way to think about these associations rather than a causal model. In each era, changes in economy affected the organization of cities, for example, during the transition from a rural agricultural to an urban industrial society or more recently from an industrial to an information/service economy. In each period, structural changes affected the configuration of cities, the structure and function of families, and how the state and parents socialized and controlled children, for example, earlier through integration into the work force versus current prolonged dependency. Structural economic changes contributed to urban demographic transformations as earlier waves of European immigrants and subsequently internal African American migrants flooded into and altered cities, and posed different problems of assimilation and integration. Finally, juvenile courts are legislative creations and political processes determine their institutional contours. Policy makers—legislators, judges, youth advocates, and others—contest ideas about children and crime control in the guise of debates about juvenile courts' age of jurisdiction, transfer methods, delinquency, and criminal sanctions. These debates change in response to social and political forces that affect youth and crime policy.

Youths' ethnicity, race, and gender mark another social construction around which juvenile justice policies have changed over the past century. In the early twentieth century, waves of immigrants from Southern and Eastern Europe entered the United States. Juvenile courts were one of several institutions Progressive reformers created to assimilate, accul-

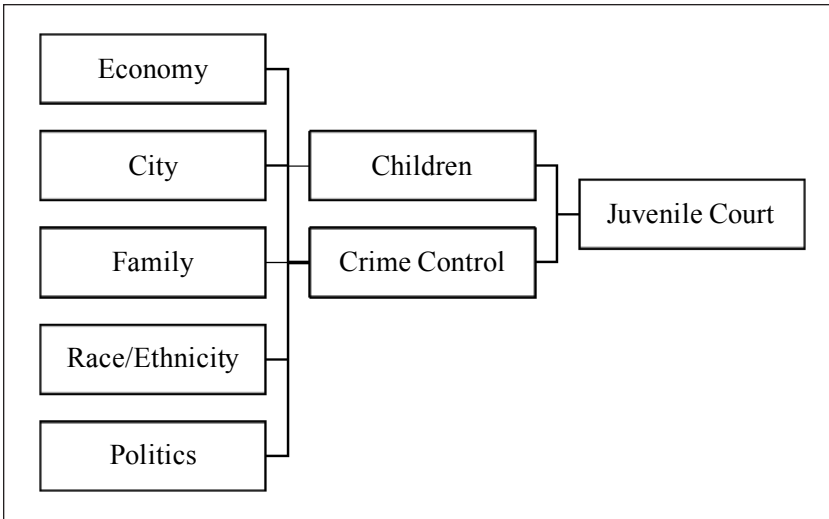


Figure I.1. Social Construction of the Juvenile Court

turate, and prepare them for citizenship. A half century later, the Great Migration of African Americans from Southern farms to Northern and Western cities posed challenges of integration in a society deeply divided by race.

The legal and political responses to African Americans during the second half of the twentieth century have had two distinct manifestations. During the 1950s and 1960s, the Supreme Court imposed equality norms on Southern states that embraced a segregated Jim Crow legal system and sought to bring Blacks into full participation as citizens. The decisions reflected a shift in constitutional jurisprudence to protect individual and civil rights. The Great Migration of African Americans in the decades before and after World War II increased their urbanization, placed racial equality and civil rights on the national political agenda, and motivated the Court to address racial discrimination and criminal and juvenile justice administration. The Court's desegregation decisions in *Brown v. Board of Education*, criminal procedure decisions like *Mapp v. Ohio* and *Miranda v. Arizona*, and juvenile court opinions like *In re Gault* share the common but unstated goals of protecting minority rights, limiting states' coercive powers, and bringing Blacks into the legal and cultural mainstream.

An almost immediate backlash to Blacks' civil rights gains began in the 1960s as Republican politicians pursued a Southern strategy, used crime and welfare as wedge issues to appeal to white voters' racial animus, and advocated get tough policies that affected juvenile and criminal justice administration. These repressive strategies had a disparate impact and disproportionately excluded Blacks from civil society. For adult offenders, it led to the era of mass incarceration. For younger offenders, get tough policies exacerbated racial differences in juvenile justice administration.

I focus primarily on the experience of African American children in the juvenile justice system. The justice system's response to various groups—African Americans, Latinos, Native Americans, Asians, ethnic Europeans, and others—unfolds against the centrality of whiteness in defining race relations. But all racial and ethnic groups did not share the same history or face equally destructive discrimination. The legacy of American racism is rooted in the original constitutional compromise that allowed slave-holding Southern states to count Blacks as “three fifths of all other persons” for legislative apportionment purposes, to increase their representation in the House and electoral votes and to enable them to exercise disproportional political power until the Civil War. Despite some racial progress, the integration and inclusion of Blacks remains what Gunnar Myrdal described three-quarters of a century ago as the unresolved *American Dilemma: The Negro Problem and Modern Democracy*. The Supreme Court's civil rights and due process decisions explicitly or implicitly addressed issues of inequality and injustice toward Blacks. The Get Tough Era of juvenile justice unfolded against the backdrop of the deindustrialization of urban America, the emergence of a Black underclass living in concentrated poverty, and the confluence of crack cocaine and gun violence.

Because of the unique experience of African Americans, there is more extensive research on Black children in the juvenile justice system than of young Hispanics, Native Americans, Asians, or members of other ethnic groups. Some analysts have examined other groups' encounters with systems of social control. David Adams's *Education for Extinction: American Indians and the Boarding School Experience* describes the boarding schools for Native American youth designed to acculturate and “civilize” them. Miroslava Chávez-García's *States of Delinquency:*

Race and Science in the Making of California's Juvenile Justice System examines the experiences of Hispanic youth in California. Other scholars can, should, and will write books about other racial and ethnic groups' encounters with juvenile justice. But that is not my goal in this book. No other group bears the legacy of slavery and the savage dominion of Jim Crow. No other group has been the direct target of criminal justice policies with deliberate disparate impact. Moreover, the political and legal responses to African Americans provide the connection between the Warren Court's emphases on civil rights and procedural justice and subsequent efforts to get tough on youth crime. Only the unique social and political status of African Americans can account for Republicans' Southern strategy to exploit urban crime and politicize juvenile and criminal justice policy.

Historically, juvenile courts' responses to girls have differed from the ones to boys. Industrialization brought young women to cities and exposed them to the hazards of prostitution and sexual exploitation. During the Progressive Era, Victorian sensibilities and concerns about female sexuality encouraged regulation of teenage girls for waywardness, incorrigibility, and sexual precocity. More recently, policy makers have recast girls' acting-out behavior as violent misconduct. Despite changes in practices, juvenile courts' responses to girls continue to differ from those to boys and reflect differences in the social construction of gender.

I divide this book into four parts corresponding with the four eras of juvenile justice—the Progressive Era, the Due Process Era, the Get Tough Era, and the Kids Are Different Era. Part I (Chapter 1) provides an overview of the early juvenile court—its structural origins, philosophical underpinnings, historic mission, and discriminatory practices. Part II (Chapter 2) examines the Warren Court's due process revolution of the 1960s—its response to racial inequality, its decisions to grant delinquents some procedural safeguards, and its intended and unintended consequences. Part III examines some causes and consequences of the Get Tough Era. Chapters 3 and 4 examine why and how perceptions of youth and crime changed during the Get Tough Era of the 1980s and 1990s. Chapter 3 examines macro-structural forces and political processes that created segregated areas of concentrated poverty. In the 1970s, factory closures produced massive layoffs that disproportionately affected minority workers. In the 1980s, crack cocaine and gun violence devas-

tated inner cities reeling from deindustrialization and led to an increase in Black youth homicide. Chapter 4 examines the politics of race and crime. Conservative politicians used racial appeals, manipulated and exploited public fears, and waged a succession of wars on crime, drugs, and youth that disproportionately affected Black residents of inner cities. Chapter 5 examines punitive shifts in juvenile justice policies—transfer, detention, and sentencing—during the 1980s and 1990s that produced substantial racial disparities. Chapter 6 focuses on changing responses to females that reframed status offenders as violent girls. Chapter 7 examines the school-to-prison pipeline that paralleled punitive changes in juvenile justice and had a disproportionate impact on minority students. Part IV examines adolescent culpability and competence through the lens of Supreme Court decisions reaffirming that “children are different.” Chapter 8 reviews the trilogy of Court decisions—*Roper*, *Graham*, and *Miller*—that emphasized youths’ diminished responsibility. The Court relied on developmental psychology and neuroscience research to limit the most severe sentences states inflict on youths. Recognizing that children are different also implicates juveniles’ competence to exercise rights and the quality of justice in juvenile courts. Chapter 9 examines research on adolescents’ compromised competence, legal standards that treat juveniles like adults, juvenile courts’ procedural deficiencies, and the heightened risks of wrongful convictions. The Epilogue draws on contemporary understanding of adolescent culpability and competence to envision a justice system for children. But juvenile courts do not directly cause delinquency and can do little to ameliorate its root causes—child poverty—which require more fundamental change.

CHAPTER 1. THE PROGRESSIVE JUVENILE COURT. At the end of the nineteenth century, the transition from an agrarian to a manufacturing economy increased immigration and fostered rapid urbanization.¹ Industrialization attracted massive waves of European immigrants who crowded into urban ghettos and altered the structure of cities. Assimilating and acculturating people who differed in language, religion, and culture posed challenges for the Anglo-Protestant Americans who had preceded them. The shift from family farms and shops to factories altered the roles of women and children. During this period, upper- and middle-class child-savers promoted a social construction of children

as vulnerable, immature, and dependent, who required protection and supervision.² Positivist criminology attributed criminal behavior to external antecedent forces and reformers adopted discretionary policies to rehabilitate offenders—probation, parole, indeterminate sentences, and juvenile courts.³ They created a separate justice system to shield children from criminal courts, jails, and prisons. Two goals animated juvenile courts' creators: an interventionist rationale and a diversionary one. The more expansive interventionist vision expected juvenile courts to identify causes of youths' misbehavior, to intervene, and to promote their development into responsible adults. Juvenile courts' less articulated diversionary purpose was to minimize the harms the criminal justice system inflicted on young people. They could accomplish their diversionary goal simply by providing an alternative to criminal courts even if their rehabilitative goal proved more elusive. Juvenile courts melded the new ideology of childhood with the new theory of crime control, introduced a judicial-welfare alternative to remove children from the criminal justice system, and promised individualized treatment in a nonpunitive child welfare system. Juvenile courts' rehabilitative mission envisioned a specialized judge trained in social work and child development whose empathy and insight would enable him to make dispositions in a child's best interests.⁴ Progressives defined the court's jurisdiction broadly to include youths accused of crimes, noncriminal-status offenders at risk to become delinquents, and abused and neglected children. Juvenile courts' rehabilitative dispositions focused on youths' future welfare rather than their past offenses and could continue for the duration of minority. The courts' founders conceived of children as immature and irresponsible and opposed procedural safeguards that could impede open communication between judge and child.⁵ Progressive reformers intended juvenile courts to discriminate: to control poor and immigrant children, to assimilate and Americanize them, and to distinguish between their own children and other people's children.⁶ They exhibited less solicitude toward Black youngsters, most of whom remained in the South. While probation was the disposition of first resort, the institutions to which judges disproportionately committed poor and immigrant children more closely resembled youth prisons than clinics. Reformers exhibited special concern about females exposed

to the corrupting influences of a rapidly industrializing society. Juvenile courts' status jurisdiction enabled them to intervene and regulate girls' noncriminal behavior such as sexual activity and immorality.⁷

CHAPTER 2. THE DUE PROCESS REVOLUTION AND THE JUVENILE COURT. In the decades prior to and after World War II, the Great Migration from the rural South to the industrial North and West increased the urbanization of Blacks, placed issues of racial equality and civil rights on the national political agenda, and provided impetus for constitutional and legislative reforms.⁸ The outbreak of World War I in 1914 curtailed European immigration and created a demand for southern Black laborers to work in northern factories. When Blacks left rural farms, they almost always moved to cities. In the post–World War II era, public policies and private practices forced them to live primarily in racially segregated ghettos. With the urban influx, whites moved from cities to suburbs in ever larger numbers. In the 1950s and 1960s, a more assertive civil rights movement initially challenged segregation in the South and emerged as a social movement against racism throughout the country. In the decade between *Brown v. Board of Education* in 1954 and the passage of the Civil Rights Act in 1964, the Court and Congress adopted norms of racial equality and eliminated the legal foundations of segregation. Youth crime increased in the 1960s as baby boom children reached adolescence. The increased urbanization of Blacks led to higher crime rates in minority areas. Race riots rocked many American cities between 1964 and 1968. These broader structural and demographic changes and their effects provided the backdrop for the Warren Court's civil rights decisions, criminal procedure rulings, and juvenile court opinions. Its criminal procedure decisions reflected an attempt to protect minority citizens and to limit states' authority. The 1967 President's Crime Commission *Task Force Report on Juvenile Delinquency and Youth Crime* revealed juvenile courts' procedural deficiencies, inadequate correctional institutions, and racial disparities. Drawing on its critique, *In re Gault* highlighted the disjunction between juvenile courts' rehabilitative rhetoric—long used to justify the dearth of procedural safeguards—and the reality of court and correctional practices. Mandating procedural safeguards, the Court envisioned youths as competent to exercise legal rights and to participate in an adversarial system. Subsequent decisions further criminalized delinquency proceedings. *In*

re Winship required states to prove delinquents' guilt by the criminal law standard of proof beyond a reasonable doubt. *Breed v. Jones* applied the ban on double jeopardy based on the functional equivalence of criminal trials and delinquency proceedings. However, *McKeiver v. Pennsylvania* denied delinquents the constitutional right to a jury trial available to criminal defendants because it might adversely affect juvenile courts' informality, flexibility, and confidentiality. Although granting delinquents some procedural rights might impair juvenile courts' ability to intervene in children's lives, safeguards would not impede their ability to divert youths and avoid the harms of the criminal justice system. But granting delinquents some safeguards legitimated increasingly punitive penalties that fell most heavily on minority offenders. The Court's due process revolution coincided with a synergy of campus disorders, escalating crime rates, urban racial rebellions, dissatisfaction with the treatment model, and emerging politics of crime that prompted calls for a return to classical criminal law and paved the way for get tough policies.⁹

CHAPTER 3. THE GET TOUGH ERA I: STRUCTURAL CHANGE AND YOUTH CRIME. Structural, economic, and racial demographic changes in American cities during the 1970s and 1980s contributed to escalating Black youth homicide rates at the end of the 1980s and provided the context within which states adopted get tough policies.¹⁰ The Great Migration increased the concentration of impoverished African Americans consigned to inner-city ghettos. Federal housing, highway, and mortgage policies combined with bank redlining and real estate block-busting and related sales practices to create increasingly poor minority urban cores surrounded by predominantly white affluent suburbs. Unlike earlier European immigrants who provided valuable labor during the period of rapid industrialization, Black internal migrants arrived to face a shrinking manufacturing sector. Beginning in the early 1970s, the United States began to shift from a manufacturing to an information and service economy. The globalization of manufacturing and technological innovations eliminated many jobs of less skilled workers and produced a bifurcation of economic opportunities based on education and technical skills. The economic changes adversely affected Blacks more deeply than other groups because of their more recent entry into the manufacturing economy, their vulnerability in the social stratification system, their lower average educational attainment, and their spatial isolation

from sectors of job growth. In the 1980s, deindustrialization and white flight left an impoverished Black underclass trapped in urban ghettos.¹¹ The introduction of crack cocaine and proliferation of guns sparked turf wars over control of drug markets. Black youth homicide rates sharply escalated and gun violence provided political impetus to transform juvenile justice policies.¹²

CHAPTER 4. THE GET TOUGH ERA II: POLITICS OF RACE AND CRIME. Following *Brown v. Board of Education*, civil rights activists responded to Southern whites' "massive resistance" to integration with direct action and civil disobedience. Southern politicians and law enforcement responded violently to disruptive strategies, described activists as "outside agitators," and conflated civil rights protests with crime. In the 1960s, the baby boom rise in youth crime and urban racial disorders evoked fear of crime in the streets. National Republican politicians decried a crisis of law and order, pursued a Southern strategy to appeal to white Southern voters' racial antipathy and resistance to school integration, and engineered a conservative backlash to foster a political realignment around race and public policy issues.¹³ Conservatives rejected structural root-cause explanations of crime and poverty and instead attributed them to individuals' bad choices, personal character failings, and cultural shortcomings. Republicans' Southern strategy appealed to various constituencies—white Southerners, suburbanites, socially conservative ethnic Catholics and blue-collar workers—by using coded anti-Black rhetoric. Political divisions about race and social policy enabled conservative politicians to advocate punitive crime and welfare policies for electoral advantage. In the 1980s and 1990s, those policies produced mass incarceration for adult offenders, fostered changes in juvenile courts' transfer and sentencing laws, altered responses to female offenders, and fueled a school-to-prison pipeline.

CHAPTER 5. THE KID IS A CRIMINAL: TRANSFER AND DELINQUENCY SANCTIONS. Progressive reformers created juvenile courts to divert youths from the criminal justice system and to provide an alternative rehabilitative welfare system. During the Get Tough Era, changes in state laws challenged both their diversionary and interventionist goals. Retribution, deterrence, and selective incapacitation displaced rehabilitation as sentencing policy rationales and states replaced indeterminate delinquency sentences with determinate ones. States passed laws to

transfer more and younger juveniles to criminal court for prosecution as adults.¹⁴ They emphasized offenses rather than offenders and shifted discretion from judges to prosecutors to decide youth's juvenile or criminal status. Blended sentences further eroded the formal demarcation between juvenile and criminal courts. Studies consistently reported racial disparities in waiver decisions and get tough reforms exacerbated inequalities.¹⁵ Once transferred, criminal court judges often imposed harsher sentences on youths than on comparable young adult defendants.¹⁶ Transfer laws reflected legislators' expressive condemnation of crime without regard to its instrumental impact on offending or appreciation of youthful mitigation.

Get tough policies affected juvenile courts' detention and sentencing practices and eroded the always tenuous distinctions between treatment and punishment. Reflecting the politics of race and crime, juvenile courts detained minority youths at higher rates than white youths. States made delinquency sanctions tougher as well. They amended juvenile codes' purpose clauses to endorse punishment and adopted offense-based sentencing guidelines or mandatory minimum sentences.¹⁷ Juvenile court judges' sentencing practices increasingly resembled those of criminal courts. Institutional conditions of confinement often precluded effective treatment. Juvenile courts' harsher sentences fell disproportionately heavily on minority youths.¹⁸ While these changes undermined juvenile courts' traditional rehabilitative claims, delinquency sanctions were less harsh or life-course altering than those imposed in criminal courts. Juvenile courts fulfilled their diversionary mission—protecting youths from criminal punishment—even as their failure to achieve their rehabilitative goals became more evident.

CHAPTER 6. THE GIRL IS A CRIMINAL: THE IMPACT OF GET TOUGH POLICIES ON GIRLS. Historically, juvenile courts dealt with girls primarily for status offenses, often a euphemism for sexual activity or incipient prostitution. Federal and state policy changes in the 1970s limited judges' authority to commit noncriminal girls to delinquency institutions. During the Get Tough Era, justice system personnel perceived a frightening upsurge in violence by girls. Police arrests of female juveniles for offenses such as simple and aggravated assault increased more or decreased less than those of their male counterparts and augured a closing of the offending gender gap. However, comparing boys' and girls'

official arrest data with self-report and victimization surveys suggests that the perceived increase in girl violence is a social construction rather than empirical reality. Changes in girls' arrests likely reflect a greater propensity to charge less serious conduct as assaults, changing police responses to domestic violence, and parents' diminished tolerance of females' acting out. Policies to divert status offenders from secure confinement provided an impetus for court personnel to relabel girls as delinquents to place them in institutions and reflect historic paternalistic efforts to control young women.

CHAPTER 7. THE STUDENT IS A CRIMINAL: GET TOUGH POLICIES AND THE SCHOOL-TO-PRISON PIPELINE. From their inception, public schools served important social control and acculturation functions. Progressives' passage of compulsory attendance and truancy laws enforceable by juvenile courts reflect schools' roles as agencies of social control, assimilation, and acculturation of immigrant children. A century later, school disciplinary practices changed in tandem with get tough juvenile justice policies. The Court in *T.L.O. vs. New Jersey* authorized school officials to search students under a lower Fourth Amendment standard than that required to search adults—reasonable suspicion rather than probable cause. Since the 1990s, the presence of police in schools—school resource officers—has increased greatly and they search students under the lower Fourth Amendment standard. Schools rely increasingly on technology—metal detectors, cameras, and drug canines—and heightened surveillance increases the likelihood of detecting wrong doing. Schools have adopted zero-tolerance policies toward misconduct and respond to student deviance with punitive and exclusionary sanctions. High-stakes testing give schools financial incentives to exclude low-performing students. The confluence of laws and policies have fostered a school-to-prison-pipeline that disproportionately affects urban Black males.

CHAPTER 8. THE CRIMINAL IS A KID: ADOLESCENTS' DIMINISHED CULPABILITY. During the Get Tough Era, states transferred more and younger juveniles for prosecution as adults without consideration of their criminal responsibility. In response to counterproductive punitiveness, the MacArthur Foundation sponsored a research network on developmental psychology and neuroscience that focused on adolescents' judgment and self-control and provided a rationale

for youths' diminished criminal responsibility.¹⁹ In 2005, the Court in *Roper v. Simmons* categorically barred states from executing youths for crimes committed prior to eighteen years of age. *Roper* offered three reasons—immature judgment, susceptibility to negative peer influences, and transitional personalities—to find that juveniles are categorically less criminally responsible than adults. Developmental psychological and neuroscience research supports the Court's conclusion that juveniles' immature decision making, impulsivity, and limited self-control reduced their culpability. *Graham v. Florida* applied *Roper's* diminished responsibility rationale to youths convicted of non-homicide crimes and categorically prohibited judges from imposing life without parole sentences. *Miller v. Alabama* prohibited states from imposing *mandatory* life without parole sentences on juveniles convicted of murder and required individualized culpability assessments. Despite *Roper*, *Graham*, and *Miller's* affirmation of adolescents' reduced culpability, the Court provided the affected juveniles with limited relief and legislators with little guidance to implement its constitutional conclusion that “children are different.” State lawmakers and courts have adopted grudging and inconsistent responses to those opinions. I propose a categorical Youth Discount—shorter sentences for reduced culpability—as a straightforward approach to formally recognize youthfulness as a mitigating factor.

CHAPTER 9. THE DEFENDANT IS A KID: ADOLESCENTS' COMPETENCE TO EXERCISE PROCEDURAL RIGHTS. Delinquency proceedings are much more formal than those envisioned a century ago. Their increased complexity makes greater demands on children's ability to make legal decisions. Developmental psychologists have examined adolescents' capacity to participate in legal proceedings, their ability to exercise *Miranda* rights, and their competence to waive counsel. The research questions whether adolescents possess the cognitive ability, maturity, and judgment necessary to exercise legal rights. Many of the developmental features on which *Roper*, *Graham*, and *Miller* relied—impaired judgment and self-control, impulsivity, short-sightedness, and susceptibility to social influences—contribute to their reduced competence to exercise rights. Despite developmental differences, most states do not provide additional safeguards to protect juveniles from their own immaturity and instead use adult legal standards that put them at a disadvantage. Despite juvenile courts' increased punitiveness, the vast

majority of states deny delinquents the right to a jury trial. As a result, states convict them more easily than similarly situated adults. Collateral consequences of delinquency convictions amplify juvenile courts' procedural deficiencies. States use prior delinquency convictions to transfer youths to criminal court and to enhance their sentences.²⁰ Delinquency convictions may provide the predicate for sex offender registration, while drug convictions may bar youths and their families from public housing, and the like.

EPILOGUE: OPPORTUNITIES AND OBSTACLES. There is a window of opportunity to pursue juvenile justice reforms. The crime drop reduces public anxiety and its political salience. Advances in developmental psychology and neuroscience heighten understanding of children's behavior and increase prospects to change it. Youth advocacy groups pressure courts and legislatures to implement reforms. The conclusion describes a justice system that reflects the founding principles of juvenile courts and increased appreciation that kids are different.

No justice system reforms can address the root causes of most delinquency—child poverty and its attendant consequences. Child poverty in the United States is two to five times higher than that of other Western democracies; poverty rates for children of color are quadruple those of white children. Other Western democracies successfully have adopted social policies—a children's allowance, paid parental leave, and subsidized child care—to alleviate child poverty. The United States' failure to reduce child poverty is rooted in political economy, racial and economic inequality, and a lack of political leadership or willingness to care for other people's children.

The Progressive Juvenile Court

Progressive reformers who created juvenile courts at the end of the nineteenth century culminated an ideological and legal differentiation of youths from adults that began centuries earlier.¹ Urban upper- and middle-class child-savers embraced an ideal of children's innocence and vulnerability that emerged during America's transition from an agricultural to an industrial economy. Because children lacked adult reason or legal capacity, their parents and the state had to educate them and prepare them for citizenship. Progressive reformers adopted a more modern and scientific conception of crime control—positivist criminology—that sought to identify the causes of criminality and to treat rather than punish offenders. Juvenile courts combined the new vision of children with new strategies of crime control to remove children from the criminal justice system—a diversionary rationale—to provide a rehabilitative alternative to criminal punishment—an interventionist rationale—and to enforce the newer conception of childhood.

This separate system simultaneously affirmed families' role in raising their children in conformity with the new ideas of childhood and expanded the state's prerogative to act as *parens patriae*—super-parent—and to control those who failed to do so. Because some parents did not subscribe to Progressives' views of child rearing, one of juvenile courts' functions was to control and regulate poor and immigrant families and youths. At their inception, reformers intended juvenile courts to assimilate and Americanize children of the Southern and Eastern European immigrants pouring into Eastern and Midwestern cities. At that time, they did not view Black children—most of whom still lived in the rural South—with the same solicitude accorded white ethnic youths in the North.²

This chapter first examines how modernization and industrialization attracted immigrants and altered the organization of cities. It then assays how modernization affected families and changed the social con-

struction of childhood. The Progressive movement arose to control and administer social change associated with modernization and to assimilate and acculturate immigrants flooding into industrial cities. Progressive reformers drew on new ideologies of crime control—positivist criminology—to divert children from the criminal justice and to create a judicial-welfare hybrid to rehabilitate and control them. Juvenile courts rejected the trappings of criminal courts and used informal processes to identify children's needs. They created a two-track system of probation and institutional confinement that discriminated between “our children” and “other people's children.”

Modernization: Industrialization, Immigration, and Urbanization

In the decades after the Civil War, economic modernization transformed America from a rural, agrarian, Anglo-Protestant society into a more ethnically diverse, urban, and industrial one.³ Between 1870 and World War I, a national network of railroads fostered economic growth, changed manufacturing processes, and stimulated rapid development. Railroads connected and created national markets and expanded opportunities for large-scale manufacturing, mining, construction, trade, finance, and transportation.⁴ Techniques of mass production enabled unskilled workers on assembly lines to boost industrial output. As industries grew, corporations increasingly dominated the economy. A new, better-educated class of managers, professionals, and engineers staffed burgeoning industries, worked within bureaucratic settings, and developed technocratic solutions to economic problems.

Expanded manufacturing and economic opportunities attracted new immigrants. Between 1890 and 1910, the numbers and countries of origin of European immigrants changed significantly. A trickle became a flood as more than one million immigrants per year entered the country between the 1890s and the outbreak of World War I. America's population nearly doubled between 1885 and 1915 and by 1920, immigrants or their children comprised about half the residents of the larger cities.⁵ The populations of many cities doubled from one decade to the next, accompanied by sharp social dislocations, poverty, inequality, and increased crime.⁶ The language, religion, and culture of the new immi-

grants from Southern and Eastern Europe differed from those of the Anglo-Protestant settlers who had preceded them.⁷ They crowded into ethnic enclaves and slums around industrial centers. They threatened America's linguistic, cultural, and ethnic homogeneity and posed challenges of assimilation and acculturation for those whose forebears had arrived a few generations earlier.⁸

Industrialization, internal migration from the countryside, and European immigration altered the structure of cities. Previously, residential areas remained socially and economically heterogeneous. Most people lived within walking distance of their work, and social, economic, and ethnic residential segregation did not separate well-to-do people from poor ones.⁹ With industrialization, urban density increased as new immigrants packed into ethnic ghettos and middle-class and wealthier people moved to emerging suburbs.¹⁰ The overwhelming numbers, spatial segregation, and linguistic and cultural differences of the newer immigrants hindered their assimilation.¹¹ Many came from rural backgrounds and subscribed to traditional ideas of childhood in which children worked and participated in adult activities. Progressive child-savers' cultural construction of childhood clashed with that of immigrant parents who could not afford prolonged child dependency.¹²

Modern Family and Childhood

The transition from an agricultural to an industrial society shifted work from household-based economies to industries, contributed to a privatizing of family life, and modified the roles of women and children.¹³ Children have less economic value in an industrial society than in an agricultural one in which they can work as farm hands. The shift from family farms or shops to factories affected the number and spacing of children.¹⁴ The idea of childhood is socially constructed, specifies the social, emotional, and intellectual properties that people believe distinguish children from adults, and changes in response to other social forces.¹⁵

Until relatively recently, people viewed children as small adults who should be quickly integrated into grownup economic and social roles.¹⁶ Only within the past two or three centuries did Western societies begin

to distinguish the ages between infancy and adulthood as separate developmental periods.¹⁷ In the more modern view, children are not miniature adults, childhood and adolescence represent separate developmental stages, and parents invest greater resources in rearing children.¹⁸ Philippe Aries traced the modernizing conception of childhood to the upper bourgeoisie and nobility in sixteenth- and seventeenth-century Europe, whose views gradually diffused downward through the social classes.¹⁹ Historians associate changes in attitudes toward children to a decline in infant mortality, increased literacy, and economic shifts from farm and home-shops to other work environments.²⁰

By the early nineteenth century, the newer view of childhood began to alter child-rearing practices in America.²¹ By the end of the century, urban upper- and middle-class parents invested greater efforts to prepare their children for adulthood and to restrict their autonomous departures from home. They envisioned children as vulnerable, dependent, and innocent, who required special protection and supervision.²² Decreased fertility, increased life expectancy, and expanded educational opportunities enabled more privileged women to assume greater roles in improving the social, developmental, and material conditions under which their own and other people's children grew up.²³ They expanded their domestic roles as raisers of children and caretakers into the public realm. Child-saving women supported social and legal reforms to promote children's development and welfare—juvenile courts, child welfare, child labor, compulsory school attendance, kindergarten, and other endeavors.²⁴ They imposed their vision of childhood innocence and vulnerability on those who did not share it.²⁵

Progressives, the State, and the Child

Progressive movements emerged at the end of the nineteenth century in response to the structural changes and dislocations associated with urbanization and industrialization. Progressive reformers shared middle- to upper-class backgrounds, higher levels of education, belief in the use of science and knowledge to manage change, and confidence in the social order within which they flourished. Progressives included diverse ideologies and political affiliations, reflected different temperaments and styles, and addressed myriad social problems associated with

the industrial city: poverty, population density, disorder and crime, public health, and inadequate social services. The growing cities proved especially conducive to juvenile mischief and crime.²⁶ Progressives responded to monopoly economic power with corporate regulation and anti-trust laws; to political corruption with good government, civil service, and electoral reforms; to inadequate sanitation, poor housing, and tainted food with public health efforts, building codes, and food and drug regulation; and to crime and disorder with criminal and juvenile justice reforms.²⁷

Progressive reformers embraced many child-saving programs to address threats to children's development: inadequate housing, dysfunctional and broken families, dependency and neglect, poverty, crime and delinquency, and economic exploitation. The emergence of new disciplines and professions like medicine, psychology, and social work at the end of the nineteenth century enabled Progressives to invoke science, rationality, and technical expertise to legitimate their agenda and expand their authority.²⁸ They believed that experts and professionals could and should solve social problems.²⁹

Progressives used the state to inculcate their values through a process of democratization and citizen building. They believed that "[t]he state was to be an agent of reform as well as of repression, of care as well as control, of welfare as well as punishment."³⁰ They believed that children were more malleable than adults and would internalize their norms and expectations.³¹ "The most distinguishing characteristic of Progressivism was its fundamental trust in the power of the state to do good. The state was not the enemy of liberty, but the friend of equality and to expand its domain and increase its power was to be in harmony with the spirit of the age. . . . The state was not a behemoth to be chained and fettered, but an agent capable of fulfilling an ambitious program."³² Progressives viewed individual and societal welfare as co-extensive and saw no need to protect individuals from state benevolence.³³ Successful child development promoted social welfare and the family and the parental state shared joint responsibility.

Progressives sought to acculturate and Americanize the recent European immigrants to become middle-class Americans like themselves. Social Darwinism—"the survival of the fittest"—provided a comforting rationale for inequality and elite domination of those of inferior races.

But within the ethnic and racial hierarchies, reformers viewed European immigrants as indigenous whites, albeit of lower orders, and ultimately culturally, economically, and biologically assimilable, unlike members of the “colored” races.³⁴ In *A Piece of the Pie*, Stanley Lieberman emphasizes that Progressives’ agenda to assimilate European immigrants differed sharply from the exclusionary and segregationist treatment of Blacks in the rural South.³⁵ When Blacks moved north during the Great Migration, these differences in policies of inclusion versus exclusion shaped their experiences very differently than those of the white European immigrants, differences that resonate into the twenty-first century.

The Progressives combined their belief in state power and professional expertise with the modern concept of childhood. The doctrine of *parens patriae*—the state as parent-surrogate—provided the legal foundation for intervention into family privacy and domestic arrangements.³⁶ Although *parens patriae* doctrine originated in medieval English law to assure property interests and feudal succession, the American colonies invoked it to protect children from destitute or neglectful parents.³⁷

Progressives’ child-saving mission embodied contradictory assumptions. On the one hand, they embraced an idealized vision of childhood that provided a standard against which to measure parents’ success and children’s deviance. While affirming parents’ responsibility to raise their children, they simultaneously expanded the state’s role to oversee their child-rearing practices and to intervene when they failed.³⁸ *Parens patriae* legitimated Progressives’ programs to structure child development, to control and mold them, to protect them from parental maltreatment and economic exploitation, and to promote their growth for citizenship.³⁹ “The child was the carrier of tomorrow’s hope whose innocence and freedom made him singularly receptive to education in rational, humane behavior. Protect him, nurture him, and in his manhood he would create the bright new world of the Progressives’ vision.”⁴⁰ Progressives equated adolescents with younger children to differentiate them from adults and to deny them access to grownups’ roles and responsibilities.⁴¹ One goal of the parental-state was citizen building to prepare young people for self-governance and participation in civil affairs.⁴²

To prepare youths for citizenship, Progressives enacted a host of child-centered reforms—juvenile court, child labor, social welfare, and compulsory school attendance laws—that reflected and advanced their changing idea of childhood.⁴³ They intended these reforms to protect working-class and immigrant youths during the transition from childhood to adulthood and to prevent them from assuming adult economic and social roles prematurely.⁴⁴

Progressives expanded public schools as one of several age-segregated institutions with which to acculturate and control young people. The Common School movement began in New England in the 1830s and 1840s and antedated the juvenile court by about half a century. It shared similar goals to assimilate foreigners, inculcate common language and values among all citizens, and provide a form of social control to prevent crime.⁴⁵ By the end of the nineteenth century, literacy became a prerequisite to functioning in an industrial economy and formal education became one of children's primary developmental tasks.⁴⁶ School officials adopted the bureaucratic structure of factories and corporations and applied techniques of mass production in the educational context.⁴⁷ Age-graded schools enabled reformers to classify youths by age, supervise and control them, and inculcate the dominant culture's values. To prepare children as future workers, schools demanded discipline, punctuality, and the ability to perform repetitive tasks and to adhere to schedules.⁴⁸ Schools structured the power relationships between administrators and teachers and between teachers and students to replicate divisions of labor and to socialize young people for domination and subordination in the industrial economy.⁴⁹ "The emphasis on the orderly movement of students and their obedience to strict codes of conduct is important both to schools' operational functioning and to their societal functions. . . . [S]trict disciplinary regimens in working class schools help to promote smooth and voluntary transitions into an industrial workplace that tightly regulates and subordinates laborers."⁵⁰ By emphasizing certain cognitive skills and rewarding students who, by virtue of their class position, came to school best equipped to exhibit those behaviors, schools reinforced and replicated social inequality.⁵¹ I argue in Chapter 7 that the contemporary school-to-prison pipeline reflects schools' historic role of maintaining social control and reinforcing race and class inequality.

Criminal Responsibility and the Juvenile Court

Before Progressives created juvenile courts, the criminal law's infancy defense provided the only substantive legal doctrine that recognized children's diminished responsibility.⁵² Criminal law assumed that people exercised free will, chose to engage in blameworthy conduct, and deserved punishment for the harms they caused. It recognized that those who did not know right from wrong—severely mentally ill adults and very young children—could not be blamed for making bad choices or be deterred by threat of legal sanctions. Insanity and infancy provided narrow exceptions to the presumption of criminal responsibility. The infancy defense presumed that children younger than seven years of age lacked criminal responsibility, viewed those fourteen years of age or older as fully responsible, and rebuttably presumed that those between seven and thirteen years of age lacked criminal capacity.⁵³

At the beginning of the nineteenth century, the modernizing view of childhood and the differentiation of youths from adults led to the creation of separate institutions for youth. Jackson-era reformers feared that judges might dismiss cases against or jurors might acquit young offenders to avoid imposing harsh sentences for minor crimes.⁵⁴ In East Coast cities in the early to mid-nineteenth century, they created Houses of Refuge—age-segregated correctional institutions—to avoid jury nullification and increase control of youths.⁵⁵ Refuges were specialized institutions in which to shelter miscreant youth from the perceived corrupting influences of social change.⁵⁶ Refuge legislation distinguished between juvenile and adults, provided separate institutions for children, authorized indeterminate commitments to those sanctuaries, and broadened state authority to regulate a miscellany of youths—criminal offenders; wayward and disobedient children; and orphaned, dependent, or neglected youngsters.⁵⁷ In 1838, the Pennsylvania Supreme Court in *Ex parte Crouse* invoked the *parens patriae* doctrine to uphold confinement of troublesome youths.

[M]ay not the natural parents, when unequal to the task of education, or unworthy of it, be superseded by the *parens patriae*, or common guardian of the community? It is to be remembered that the public has a paramount interest in the virtue and knowledge of its members, and that, of

strict right, the business of education belongs to it. . . . The infant has been snatched from a course which must have ended in confirmed depravity; and not only is the restraint of her person lawful, but it would be an act of extreme cruelty to release her from it.⁵⁸

Refuges' proactive intervention with minor, noncriminal, and unsupervised youth provided an antecedent to juvenile courts' status jurisdiction.

The first Houses of Refuge in Northern cities initially served only white males, but soon admitted white girls as well. Refuge managers originally excluded Black youths, whom they relegated to the criminal justice system because they doubted their potential for rehabilitation and feared racial commingling.⁵⁹ When they later admitted Black youths, they housed them in separate or segregated facilities. Black children typically remained in institutions longer than their white counterparts because white employers and families considered them less desirable candidates for apprenticeships or placing-out.⁶⁰

By mid-century, reformers created separate reformatories to which to commit vagrant and criminal youths.⁶¹ The building of reformatories coincided with increased immigration of Irish and other ethnic groups and provided a strategy to control them. Reformatory founders organized institutions on a cottage plan to replicate a family setting and located them in rural locales to insulate children from corrupting urban environments.⁶² "Those who sought to reform juvenile delinquents in mid-19th century America spoke the lofty language of nurture and environmentalism. Reform schools, they claimed, were not prisons but home-like institutions, veritable founts of generous sentiment. In fact, they were prisons, often brutal and disorderly ones."⁶³ Despite the deficiencies of Northern reformatories, the experiences of Black youths in the South were far worse. Southern states convicted, incarcerated, leased out, or consigned them to labor on chain gangs and sometimes executed them like their adult counterparts.⁶⁴

By the end of the nineteenth century, the changing ideas of childhood and newer explanations of criminality led to the creation of a separate juvenile court in Cook County, Illinois, in 1899. The juvenile court engrafted a separate judiciary and courtroom onto earlier generations' reforms—refuges and reformatories, separation of youths from adults, expansive authority over offenders and noncriminal youths, and mini-

mal procedural safeguards.⁶⁵ The juvenile court culminated the century-long process of differentiating adolescents from adults and coordinated previously distinct process—investigation, detention, hearing, disposition, and correctional institutions—under one agency.⁶⁶

Criminal justice policies reflect underlying ideological assumptions about the causes of and responses to crime.⁶⁷ Ideologies of crime “structure the ways in which we think about criminals, providing the intellectual frameworks (whether scientific or religious or commonsensical) through which we see these individuals, understand their motivations, and dispose of their cases. Cultural patterns also structure the ways in which we feel about offenders.”⁶⁸ At the end of the nineteenth century, positivist criminology supplanted classical formulation of crime as the product of free-will choices, attempted to identify antecedent forces that caused criminality, and provided a more modern and scientific conception of social control.⁶⁹ The classical criminal law assumed free-willed actors made blameworthy choices and deserved punishment for their crimes. Positivist criminology asserted that antecedent forces—biological, psychological, social, or environmental—caused criminal behavior.⁷⁰ It attributed crime to deterministic forces that constrained a person to act as he did rather than to a deliberate exercise of free will. Adherents of this perspective sought to scientifically identify those deterministic forces and develop ameliorative responses.⁷¹

Progressives believed that social disorganization associated with urban growth caused delinquency and required interventions to reform rather than to punish errant youths.⁷² Katherine Beckett describes the underlying ideological foundation for both criminal justice and social welfare practices. “[D]eviant behavior is at least partially caused (rather than freely chosen). Progressive reformers therefore identified rehabilitation—operationally defined as the use of ‘individualized corrective measures adapted to the specific case or the particular problem’—as the appropriate response to deviant behavior.”⁷³ Elizabeth Scott and Laurence Steinberg describe juvenile courts’ rehabilitative premise even more strongly—“the *sole* purpose of state intervention in delinquency cases was to promote the welfare of delinquent youths through rehabilitative interventions.”⁷⁴

Attributing criminal behavior to deterministic forces rather than to evil choices, Progressives downplayed actors’ moral responsibility and

focused on reform rather than punishment.⁷⁵ Positivism—the scientific search for causes and cures of crime—was one example of intellectual modernization—which emphasized the values of rationality, professionalism, and expertise—and drew support from other contemporaneous developments.⁷⁶ Darwin’s theory of evolution provided a rationale for inherited or biological determinants of criminal behavior.⁷⁷ Germ theory provided medical practitioners with a scientific understanding of the causes of diseases and strategies with which to treat or prevent them.⁷⁸ Criminal justice personnel analogized their practices to the medical profession and purported to treat offenders. In contrast with criminal law’s emphasis on blameworthy choices, the new criminology and justice system professionals borrowed medical methodology and vocabulary to enhance legitimacy and used metaphors like “pathology” and “infection” to diagnose and treat offenders.

The rehabilitative ideal rests on ideological assumptions about human malleability, the ability to effect reform, and agreement about the goals of change. Francis Allen describes its central assumptions:

The rehabilitative ideal . . . assumed, first, that human behavior is the product of antecedent causes. These causes can be identified. . . . Knowledge of the antecedents of human behavior makes possible an approach to the scientific control of human behavior. . . . [I]t is assumed that measures employed to treat the convicted offender should serve a therapeutic function; that such measures should be designed to effect changes in the behavior of the convicted person in the interest of his own happiness, health, and satisfaction and in the interest of social defense.⁷⁹

According to Allen, shared beliefs about ends and means—the goals of change and strategies to achieve them—sustain the rehabilitative ideal. Progressives believed that the new behavioral sciences provided the tools with which to change immigrants’ and poor peoples’ personality, character, and morals and lead them to adopt their middle-class values.⁸⁰

The rehabilitative project also affirmed democratic ideals. For Progressives, urban slums and ethnic ghettos prevented development of self-governance and participatory citizenship.⁸¹ Even though it took the form of coercive intervention, the rehabilitative ideology proposed to restore and reintegrate people who committed crimes or who had

fallen into poverty.⁸² Within a decade of juvenile courts' founding, the medicalization of delinquency led to increased emphasis on adolescent psychology and psychopathy. G. Stanley Hall's theory of adolescence posited that "every individual recapitulated the stages of human civilization. This theory had lent scientific legitimacy to the idea that children were qualitatively different from adults, and also focused attention on adolescence (the period in one's life from the onset of puberty to one's early twenties) as a particularly difficult developmental stage."⁸³

Industrialization led to a material prosperity previously unknown to most people, and reformers eschewed radical alternatives to the existing political and economic system. Confident in their social order, they emphasized changing individuals and improving their morals and character rather than addressing structural causes of crime like urbanization, poverty, inequality, and limited social mobility. Although Progressives recognized that social factors contributed to delinquency, they designed their programs to care for damaged individuals rather than to change the structural root causes. They blended a liberal humanitarian inclination to use state power to help the less fortunate with a conservative impulse to control and repress those who differed or posed a threat to social order.⁸⁴

The juvenile court melded the new ideology of childhood with the new strategies of crime control. One goal was to divert youths from the criminal justice system and to substitute the state as *parens patriae*.⁸⁵ Reformers viewed young offenders as innocent albeit misguided children, attributed their delinquency to adverse social conditions and inadequate parenting, and focused on control, guidance, and welfare rather than blame and punishment.⁸⁶ They believed that children were less blameworthy than were adults for criminal behavior and more amenable to change.⁸⁷ Because they viewed children as malleable, their coercive strategies emphasized both child welfare and social control—to eliminate causes of delinquency and to reform delinquents.⁸⁸ In addition to diverting youths from the criminal justice system, reformers viewed juvenile courts as agencies that would prepare youths for citizenship in the new republic.⁸⁹

Most histories of juvenile courts emphasize their rehabilitative or interventionist purpose. In this view, intervention by child-welfare experts would produce positive outcomes and benefit the community and the

child simultaneously. By contrast, Franklin Zimring argues that an important, albeit less prominent function of juvenile courts was to divert youths from criminal courts and to allow them to grow up in the community. “[A] child-centered juvenile court could avoid the many harms that criminal punishment visited on the young. The reformers believed that penalties were unnecessarily harsh and places of confinement were schools for crime, where the innocent were corrupted and the redeemable were instead confirmed in the path of chronic criminality. From this perspective, the first great virtue of the juvenile court was that it would not continue the destructive impact of the criminal justice system on children.”⁹⁰ Avoiding the harms that processing children as criminals would be beneficial regardless of whether juvenile courts’ treatment produced positive outcomes.

Progressive child-savers described the juvenile court as a benign therapeutic agency, although analysts differ whether their primary motivation was a humanitarian desire to save poor and immigrant children or to expand state control over them.⁹¹ Some critics argued that “the juvenile court’s founders intended from the very beginning to use procedural informality as a mechanism for social control rather than to rehabilitate wayward youth. . . . [I]t was not a benevolent enterprise gone awry but the very effective execution of social coercion operating behind the veil of rehabilitative informality.”⁹² *Parens patriae* legitimated intervention and undergirded claims that juvenile courts were civil welfare rather than criminal agencies. Characterizing intervention as welfare proceedings rather than criminal prosecutions gave reformers greater flexibility to supervise and control children. Like other diversionary reforms, analysts contend that juvenile courts had a net-widening effect, brought more youths under their control, and addressed behavior that criminal courts previously ignored or handled informally.⁹³

Juvenile courts’ role as agencies of assimilation and acculturation led them to distinguish and discriminate between children of European immigrants and Black youths. In *The Condemnation of Blackness*, Khalil Gibran Muhammad argues that Northern Progressives’ collection of crime statistics by race and emphases on disproportionate rates of Black arrests and prison confinement reinforced whites’ beliefs in Black inferiority and cultural pathology and supported discriminatory social welfare and public policies. “Progressive era white social scientists and

reformers often reified the racial criminalization process by framing white criminals sympathetically as victims of industrialization. They described a ‘great army of unfortunates’ juxtaposed against an army of self-destructive and pathological blacks who were their ‘own worst enem[ies].’⁹⁴

Juvenile courts’ status jurisdiction enabled reformers to regulate non-criminal misbehavior—sexual activity, immorality, truancy, or living a wayward, idle, and dissolute life.⁹⁵ This broad jurisdiction focused on a child’s status or circumstances.⁹⁶ Progressives did not distinguish between children who committed crimes and those who engaged in non-criminal misconduct or whose parents neglected them—all required support and moral guidance. Juvenile courts’ status jurisdiction enabled reformers to impose their middle-class manners and morals on those who did not subscribe to them. The status jurisdiction embodied the new vision of childhood innocence and vulnerability, furthered the legal differentiation between children and adults, and expanded state authority over child rearing and family functions. Juvenile courts’ truancy jurisdiction enabled them to enforce compulsory school attendance laws and to protect working-class and immigrant children from parental pressures to work and contribute to the family economy.⁹⁷

The status jurisdiction had special implications for girls, many of whose parents brought them to court for “sexual precocity” or fear they would become “lost women.”⁹⁸ “Girls who got in trouble exemplified new economic, social, and sexual opportunities available to urban young women in the early twentieth century. . . . ‘Delinquency’ was a label that families, reformers, and public officials applied to socially precocious and/or sexually active young women whom they sought to protect from the perceived risks of their behavior.”⁹⁹ The industrial economy required family members to contribute to the household economy, but sending young women to work exposed them to moral corruption, unscrupulous men, and the threat of prostitution.¹⁰⁰ Sexually active girls contradicted Progressives’ vision of childhood innocence and offended their Victorian sensibilities. Girls appeared in juvenile court far more often than did boys for immorality or sexual experimentation and judges confined proportionally more girls than boys for noncriminal behavior.¹⁰¹ Although judges committed foreign-born white boys to institutions twice as often as native ones, their commitment rates for native-born

and immigrant white girls did not differ significantly. “This suggests a more general concern with regulating the behavior and development of white girls, reflecting patriarchal interests in enforcing gender norms, and linked to racial politics of Americanizing the stock of potential mothers and wives for future white American families.”¹⁰² Reflecting prevailing racial attitudes, judges sanctioned white girls for status offenses far more often than Black girls, leading one analyst to conclude that “white, male-dominated juvenile court communities were indifferent to the precocious sexuality of black girls and little concerned with their equal protection.”¹⁰³

Juvenile Court Procedures

Some standard features of juvenile courts—private hearings, confidential records, separate detention facilities and courtrooms, and professional probation staff—were not part of the court’s original design, but later additions—a “work-in-progress.”¹⁰⁴ David Tanenhaus argues that those threatened by state intervention—poor and working-class people, immigrants, and Catholics—challenged some of its central elements.¹⁰⁵ For example, at their inception, juvenile courts opened hearings to the public to allay fears that judges would discriminate against Catholic youths or commit them to Protestant institutions.

A relationship exists between procedure and substance in juvenile courts. Issues of procedure implicate youths’ competence to exercise rights. Issues of substance involve juveniles’ culpability or criminal responsibility and appropriate dispositions. Because juvenile courts separated children from adults and provided a rehabilitative alternative to punishment, reformers rejected most criminal procedural safeguards. They assumed that children lacked the understanding or judgment to exercise legal rights.¹⁰⁶ Juvenile courts excluded lawyers and juries, abjured rules of evidence, and used a euphemistic vocabulary.¹⁰⁷ Progressives’ conception of juvenile court procedures

was to focus on the child or adolescent as a person in need of assistance, not on the act that brought him or her before the court. The proceedings were informal, with much discretion left to the juvenile court judge. Because the judge was to act in the best interests of the child, procedural

safeguards available to adults, such as the right to an attorney, the right to know the charges brought against one, the right to trial by jury, and the right to confront one's accuser, were thought unnecessary. Juvenile court proceedings were closed to the public and juvenile records were to remain confidential so as not to interfere with the child's or adolescent's ability to be rehabilitated and reintegrated into society.¹⁰⁸

Juvenile courts' child-welfare theory likened delinquency proceedings to a visit to a doctor rather than a court trial.¹⁰⁹ Just as a lawyer would not accompany a patient to a physician's examination, juvenile court judges viewed lawyers as an unnecessary intrusion. Judges enjoyed broad discretion and there was very little attorneys could do to affect the outcome of a case.¹¹⁰

Judges assumed that youths who appeared before them needed some type of correction and their goal was to determine what form it should take rather than to adjudicate the underlying facts.¹¹¹ Judges held an informal meeting in their chambers to make proceedings feel more personal and less threatening. Court personnel reviewed a child's circumstances, family, and background before the hearing to identify why she was in trouble and what could be done to ameliorate it.¹¹²

Reformers viewed young offenders as innocent and vulnerable—victims of their circumstances—rather than as criminally responsible actors. Theoretically, a youth's delinquency was only a symptom of her actual needs; her social circumstances and future welfare guided dispositions.¹¹³ Because juvenile courts existed to help children rather than to punish them, judges did not need to determine criminal responsibility or consider doctrines like insanity or infancy that might defeat jurisdiction.¹¹⁴

Juvenile courts' dispositions combined social welfare with crime control. States defined their jurisdiction based, in part, on violations of criminal laws and crimes provided the most common basis for intervention. The tension between a welfare orientation—the child's best interests—and control of criminal behavior created a fundamental and perhaps irreconcilable tension in juvenile courts' administration and dispositions from their inception.

Juvenile courts deemphasized their criminal foundations, rejected notions of criminal responsibility and punishment, blurred distinctions

between criminal violators and noncriminal children, and acted to improve their future welfare.¹¹⁵ Their broad jurisdiction enabled probation officers to supervise youths in their home, transfer them to another caretaker, or place them in a reformatory or institution.¹¹⁶ Judges imposed indeterminate and nonproportional dispositions that could continue for the duration of minority. Indeterminate dispositions had no set limit and could continue indefinitely until adulthood. Nonproportional dispositions rejected limits on the length of disposition based on what the child did.¹¹⁷ Each child differed, dispositions addressed her future needs, and her offense did not limit the duration or intensity of intervention.¹¹⁸

Reformers envisioned a specialized judge assisted by social service personnel and probation officers. They assumed that understanding and diagnosing a child's circumstances would lead to a prescription that would change a youth's character and behavior and prevent future delinquency. The juvenile court was a social welfare agency. "Children who had needs of any kind could be brought into the juvenile court, where their troubles would be diagnosed and the services they needed provided by court workers or obtained from other agencies."¹¹⁹ Judges decided cases individually, exercised broad discretion, and factors that influenced one decision did not necessarily govern the next.¹²⁰

Juvenile courts handled most cases informally and probation was the most common disposition.¹²¹ As a diversionary alternative to criminal courts, community supervision constituted a modest intrusion, did less harm than criminal processing or penal confinement, and allowed the court to exercise control cheaply.¹²² Probation enabled courts to handle youths efficiently, avoided nullification and dismissal if the state processed minor cases in criminal court, and expanded regulation to include noncriminal offenders.¹²³ Probation officers served as intermediaries who gave the court information about the child and supervised youths whom judges returned to the community.¹²⁴ Probation exposed youths' families to state supervision as well. "[T]he entire family, not just the child, became the subject for extended case work, which could involve demands to change jobs, find a new residence, become a better housekeeper, prepare different meals, give up alcohol, and abstain from sex."¹²⁵

Although juvenile courts exercised probationary supervision over most youths who appeared before them, judges could and did sentence substantial numbers of youths to institutions.¹²⁶ Reformers expanded on the cottage-plan model of reformatories, added academic and vocational programs, and relabeled institutions as vocational schools or industrial training schools.¹²⁷ Despite Progressives' rehabilitative rhetoric, juvenile institutions and reformatories were essentially custodial, punitive, and ineffective.¹²⁸ They almost inevitably subordinated rehabilitative ambitions to custodial considerations because of institutional needs to maintain order and control, protect staff, and forestall external criticisms. As Ellen Ryerson notes, the "fusion of social control with greater humane-ness is a tenuous one which typically dissolves, leaving the machinery for social control firmly entrenched—even if it is ineffective—after the spirit of humanitarianism has departed."¹²⁹ Similarly, Zimring argues that those who created the juvenile court did not expect training schools to be significant places of reform and their primary virtue was that they were not prisons.¹³⁰

The residents of these punitive institutions disproportionately were the children of the poor and immigrants.¹³¹ Progressives created juvenile courts to Americanize and acculturate poor and immigrant children who made up the vast majority of those who appeared before it. They expected them to discriminate between "other people's children" and their own middle-class offspring.¹³² David Rothman argues that juvenile courts operated a dual justice system: "one brand for the poor, another for the middle and upper classes. Judicial discretion may well have promoted judicial discrimination."¹³³ At the beginning of the twentieth century, the vast majority of Blacks still lived in the rural South and those who administered juvenile courts in the North reserved the institutions for white youths.¹³⁴

Judges could transfer cases of some young offenders to criminal courts. They used this authority sparingly to deal with the most serious or visible crimes committed by older youths.¹³⁵ The ability to transfer a few cases provided a safety valve that protected juvenile courts' jurisdiction to address the needs of or divert most youths from criminal courts. I argue in Chapter 5 that at the end of the twentieth century, law makers launched a frontal assault on juvenile courts' diversionary mission with get tough policies that shifted waiver discretion from judges to prosecu-

tors, relegated about two hundred thousand chronological juveniles a year to criminal courts, and disproportionately affected minority youths.

The ethnic and class discrimination embedded in juvenile justice administration reflected the structural context within which courts operated. Poor and immigrant children had more and greater needs than did children of those better off. They were more likely to come into contact with police, social welfare agents, and schools who identified them for intervention and less able to defend themselves. "Once consideration shifted from the crime to the criminal, class distinctions came almost inevitably to assume new significance when punishments were meted out."¹³⁶ The individualized justice of juvenile courts legitimated differing responses based on who youths and their family were, rather than what they did.

The creation of juvenile courts in Northern cities coincided with the emergence of Jim Crow justice in the South, where most Blacks lived. Unlike the assimilationist and citizen-building agenda of Northern reformers, Southern states tried Black youths in criminal court, committed them to adult prisons, subjected them to chain gangs and convict leasing, and executed them.¹³⁷ White Southerners did not expect Black children to become economically self-sufficient or political equals and excluded them from juvenile courts' citizen-building mission.¹³⁸ Matters were only marginally better for Black youths in the north in the early twentieth century. "Blacks were portrayed as heralding from an inferior culture, one so scarred by centuries of slavery that government intervention would be of little help until blacks uplifted their own race on their own. In short, white criminality was considered society's problem, but black criminality was considered blacks' problem."¹³⁹ As Chicago's Black population grew, the private Catholic and Protestant institutions to whom juvenile court judges committed youth accepted only white co-religionists. By drawing a clear color line, private institutions limited juvenile court judges' dispositional options. As a consequence, judges committed Black youths to state-run facilities sooner than they did other ethnic children and they remained confined longer than white youths.¹⁴⁰ "Whereas religion had been the most important consideration in the processing of the cases of children from 'foreign' families at the end of the century, as European immigrants were slowly becoming white Americans and more 'colored' people migrated to American

cities in the North and Midwest, the significance of race became more visible and tangible as the color line became more entrenched after World War I.”¹⁴¹

Conclusion

Progressive reformers defined young people as vulnerable and malleable, and enacted laws to supervise, control, and guide them. Child-saving laws formalized their dependency and excluded them from adult activities. Compulsory school attendance laws required youths to attend school. Child labor laws excluded them from the workplace. Juvenile courts’ delinquency and status jurisdiction extended state control potentially to all youth. These laws isolated children from adults, limited their social and economic roles, confined them with age-graded peers in schools, and prolonged their dependency. Progressives evinced special concern for poor and immigrant children whose parents’ economic necessity might cause their children to assume adult roles prematurely.

Despite their benevolent rhetoric, Progressive reformers intended juvenile courts to discriminate between “our children” and “other people’s children” whom they would acculturate, assimilate, and control.¹⁴² “Unlike blacks and other nonwhites, European immigrants and their embryonic-citizen child could potentially be reformed into whiteness, a requirement for eventual assimilation into the white body politic.”¹⁴³ White philanthropy was the primary source of crime prevention funding and immigrant children and native-born whites were the primary recipients, even though African American children’s needs were greater.¹⁴⁴ Reformers viewed white people’s criminality as society’s problem, but regarded Blacks’ crimes as a problem for them to solve alone. Reformers recognized that structural factors caused poor and immigrant whites to offend, but attributed the same behavior by Blacks to racial inferiority and cultural pathology which could not be solved.¹⁴⁵ In the South, white supremacy and racial exclusion defined juvenile justice policies toward Black children.¹⁴⁶

Although social structural features—urbanization, economic inequality, and political processes—create criminogenic conditions, Progressives focused on individual deficiencies rather than those structural factors.¹⁴⁷ Although family, economic, and social influences contributed

to delinquency, Progressives opted to minister to affected individuals rather than to alter the conditions that caused their misbehavior.¹⁴⁸ Changing individuals and reforming their character was a less radical agenda than understanding crime as consequence of social inequality and reducing it.¹⁴⁹ In the South, where most Black youths lived, juvenile courts arrived later, implemented the rehabilitative ideal more tentatively, and practiced racial exclusion and segregation.¹⁵⁰

Progressives situated juvenile courts on several legal and criminological fault lines that rested on binary distinctions: child or adult; dependent or responsible; determinism or free will; treatment or punishment; procedural informality or formality; discretion or rules. I argue in later chapters that during the last third of the twentieth century, court decisions, structural and racial demographic changes, an increase in youth crime, disillusionment with rehabilitation, and the politics of race shifted juvenile courts' emphases from the former to the latter of each of these alternative constructs. From their inception, juvenile courts seldom achieved rehabilitative goals, but they kept the vast majority of youths out of the more damaging criminal justice system. During the Get Tough Era, lawmakers repudiated Progressives' assumptions that children differ from adults, rejected rehabilitation as a goal, reinvigorated classical views of crime as rational choice by responsible individuals, and sought to punish many more youth as adults.

The Due Process Revolution and the Juvenile Court

For the first two-thirds of the twentieth century, juvenile courts avoided sustained public, judicial, or legal scrutiny, although a few academics expressed concerns about their procedural deficiencies and judges' broad discretion. In 1937, Harvard Law dean Roscoe Pound, a strong proponent of juvenile courts, insisted that the judges who presided should be exceptionally well qualified because court procedures were so limited and discretion so great. "The powers of the Star Chamber were a trifle in comparison with those of our juvenile courts. . . . It is well known that too often the placing of a child in a home or even in an institution is done casually or perfunctorily or even arbitrarily."¹ In 1946, Paul W. Tappan strongly criticized these hybrid judicial case-work agencies. He described the processes as "informal, unofficial probation supervision or institutional remand before a hearing is held and hearings in which there is no determination as to guilt of an offense, where personality factors and the 'total situation' determine adjudication."² He condemned juvenile courts' "treatment without trial," in which rumors or speculation about a child or his family determined outcomes rather than proof of a crime using basic procedural protections.³ He complained that juvenile courts presumed guilt or ignored it and left discretion "in the hands of judicial and probation personnel unhampered by statutory definitions or limitations, undirected save by a very general principle of treating, reforming, rehabilitating."⁴

Despite concerns expressed by a few academics, however, juvenile courts languished in a legal backwater that insulated judges and court personnel from systematic examination because of their closed confidential operation, the absence of lawyers who practiced in them, and their clients' disadvantaged status. The Supreme Court's 1967 decision in *In re Gault* began the transformation of the juvenile court from a welfare agency into a legal institution. This, in turn, subjected its practices to closer evaluation by lawyers, criminologists, and public officials. *Gault*

was part of the Warren Court's larger project to expand civil rights, reform states' criminal procedures, and protect minorities.

This chapter examines the social and legal context within which the Court's due process revolution occurred and its juvenile justice decisions. It focuses first on the decades prior to and after World War II, during which the Great Migration of Blacks from the rural South to the North and West increased minority populations in urban ghettos, heightened national visibility of racial discrimination, and provided political and legal impetus for the Court's civil rights decisions.⁵ The chapter's later sections examines the Court's civil rights decisions, criminal procedure rulings, and juvenile court judgments during the 1960s.⁶ The Court's decisions transformed juvenile courts and led to a procedural and substantive convergence with criminal courts.

The Great Migration

In the nineteenth century, the cotton gin made growing cotton commercially viable and slavery became the economic foundation of the pre-Civil War Southern economy. At the start of the twentieth century, over 90% of Blacks lived in the South, three-quarters in rural areas. The Great Migration of African Americans in the decades before and during World War II increased their urbanization and placed issues of racial inequality and civil rights on the national political agenda.⁷ Between the outbreak of World War I in 1914 and its end in 1918, European immigration to the United States plunged by more than 90%.⁸ As World War I increased demand for industrial production and simultaneously reduced the flow of immigrants, Northern labor recruiters solicited Southern Blacks to fill jobs in factories, railroads, and packing houses.⁹

The Great Migration during the first two-thirds of the twentieth century profoundly changed American society, politics, and law. "The configuration of the cities as we know them, the social geography of black and white neighborhoods, the spread of the housing project as well as the rise of a well-scrubbed black middle class, along with the alternating waves of white flight and suburbanization—all of these grew directly or indirectly, from the response of everyone touched by the Great Migration."¹⁰ Between World Wars I and II, the mechanization of cotton-picking, the collapse of cotton prices, and the Mexican boll weevil's

damage to cotton production shifted Southern agricultural from cotton to food and livestock. These changes decreased demand for Black tenant sharecroppers contemporaneously with increased demand for labor in the Northern factories.¹¹ Between 1910 and 1920, more than a half-million Blacks migrated to non-Southern states, followed by more than three-quarters of a million in the 1920s. An additional 400,000 Blacks left for Northern cities during the Great Depression. In the 1940s, Black migration increased to 160,000 per year, during the 1950s it averaged 146,000 per year, and in the 1960s, it was about 102,000 per year.¹²

Many Blacks joined the exodus to escape Southern racial hostility—Jim Crow laws, Ku Klux Klan violence, beatings and lynching, poor segregated schools, lack of employment, and job discrimination.¹³ It is difficult to overstate the oppressed and brutalized plight of Blacks in Southern states.¹⁴ Although the Thirteenth Amendment to the Constitution abolished slavery and involuntary servitude, it exempted “punishment for crime whereof the party shall have been duly convicted.” Southern sheriffs and local officials used criminal laws to punish vagrancy and other vague offenses with a system of repression and peonage labor on chain gangs.¹⁵

When the outbreak of World War I curtailed European immigration, 85% of Blacks lived in the South. Three-quarters still lived there when the United States entered World War II. Opportunities to work in war production industries in the 1940s induced more than one and a half million Blacks to move as labor shortage forced employers to hire Black and female workers whom they had previously excluded.¹⁶ During World War II, twelve million men and women entered the armed forces and fifteen million civilians relocated for defense jobs.¹⁷ Between 1940 and 1944, defense contractors integrated their work forces and Black populations in urban areas increased dramatically.¹⁸ For example, during the 1940s, California’s population of Blacks quadrupled as they sought work in shipyards and defense industries.¹⁹ In the 1950s and 1960s, an additional one and a half million Blacks migrated from the South. Between the end of World War II and 1960, about one-third of African Americans who had remained in the South moved to other parts of the country, the vast majority to live in central cities.²⁰ Between 1940 and 1970, five million Blacks left the South and reduced the

proportion of the total U.S. Black population who remained there from three-quarters to about half.²¹

When Blacks migrated, they almost always moved to cities.²² Between 1910 and 1930, New York's Black population tripled, Chicago's quintupled, and Detroit's increased twenty-fold.²³ During the first half of the twentieth century, there was a massive demographic shift as Blacks moved from the countryside to the city: in 1910, less than one-quarter of Blacks lived in cities. By 1940, half lived in cities, and by 1960, more than three-quarters did.²⁴ In 1870, 80% of Black Americans lived in the rural South; by 1970, 80% resided in urban locales, half in the North, Midwest, and West.²⁵ In 1910, African Americans comprised 2% of Northerners; by 1960, they accounted for 7% of Northerners and 12% of Northern urban residents.²⁶

When Blacks moved to cities, racist public policies and private discrimination forced them to live almost exclusively in racial ghettos.²⁷ Although the term "ghetto" originally referred to certain quarters of European cities in the sixteenth and seventeenth centuries where Jews lived due to forced separation, it has come to describe a densely populated urban slum in which relatively homogenous minority groups are compelled to live because of social, legal, or economic pressure. As racial diversity outside the South increased, whites reacted to Blacks in their midst with fear and hostility.²⁸ Whites' violence—including arson and bombings—reinforced segregation in housing, education, and employment and buttressed racial isolation.²⁹ White-on-Black violence in St. Louis in 1917 and Chicago in 1919 killed forty-eight and thirty-eight people respectively as working-class whites reacted to the perceived menace of Blacks in their midst.³⁰ "[I]ndividual blacks were attacked because of the color of their skin. Those living away from recognized 'black' neighborhoods had their houses ransacked or burned. Those unlucky or unwise enough to be caught trespassing in 'white' neighborhoods were beaten, shot, or lynched."³¹

During the post-World War II era, as Blacks entered cities, whites increasingly moved to suburbs.³² Federal mortgages subsidized single-family homes in rapidly growing suburbs.³³ Federal interstate highway building facilitated suburban expansion and easy credit enabled more commuters to buy automobiles.³⁴ Building contractors mass produced houses and developed vast suburban tracts.³⁵ Federal mortgage, hous-

ing, and tax policies subsidized construction of white suburbs and bank lending policies reinforced neighborhoods' racial stability and contributed to white suburbs surrounding urban minority residents.³⁶

Federal policy ensured that housing development happened in suburbs rather than within cities and favored the white middle classes rather than minorities and the poor. . . . [T]he actions of the federal government accelerated the exodus to the suburbs. These included a vast postwar expansion of the Federal Housing Administrations (FHA) mortgage guarantee program, the growth of a federally sponsored secondary mortgage market, and the income tax deduction for home ownership. At the same time, zoning ordinances restricted most suburban residential development to single-family housing, and the FHA placed racial restrictions on its mortgages until the 1960s. Together, these policies kept the suburbs white.³⁷

The federal government cut subsidies to construct urban rental units and reduced mortgage and home improvement loans in Black sections of cities. During the 1950s and 1960s, federal highways facilitated white suburban development and urban planners located interstate arteries to create physical barriers and curtail expansion of Black communities. Local elites manipulated housing and urban renewal projects to clear Black neighborhoods that threatened white business interests.³⁸ Urban planners consciously located public housing projects to maintain residential racial segregation.³⁹

Emerging Civil Rights Movement

Despite America's postwar affluence and growth, Blacks' subordinate legal, political, economic, and social status demanded fundamental societal and legal reforms. During the 1950s and 1960s, a more assertive civil rights movement initially challenged segregation in the South and subsequently emerged as a social movement against racism throughout the nation. During the 1950s, the civil rights movement contested the social construction of race.

It was this process which created what we call "the great transformation" of racial awareness, racial meaning, racial subjectivity. Race is not only a

matter of politics, economics, or culture, but all of these “levels” of lived experience simultaneously. It is a pre-eminently *social* phenomenon, something which suffuses each individual identity, each family and community, yet equally penetrates state institutions and market relationships. The racial minority movements of the period were the first *new social movements*—the first to expand the concerns of politics to the social, to the terrain of everyday life.⁴⁰

Demands for racial equality and social justice confronted the racist ideology of segregation and ultimately transformed American politics. Blacks’ migration away from state-mandated segregation and toward economic opportunities in the North made them a newly potent electoral force in key states, heightened demands for civil rights for themselves and those left behind, and ultimately altered the constituencies of the respective political parties.⁴¹ Several factors—economic, demographic, and ideological—changed American politics. As Blacks moved from farms to Northern cities, they gained the right to vote, obtained better jobs and higher incomes, and acquired resources with which to challenge the racial status quo.⁴²

Divisions within the Democratic Party between racial and social policy liberals and conservatives—predominantly Northerners and Southerners, respectively—emerged after World War II. The Democrats’ New Deal coalition included white southerners, urban ethnic groups, and recent Black migrants to Northern cities. In 1948, President Harry S. Truman ordered the end of racial segregation in the armed forces, supported elimination of state poll taxes that discriminated against Black voters, and championed federal anti-lynching laws. In 1948, the Democratic Party convention platform included a strong civil rights plank in response to Northern Blacks’ growing political influence and liberal whites’ opposition to segregation.⁴³ In reaction, then Democrat South Carolina governor Strom Thurmond bolted the party, ran for president on the States Rights Party line—the “Dixiecrats”—carried Alabama, Louisiana, Mississippi, and South Carolina, and demonstrated the role race would play in the political realignment of the South and the nation.⁴⁴ The Dixiecrat revolt revealed that the votes of Southern whites as well as Blacks would be in play and gave both parties incentives to adopt policies to attract them.⁴⁵ Subsequent Democratic efforts to win back

disaffected white Southern voters enabled Republicans to garner 21% of the Black vote in the 1952 and 39% in the 1956 presidential elections.⁴⁶ As I describe in Chapter 4, since the 1960s national Republican politicians pursued an electoral strategy to appeal to white Southern voters' racial antipathy and resistance to school integration, engineer a conservative backlash, and realign the parties around race and public policy issues.⁴⁷

Although presidents Truman and Eisenhower took some steps to reduce racial inequities, conservative Southern Democrats in Congress resisted anti-discrimination laws, voting rights laws, open housing laws, federal aid to education, and national health insurance.⁴⁸ Even as the nation became more urbanized and racially diverse, long-serving Southern Democrats chaired pivotal congressional committees and blocked laws to address racial inequality, social justice, or urban programs.⁴⁹ Despite conservatives' resistance to racial reforms, Hitler's racist crimes and postwar competition between the United States and Soviet Union for the allegiance of decolonizing countries in the Third World required a national response to Southern apartheid.⁵⁰

During the 1950s and 1960s, the Warren Court's desegregation, civil rights, and criminal procedure decisions aimed to dismantle the Jim Crow system of white supremacy.⁵¹ Between *Brown v. Board of Education* in 1954 and passage of the Civil Rights Act in 1964 and Voting Rights Act in 1965, the Court and Congress imposed equality norms on the South to end formal legal apartheid.⁵²

Constitutional Jurisprudence and "Discrete and Insular" Minorities

The Great Migration increased the visibility of Blacks' plight and highlighted the magnitude of America's racial dilemma.⁵³ "In an era of relatively primitive communications—no radio or television and few national news magazines—rural southern blacks could be disenfranchised, coerced in their labor, cheated out of public school funds, and even lynched—all without most northern whites even being aware of what was happening."⁵⁴ Southern segregation and legally enforced inequality were grounded in theories of racial inferiority. During the first third of the twentieth century, a new paradigm questioned so-called scientific theories of biological racial differences and attributed Blacks'

condition to social, cultural, and environmental forces.⁵⁵ Assumptions of inherent racial inferiority conflicted with American ideals of democracy, equality, and justice. Resolving this contradiction required integrating Blacks into American society.⁵⁶ Changing racial demography and its political impact moved segregation and de jure inequality to the center of the nation's and Supreme Court's concerns about civil rights.

During the 1937–38 term, the Court reviewed the constitutionality of New Deal laws and distinguished the scope of review it would apply to economic legislation—where it gave Congress and states broad regulatory authority—and its scrutiny of laws that affected individual rights. In the famous Footnote Four of *United States v. Carolene Products*, the Court announced that it would review more closely state laws that affected political rights and those protections enumerated in the Bill of Rights.

Nor need we enquire whether similar considerations [of deference] enter into the review of statutes directed at particular religious, or national, or racial minorities, whether the prejudice against *discrete and insular minorities* may be a special condition, which tends seriously to curtail the operation of those political processes ordinarily to be relied upon to protect minorities, and which may call for a correspondingly more searching judicial inquiry.⁵⁷

The Court proposed to use the Equal Protection Clause to strictly scrutinize laws that affected the political process and racial minorities—discrete and insular minorities—whose rights might suffer continually from majoritarian domination.⁵⁸ Discrete and insular minorities, such as Blacks, were members of groups who historically had been discriminated against, who had immutable characteristics—unchangeable and highly visible—and who were powerless to protect themselves from oppression through the political process.

The Court recognized that those in power could pervert the political process to entrench themselves and that racial minorities could be perpetual losers because of their subjugation and vulnerability to scapegoating and race-baiting.⁵⁹ “The theory of Footnote Four suggests that even if African-Americans in the South could vote, they could not win

elections and might be subject to such prejudice that legislation hostile to them would be forthcoming. When that occurs, the Court must step in to protect the discrete and insular minority that otherwise lacks the normal means—joining electoral coalitions—that we expect to protect people.”⁶⁰ The political process failed because white groups would not form alliances with emancipated Blacks because of deeply entrenched racist sentiments.

The Warren Court acted to protect minority groups’ civil rights because “the questions associated with the Black experience in America raised, as no others could, the spectre of internal conflict between the values of a free and open political life . . . and of fair treatment of ‘minorities.’”⁶¹ Until the 1960s, laws, customs, and extra-legal violence in the South combined to create and enforce a caste system of white supremacy. During the 1950s, Southern Blacks attended segregated schools, rode segregated buses, and used segregated bathrooms. They could not drink from whites-only water fountains, eat in whites-only restaurants, or sleep in whites-only hotels.⁶² They had little voice in government and scant hope for fair treatment from white police or the white judiciary. They were systematically disenfranchised and excluded from juries. Blacks were subject to racial domination and subordination through duly enacted Jim Crow laws and violent extra-legal terrorism.⁶³

Southern racial terrorism flourished because local sheriffs were politically elected and nonprofessional. Whites readily resorted to organized violence when Blacks challenged racial mores or threatened lines between superiors and subordinates.⁶⁴ Without intervention from outside the region, the combinations of private terror by white-hooded Klansmen, formal legal discrimination, abuse of the justice system, and political exclusion assured Southern Blacks’ continued disenfranchisement and subordination.

The modern civil rights movement’s campaign for equal rights, the right to vote, and the end of legally sanctioned segregation gained national prominence with the Montgomery bus boycott in 1955 led by Rev. Martin Luther King, Jr.⁶⁵ The struggle for racial equality continued throughout the South for the next decade with protests, demonstrations, sit-ins, and violent clashes with the defenders of segregation.

The task fell to the Court to pursue racial equality and dismantle segregation. In 1896, *Plessy v. Ferguson* held that “separate but equal”

facilities did not deny Blacks equal protection of the law and remitted racial issues to the states.⁶⁶ For the next half century, *Plessy* provided the constitutional foundation for segregated public facilities and Jim Crow laws, and contributed to a long downward spiral in Southern race relations.⁶⁷ In the 1950s and 1960s, racial injustice and urban problems presented volatile issues that the Congress was unable or unwilling to address because of Southern committee chairs' dominance. "The Supreme Court probably was a better gauge of national opinion on race than was a United States Congress in which white supremacist southern Democrats enjoyed disproportionate power because of Senate seniority and filibuster rules."⁶⁸

By default, the Warren Court began to address the public policy void through decisions to protect individual rights and minorities' civil liberties. Although the NAACP Legal Defense Fund attacked the segregation in a variety of fora, the crucial battle for racial justice and to end Southern apartheid was fought to desegregate schools. In *Brown vs. Board of Education*, the Warren Court concluded that separate no longer could be equal.⁶⁹ The implications of overruling *Plessy* were profound.

Brown involved a major social problem, racial discrimination, translated into a legal question, the constitutionality of separate but equal public schools. It posed an issue that no other branch of government was anxious to address. It raised questions that had distinctively moral implications: in invalidating racial segregation the Court was condemning the idea of racial supremacy. And it affected the lives of ordinary citizens, not merely in the South, not merely in public education, for the Court's series of per curiam decisions after *Brown* revealed that it did not consider racial segregation any more valid in other public facilities than it had in schools. The Warren Court had significantly altered race relations in America.⁷⁰

Although *Brown II* ordered states to desegregate schools with "all deliberate speed," Southern political leaders denigrated the Court's decision and urged "massive resistance" to judicial usurpation. Maintaining segregated public schools ranked near the top of white supremacists' hierarchy of racial goals.⁷¹ White southern leaders castigated *Brown* as a

decision by “a lawless Court, abandoning the Constitution (‘a mere scrap of paper’) for the personal and political values of the unelected judges.”⁷² Southern congressional Democrats drafted the Southern Manifesto, which denounced *Brown* as an abuse of judicial power and advocated noncompliance with an illegitimate decision.⁷³ The few Southern congressmen who declined to endorse the Manifesto suffered defeat in the next Democratic primary. In the aftermath of *Brown*, Southern racial moderates virtually disappeared under pressure from more hardline racists as Southern politics moved even farther to the right.⁷⁴ “*Brown* radicalized southern politics, leading candidates for office to maneuver for the most extreme segregationist position, and turning ‘moderation’ into a derisive terms.”⁷⁵ After George Wallace lost the 1958 Alabama governor’s race to an avowed racist, he swore that he was “not goin’ to be out-niggahed again,”⁷⁶ and he refined race-coded appeals in subsequent gubernatorial and presidential campaigns. White Southerners viewed *Brown* as federal interference with race relations, which elicited historical memories of Reconstruction and carpetbag government.⁷⁷ “The Ku Klux Klan reasserted itself as a powerful terrorist organization, committing castrations, killings, and the bombing of black homes and churches. NAACP leaders were beaten, pistol-whipped, and shot.”⁷⁸ As I explain in Chapter 4, Southern resistance to desegregation in the 1950s, Senator Barry Goldwater’s Republican presidential campaign in 1964, and George Wallace and Richard Nixon’s presidential campaigns in 1968 demonstrated the political salience of a racialized Southern strategy.⁷⁹

The initial civil rights struggle attempted to end legal segregation, to secure equal rights, and to guarantee the right to vote. The norm of racial equality emerged during the 1950s and 1960s as cultural leaders and influential elites attacked segregation, lynching, police brutality, and political exclusion.

Cultural leaders increasingly communicated the notion that racial inequality was an immoral principle. The norm of racial equality gained momentum through landmark legislation and court rulings that signaled that racial equality should now be the injunctive norm. The norm of racial equality was also furthered by the civil rights movement, through its moral rhetoric and through actions that prodded and enabled landmark

legislation and discredited the white southern adherents of the old inegalitarian norm.⁸⁰

The civil rights movement generated political pressure and nationally televised violent attacks on Black protesters and Freedom Riders led Congress to pass the Civil Rights Act of 1964 banning discrimination in schools, employment, and public accommodations, and the Voting Rights Act of 1965 prohibiting procedures designed to impede Blacks' exercise of the franchise.⁸¹ The proportion of registered Black voters in Southern states more than doubled from 23% in 1964 to 61% by 1969.⁸²

The passage of the Civil Rights and Voting Rights Acts formally ended American apartheid. Southern Democrats cast 104 of the 130 congressional votes against the Civil Rights Act and understood how it would affect their constituents.⁸³ The laws created a national norm—formal legal equality—on matters of race to which 70% of the members of Congress and the Supreme Court required the South to conform. Racial equality became the dominant cultural value and no politician wanted to be perceived as racist.⁸⁴ However, formal equality belies America's deep racial divisions, which conservative politicians later would exploit to foster a political realignment.

Due Process Revolution in Criminal and Juvenile Justice

Criminal justice cases often raise implicit issues of racial inequality.⁸⁵ Beginning in the 1920s and 1930s, Supreme Court cases like *Moore v. Dempsey*, *Powell v. Alabama*, and *Brown v. Mississippi* sporadically used the Fourteenth Amendment Due Process Clause to review criminal justice administration and protect Blacks against Southern injustice.⁸⁶ Those earliest decisions involved egregious injustices—confessions extracted by torture, mob-dominated proceedings, sham trials, and the death penalty.⁸⁷ Southern state supreme courts regarded the formality of any trial, regardless of its procedural deficiencies, as preferable to extra-judicial lynching, whereas the Supreme Court believed that trials should actually determine defendants' guilt or innocence.⁸⁸ The Court's oversight of Southern states' criminal proceedings became especially important in cases that challenged white supremacy or that heightened national visibility of the injustice afforded Black criminal defendants.⁸⁹ Southern justice

was not a pretty sight. Jim Crow reigned supreme. Blacks were systematically disenfranchised and excluded from juries. . . . The states virtually had a free hand in the administration of justice. Trials often proceeded without counsel or jury. Convictions were allowed to stand even though they turned on illegally seized evidence or on statements extracted from the accused under coercive circumstances. There were no rules limiting the imposition of the death penalty.⁹⁰

The Court's limited role in overseeing Southern criminal justice marked its initial efforts to eradicate regional deviation from elementary procedural expectations.

The Supreme Court's race-related criminal procedure decisions of the interwar period almost certainly were consonant with dominant national opinion. Most of the country was appalled by these farcical proceedings in which southern black defendants, quite plausibly innocent of the offenses charged, were tortured into confessing and then rushed to the death penalty in mob-dominated trials without effective assistance of counsel. Black criminal defendants certainly were not treated this way in the North. While northern blacks were segregated in ghetto neighborhoods and discriminated against in employment and public accommodations, the administration of justice in northern courts was relatively nondiscriminatory.⁹¹

Although the Court's early decisions had limited impact on routine Southern justice, they served important non-legal purposes. They offered Blacks hope that progress was possible and apartheid might end. They provided cases around which to organize protests and educate Blacks about their rights. Finally, they exposed Northern whites to the abuses of Jim Crow justice and helped to turn white Americans against segregation and disenfranchisement.⁹²

By the 1960s, questions of race became linked with concerns about rising crime rates, urban disorders, the crisis of law and order, and the Court's due process decisions. During the decade, the children of the baby boom reached adolescence and crime increased dramatically. The number of males aged fifteen to seventeen years doubled and rates of serious violent and property crimes increased by more than

75% (Figure 3.1). Demographic changes in the population age structure and improved data collection accounted for much of the recorded crime rise, but it nonetheless generated a heightened sense of insecurity and fear.⁹³ Higher rates of crime occur in urban settings and the greater numbers of Blacks in cities increased the visibility of crime in minority areas.⁹⁴

Due Process Revolution and Criminal Procedure

The Warren Court's criminal procedure decisions responded to the previous half century of racial demographic changes, attempted to protect minority citizens, and sought to limit states' abuses of the criminal justice system.⁹⁵ During the 1960s, it used adversarial procedures and judicial *per se* rules to limit police discretion and protect defendants' rights.⁹⁶ Several themes animated its due process jurisprudence: an emphasis on individual liberty and equality, distrust of state power, an unwillingness to rely on officials' benevolent motives, and recognition that their discretion decisions adversely affected minorities.⁹⁷ The Court used the Fourteenth Amendment and Bill of Rights to impose procedural restraints and protect minorities from state officials.⁹⁸ Its criminal procedure decisions closely connected with its civil rights opinions because states disproportionately accused the poor, minorities, and young with crimes.⁹⁹ Those decisions redefined the relationship between individuals and the state and highlighted the connection between race, civil rights, and criminal justice.¹⁰⁰ It reflected *Carolene Products*' shift from protecting private property and economic interests to protecting civil rights and criminal suspects' constitutional safeguards.¹⁰¹

During the 1960s, the Court used three constitutional strategies—incorporation, reinterpretation, and equal protection—to decide state criminal procedure cases.¹⁰² First, it used the Fourteenth Amendment Due Process Clause to incorporate provisions of the Bill of Rights and apply them to the states. The Bill of Rights offered national standards for criminal procedure and the Court applied those provisions to states to establish a minimum requirement of fairness in criminal trials.¹⁰³ Applying the Bill of Rights to state criminal proceedings redefined the relationship between the Court and state police practices and justice ad-

ministration. Second, it reinterpreted those provisions to expand constitutional rights and exercise greater oversight over state officials.¹⁰⁴ Finally, it used the Equal Protection Clause to redress imbalances between white and non-white and rich and poor defendants in states' criminal justice systems.

The Court's decisions extending constitutional rights to criminal defendants, many of whom were guilty, coincided with the baby boom increase in crime rates and urban race riots in the 1960s.¹⁰⁵ Decisions such as *Mapp v. Ohio*—exclusionary rule—and *Miranda v. Arizona*—warning prior to custodial interrogation—expanded defendants' rights, restricted police power, and provided a remedy for constitutional violations.¹⁰⁶ These decisions elicited hostile criticism from law enforcement officials, conservative politicians, and the public.¹⁰⁷ While earlier criminal decisions like *Powell*, *Moore*, and *Brown* involved egregious injustice and were veiled cases about race, by the mid-1960s many whites viewed the Court's decisions as overtly racial because of their concurrence with urban riots and rising crime rates.¹⁰⁸ Richard Nixon's 1968 presidential campaign emphasized law and order, decried decisions that he claimed handcuffed police, and made connections between the Court, crime, and race explicit.

Due Process in Juvenile Justice: *In re Gault* and Its Progeny

Penal policy should not be viewed in isolation from but rather as part of a broader framework of social welfare and social control policies.¹⁰⁹ Are social problems like crime and poverty the result of individual bad choices or determined by larger structural factors? Answers to these questions would focus politicians' attention on personal responsibility or the state's role in ameliorating root causes—for example, a choice between punishing individuals and promoting social welfare. Until the 1960s, the rehabilitative ideal dominated penal ideology and emphasized treatment to promote offenders' well-being.¹¹⁰ Concomitant social welfare policies viewed the poor and disadvantaged as people in need of government intervention rather than as responsible for their own condition.

From its Progressive origins until the early 1970s, the rehabilitative ideal provided the intellectual framework, cultural vocabulary, and

shared understandings that animated criminal and juvenile justice professionals.¹¹¹

Its basic axiom—that penal measures ought, where possible, to be rehabilitative interventions rather than negative, retributive punishments—gave rise to a whole new network of interlocking principles and practices. . . . [T]he rehabilitative ideal . . . was the hegemonic, organizing principle, the intellectual framework and value system that bound together the whole structure and sense of it for practitioners. It provided an all-embracing conceptual net that could be cast over each and every activity in the penal field, allowing practitioners to render their world coherent and meaningful, and to give otherwise unpleasant, troublesome practices something of a benign, scientific gloss.¹¹²

The rehabilitative enterprise focused on the individual offender and relied on judges and professionals to make welfare-oriented decisions.¹¹³

Support for the rehabilitative ideal presumes a cultural consensus about the goals of change and the means to achieve them.¹¹⁴ Progressives believed that the new social sciences gave them the tools with which to modify people's behavior, and they had no qualms about imposing their middle-class values on immigrants and the poor.¹¹⁵ They affirmed the state's responsibility to care for, as well as to control, offenders. "The state was to be an agent of reform as well as of repression, of care as well as control, of welfare as well as punishment. . . . [T]he criminal justice state became, in part, a welfare state, and the criminal subject, especially one who was young, or disadvantaged, or female, came to be seen as a subject of need as well as guilt, a 'client' as well as an offender."¹¹⁶

Beginning in the 1960s, the politics of race and crime precipitated a sharp decline in states' support for social welfare. Justice system policies shifted from a belief that penal measures should rehabilitate and promote positive change to a more negative and punitive orientation.¹¹⁷ Several forces eroded support for the rehabilitative ideal. Left-wing critics characterized individualized treatment as a paternalistic veneer that masked coercive social control and oppressed the poor, the young, and minorities.¹¹⁸ They argued that no correctional programs could counteract the racial, economic, and social inequality in the larger society.¹¹⁹ Liberals criticized judges and social workers whose discretionary deci-

sions did not rely on science or evidence, but which resulted in unequal treatment of similarly situated offenders, and they questioned the state's ability to deal justly with its most vulnerable citizens.¹²⁰ Conservative critics perceived a moral crisis in rising crime rates, civil rights protests, and urban race riots, advocated for law and order, and favored repression over rehabilitation.¹²¹

It was against this backdrop that the Court scrutinized juvenile justice administration in the 1960s.¹²² In 1966, *Kent v. United States*, which I discuss in Chapter 5, required procedural safeguards in transfer hearings.¹²³ In 1967, *In re Gault* reviewed states' juvenile court procedures, found them constitutionally deficient, and required a substantial overhaul.¹²⁴ David Tanenhaus, in *The Constitutional Rights of Children*, and Christopher Manfredi, in *The Supreme Court and Juvenile Justice*, provide excellent analyses of the litigation strategy and tortured route from an obscure delinquency hearing in rural Arizona to a constitutional landmark.¹²⁵

Gault involved the hearing and institutional confinement of an Arizona boy who allegedly made a telephone call to a neighbor of the "irritatingly offensive, adolescent, sex variety."¹²⁶ The offending words purportedly included "Are your cherries ripe? Do you have big bombers? Do you give any away?"¹²⁷ Police took fifteen-year-old Gerald Gault into custody and held him overnight without notifying his parents. The next day, a juvenile court judge held an informal hearing to consider a delinquency petition that simply alleged he needed care and custody. The judge questioned Gault about the telephone call, which he admitted dialing, but insisted a companion spoke the offending words. No witnesses testified and there was no transcript or record of the proceeding. The judge did not advise Gault or his parents of the right to remain silent or to counsel and did not provide an attorney. A week later, the judge committed Gault to the State Industrial School "for the period of his minority [that is, until 21], unless sooner discharged by due process of law."¹²⁸ A judge could have sentenced an adult convicted of the same crime to a \$50 fine or two months' imprisonment, rather than potential confinement of up to six years.¹²⁹

Gault identified two fatal disjunctions between juvenile justice rhetoric and reality: the theory versus the practice of rehabilitation and the procedural safeguards criminal defendants and delinquents received.

Although Progressives envisioned informal meetings, the Court examined actual practices and required adversarial hearings to protect delinquents from the state.

A survey conducted contemporaneously with *Gault* by the President's Commission on Law Enforcement and the Administration of Justice (known as the President's Crime Commission) reported data on the 207 largest juvenile courts serving populations of one hundred thousand or more.¹³⁰ Three-quarters (74%) reported that non-white juveniles comprised 40% of delinquents; in 5%, minorities comprised 60% of delinquents. Some of these racial disparities were by-products of Blacks' migration to the North, adaptation from a rural to an urban life, and experience with economic dislocation and discrimination, which contributed to higher rates of delinquency.¹³¹

Studies of mid-century juvenile courts reported racial bias in handling Black youths compared with whites. In the Jim Crow South, correctional institutions still were segregated, separate, and unequal for those Black youths fortunate enough to be sentenced as delinquents rather than committed to prisons.¹³² Elsewhere, juvenile courts more often referred Black juveniles for formal processing and committed them to institutions than they did whites with similar crimes and prior records.¹³³ A study of institutionalized delinquents found that Black youths were younger, had fewer prior appearances, committed fewer and less serious crimes, but received probation less often than their white counterparts.¹³⁴ Although they were less seriously delinquent, a lack of community alternatives contributed to higher rates of commitments.

Although juvenile courts' Progressive founders and Dean Roscoe Pound aspired to exceptionally well qualified judges—mature, wise, and sophisticated, versed in law and social sciences—the survey conducted by the President's Crime Commission reported that “half had not received undergraduate degrees; a fifth had received no college education at all; a fifth were not members of the bar . . . and judicial hearings often are little more than attenuated interviews of 10 or 15 minutes' duration.”¹³⁵ Nearly all delinquents appeared before judges without counsel. Only 3% of courts reported that lawyers accompanied delinquents in 40% or more of cases and only one-tenth (10.8%) reported that counsel appeared in more than 20% of delinquency cases.¹³⁶

Gault examined juvenile courts' actual operations rather than to accept uncritically their rehabilitative rhetoric.¹³⁷ It reviewed their historical justifications to deny procedural safeguards: they were civil rather than criminal proceedings; delinquents received treatment rather than punishment; and when the state acted as *parens patriae*, the child was entitled to custody rather than liberty. It noted that absence of procedures often resulted in judicial arbitrariness rather than "careful, compassionate, individualized treatment."¹³⁸ Youths could not challenge judges' discretion even when they imposed punitive sanctions.¹³⁹ *Gault* did not reject juvenile courts' rehabilitative goals, but emphasized their high rates of recidivism, stigma of a delinquency label, access to court records by military, law enforcement, and employers, and arbitrary decision making as reasons to require procedural safeguards. It examined the institutions in which states purported to treat delinquents:

[H]owever euphemistic the title, a "receiving home" or an "industrial school" for juveniles is an institution of confinement in which the child is incarcerated for a greater or lesser time. His world becomes "a building with whitewashed walls, regimented routine, and institutional hours. . . ." Instead of mother and father and sisters and brothers and friends and classmates, his world is peopled by guards, custodians, state employees, and "delinquents" confined with him for anything from waywardness to rape and homicide. . . . [U]nder our Constitution, the condition of being a boy does not justify a kangaroo court.¹⁴⁰

Gault ruled that juvenile courts must conduct fundamentally fair proceedings: notice of charges, an impartial hearing, assistance of counsel, opportunity to confront and cross-examine witnesses, and the privilege against self-incrimination.¹⁴¹ The Court did not address juveniles' rights prior to trial—intake and detention—or at disposition, but focused on the adjudication of guilt or innocence.¹⁴² Because *Gault* involved a delinquency case—a youth charged with a crime facing institutional confinement—the Court did not consider noncriminal-status offenders' rights.

The Court endorsed adversary procedures both to determine what happened—factual accuracy—and to preserve individual freedom and limit state power—prevent governmental oppression. *Gault* based

delinquents' rights to notice, counsel, and confrontation on the Fourteenth Amendment's due process requirement of fundamental fairness. "Fundamental fairness is a context-sensitive approach in which the procedural guarantees required in any specific case vary according to the proceeding under review and the nature of the rights at stake in those proceedings."¹⁴³ The Arizona Supreme Court used the same fundamental fairness approach when it rejected *Gault*'s pleas for procedural protections.¹⁴⁴ By contrast, the Sixth Amendment provides, "In all criminal prosecutions, the accused shall enjoy the right to a *speedy and public trial*, by an *impartial jury* . . . and to be *informed* of the nature and cause of the accusation; to be *confronted* with the witnesses against him; . . . and to have the Assistance of *Counsel* for his defence."¹⁴⁵

Gault did not rely on the Sixth Amendment, but held that "[d]ue process of law requires notice of the sort we have described—that is, notice which would be deemed constitutionally adequate in a civil or criminal proceeding."¹⁴⁶ Although *Gault* deemed delinquency proceedings "comparable in seriousness to a felony prosecution," it based his right to counsel on notions of due process rather than the language of the Sixth Amendment.¹⁴⁷ It based his right to confront and examine witnesses on "our law and constitutional requirements" rather than the Sixth Amendment.¹⁴⁸ As I explain in Chapter 9, the Court's reliance on Fourteenth Amendment fundamental fairness, rather than the Sixth Amendment, has resulted in a procedurally deficient justice system compared with rights formally available to adults.

The Court explicitly granted delinquents the Fifth Amendment privilege against self-incrimination. It held that "juvenile proceedings to determine 'delinquency,' which may lead to commitment to a state institution, must be regarded as 'criminal' for purposes of the privilege against self-incrimination. . . . It is incarceration against one's will whether it is called 'criminal' or 'civil.'"¹⁴⁹ Granting the privilege against self-incrimination negated claims that delinquency hearings were civil nonadversarial proceedings, and "challenged a core principle of traditional juvenile jurisprudence, that admissions of wrongdoing are an indispensable element of the rehabilitation process."¹⁵⁰ The Fifth Amendment privilege buttresses the adversary system to maintain equality between the individual and the state. Its policies include

our preference for an accusatorial rather than an inquisitorial system of criminal justice; our fear that self-incriminating statements will be elicited by inhumane treatment and abuses; our sense of fair play which dictates “a fair state individual balance by requiring the government to leave the individual alone until good cause is shown for disturbing him and by requiring the government in its contest with the individual to shoulder the entire load,” . . .¹⁵¹

Gault’s Fifth Amendment holding reflected the two roles of constitutional procedures: to assure accurate fact finding *and* to protect against government oppression.¹⁵² If *Gault* was concerned only with reliability of juvenile confessions and fact finding, then it could have relied on previous decisions that required confessions be made “voluntarily.” As I explain in Chapter 9, *Gallegos v. Colorado* and *Haley v. Ohio* considered juveniles’ confessions, used the Fourteenth Amendment voluntariness test, and concluded that youthfulness adversely affected the reliability of statements.¹⁵³ By contrast, *Gault* recognized that the Fifth Amendment not only enhanced fact-finding, but also struck a balance between the individual and the state and prevented governmental oppression.¹⁵⁴ *Gault* recognized that the interests of delinquents and the state conflicted and that judges or probation officers could not adequately protect youths.¹⁵⁵

Justice Hugo Black concurred in *Gault*, but argued that delinquents should enjoy the same criminal procedural safeguards as adult defendants based on the Fifth and Sixth Amendments, rather than watered-down safeguards based on vague notions of fundamental fairness. For Justice Black, once the state charged a youth with a crime for which it could confine him, delinquency proceedings were functionally criminal prosecutions.

Where a person, infant or adult, can be seized by the State, charged and convicted for violating a state criminal law, and then ordered by the State to be confined for six years, I think the Constitution requires that he be tried in accordance with the guarantees of all the provisions of the Bill of Rights. . . . Undoubtedly this would be true of an adult defendant, and it would be a plan denial of equal protection of the laws—an invidious

discrimination—to hold that others subject to heavier punishment could, because they are children, be denied these same constitutional safeguards.¹⁵⁶

The functional equivalence between delinquency and criminal trials required comparable procedures.

Both *Gault*'s majority and Black's concurring opinion assumed that juveniles were competent to exercise their newly granted rights in conjunction with counsel.¹⁵⁷ *Gault* quoted from the President's Crime Commission that "no single action holds more potential for achieving procedural justice for the child in the juvenile court than provision of counsel. The presence of an independent legal representative of the child, or his parent, is the keystone of the whole structure of guarantees that a minimum system of procedural justice requires."¹⁵⁸ The Court recognized that providing counsel and other safeguards could make proceedings more formal, adversarial, and complex, but concluded that delinquents needed "advocates to speak for them and guard their interests."¹⁵⁹ *Gault* acknowledged that delinquents could waive counsel, but presumed they could do so knowingly, intelligently, and voluntarily.¹⁶⁰

Subsequent decisions further criminalized delinquency trials. *In re Winship* held that the state must prove delinquency by the criminal standard—beyond a reasonable doubt—rather than by the lower civil standard of proof—preponderance of the evidence.¹⁶¹ Because the Bill of Rights does not define the standard of proof in criminal cases, *Winship* first held that the Constitution required states to prove criminal defendants' guilt beyond a reasonable doubt. It endorsed the highest standard to prevent governmental overreach, to avoid wrongful convictions, and to assure public confidence in justice administration. It then required the same standard of proof in delinquency proceedings. "[I]ntervention cannot take the form of subjecting the child to the stigma of a finding that he violated a criminal law and to the possibility of institutional confinement on proof insufficient to convict him were he an adult."¹⁶²

Breed v. Jones held that the double jeopardy protection of the Fifth Amendment barred criminal prosecution of a youth whom a juvenile court previously found delinquent for the same crime.¹⁶³ *Breed* posited the same constitutional interests in delinquency and criminal trials:

Although the juvenile-court system had its genesis in the desire to provide a distinctive procedure and setting to deal with the problems of youth, including those manifested by antisocial conduct, our decisions in recent years have recognized that there is a gap between the originally benign conception of the system and its realities.

... [I]t is simply too late in the day to conclude . . . that a juvenile is not put in jeopardy at a proceeding whose object is to determine whether he has committed acts that violate a criminal law and whose potential consequences include both the stigma inherent in such a determination and the deprivation of liberty for many years.¹⁶⁴

The Court found that policies that underlay the double jeopardy prohibition applied equally to delinquency and criminal prosecutions.¹⁶⁵

McKeiver v. Pennsylvania denied delinquents the constitutional right to a jury trial. Previously, in *Duncan v. Louisiana* the Court held that adults enjoyed the Sixth Amendment right to a jury trial in state criminal proceedings.¹⁶⁶ By contrast, *McKeiver* ruled that Fourteenth Amendment due process required only accurate fact-finding, which a judge could do as well as a jury.¹⁶⁷ *McKeiver* marked a departure from the Court's approach to constitutional rights in state criminal proceedings. During the previous decade, it incorporated specific provisions of the Bill of Rights and applied them to states to expand defendants' rights and rejected the fundamental fairness approach *McKeiver* used.¹⁶⁸ *McKeiver* did not explain why it did not follow *Duncan* but simply asserted that juvenile courts were not criminal prosecutions.¹⁶⁹ "[T]he juvenile court proceeding has not yet been held to be a 'criminal prosecution,' within the meaning and reach of the Sixth Amendment, and also has not yet been regarded as devoid of criminal aspects merely because it usually has been given the civil label."¹⁷⁰ It cautioned that granting delinquents a jury trial "will remake the juvenile proceeding into a fully adversary process and will put an effective end to what has been the idealistic prospect of an intimate, informal protective proceeding."¹⁷¹

McKeiver's singular focus on accurate fact-finding departed from *Gault* and *Winship*, which emphasized the *dual* functions of procedural safeguards—accurate fact finding *and* protection from the state. *Gault* relied on the Fifth Amendment to strengthen the adversarial process and prevent governmental overreaching, despite any adverse effect it

might have on accurate fact-finding. Similarly, Justice Brennan's concurring-dissenting opinion in *McKeiver* concluded that delinquents required either a jury or a public trial to guard against governmental oppression.¹⁷²

The *McKeiver* plurality feared that jury trials would impair juvenile courts' informality, flexibility, and confidentiality, and undermine their rehabilitative mission. It worried that a jury would bring "the traditional delay, the formality, and the clamor of the adversary system and, possibly, the public trial."¹⁷³ However, *Gault* already had considered and rejected those concerns. "[I]nformality has no necessary connection with therapy. . . . It is quite possible that in many instances lawyers, for all their commitment to formality, could do more to further therapy for their clients than can the small, overworked social staffs of the courts."¹⁷⁴ Despite *McKeiver*'s concerns, in the states that provide a jury right, it has, at most, a modest impact on justice administration.¹⁷⁵

McKeiver denied that delinquents needed protection from the state. It invoked the mythology of the paternalistic juvenile court judge and rejected concerns that closed hearings could prejudice fact-finding.¹⁷⁶ I explain in Chapter 9 that there are many reasons to question fact-finding in a system in which police and probation officers testify regularly before the same judge who has reviewed a juvenile's social history and prior delinquency record while dealing with the case at earlier stages.¹⁷⁷ I argue in Chapter 5 that the get tough policies of the 1980s and 1990s increased direct and collateral consequences of delinquency convictions and repudiated *McKeiver*'s unsupported premise that juvenile courts treat rather than punish delinquents.

Conclusion: Due Process and Criminal Convergence

Gault triggered a procedural revolution that transformed juvenile courts from welfare agencies into scaled-down criminal courts. Progressives focused on a child's social circumstances and need for rehabilitation. Criminality was a symptom of delinquency, but its formal proof was secondary. Despite *McKeiver*'s denial of a jury, *Gault* and *Winship* endorsed the adversarial model, attorneys, privilege against self-incrimination, and criminal standard of proof as a prerequisite to intervention. By adopting some criminal procedures, the Court shifted delinquency

hearings' focus to proof of crimes, formalized the relationship between crimes and consequences, and launched a procedural and substantive convergence between juvenile and criminal justice systems.¹⁷⁸

Franklin Zimring contrasts the implications of providing procedural safeguards for the interventionist and diversionary rationales of juvenile courts. He argues that "standards of proof and defense lawyers are a major drawback to identifying children in need and providing them with help. If that is the mission of the juvenile court, then due process will be a major handicap to its achievement. But if saving kids from the gratuitous harms inflicted by the criminal process is the aim, there is no inherent conflict between due process and the court's main beneficial functions."¹⁷⁹ I argue in Chapter 9 that robust procedural safeguards would create financial and administrative incentives to divert more youths from the formal process and provide greater protections for those facing a punitive juvenile system.

The Court's decisions reflected competing visions of children. In granting delinquents legal rights, *Gault* assumed that young people were competent to exercise them—"a new conception of childhood that embodied a broader understanding of children's capacity for independent judgment and action."¹⁸⁰ By contrast, *McKeiver* viewed youths as immature and unable to benefit from rights available to adults. The Court's contradictory characterizations of youth provide rationale with which to deny juveniles' claims either for procedural parity with criminal defendants or safeguards to compensate for their disabilities.

The Court did not intend its decisions to impair juvenile courts' rehabilitative efforts, but subsequent judicial and legislative responses fostered their convergence with criminal courts. Prior to *Gault*, probation officers presented delinquents' cases in court and recommended dispositions. After *Gault* gave delinquents a right to counsel, states introduced prosecutors to offset defense lawyers' presence. Prosecutors socialized in criminal courts to maximize convictions and punishment began to import those norms into juvenile courts.¹⁸¹

Although *Gault*'s safeguards were less extensive than those granted adults, the Court provided no mechanisms to implement or enforce them. *Gault* did not give delinquents a constitutional right to appellate review, thereby limiting higher courts' ability to oversee compliance.¹⁸² Similarly, it remitted delinquents' right to counsel to state legislatures to

appropriate funds to implement it. In Chapter 9, I explain that local authorities have financial and administrative reasons to underfund public defenders and discourage youths from asserting rights.

Contemporary juvenile courts have become wholly owned subsidiaries of the criminal justice system. A modicum of procedural justice, however inadequate, enabled states to subordinate juvenile courts' rehabilitative goals and impose harsher sanctions. Although racial concerns drove the Court to focus on civil and procedural rights, granting delinquents even meager protections legitimated the escalation of penalties that fall heavily on minority youths.

The Get Tough Era I

Structural Change and Youth Crime

At the beginning of the twentieth century, modernization transformed America from a rural agrarian society into an urban industrial one. By the middle of the century, Blacks' migration from the rural South to the urban North and West and whites' movement from cities to suburbs further changed American society. In the 1960s, a rise in lawbreaking and urban riots heightened whites' fears of crime and racial discord.¹ Between the mid-1960s and late 1970s, the number of serious and violent crimes doubled and led to more conservative public opinion about crime and punishment.² Macro-structural industrial change in the 1970s and 1980s led to the loss of manufacturing jobs for low-skilled workers in cities, where most minorities lived. By the late 1980s, these changes contributed to escalating youth violence and provided political impetus for get tough policies that transformed criminal and juvenile justice.

This chapter examines what happened in the 1970s and 1980s that led to concentrated poverty in the inner city and drug-related violent crime. The first section examines macro-structural economic and racial demographic changes in American cities. The second section examines how the epidemic of crack cocaine in the 1980s spurred gun violence and youth homicide in devastated inner-city neighborhoods.³ Black youth homicide provided the nexus between race, crime, and fear that enabled the politics of crime and set the stage for mass incarceration of adults and harsher punishment of juveniles.

Macro-Structural Transformation

In wealthy democratic countries, a strong relationship exists between social and economic inequality and homicide rates—the greater the income and wealth disparities, the higher the rates of killings; the United

States is among the most economically stratified and unequal countries in Western society.⁴ The United States' uniquely high homicide rates reflect the country's pronounced inequalities in wealth and income, historic racial discrimination, and gun policies that make firearms readily available. People who aspire to cultural goals of wealth and success but who lack access to legitimate means to achieve those goals experience frustration and anger that can lead to behavior destructive both to self and others.⁵ Robert Sampson and William Julius Wilson argue that "macro-social patterns of residential inequality give rise to the social isolation and ecological concentration of the truly disadvantaged, which in turn leads to structural barriers and cultural adaptations that undermine social organization and hence the control of crime."⁶

Between the prosperous post-World War II years and the early 1970s, automobile, steel, construction, and manufacturing industries provided high school graduates with well-paid union jobs, health insurance, and retirement pensions.⁷ This was the era of the middle class in which all segments of the population benefited from economic growth.⁸ The United States emerged from World War II with its industrial base intact and became the economic engine that rebuilt the world for the next quarter century. Federal programs like the Servicemen's Readjustment Act—the GI Bill—provided funds for returning veterans to pursue college degrees and obtain low-cost home loans.⁹ Mass-produced consumer goods led to growth of markets at home and abroad. The expansion of trade unions and rising incomes enabled more people to enter the middle class and enjoy access to goods and services—cars, single-family homes, foreign travel—previously available only to the wealthy.¹⁰

Black men who moved to cities during the Great Migration benefited from blue-collar jobs that provided the foundations of working-class communities.¹¹ For more than a quarter century, the country enjoyed sustained economic expansion and prosperity fueled by industrial production, consumer demand, and low energy costs. The postwar period of unprecedented material well-being, economic growth, and public confidence supported inclusive social policies and the rehabilitative ideal. David Garland argues that "[p]enal-welfare policies, like the welfare state itself, were developed against a background of economic conditions that were favourable to welfare provision, public spending, and a measure of redistribution. . . . To the extent that penal-welfare poli-

cies required public legitimation, this was forthcoming in an expanding economy, where middle class derived tangible benefits from public expenditure, and were broadly supportive of welfare policies.”¹² As long as the economic pie grew and the middle class felt that they received a fair share of the benefits, the public supported or at least did not strongly object to social welfare and rehabilitative penal policies adopted by more liberal elites.¹³ While economic growth in the 1950s and 1960s made redistributive government policies tolerable, later economic contraction and income inequality undermined popular support for government intervention and welfare.¹⁴

Transition to a Post-Industrial Economy

Between the end of World War II and the early 1970s, programs implemented during the New Deal, enhanced educational opportunities, and economic expansion contributed to declining poverty, increasing median income, and a reduction in income inequality.¹⁵ Beginning in the early 1970s, the transition from an industrial to an information and service economy reduced employment prospects for lower-skilled factory workers. Oil crises in 1973 and 1979 and the decline in manufacturing led to periods of economic recession, inflation, and high unemployment, and steadily decreasing union membership.¹⁶ The job security, income, and benefits blue-collar workers had enjoyed for a quarter century began to disappear.

The transition to a post-industrial economy produced bifurcated opportunities based on education and technical skills.¹⁷ Globalization, outsourcing, and technologically sophisticated manufacturing eliminated many jobs of less skilled workers. In a decade and a half, employment in manufacturing sectors decreased from 26% to 19% of the workforce, while full-time employment in the service sectors—finance, insurance, real estate—more than doubled and surpassed manufacturing employment.¹⁸ Beginning in 1973, and for the first time since the post-World War II period of growth, inflation-adjusted real hourly wages stagnated and then declined.¹⁹ The structure of cities reflected the transformation of the economy, racial demography, and urban space—shiny towers of banks, finance, and commercial centers near the closed factories of the industrial districts, wealthy young professionals living in gentrified

older neighborhoods, and impoverished African Americans living in concentrated poverty.²⁰

During the 1970s, the globalizing economy and international competition in the auto and steel industries had profound consequences. William Julius Wilson argues that these changes adversely affected Blacks more than other groups because of their more recent arrival into and greater vulnerability within the manufacturing economy.²¹ Manufacturing sectors in which blue-collar workers and unions had previously experienced the strongest gains were among the primary victims of the economic decline of the 1970s and 1980s. White factory workers saw their wages, benefits, and middle-class status eroded and resented liberal affirmative action programs to extend jobs and seniority to Blacks against whom unions and employers previously discriminated.²² They understood conservative political attacks on affirmative action policies—couched as reverse discrimination—in terms of racial competition.²³ White workers' anxiety and anger over their economic vulnerability and government failure to address their concerns enabled some politicians to scapegoat Blacks and increased their receptiveness to racial appeals.²⁴ With the decline in manufacturing jobs, lower-skilled and less educated workers could find alternative work only in retail and service industries, which paid lower wages, lacked health benefits, and provided less stability.²⁵

Inequality in America increasingly operates through education.²⁶ The earnings gap between high school and college graduates widened as those with more education and technical training prospered and those with fewer skills foundered.²⁷ In the 1970s, college-educated people only earned about 25% more than did those with a high school education.²⁸ Two decades later, differences in earnings were almost 100%, because college graduates' income grew substantially while high school graduates' declined.²⁹ Increasingly, success in the labor market correlated with education. The education-earning differential exacerbated racial inequality because only 13.1% of Blacks aged twenty-five to thirty-four had college degrees, compared with 24.5% of whites; the proportion of Blacks aged eighteen to twenty-four enrolled in college declined while that of whites increased during this period.³⁰ Better-paying jobs—professional, technical, and managerial—employed disproportionately more white workers and grew faster than did those that employed pro-

portionally more Black workers—machine operators, service, clerical, and household workers.³¹ These economic changes had regional and political ramifications. Employment declined most in the Northeast and Midwestern rust-belt industries—steel, rubber, and auto—while high-technology industries—electronics and computers—expanded in the more conservative Sunbelt states.³² “The great economic losers of the new inequality were men with only a high school education. Without a college degree, these less-skilled men missed out on the technical and white-collar jobs that retained their value through the 1970s and 1980s. Young black men in urban areas were hit the hardest. As urban labor markets buckled under the loss of industrial jobs, minority neighborhoods in the Northeast and the Midwest descended into poverty and chronic joblessness.”³³

Tax policies enacted during the Reagan administration fostered wealth and income inequality and shifted the tax burden from the wealthy to the middle class.³⁴ Reductions in capital gains and dividend tax rates directed more than 80% of tax benefits and savings to the wealthiest 10% of the population.³⁵ At the same time, the Reagan administration cut half a million families from welfare rolls, slashed one million from food stamps, and dropped 2.6 million children from school lunch programs.³⁶ Since 1980, the country has experienced overall growth similar to that during the prosperous postwar era, but as a result of those political decisions, the incomes and wealth of those at the top have grown substantially, while that of the middle class have stagnated, and the condition of the poor has deteriorated.³⁷

Parental education and wealth confer intergenerational advantages to their children. Over the past quarter century, the net worth of college educated households with children increased by 47%, whereas that of high school-educated households fell by 17%.³⁸ Tax policies skewed toward the top wealth holders enable them to disproportionately benefit from economic and productivity growth, to compound their cumulative advantage, and to produce the greatest income and wealth inequality in American history.³⁹

The 1964 Civil Rights Act included women in its employment discrimination provisions; women’s entry into the work force eroded traditional patriarchy and the economic position of white men. As financial pressures made one-earner male-headed households increasingly

untenable, the proportion of married women entering the workforce grew from about one-third in 1965 to more than half by 1980.⁴⁰ Since the early 1970s, average family income has increased little, real wages of typical male workers have declined, and only the entry of women into the workforce has sustained median family incomes.⁴¹ Although some women entered the labor force to take advantage of expanding opportunities and changing gender roles, economic necessity forced many others to enter the workforce to supplement declining family incomes and to maintain a middle-class status. Women married later, had fewer children, and reentered the workforce sooner after giving birth.⁴² Professional opportunities for college-educated women and service and light-manufacturing employment for working-class women changed the operation of families. As more women entered the workforce, parents' ability to supervise and control their children declined. Changes in family structure and gender roles have become a central part of political and cultural debates—"family values"—over the past quarter century.

Public Policies Created the Urban Ghetto

The experiences of Blacks during and after the Great Migration differed substantially from those of earlier generations of European immigrants and placed them at a significant economic and structural disadvantage during the post-industrial transition.⁴³ Unlike the situation around the turn of the century, when companies sought immigrants' labor during industrialization, by the 1970s manufacturing jobs had begun to decline. Black men leaving the South entered the manufacturing economy as demand for industrial workers was contracting.⁴⁴ Notwithstanding discrimination against earlier immigrant groups, Blacks faced much more intense exclusion and segregation in education, residence, and employment, which impeded their integration and upward mobility.⁴⁵

Racism reinforced residential segregation and limited Blacks' ability to live near employment opportunities.⁴⁶ As Blacks moved to cities, automobile ownership and federal highway policies contributed to white suburban growth.⁴⁷ Since 1980, more than two-thirds of manufacturing and retail employment growth has occurred in suburbs rather than in central cities.⁴⁸ Job growth in the suburbs coupled with inadequate public transportation posed obstacles for urban workers who could not

afford cars and created a job-spatial mismatch—people and employment opportunities located in different places.⁴⁹ Spatial and social isolation from informal job networks exacerbated Black poverty and limited chances for economic integration and mobility.⁵⁰

As noted in Chapter 2, federal housing policies, bank redlining, disinvestment and mortgage policies, real estate block-busting and related sales practices, and interstate highway construction contributed to white suburbs surrounding increasingly poor minority urban cores.⁵¹ In the 1950s and 1960s, urban renewal eliminated about 20% of central cities' housing stock and freeway construction destroyed or quarantined many viable low-income Black communities.⁵² As the urban Black population grew, municipalities concentrated public housing units in inner-city ghettos, withdrew services from Black neighborhoods, and contributed to urban decay.⁵³ During the Reagan era, cuts in direct aid to cities reduced revenues for transit, social services, public works, education, job training, and the like.⁵⁴ These cuts particularly affected the older cities of the Northeast and Midwest and contributed to consolidation of inner-city ghettos. Even as cities faced increasingly complex problems—crime, drugs, the AIDS epidemic and public health costs, joblessness, and failing schools—many lacked the resources with which to address them.⁵⁵

The segregation of many Blacks in urban ghettos did not happen by chance or simply reflect personal housing preferences. Public policies, private institutions, and individuals' actions created and sustained racial segregation and concentrated poverty.⁵⁶ A half century ago, the National Advisory Committee on Civil Disorders—the Kerner Commission—stated that “segregation and poverty have created in the racial ghetto a destructive environment totally unknown to most white Americans. . . . White institutions created it, white institutions maintain it, and white society condones it.”⁵⁷ Robert Sampson and Janet Lauritsen argue that “even given the same objective socioeconomic status, blacks and whites face vastly different environments in which to live, work, and raise their children.”⁵⁸ They attribute racialized concentrated poverty to deliberate public policies to contain and isolate minorities and to white communities' opposition to public housing in their neighborhoods.⁵⁹ In 1980, 70% of poor whites live in non-poverty areas compared with only 16% of poor Blacks. Conversely, fewer than 7% of poor whites live in areas

of concentrated poverty compared with 38% of poor Blacks.⁶⁰ As corollaries of deindustrialization, Black family income dropped from 61% of that of white families in 1970 to 54% in 1992.⁶¹ In short, Blacks are far more likely than whites to be poor and, if they are poor, far more likely to live in segregated areas of concentrated poverty. As Marie Gottschalk observes, “there are virtually no white neighborhoods as poor as the poorest black neighborhoods. The ‘worst’ urban neighborhoods in which whites reside are considerably better off than those of the average African American community, and the most advantaged black neighborhoods are no better off than the typical white neighborhood.”⁶² Concentrated poverty for Black families is far more likely to be intergenerational than it is for whites.⁶³

Segregation and concentrated poverty created an inhospitable environment to which ghetto residents struggled to adapt and which sustained outlooks and behaviors that impede social mobility.⁶⁴ Disorganized slum communities foster a milieu in which crime and drug use, joblessness, welfare dependency, teenage childbearing, and unwed parenthood become normal.⁶⁵ Whites’ fears strengthens their desire to insulate themselves from those whom they perceive as dangerous and threatening.⁶⁶

The structural changes—deindustrialization, suburban job growth, and economic bifurcation based on education—and demographic transformations—white migration to suburbs, Black concentrated poverty in inner cities—altered the nation’s political balance.⁶⁷ Efforts to reduce residential and school segregation contributed to white flight to the suburbs.⁶⁸ After the Supreme Court in *Milliken v. Bradley* stopped busing across school district boundaries to achieve *Brown*’s desegregation goals, “suburban municipalities built on white flight were permitted to set up virtually all-white enclaves operating as if 1954 had never happened.”⁶⁹

Between 1970 and 1986, the suburban population, already overwhelmingly white, grew from 40 to 45% of the national electorate.⁷⁰ As a result of economic stratification, more families now live either in uniformly affluent or poor neighborhoods and fewer live in mixed- or moderate-income neighborhoods.⁷¹ Residential sorting and school quality go hand in hand because well-educated parents will move to districts that provide their children with better educational opportunities.⁷²

The emergence of the suburbs as a virtual electoral majority enables white voters to address their own public service needs—schools, parks, police, and roads—through local and county government while weakening their ties to cities increasingly populated by Blacks and other minorities.⁷³ Suburban whites' ability to fund public services through local taxes and divisions between urban and suburban municipalities reduced whites' incentives to contribute to state or federal programs for the poor. The concentration of Black voters in urban areas has limited their influence over politicians who represent predominantly white suburban districts.⁷⁴ While investments in public services and, especially, public schools is imperative to address condition of segregated poverty, urban-suburban political divisions reduce whites' incentives to contribute.⁷⁵

Where children live determines the quality of schools they attend. During the period of deindustrialization, increased income-based residential segregation has reinforced de facto class-based school segregation.⁷⁶ The twenty-five largest central-city school districts enroll 27.5% of all Black students and 30% of all Hispanic schoolchildren, but only 3.3% of all white children.⁷⁷ With more affluent students attending private schools or better suburban schools, the quality of urban schools deteriorated and further limited educational opportunities for minority youths. Underperforming urban schools and low expectations undermine Black youths' prospects to escape the effects of concentrated poverty.⁷⁸ In an economy that places a premium on education, skills, and training, many poor and urban children of color are at a significant disadvantage compared with their white suburban counterparts. I argue in Chapter 7 that these changes have fueled a school-to-prison pipeline for urban Black male students.

Deindustrialization and the Black Underclass

The post-industrial economic transition and racial reorganization of cities contributed to an urban underclass living in cultural isolation and concentrated poverty.⁷⁹ In *The Truly Disadvantaged*, William J. Wilson argues that the transformation of inner cities reduced Black males' employment prospects, increased rates of out-of-wedlock child-births, contributed to the decline of two-parent Black households, and increased child poverty.⁸⁰ Limited employment opportunities for

low-skilled workers reduced the pool of Black men who could support a family.⁸¹ Households headed by unwed mothers increased as marriage to unemployed or unemployable Black males became less attractive.⁸² Children reared in single-parent households experience higher rates of poverty than do those raised in two-parent households. Sixty percent of Black children live in single-parent households and they are four times more likely than white children to live in poverty.⁸³

Following passage of federal housing laws in the mid-1960s, many middle-class Blacks took advantage of economic and housing opportunities to leave the ghettos.⁸⁴ “The out-migration of middle-class families from ghetto areas left behind a destitute community lacking the institutions, resources, and values necessary for success in post-industrial society.”⁸⁵ While most African Americans live conventional lives, about 30 to 40% live in segregated areas of concentrated poverty outside the economic mainstream.⁸⁶ Middle-class Blacks’ residential mobility deprived the truly disadvantaged who remained of the human capital and economic and cultural resources necessary for social stability and amplified the effects of concentrated poverty.⁸⁷ Their social isolation deprives them of resources, role models, cultural learning, and informal networks that could facilitate social and economic advancement.⁸⁸

Crack Cocaine and Black Youth Homicide

In the 1980s, the introduction of crack cocaine into inner cities led to a proliferation of guns and a sharp increase in Black youth homicides.⁸⁹ The connection between race and youth crime provided a powerful incentive to politicize crime policies.⁹⁰ Because rates of offending for some crimes differ by race, political decisions to get tough on violence and drugs meant targeting young Black men.⁹¹ The media depict and the public perceive crime and juvenile courts’ clientele primarily as urban Black males.⁹² Politicians manipulated and exploited these perceptions with demagogic pledges to crack down on “youth crime,” which white voters understood as code words for Black males.⁹³

The Federal Bureau of Investigation’s *Uniform Crime Reports* reveal that arrest rates for serious crime, juvenile crime, and violent juvenile crime followed similar patterns—increasing from the mid-1960s until 1980, declining somewhat in the mid-1980s, and increasing to another



Figure 3.1. Arrest Rate in the United States

Sources: Federal Bureau of Investigation—Uniform Crime Reporting, *Crime in the United States*, <https://ucr.fbi.gov>; Disaster Center, *United States Crime Rates*, www.disastercenter.com.

peak in the early 1990s, since which time they have fallen precipitously.⁹⁴ Between 1965 and 1980, violent crime and homicide rates doubled, followed by a second upsurge between 1986 and 1994.⁹⁵ Elizabeth Hinton attributes part of the perceived increases in crime in the 1960s and 1970s to Great Society crime legislation that funded improved state data collection and expanded the deployment of police resources in African American communities.⁹⁶

The FBI Crime Index includes arrests for both violent and property crimes. The Violent Crime Index records four crimes—murder and non-negligent manslaughter, forcible rape, robbery, and aggravated assault. The Property Crime Index records four crimes—burglary, larceny-theft, motor vehicle theft, and arson. Arrests may be reported either as absolute numbers or as rates per 100,000 population to control for changes in population, which allows for comparisons between years.

Figure 3.1 depicts arrest rates for violent, property, and total index crime for all offenders—juveniles and adults—from 1960 to 2011. In the early 1960s, police arrested offenders for violent crimes at a rate around 160 per 100,000, for property crimes at a rate about 1,750 per 100,000, and for total crimes at rate of less than 2,000 per 100,000. Over the next two decades, arrests rates for violent, property and total index crimes more than doubled and first peaked in the early 1980s. In 1980, the total

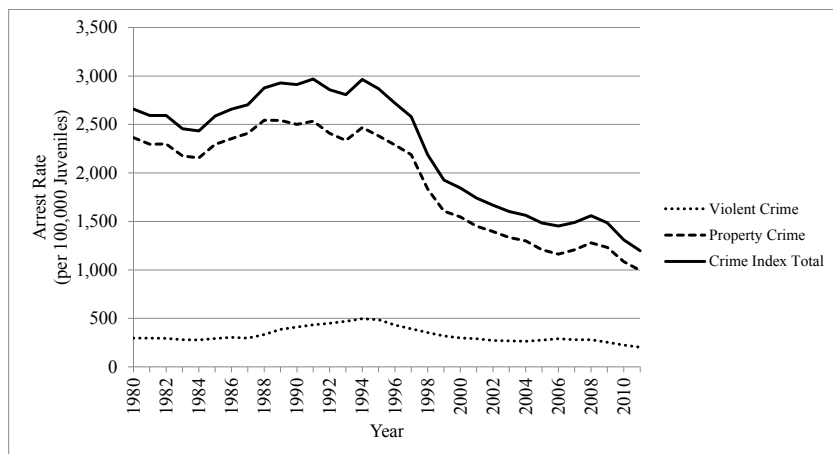


Figure 3.2. Juvenile Arrest Rate for Index Crimes

Source: Office of Juvenile Justice and Delinquency Prevention, *Statistical Briefing Book*, www.ojjdp.gov.

arrest rate was 5,950 per 100,000, nearly three times that of the early 1960s. Violent arrest rates nearly quadrupled and comprised about 10% of that total. After a mid-1980s dip, arrest rates peaked again in the early 1990s, since which time they have fallen steadily. At the second peak in 1991, the overall arrest rate reached 5,898 per 100,000, but violent crime arrest rates comprised 12.9%, a larger proportion of the total. After two decades of decline, overall crime and violent arrest rates are currently about half of what they had been at their peak.

Juveniles' arrest rates mirrored the pattern reflected in Figure 3.1. Figure 3.2 shows their rates dipping in the mid-1980s, peaking in the mid-1990s, and then falling. In 1980, the arrest rate for juveniles aged ten to seventeen for violent crimes was 295 per 100,000, or about 11% of all juvenile arrests. At the peak in 1994, the juvenile arrest rate for violent crimes was 497 per 100,000, a 68% increase and comprised 16.8% of all juvenile arrests. Violent crimes are a smaller component of the overall Crime Index and police arrest juveniles for a smaller proportion of violent crimes than they do adults. But the increase in juveniles' arrest rates in the late 1980s and early 1990s for violence outstripped that of adults, especially for homicide.

In the mid-1990s, police arrested juveniles for about one in seven homicides. In 1995, for example, they arrested 2,560 juveniles for mur-

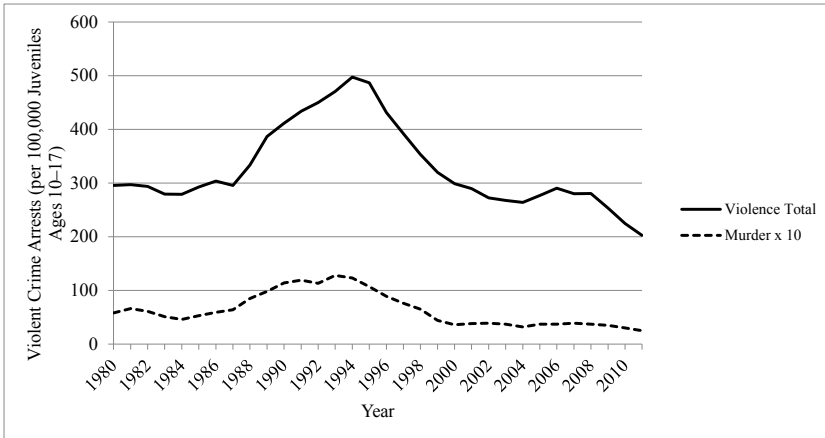


Figure 3.3. Juvenile Violence and Homicide Arrest Rate

Source: Office of Juvenile Justice and Delinquency Prevention, *Statistical Briefing Book*, OJJDP, www.ojjdp.gov.

der compared with 14,141 adults. Figure 3.3 displays the juvenile arrest rates for homicide and for all violent crimes. To place them on the same graph, I multiplied the homicide rate by ten (10). Between 1984 and 1994, the juvenile arrest rate for violent crimes increased from 279 per 100,000 to 497 per 100,000, a 78% increase. In 1984, juvenile homicide arrests comprised about 1.6% of all arrests for violence. Over the next decade, the juvenile homicide arrest rate increased 267%. In 1994, homicides comprised 2.5% of all juvenile arrests for violence. In 1995, police arrested juveniles under the age of fifteen for 5.6% of all violence and 13.5% of all homicides.⁹⁷ Juvenile arrests for violence and homicide increased at a faster rate than did those of adults and included younger juveniles.

Two elements of youth violence—race and guns—drove get tough transfer and delinquency sentencing laws in the 1980s and 1990s. Arrest rates of Black youth for violent crimes and the use of guns to murder changed significantly.⁹⁸ Since the mid-1960s, police have arrested Black juveniles for violent crimes and homicide at rates about five times those of white youths.⁹⁹ Lethal violence and victimization are highly concentrated in the interstices of social disadvantage and closely linked with race.¹⁰⁰ For example, the twenty largest cities comprise slightly more than one-tenth of the nation's population but experience more than one-third of all homicides.¹⁰¹ Sampson and Wilson attribute the relationship

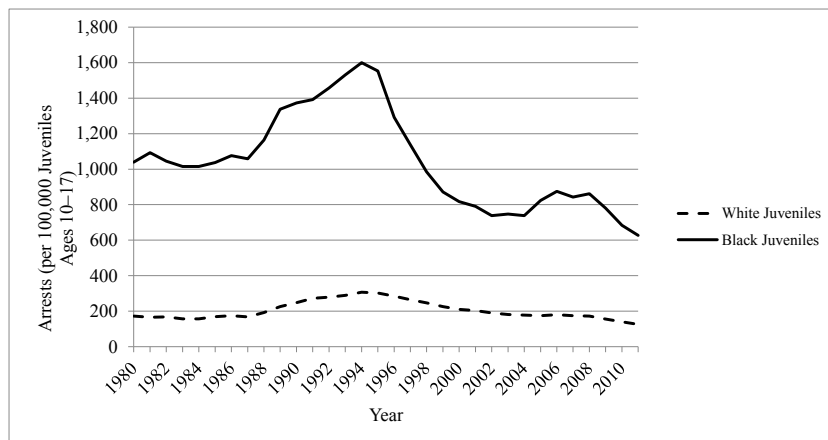


Figure 3.4. Juvenile Arrest Rate for Violent Crimes, by Race, 1980–2011

Source: Office of Juvenile Justice and Delinquency Prevention, *Statistical Briefing Book*, www.ojjdp.gov.

between race and violent crime to the “differential distribution of blacks in communities characterized by (1) *structural social disorganization* and (2) *cultural social isolation*, both of which stem from the concentration of poverty, family disruption, and residential instability.”¹⁰²

Figure 3.4 depicts Black and white juveniles’ arrest rates for violent crimes and the divergence by race between 1984 and 1994. In 1984, police arrested white youths for violent crimes at a rate of 157 per 100,000. By 1994, their arrest rate had nearly doubled to 307 per 100,000. Black youths’ Violent Crime Index arrests started at a rate six times that of white youths—1,015 per 100,000—and by 1994 rose to 1,600 per 100,000, a 58% increase. By 2011, white youths’ violent arrest rate had fallen to 126 per 100,000, a 244% decline. Black youths’ arrest rate decreased to 627 per 100,000, a similar decline albeit from a much higher base rate. For youths of both races, arrest rates for violence surged between the mid-1980s and the mid-1990s and then fell even more precipitously.

Figure 3.5 reports juvenile homicide arrests rates by race. In 1984, police arrested white youths for homicide at a rate of 3 per 100,000, Black youths at a rate of 14.3 per 100,000, and other youths at a rate of 4.2 per 100,000. A decade later, the white youth homicide arrest rate had doubled to 6.1 per 100,000, while the Black youth homicide arrest rate rose even more sharply to 46.4 per 100,000, a 325% increase. Although ho-

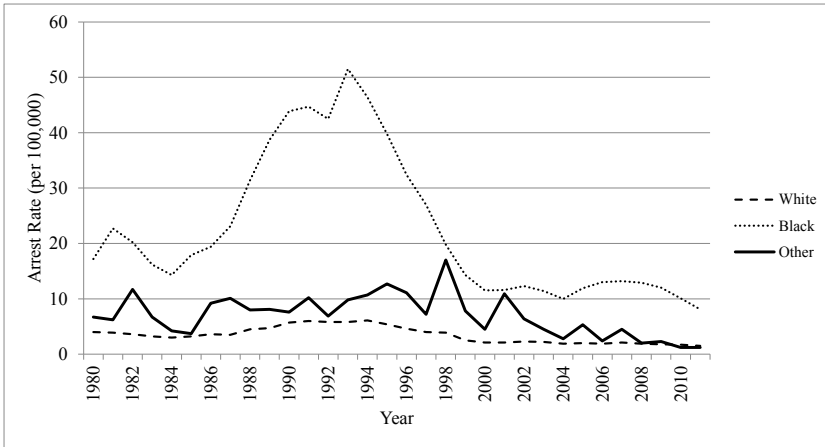


Figure 3.5. Juvenile Arrest Rates for Homicides, by Race, 1980–2011

Source: Office of Juvenile Justice and Delinquency Prevention, *Statistical Briefing Book*, www.ojjdp.gov.

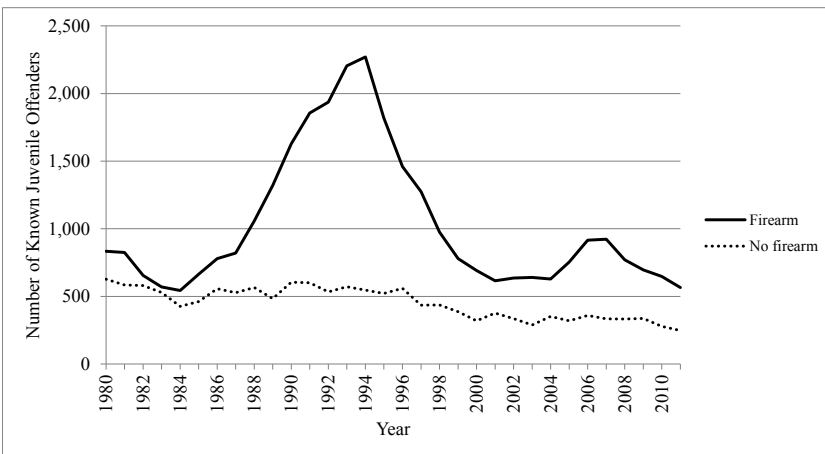


Figure 3.6. Juvenile Homicides, by Use or Nonuse of Firearm

Source: Office of Juvenile Justice and Delinquency Prevention, *Statistical Briefing Book*, www.ojjdp.gov.

micide arrests increased for youths of all race, the rise for Black youths was greater than that of whites and other youths.¹⁰³ By 2011, arrest rates for white youths had declined to 1.5 per 100,000, half of what it had been before the surge began in 1984. The arrest rate for Black youths had declined to 8.1 per 100,000, or 57% less than before the surge, but

still quintuple that of white youths. Racial differences in homicide arrests reflect the structural location of Black youths in segregated urban slums.¹⁰⁴

Figure 3.6 shows that juveniles' use of guns accounted for the sharp increase in homicide. Juveniles used knives, blunt objects, and other means to cause around 570 deaths per year.¹⁰⁵ By contrast, between 1984 and 1994, the number of people they killed using firearms increased from 543 to 2,271, a 418% jump.¹⁰⁶ Over that decade, juveniles' arrests for murder nearly tripled, guns accounted for most of the increase, and urban Black males accounted for most of those killed.¹⁰⁷

Crack Cocaine and Violent Drug Markets

Analysts attribute the dramatic increase in gun murders to the violent crack cocaine industry that appeared in large cities in the mid- to late 1980s.¹⁰⁸ Alfred Blumstein and others ascribe the disproportional racial increase to several factors: introduction of crack cocaine into inner-city ghettos in the mid-1980s; recruitment of young Black males to sell drugs in open-air street markets; drug sellers arming themselves for self-protection; circulation of guns among drug dealers' peers; young peoples' irresponsible use of guns; and a contagion effect that changed attitudes about and behaviors involving gun use.¹⁰⁹ The low price of crack cocaine increased the numbers of buyers and sellers to accommodate demand. Selling drugs attracted juveniles because they faced less severe penalties than adults. They lacked economic alternatives and naïvely believed they could earn large amounts of money selling drugs. Youths armed themselves for self-protection and to resolve disputes.¹¹⁰ Adolescents engage in riskier behavior than do adults and the presence of guns increases the likelihood lethal violence. As guns proliferated, more youths armed themselves for self-defense and social status and homicide escalated.¹¹¹

Social context strongly influences adolescent development and participation in criminal activity. As a result of concentrated poverty, social disorganization, and economic and racial inequality, inner-city youths may be socialized in what Elijah Anderson describes as a "code of the street" that encourages violent responses to disrespect.¹¹² They are more likely to witness violence, to learn the instrumental value of violence,

and to have violent role models. The drug industry, in turn, contributed to deterioration of urban neighborhoods by driving out stable families, undermining community leaders, weakening inhibitions against violence, and providing attractive criminal role models.¹¹³

Each separate factor—urban, Black, and youth—affects the prevalence and rate of crime; the Black youth homicide rate reflects the pernicious intersection of all three factors in certain structural niches. Political economy—macro-economic forces, public policy choices, and private business decisions—and social processes create the conditions that generate high levels of lethal violence in areas of concentrated poverty.¹¹⁴

By the early 1990s, random gang violence, drive-by shootings, and disproportionate minority homicides inflamed public fears and left people vulnerable to law and order demagoguery.¹¹⁵ Politicians promoted and exploited the public's fears for electoral advantage, warned of a young generation of super-predators whose stunted empathy derived from moral poverty, and demonized them to muster support for wars on crime, drugs, and youth.¹¹⁶ Although predictions about a future threat cannot be proven or falsified, they advocated preemptive get tough policies to transfer youths to criminal court and incarcerate them.¹¹⁷

Conclusion: Childhoods Are Different

The types of childhoods that children experience are strongly shaped by social structure, race, and class. In *Our Kids: The American Dream in Crisis*, Robert Putnam poignantly describes how these factors affect family formation, parenting styles, schools, and the communities in which they live, and strongly influence their opportunities and life trajectories.¹¹⁸ The post-industrial processes that emerged in the 1970s have amplified differences between the childhoods of middle-class white children of college-educated parents growing up in safe suburbs attending quality schools and those of Black children growing up in concentrated poverty in dangerous inner-city neighborhoods attending failing schools.

Economic forces, government policies, and institutional decisions create the conditions that determine the varieties of childhood. Public policies and private institutional decisions created the urban ghetto. Federal housing policies, disinvestment in cities, the siting of

public housing projects, bank loan policies, real estate sales practices, and interstate highways facilitated white suburban growth and created poverty-stricken urban slums in which Blacks are forced to live. Deindustrialization disproportionately affected Black male factory workers, undermined family formation, and exacerbated poverty for children growing up in single-parent households. These structural conditions contributed to racial differences in gun violence in the 1980s and 1990s and led to disproportionate deaths and woundings within the urban Black male population. Regardless of how we feel about adults, children are innocent bystanders and victims of their parents' circumstances who cannot escape the criminogenic environments to which the larger society consigns them. Their childhoods are very different from those of their more affluent peers.

The Get Tough Era II

Politics of Race and Crime

Macro-structural changes, rising crime rates, and social unrest in the 1960s realigned both political parties around race-related issues.¹ Republicans employed a Southern strategy to appeal to white voters' racial antipathies by politicizing crime and welfare policies.² They attributed race riots and crime to Warren Court decisions and liberal Democrat policies that rewarded bad behavior and fostered welfare dependency.³ They described young offenders as dangerous criminals—super-predators—rather than as children and attributed their violence to lenient juvenile court dispositions.⁴ By the early 1990s, lawmakers' politicization of crime policies led to mass incarceration of adults and get tough juvenile justice measures—transfer, delinquency sentencing, public hearings, record sharing, and the like.

The causes of social problems such as welfare or crime may be understood in different ways and lead to different policy prescriptions. Indeed, the definition of a particular condition as a social problem emerges through a process of social construction.⁵ Politicians compete for public acceptance of their interpretations and use mass media to shape popular culture about crime and race.⁶ In the 1960s and 1970s conservative politicians shaped a law-and-order message that focused on crime in the streets, which they implicitly attributed to Blacks.⁷ They ascribed the causes of crime to individual choices rather than to structural forces and promoted policies to crack down on criminals as part of a racialized electoral strategy.⁸ Ian Haney Lopez describes this tactic as strategic racism—“purposeful efforts to use racial animosity as leverage to gain political power.”⁹ Since the 1970s, a reactionary attitude has dominated American political discourse—reactionary not simply as a political characterization, but as a desire to reverse the directions

of social, cultural, and legal changes and to restore a previous halcyon social order.¹⁰

This chapter examines the politics of race and crime that laid the foundation for get tough policies in juvenile courts and schools. It focuses first on the political and social changes that emerged in the 1960s and fostered realignment of the Democratic and Republican parties around race, welfare, and crime policies. Next it describes Republicans' Southern strategy, which used policy issues associated with race—crime, welfare, and affirmative action—to attract white Southern and suburban voters. Finally, it describes their use of coded language to convey a message that its recipients readily understood as a racial appeal while allowing them to deny its racist content.

Racial Political Realignment: Welfare, Crime, Riots, and Backlash

During the second half of the 1960s, the civil rights struggle shifted from ending apartheid and Jim Crow discrimination to even more difficult issues of political, economic, and social inequality nationwide.¹¹ Politicians and the public increasingly appreciated the magnitude of the changes wrought by the Great Migration and the racial transformation of cities.

[T]he migration hardly created a harmonious, racially synthesized country. It was disruptive; it engendered hostility. The fabric of city life in the United States changed forever. Some of the bitterness of race relations leached into city politics. The ideal of high-quality universal public education began to disappear. Street crime became an obsessive concern for the first time in decades. The beginning of the modern rise of conservatism coincides exactly with the country's beginning to realize the true magnitude and consequences of the black migration, and the government's response to the migration provided the conservative movement with many of its issues.¹²

The civil rights agenda frayed the coalition of Blacks, liberals, Northern ethnic and Southern white voters, and polarized the Democratic and Republican parties over matters of race.¹³ The pre-1964 civil rights agenda focused on citizenship rights—the right to vote, equal access to

housing and public accommodations. The post-1964 agenda focused on broader issues—welfare, housing, and employment sometimes pursued through racial preferences—which conservatives and the Republican Party strongly opposed.¹⁴ Beginning in the 1960s, crime and welfare became central issues in partisan politics and acquired a racial coloration as conservatives cast Blacks and their Democratic allies as the villains.¹⁵

Welfare and Poverty

The Great Migration swelled the Northern Black population and the ranks of the urban poor. The original federal Aid to Families with Dependent Children (AFDC) welfare program granted states considerable latitude to set benefit levels and eligibility requirements. AFDC was means-tested, stigmatized recipients, and created financial disincentives to work or to marry.¹⁶ Southern states with large Black populations provided low benefits and excluded most Black mothers from those meager grants.¹⁷ Changes in the law, the amount of federal matching grants, and the migration of African Americans to the North increased the percentage of eligible Black AFDC recipients from 14% in 1936 to 46% in 1973.¹⁸ As Blacks' enrollment on welfare expanded, rates of out-of-wedlock childbirth increased and conservative politicians asserted a link between welfare dependency and race.¹⁹

Whites' attitudes toward welfare distinguish between the *deserving* and *undeserving* poor and soured as the relationship between welfare, poverty, and race emerged.²⁰ Americans value individualism, self-reliance, and personal responsibility—values that emphasize personal choices rather than structural determinants of behavior.²¹ The American Dream posits that anyone can succeed through hard work; those who fail to realize its promise are lazy, profligate, or immoral.²² Whites recognize that structural forces cause hardships when poor people resemble themselves—people trapped by social forces or misfortune.²³ They shift to a belief in personal failings when they see the poor as non-white and unlike themselves.²⁴ They blamed the Black emigrants from the South—undeserving poor—rather than structural conditions for family breakdown, unemployment, unwed parenthood, and welfare dependency.²⁵

During the 1960s, as poor Blacks came to the attention of the media and public, the longstanding distinctions between deserving

and undeserving poor and the stereotypic belief that Blacks were lazy became more strongly intertwined.²⁶ Lyndon Johnson's War on Poverty extended welfare benefits to non-whites and the number of recipients doubled during the 1960s because so many children of color lived in poverty.²⁷ Poverty in minority communities was closely connected with racial segregation in schools, housing, and employment, and resistance to integration became tightly linked with opposition to welfare.²⁸ Martin Gilens argues that most Americans hate welfare because they believe that it rewards the undeserving poor, that the majority of welfare recipients are Black, and that Blacks evince less commitment to the work ethic than other groups.²⁹ Conservatives exploited cultural narratives about personal responsibility and individual choice over structural constraints.³⁰

Conservatives attributed Black poverty and criminality to individuals' character failings and cultural shortcomings rather than structural factors.³¹ According to this narrative, government assistance is futile because only Blacks themselves can reform their dysfunctional culture and avoid self-defeating behavior.³² Negative media coverage reinforced public opinion and political depictions of Blacks as criminals and undeserving.³³ The concurrence of rising crime rates with poverty programs enabled conservatives to attribute Black-white socioeconomic disparities and criminality to personal pathologies and fostered resistance to policies to ameliorate structural factors that contributed to those differences.³⁴ Punitive measures such as eligibility time limits and work requirements were necessary to goad the reluctant poor to seek gainful employment.³⁵

Two social norms that sustained the traditional nuclear family began to unravel. One was a patriarchal division of labor in which a working man supported his family and his wife maintained the domestic sphere. The second was a strong norm against out-of-wedlock child bearing and rearing.³⁶ In 1965, the prescient Moynihan Report—*The Negro Family: The Case for National Action*—warned that urban Black male unemployment threatened the stability and viability of Black families and communities.³⁷ In the rapid transition from a rural agrarian to urban industrial life, many unskilled Black men suffered unemployment.³⁸ Without financial ability to support families, men deserted their women and children and illegitimacy and welfare dependency increased.³⁹ The

Moynihan Report argued that “[a]t the heart of the deterioration of the fabric of Negro society is the deterioration of the Negro family. It is the fundamental source of weakness of the Negro community at the present time. . . . Unless this damage is repaired, all the efforts to end discrimination and poverty and injustice will come to little.”⁴⁰ Both Black and liberal critics attacked the Moynihan Report for “blaming the victims,” but the structural and economic problems he identified—Black male unemployment, out-of-wedlock childbirth, concentrated poverty, and violent crime—remain primary issues of contemporary urban, welfare, and criminal justice policy.⁴¹

The trends in family formation/dissolution and child-rearing arrangements that affected Blacks a half century ago now affect whites as well. Among the high-school-educated lower third of the population, white children’s parents increasingly fail to marry, divorce, and many raise offspring in single-parent households and poverty.⁴² While only about 10% of college-educated women give birth to children outside of wedlock, almost two-thirds of women with a high school education or less are unmarried when they have children. Today, family formation among college-educated Blacks looks more like that of college-educated whites while that of less educated whites looks more like that of less educated Blacks.⁴³ In the Epilogue, I argue that changes in family formation and child poverty require class-based economic reforms as well as racial amends to improve children’s life chances.

Urban Race Riots

Race riots rocked American cities in the 1960s as Blacks reacted violently to decades of segregation, deprivation, and alienation.⁴⁴ In 1964, a white police officer in Harlem shot and killed a fifteen-year-old Black youth and set off the largest race riot since World War II. The following summer, five days after President Johnson signed the 1965 Voting Rights Act, the Watts district of Los Angeles exploded in riot and television viewers watched Blacks battle police and loot stores.⁴⁵ Thirty-eight riots in 1966 and 164 riots in 1967 raised fears of a national race war.⁴⁶ Three summers of riots left more than two hundred dead, thousands injured, and tens of billions of dollars in property damage. In 1968, the assassination of Martin Luther King, Jr., provoked another spate of urban riots.⁴⁷

Black Power advocates challenged church-based civil rights leaders for prominence. Their violent rhetoric and the urban riots frightened many white voters who felt that Blacks had failed to take advantage of their invitation to citizenship.⁴⁸

President Lyndon Johnson established the National Advisory Commission on Civil Disorders—the Kerner Commission—in the aftermath of the riots. The commission attributed the riots to the nation’s history of racial discrimination in employment, education, social services, and housing.⁴⁹ It warned that the country was moving “toward two societies, one black, one white—separate and unequal.”⁵⁰ It cautioned that the historical legacy of segregation and discrimination and continuation of current policies would “make permanent the division of our country into two societies; one, largely Negro and poor, located in the central cities; the other predominantly white and affluent, located in the suburbs.”⁵¹ As I explained in Chapter 3, by the 1970s and 1980s, many American cities already had become white doughnuts surrounding a Black center of segregated neighborhoods and schools.

Despite the Kerner Commission’s sympathetic analysis of the structural causes of urban crime and racial disorder, crime and welfare emerged as potent political issues in the 1960s. The riots changed many whites’ perceptions of the legitimacy of Blacks’ grievances and led to the subsequent race-based politicization of public policies.⁵² Republicans appealed to whites’ racial animus and promoted beliefs that the time for remediation had passed and Blacks had failed to take advantage of their new opportunities.⁵³

Liberals and conservatives attributed increases in crime and welfare dependency to different sources. Liberals focused on structural conditions of racial and economic inequality to explain crime and poverty.⁵⁴ Conservatives rejected the causal roles of discrimination in housing, education, and employment, and argued that people became criminal or poor because they made bad choices that social welfare programs only encouraged.⁵⁵ They simplistically attributed rising crime and urban racial disorders to Supreme Court decisions protecting civil rights and criminal defendants.⁵⁶ Heightened media attention to crime gave credence to their claims that the Court had undermined deterrence, made it harder to arrest and convict criminals, increased whites’

fears of victimization, and created a receptive audience for advocates of punitive policies.⁵⁷

Politics of Race and Crime

Following *Brown v. Board of Education*, conservative Southerners linked race with crime.⁵⁸ Civil rights activists challenged Southerners' "massive resistance" to integration with direct action, civil disobedience, and sit-ins to desegregate public facilities.⁵⁹ *Brown* radicalized Southern racial politics.⁶⁰ Diehard segregationists had stronger commitments to their position than did racial moderates and used repressive tactics to create an appearance of monolithic resistance.⁶¹ When activists protested or used disruptive strategies, law enforcement violently suppressed them and politicians denounced them as Communists, criminals, and mobs of "outside agitators."⁶² They conflated crime with political dissent, claimed that civil disobedience caused crime, and urged forceful repression of criminals and protesters alike.⁶³

Although most Americans agreed in theory with principles of equality, many opposed the remedies that courts and government agencies adopted to address racial injustice. While whites outside the South repudiated white supremacy and endorsed racial equality, their support for the civil rights agenda plummeted once it called for changes that affected them.⁶⁴ Many Northern whites believed that the 1964 Civil Rights Act had removed barriers to racial equality and that further progress was a matter of Blacks' efforts rather than state remediation.⁶⁵ By the 1960s and 1970s, the burdens of integrating schools, housing, and employment fell more heavily on working- and lower-middle-class ethnic groups than on white professionals, who could insulate themselves in gated suburbs and send their children to private schools.⁶⁶

The expanding rights revolution—involving minorities, women, and gays—and cultural changes disturbed and angered white working-class people who bore the brunt of these changes—civil rights for minorities, employment and reproductive rights for women, protection for criminal defendants, affirmative action and racial hiring preferences.⁶⁷ Politicians appealed to whites' social conservatism and blamed the shiftless poor for increased welfare expenditures and higher taxes, Blacks for crime

in the streets, and liberal elites for a permissive culture that encouraged anti-social behavior.⁶⁸

The civil rights movement forced the Democratic Party to choose between its white Southern and its Black, Northern, and liberal constituencies.⁶⁹ Under Presidents Kennedy and Johnson, it loosened its bonds with whites in the South and aligned the party with civil rights and African Americans. Conservative Republicans countered to win white Southerners' support and topple the pro-civil rights Eastern wing of their party.⁷⁰ They attacked liberal social policies and ascribed baby boom crime, race riots, welfare dependency, and domestic social changes to Warren Court decisions and liberal Democrats' policies.⁷¹

Differences between the two parties clearly emerged in the 1964 presidential race between Lyndon Johnson, whose leadership led to passage of the 1964 Civil Rights Act, and Senator Barry Goldwater, a staunch conservative and ideological opponent of the law.⁷² The 1964 Republican Party convention rejected a party platform favoring civil rights by a two-to-one margin.⁷³ Goldwater's 1964 campaign linked street crime with civil rights protest and appealed to whites' growing concerns about racial violence.⁷⁴ Democratic support for Blacks' civil rights alienated white Southern voters and presaged political realignment as the divide on race-related issues between the two parties deepened.⁷⁵

The confluence of the 1960s cultural changes with shifts in crime, welfare, and race relations created a combustible political environment. "[T]he *fusion* of race with an expanding rights revolution and with the new liberal agenda, and the fusion, in turn, of race and rights with the public perception of the Democratic party, and the fusion of the Democratic party with the issues of high taxes and a coercive, redistributive government, that created the central force splintering the presidential coalition behind the Democratic party through the next two decades."⁷⁶ In 1966, Republicans made significant electoral gains—forty-seven House seats, three Senate seats, and Ronald Reagan's landslide gubernatorial victory in California—by blaming liberals' "soft social programs" and the Court for race riots and rising crime rates.⁷⁷

Republican politicians used crime, affirmative action, and welfare as wedge issues to attract Southern white, suburban, and ethnic vot-

ers.⁷⁸ During the turbulent 1960s, they blamed street crime and riots on dangerous and undeserving individuals and issued cries for law and order.⁷⁹ They promoted punitive crime policies rather than social welfare measures.⁸⁰ For the first time, crime policies became a partisan political issue and a fallback position for white Southern politicians who no longer could explicitly promote segregation in education and public accommodations.⁸¹

While liberals argued that the state bore some responsibility to reduce causes of crime and poverty, conservatives argued that social programs encouraged irresponsible individuals to make poor choices and contributed to dependency and criminality.⁸² President Johnson's War on Poverty coincided with increasing crime rates and conservatives argued that social welfare programs contributed to crime and a culture of dependency.⁸³

Civil rights changed public perceptions of the Democratic and Republican parties. Increasingly, people viewed Democrats as promoting new rights and government entitlements for marginalized and disenfranchised groups at the expense of traditional constituencies.⁸⁴ In the public mind, Court decisions to end racial segregation and protect criminal defendants became associated with the liberal Democratic agenda.⁸⁵ Finally, structural economic changes induced many middle-class voters to reconsider support for progressive social welfare policies that they perceived no longer benefited them.⁸⁶

In 1968, Alabama governor George Wallace's presidential campaign mobilized a white right-wing populist backlash against moral, racial, and cultural liberalism.⁸⁷ He denounced efforts by elitist lawyers, judges, academics, and government bureaucrats to impose their values and social policies on beleaguered working people.⁸⁸ His populist rhetoric helped to forge an alliance between working-class whites and traditionally affluent Republican voters in common opposition to liberal elites collecting taxes to conduct social experiments.⁸⁹ Richard Nixon's 1968 presidential campaign attributed urban riots and rising crime rates to Warren Court decisions that "coddled criminals" and "handcuffed police."⁹⁰ Three years of riots, rising crime rates, Vietnam War protests, and the assassinations of Robert F. Kennedy and Martin Luther King, Jr., created a climate of fear and anger and clamor for law and order with a racial subtext.⁹¹

Republicans' Southern Strategy

Divisions within the Democratic Party over civil rights, crime, welfare, and other cultural issues made the South politically competitive.⁹² Republican tacticians concluded that a Southern strategy employing coded racial appeals could foster a political realignment among white Southerners, suburbanites, and socially conservative ethnic voters.⁹³ They stoked hostility toward integrating schools and neighborhoods and fueled resentment toward government programs to help non-whites.⁹⁴ They coupled economic concerns—taxes, inflation, and the decline of manufacturing—with racially tinged social issues—crime, urban disorder, family breakdown, and expanding welfare rolls.⁹⁵

In the decades after World War II, millions of middle-class white voters moved to more Republican suburbs.⁹⁶ Republican theoretician Kevin Phillips's Southern strategy courted the new constituencies through racial code words that indirectly invoked racial themes without explicitly challenging egalitarian ideals.⁹⁷ Nixon straddled the conflict by professing support for the abstract principle of racial equality while simultaneously opposing government efforts to enforce civil rights.⁹⁸ He adopted his coded racial appeals from Goldwater's 1964 campaign successes in the South and Wallace's 1968 campaign in the North, but played the race card with deniability.⁹⁹ He found a message acceptable to the majority of white Americans who believed that it was wrong to deny Blacks basic rights of citizenship, but who opposed residential, economic, and educational integration.¹⁰⁰

Law-and-order rhetoric appealed to blue-collar and working class whites who opposed school integration, felt the brunt of social changes, and became disenchanted with Democrats' support for civil rights.¹⁰¹ Thomas and Mary Edsall argue that "[r]ace was central . . . to the fundamental conservative strategy of establishing a new, non-economic polarization of the electorate, a polarization isolating a liberal, activist, culturally-permissive, rights-oriented, and pro-black Democratic Party against those unwilling to pay the financial and social costs of this re-configured social order."¹⁰²

Republicans' Southern strategy succeeded in rupturing Democrats' New Deal coalition and realigning the parties around race.¹⁰³ After violent confrontations at their 1968 Chicago convention, Democrats

introduced reforms that proved more advantageous to better-educated veterans of civil rights, women's, and anti-war movements than to traditional blue-collar union representatives and ward politicians. Designed to increase diversity and access to the nominating process, the new rules empowered liberal activists at the expense of more conservative white male leaders of ethnic and working-class constituents.¹⁰⁴ As more progressive forces dominated the Democratic Party and embraced historically marginalized groups, conservative Republicans depicted them as liberal elitists bent on imposing an alien racial and cultural agenda.¹⁰⁵ They courted anxious and resentful whites with a veiled message connecting civil rights activism and Black criminality.¹⁰⁶ Divisive issues such as busing to integrate schools highlighted the impact of the progressive agenda for white residents of bigger cities.¹⁰⁷

Since the 1960s, the Republican Party has successfully politicized crime and welfare policies.¹⁰⁸ Because of the association between race, on the one hand, and crime and welfare, on the other, Democrats inadequately addressed increasingly conservative public attitudes. They resisted information about rising crime rates and unmarried child-bearing because confronting criminality and welfare dependency could shift focus from whites' responsibility for the legacy of discrimination to blaming victims and stigmatizing Blacks for a culture of poverty.¹⁰⁹

In the 1960s, conservative Republicans decried crime in the streets and advocated law and order. In the 1970s, they supported a war on crime. In the 1980s, Ronald Reagan launched a war on drugs. By the 1990s, they waged a war on youth. From the beginning, they favored repression in response to rising crime rates, civil rights marches, and urban and campus turmoil. In the Get Tough Era, sound bites and demagogic rhetoric shaped penal policies and reflected political calculus rather than criminological research, which questioned the efficacy of tougher penalties and increased imprisonment.¹¹⁰ Politicians' fear of being labeled as "soft on crime" obviated thoughtful discussions of crime policy and relegated penal strategies to political advisers and focus-group-tested themes.¹¹¹ Only in the early 1990s did Democrats under Bill Clinton respond to Republicans' exploitation of crime by embracing equally tough rhetoric and punitive policies.¹¹² As a result, both parties competed to demonstrate who was tougher on crime and more concerned about public safety.

Political Rhetoric and Coded Racial Appeals

It is politically incorrect to express overtly racist sentiments. Research on modern racism identifies closely intertwined racial sentiments—anti-Black emotional affect, beliefs that Blacks make excessive and unreasonable demands, views that Blacks do not value hard work or take personal responsibility, attitudes that Blacks receive undeserved government benefits, denial that discrimination continues to exist, and the like—as indirect indicators of racial animus.¹¹³

Code words are symbols or phrases that implicate racial themes but without directly challenging egalitarian ideals. Racial appeals must remain implicit so as not to defy democratic values but still be recognizable to whites who harbor negative attitudes toward Blacks.¹¹⁴ They convey a known but implicit meaning while resisting overtly racist interpretation and maintaining deniability.¹¹⁵ Ian Haney Lopez uses the term “dog-whistle politics” to describe coded talk centered on race that triggers strong reactions in its auditors even as it hides explicit racism.¹¹⁶ Many conservative politicians employed a new vocabulary to channel racial prejudices but without providing objective evidence of racism or intent to discriminate.¹¹⁷

Race provides a nexus for political conflicts over values, culture, and allocation of material resources. It implicates diverse policy arenas—welfare, housing, neighborhood schools, taxes, crime, drugs and violence, and family structure. Crime and welfare, in particular, enable politicians to use coded language and exploit white Americans’ negative views about Blacks without being explicitly racial.¹¹⁸ For many, perhaps most, whites the connection between minorities and crime is “an ‘obvious’ truth that, while rooted in social structures and cultural beliefs, is nevertheless accepted simply as reality.”¹¹⁹ David Garland argues that politicized discourse about crime evokes images and archetypes that play to public anxieties and depict criminals as fundamentally different and threatening—the “alien other.”¹²⁰ Martin Gilens argues that many white Americans’ hostility to welfare reflects their erroneous perception that most welfare recipients are Black and that they evince less commitment to the work ethic than do whites, do not deserve assistance, and their privation results from feckless choices and a culture of poverty.¹²¹ Media coverage and political discourse about welfare and

crime reinforce public views of Blacks as overly demanding, undeserving, and threatening.¹²² Ronald Reagan popularized the image of the Black “welfare queen,” driving “behind the wheel of a Cadillac, tooling around in flashy splendor . . . [and] propagating the stereotypical image of a lazy, larcenous black woman ripping off society’s generosity without remorse.”¹²³

By the 1970s, conservative politicians appreciated that they could deploy concerns about states’ rights, law and order, individual rights, and even equality to invoke racial themes. By the 1980s, words like “welfare,” “fairness,” and “groups” had acquired racial meanings within the context of a backlash against liberal policies.¹²⁴ Republicans recast hostility to civil rights enforcement into principled support for fairness, equality, and opposition to special privileges for minorities, women, and gays. Conservatives’ emphasis on “egalitarianism” shifted public resentment away from structural and economic inequality and toward minorities, the poor, and federal redistributive efforts.¹²⁵

Media Sensationalism: Violence and the Black Face of Youth Crime

About three-quarters of whites live residentially segregated lives in cities and suburbs whose populations are less than 5% Black.¹²⁶ Most of their knowledge about Blacks comes indirectly from media coverage of crime, welfare, or unemployment, which tends to activate racial stereotypes and reinforce prejudices.¹²⁷

Stereotypes are fast, intuitive, and largely unconscious ways of thinking.¹²⁸ They are socially constructed and enable people to make sense of a complex world, automatically classify people into racial categories, and activate culturally internalized racial meanings.¹²⁹ Historically, racism has been one of American’s most conspicuous and enduring cultural stereotypes. Some whites’ beliefs in Blacks’ biological or cultural inferiority provide rationalizations for their inferior social position.¹³⁰ Stereotypes of Blacks operate as perceptual filters that admit confirmatory evidence and block contradictory information, and media depictions subliminally reinforce them.¹³¹

Television news producers are located in urban areas with large Black populations, which provide easy access to report about crime and welfare.¹³² Local news favors an action format—violence and crime—to

attract audiences, bolster ratings, and increase revenues.¹³³ Its standard script consists of two elements: crime is violent and the usual suspects are minority perpetrators.¹³⁴ “If it bleeds, it leads.” It systematically distorts reality by overreporting violent crime and minorities’ roles as perpetrators, and reinforces public stereotypes of race with crime.¹³⁵ Portrayals of crime victims are equally racialized and disproportionately depict victims as white female suburbanites, even though they experience less victimization than other groups, especially Blacks.¹³⁶ Media coverage shows Blacks as more involved in violent crimes than their actual rates and more frequently portrays them anonymously, poorly dressed, or in police custody than they do violent white offenders.¹³⁷ Viewers see non-whites as racial archetypes—murderers, rapists, or gang members—which generalizes to all Blacks.¹³⁸

Whites generally have more punitive attitudes and greater confidence in the evenhandedness of the justice system than do Blacks.¹³⁹ Racial depiction of violent crime activates whites’ stereotypes and views about crime and punishment.¹⁴⁰ During the last third of the twentieth century, conservative politicians used anti-crime rhetoric as a coded message to appeal to white voters, conflated Blackness and crime in public consciousness, promoted get tough policies for electoral advantage, and fostered a moral panic.¹⁴¹ Politicians generated crime-news stories in populist emotive terms to shape public attitudes, reinforce conservative interpretations of crime, and put a Black face on it.¹⁴² After Republican politicians declared a war on drugs during the 1980s, media coverage of drug stories increased sharply, shifted focus from powder to crack cocaine, and depicted drug users and dealers as Black.¹⁴³ The media saturated viewers with images of “crack whores” and “crack babies” that confirmed the worst negative stereotypes of poor inner-city residents.¹⁴⁴ Michael Tonry argues that Republicans’ war on drugs represented a cynical political strategy to assert toughness about crime despite having a disastrous impact on the Black community and doing little to alleviate the causes of drug use or crime.¹⁴⁵ The Federal Sentencing Guidelines’ crack versus powder cocaine sentencing differentials were part of the policies that led to mass incarceration and adversely affected young Black men’s subsequent employability, marital prospects, and consigned them to lives of marginality and criminality.¹⁴⁶ Contrast the harsh media coverage of crack users with the more sympathetic por-

trayal of whites addicted to heroin and opioids in small towns and rural America today and the greater policy emphasis on treatment rather than punishment.

Conclusion

There is a correlation between punitiveness and hostility toward Blacks; those who report greater racial prejudice also support more punitive crime control policies.¹⁴⁷ Whites tend to associate crime and violence with Blacks and those who harbor racial resentments endorse tougher penalties and deny that the criminal justice system discriminates against Blacks.¹⁴⁸ Michael Tonry argues that Evangelical Protestants, more closely aligned with the Republican Party, tend to see criminal justice policy issues in moralistic terms of right and wrong that brook no compromise and detract from empathy or compassion.¹⁴⁹ Law-and-order rhetoric and other veiled racial references encourage such attitudes and the political success of those who employ coded racial appeals guarantees their continued use.¹⁵⁰

In *Punishment and Inequality in America*, Bruce Western argues that policies of mass incarceration have institutionalized racial inequality in America.¹⁵¹ In *Punishing Race*, Michael Tonry argues that the paranoid streak in American politics—a tendency to see policy options as black-and-white or right-and-wrong—coupled with religious moralism and a highly politicized justice system has led to severe and vindictive punishment without regard to its inefficacy.¹⁵² Loïc Wacquant argues that urban deindustrialization and the movement of jobs and whites to the suburbs enabled policy makers to wage a war on drugs that marooned Blacks in segregated urban areas.¹⁵³ In *The New Jim Crow*, Michelle Alexander contends that the racial dimension of mass incarceration reinforces the longstanding stigmatization of Blacks. “Like Jim Crow, mass incarceration marginalizes large segments of the African American community, segregates them physically (in prisons, jails, and ghettos), and then authorizes discrimination against them in voting, employment, housing, education, public benefits, and jury service.”¹⁵⁴

These and other analysts focus on how the war on drugs, the politics of race and crime, and mass incarceration adversely affected young Black men and their communities. The next three chapters explore how

those get tough policies transformed the juvenile justice system and social control of youths. Chapter 5 examines changes in juvenile court transfer and sentencing laws. Chapter 6 explores juvenile courts' handling of female delinquents. Chapter 7 analyzes the school-to-prison pipeline, which disproportionately affects urban minority youths and sets them on a path for criminal involvement as adults.

The Kid Is a Criminal

Transfer and Delinquency Sanctions

Social welfare and social control operate in fundamental tension. How do we balance young offenders' best interests with punishment for their offenses? How do we safeguard children and protect communities?¹ The interventionist juvenile court asserted a social welfare mission in which children's and society's interests were congruent, but get tough politicians subordinated welfare to crime control.² This imbalance inevitably occurs because states define delinquency jurisdiction based on criminal behavior rather than children's welfare needs. Jurisdiction based on crimes diverts attention from the criminogenic conditions in which many youths live, for which they are not responsible, and from which they cannot escape—concentrated poverty, failing schools, dysfunctional families, dangerous neighborhoods, and the like—that contribute to delinquency. Defined by criminal behavior, juvenile courts highlight that their clients are young criminals and reinforce public antipathy against other people's children.³

The social construction of adolescent culpability is part of the larger framing of welfare versus individual responsibility that changed abruptly during the Get Tough Era. Conservatives promoted a stereotype of dangerous super-predators—cold-eyed young killers suffering from moral poverty—rather than traditional images of disadvantaged youths who needed help.⁴ Based on erroneous demographic projections, they predicted a bloodbath of youth crime, even as juvenile violence declined precipitously.⁵ Relying on those flawed predictions, legislators preemptively enacted get tough laws that emphasized suppression of crime rather than efforts to change children. They expressed popular anger and symbolized toughness despite the ineffectiveness of punishment to reduce delinquency.

A moral panic occurs when the public, politicians, and media react to a perceived social threat with fear and alarm and adopt a disproportionate punitive response. The violence and homicide of the late 1980s and early 1990s, sensationalized media depictions, and public and political attribution of crime to urban Black males precipitated such a panic.⁶ Policy makers portrayed adolescents as young criminals and sharply shifted juvenile justice policy from rehabilitation to punishment. Efforts to prosecute more youths as adults represented an assault on juvenile courts' historic diversionary mission to shelter them from criminal prosecution. Harsh delinquency sanctions belied the claims of juvenile courts that their rehabilitative programs required fewer procedural safeguards.

Questions about effectiveness of rehabilitation emerged in the 1960s, eroded juvenile courts' interventionist rationale, and evoked a sense of failure among practitioners and the public.⁷ Conservatives claimed that juvenile courts' lenient sanctions failed to protect the public and emphasized punishment.⁸ Legislative changes included a shift from individualized sentences to just deserts, from rehabilitation to retribution, from amenability to treatment and best interests to public safety, accountability, and proportionality, and of decision-making authority from judges to prosecutors.⁹ The unifying theme is punitive segregation—to incapacitate and exclude offenders rather than to change and reintegrate them.¹⁰

During the 1970s, Progressives' optimism about human malleability foundered on empirical evaluations of rehabilitation that questioned its effectiveness.¹¹ In 1974, Robert Martinson's essay "What Works?" concluded that "[w]ith few and isolated exceptions, the rehabilitative efforts that have been reported so far have had no appreciable effect on recidivism."¹² "Nothing works" became the conventional wisdom for several decades thereafter and undercut efforts to treat offenders.¹³ It reinforced conservatives' distrust of government efforts to reduce crime or ameliorate social problems. Politicians promoted policies to punish, deter, and incapacitate criminals.¹⁴ Juvenile justice shifted from a welfare to a penal orientation and assumed responsibility to manage and regulate delinquents rather than to cure them.¹⁵

In the 1970s, just deserts and retribution displaced rehabilitation as rationales for juvenile and criminal sentencing.¹⁶ Deserts-based sen-

tences focus on offenders' past behavior rather than utilitarian considerations like treatment, deterrence, or incapacitation. Determinate sentences impose backward-looking penalties based on offense, culpability, or criminal history.¹⁷ In *The Struggle for Justice*, the American Friends Service Committee argued that indeterminate sentences gave judges too much discretion, produced racial disparities, and violated norms of proportionality, and recommended short fixed sentences and abolition of parole.¹⁸ However, offense-based sanctions enabled conservative politicians to openly express punitive thoughts and enact draconian laws.¹⁹

Disillusionment with rehabilitation and the renaissance of retribution produced awkward political bedfellows: radicals who viewed the criminal justice system as an instrument of state oppression; liberals disturbed about discretion and discrimination; civil libertarians concerned about individual liberty and autonomy; and conservatives who advocated law and order and a reduced state welfare role.²⁰ Conservatives argued that indeterminate sentences allowed dangerous offenders' premature release and emphasized crime in their political agenda.²¹ Their emphases on personal and justice system accountability challenged the legitimacy of the welfare state and governmental programs. Liberals had criticized rehabilitation as ineffective and discriminatory, lacked coherent alternatives to proposals to crack down on criminals, and eventually joined the law-and-order bandwagon to avoid being labeled soft on crime.²²

Race played an increased role in national domestic politics—starting with the civil rights movement's struggle for racial equality and culminating in conservative crime policies of the Reagan and, later, Clinton administrations. Anti-state populism aimed to dismantle programs to reduce racial, economic, and gender inequalities, and to strengthen states' police powers.²³ Politicians focused on the effects of crime rather than its causes and on crime control rather than social welfare.²⁴ The racially skewed impact of crime policy changes—mass incarceration, disproportionate minority confinement, and harsher delinquency sanctions—reversed some of the progress achieved by the civil rights movement.²⁵

Doubts about juvenile courts' ability to treat young offenders or protect public safety bolstered get tough policies. In the 1980s and 1990s,

states amended their juvenile codes to expedite transfer of youths to criminal courts, where they faced substantial sentences as adults. States required juvenile court judges to impose determinate or mandatory sentences on delinquents who remained in an increasingly punitive system.²⁶ Both strategies deemphasized treatment in favor of personal and justice system accountability. Cumulatively, they reflect an inversion of juvenile justice jurisprudence and practice—from rehabilitation to retribution, from offender to offense, and a shift of discretion from judges to prosecutors.

This chapter traces the impact of the Get Tough Era, the ascendance of punitive policies, and their disproportionate impact on children of color. It focuses on three critical decisions that affect youths' custody and whether they receive treatment or punishment. First, it focuses on transfer of youths to criminal court for punishment as adults. It describes changes from assessment of youths' amenability to treatment to decisions based on their offense and the rising role of prosecutors. It examines whether transfer laws accomplish their legislative intent, their iatrogenic effects, and their racially disparate impacts. Next, the chapter focuses on juveniles' pretrial detention. Detention laws give judges broad discretion to confine youths prior to trial. Judges overuse and abuse it and disproportionately detain children of color. The chapter's middle sections review reforms to reduce inappropriate use of pretrial confinement. The chapter's final sections examine delinquency sanctions and the shift from treatment to punishment. *McKeiver* assumed with no empirical basis that juvenile courts solely provided delinquents with rehabilitative treatment, that they thus did not require protection from the state, and consequently denied them a jury right. Get tough changes emphasized offense-based punishment and eviscerated *McKeiver's* benign premise. Juvenile codes' purpose clauses and court opinions endorse punishment. Statutes authorize determinate and mandatory minimum sentences. Judicial practices focus on the crime committed rather than a youth's needs. Conditions of confinement reflect custodial rather than therapeutic goals. Even as delinquency sanctions became more punitive, however, juvenile courts diverted most youths from the criminal justice system. Despite their limited ability to rehabilitate youths, they sheltered them from even worse criminal punishment.

Transfer for Criminal Prosecution

States pursue several goals when they transfer youths to criminal courts. They transfer some charged with serious crimes whom they believe deserve longer sentences than juvenile courts can impose and to symbolically affirm retribution. They seek long-term incapacitation of chronic recidivists to protect public safety.²⁷ They transfer youths to deter offenders and would-be lawbreakers. During the 1980s and early 1990s, get tough politicians transformed the theory and practice of transfer, changed the legal construction of adolescence, and increased the numbers of youths tried as adults.

Juvenile courts traditionally focused on offenders' best interests and individualized treatment. Criminal courts emphasize offenses and proportional punishment. Transfer implicates many sentencing issues: balancing rehabilitation, incapacitation, deterrence, and retribution; focusing on offender or offense; promoting discretionary or mandatory decisions; and defining the roles of judges, legislatures, and prosecutors. Transfer laws embody contradictory crime control strategies and conflicting construction of youth as immature or as adult-like.²⁸ State uses one or more often overlapping transfer strategies: judicial waiver, legislative offense exclusion, and prosecutorial direct file.²⁹ They emphasize different sentencing goals, rely on different actors, and elicit different information to decide youths' criminal status.

Transfer to Criminal Court

The vast majority of states have judicial waiver statutes on their books, but judges account for the fewest number of youths transferred.³⁰ Forty-five states' laws specify ages and types of offenses for which a judge may waive juvenile court jurisdiction and transfer a youth to criminal court after conducting a hearing to determine his or her amenability to treatment or threat to public safety.³¹

Legislatures create juvenile courts and may define their jurisdiction to exclude youths based on age and offense.³² Some states exclude youths sixteen or older charged with murder, while others exclude more extensive lists of offenses.³³ A few states set their juvenile courts' age ju-

risdiction at fifteen or sixteen years, rather than seventeen, which results in the largest numbers of youths tried as adults.³⁴

Prosecutorial direct file is a third method by which states transfer youths to criminal courts.³⁵ In these states, juvenile and criminal courts share concurrent jurisdiction over some ages and offenses—older youths and serious crimes—and prosecutors decide in which forum to charge a youth.³⁶

Blended sentences provide another juvenile/criminal court sentencing option.³⁷ Some states allow juvenile court judges to impose extended delinquency dispositions backed by stayed criminal sentences. Other states authorize a criminal court judge to impose a delinquency disposition reinforced by threat of a criminal sentence. If juveniles successfully complete their delinquency dispositions, then judges do not execute the criminal sentences. Blended sentencing laws give youths all criminal procedural safeguards, including a jury trial, to preserve the option of a criminal sentence.³⁸

States annually try nearly two hundred thousand youths under age eighteen as adults because juvenile courts' jurisdiction ends at fifteen or sixteen, rather than seventeen years of age.³⁹ They transfer another fifty thousand youths via judicial transfer, offense exclusion, or direct-file laws.⁴⁰ Judges waive about seventy-five hundred cases annually, prosecutors direct file about twenty-seven thousand youths, and they charge the remainder with excluded offenses in criminal courts.⁴¹ It is difficult to calculate precise numbers of youths tried as adults because most states collect data only on judicial transfers, which account for the fewest number waived, and do not count chronological juveniles tried in criminal court.⁴²

Amid predictions of a bloodbath of youth violence in the late 1980s and early 1990s, states adopted get tough laws to transfer more juveniles to criminal court.⁴³ Judges' neutrality and relative autonomy from political pressures impelled legislators to shift control of transfer decisions to prosecutors.⁴⁴ They assumed that juveniles' criminal responsibility equaled that of adults and expected criminal courts to punish them similarly.⁴⁵ As I explain in Chapter 8, the Supreme Court finally halted states' most draconian sanctions.

Get tough laws lowered the age of eligibility for transfer, increased the numbers of excluded offenses, and shifted discretion to prosecutors

making charging decisions.⁴⁶ Although fourteen is the minimum age for transfer in most jurisdictions, some states set no minimum age or permit criminal prosecution of children as young as ten; others require prosecution of children as young as thirteen.⁴⁷ By 1999, half the states enacted mandatory transfer provisions for serious crimes.⁴⁸ Although forty-five states have judicial waiver statutes, prosecutors' excluded-offense or direct-file charging decisions determine the adult status of 85% of youths.⁴⁹

Judicial Waiver: Individualized Sentencing and Impetus for Alternatives

From juvenile courts' inception, judges could transfer some youths to criminal courts.⁵⁰ In *Kent v. United States*, the Supreme Court required judges to conduct a procedurally fair hearing before transferring a youth.⁵¹ *Kent* concluded that loss of juvenile courts' benefits—access to treatment, confidentiality, limited collateral consequences, and the like—was a critical action that required a hearing, assistance of counsel, access to probation reports, and written findings for appellate review. *Breed v. Jones* applied the Fifth Amendment double jeopardy prohibition to delinquency adjudications and required states to decide whether to prosecute a youth in juvenile or criminal court before proceeding to trial.⁵²

Until Get Tough Era changes, judges made transfer decisions by assessing a youth's amenability to treatment or threat to public safety. *Kent* appended to its opinion a list of criteria for judges to consider. State court decisions and statutes incorporated those criteria.⁵³ Judges typically focus on three groups of factors. First, a youth's age and time remaining within juvenile court jurisdiction—typically to age nineteen, twenty-one, or twenty-five—provide impetus to transfer older youths more readily than younger ones.⁵⁴ Second, clinical evaluations and prior interventions influence judges' appraisals of amenability to treatment, especially if youths have received or exhausted available options.⁵⁵ Third, judges base threat to public safety on a youth's offense, prior record, gang involvement, or weapon use.⁵⁶

Despite these factors' seeming relevance, judges have broad discretion to interpret them. Lists of factors like those appended in *Kent* allow them to emphasize different variables and justify any decision. Like

the capital punishment statutes invalidated in *Furman v. Georgia*, transfer laws lack meaningful standards to guide discretion.⁵⁷ Liberals complained that vague criteria produce inconsistent outcomes, racial disparities, and urban/rural differences within a state.⁵⁸ Conservatives attributed rising crime rates to judges' reluctance to transfer cases.⁵⁹

Studies of judicial waiver clearly document inconsistent rulings, justice by geography, and overrepresentation of racial minorities. Waiver rates for similar offenders vary between and within states.⁶⁰ Geographic context affects whether prosecutors file waiver motions or judges grant them.⁶¹ Where youths live, rather than what they did, influences transfer outcomes, producing justice by geography.⁶² Judges in the same urban county decide cases of similar offenders differently.⁶³

For decades, studies reported racial disparities in judicial transfer decisions.⁶⁴ Get tough laws to limit judges' discretion, expand prosecutors' power, or exclude youths from juvenile court amplify racial disparities. Judges transfer minority youths more often than white youths, especially those charged with violent and drug crimes.⁶⁵ In some states, judges transferred minority youths at five times their proportion of the population.⁶⁶ Los Angeles judges were 6.2 times more likely to transfer minority youths than white youths and 7 times more likely to imprison them.⁶⁷ In the seventy-five largest counties in the United States, racial minorities comprised more than two-thirds of juveniles tried in criminal court and the vast majority of those sentenced to prison.⁶⁸

Just Deserts, Criminal Careers, and Transfer without a Hearing

A few states historically excluded capital murder or serious crimes from juvenile court jurisdiction, but in the 1970s and 1980s many states expanded offense exclusion and direct-file laws to evade *Kent's* hearing requirement.⁶⁹ In the 1970s, jurisprudential changes—just deserts—and criminological research—criminal careers—provided intellectual legitimacy and rationale for offense-based transfer laws.

Proponents of just deserts advocated offense-based determinate and proportional criminal sentences rather than indeterminate penalties. They argued that indeterminate sentences gave judges too much discretion and produced racially disparate outcomes.⁷⁰ By the mid-1980s,

half the states enacted determinate sentences for adults, ten eliminated parole boards, and many used sentencing guidelines to decide confinement, supervision, and release.⁷¹

In juvenile courts, just deserts provided an offense-based alternative to judicial waiver.⁷² Deserts advocates questioned whether judges could assess amenability to treatment or predict dangerousness, criticized indeterminate criteria and discretionary processes, and condemned discriminatory results.⁷³ Twenty-nine states exclude some offenses from juvenile court jurisdiction, typically murder by older youths.⁷⁴ Many exclude longer lists—crimes against the person, property, drugs, or weapons offenses—and expanded them during the Get Tough Era.⁷⁵

Research on criminal careers in the 1970s and 1980s initially offered the prospect that judges could identify and incapacitate active offenders.⁷⁶ Marvin Wolfgang's seminal *Delinquency in a Birth Cohort* and subsequent research on delinquent careers provided an empirical rationale to incapacitate chronic offenders.⁷⁷ A small subset of chronic offenders committed most serious and violent crimes as by-products of persistent law breaking.⁷⁸ Delinquent offenders do not specialize in particular crimes, and we cannot predict a future crime from an initial offense, but an extensive prior record is a good indicator of likely future criminal behavior.⁷⁹

Researchers distinguish between most youths who commit some crimes as a normal part of growing up but then desist—adolescent-limited offenders—and those who become chronic or life-course persistent offenders.⁸⁰ Those youths who engage in persistent antisocial behavior into adulthood have personal characteristics—low IQ, psychomotor clumsiness, minor birth defects, or neuropsychological deficits that heighten impulsivity—that interact with their environments—poverty, stress, harsh or abusive parenting—and contribute to continued offending.⁸¹ In Wolfgang's study of all boys born in 1945 who lived in Philadelphia from their tenth to their eighteenth birthdays, police arrested more than one-third, but nearly half of those had no further police contact.⁸² Those arrested for a violent crime desisted at the same rates as those arrested for other offenses.⁸³ Chronic offenders—those arrested five or more times—comprised 6% of the cohort, continued into adulthood, and committed most of the serious and violent crimes perpetrated by their age-mates.⁸⁴ A second Philadelphia cohort study

confirmed that a small subset of youths became life-course persistent offenders.⁸⁵

Chronic offenders exhibit behavior problems during childhood—aggression, risk taking, impulsiveness, and the like—which increase in frequency and severity in adolescence.⁸⁶ Age of onset is an indicator of who will become a chronic offender—those who become delinquent before twelve years of age are two or three times more likely to become chronic offenders than those who begin later.⁸⁷ Criminal career research held promise that justice system personnel could identify and incapacitate chronic offenders to prevent crime, but their pattern only emerges retrospectively.⁸⁸ Although chronic offenders differ from their less delinquent peers, they need time to distinguish themselves—a luxury most legislators are unwilling to indulge.

Transfer laws based on a just deserts rationale would exclude older youths charged with serious crimes who deserve more severe punishment. Policies to incapacitate career offenders would focus on extensive prior records. In the 1980s and 1990s, legislators augmented lists of excluded offenses, excluded combinations of present offense and prior record, lowered the ages to criminally prosecute youths, and expanded prosecutors' authority.⁸⁹ Politicians expected that increased certainty and severity of punishment also would deter young offenders.⁹⁰

Legislative Offense Exclusion

Offense-exclusion and direct-file laws focus on offenses and ignore youths' amenability to treatment. Appellate courts uniformly reject youths' claims that prosecuting them for an excluded offense denies *Kent's* procedural safeguards. In *United States v. Bland*, the prosecutor charged Bland in criminal court with an excluded offense.⁹¹ The *Bland* dissent criticized offense exclusion as a transparent effort to evade *Kent*, warned that it precluded consideration of the offender, and argued for procedural parity between judges' waiver and prosecutors' charging decisions. The *Bland* majority relied on the doctrine of separation of powers, which denies judges authority to control executive branch discretionary decisions—whether and whom to charge and with what crime—and rejected procedural limits.⁹²

Prosecutorial Direct File

In fifteen states, juvenile and criminal courts share concurrent jurisdiction over serious crimes.⁹³ Prosecutors decide both the charge and forum: did the youth commit a direct-file offense and should it be tried in juvenile or criminal court? Under offense exclusion, the crime charged determines the venue; direct-file laws allow prosecutors to select either system to try the crime. Direct file elevates prosecutors' power at judges' expense and creates a model more typical of criminal courts.⁹⁴

Most direct-file laws provide no criteria to guide prosecutors' choice of forum.⁹⁵ Even if prosecutors adopt self-imposed guidelines, they have little impact on their forum decisions.⁹⁶ They lack access to personal, social, or clinical information about a youth that a judge would consider and base their decisions primarily on police reports.⁹⁷ While trained to evaluate evidence and charges, they have no professional expertise or non-offense information with which to decide to try a youth as a juvenile or adult. Prosecutors in Virginia direct filed about one-quarter of eligible youths and focused on offense, weapons, and victim's injury.⁹⁸ Compared with youths whom judges previously waived, they deemphasized clinical information, prior record, or culpability.⁹⁹

Critics of direct file contend that locally elected prosecutors exploit crime issues like get tough legislators, introduce justice by geography, and exercise their discretion as subjectively as do judges but without being subject to appellate review.¹⁰⁰ Prosecutors who view the position as a stepping stone to higher office may get tough on crime at the expense of young offenders.¹⁰¹ Assistant prosecutors for whom juvenile court is their first assignment lack judges' experience to make such important decisions.¹⁰²

Youths' challenges to prosecutors' direct-file authority fail. The California Supreme Court in *Manduley v. Superior Court of San Diego County* reviewed Proposition 21—a 1998 voter-approved get tough initiative—that authorized district attorneys to direct file youths as young as fourteen in criminal court.¹⁰³ *Manduley* reasoned that youths do not have a right to be tried in juvenile court, so prosecutors' decision to charge them in criminal court did not violate due process.¹⁰⁴ Although prosecutors charge some youths in criminal court and others with the same crime in juvenile court, they have no equal protection

recourse unless prosecutors selected them for harsher treatment because of race, religion, or other discriminatory purpose.¹⁰⁵

Even though most states have judicial waiver statutes, prosecutors transfer the vast majority of youths without any hearing.¹⁰⁶ Florida allows prosecutors to direct file *any* sixteen- or seventeen-year-old charged with *any* felony and younger juveniles charged with more serious crimes. They direct filed about 10% of eligible juveniles, about the same number as juvenile court judges transferred in the country.¹⁰⁷ Nationally, prosecutors determined the criminal status of 85% of youths tried as adults and acted as gatekeepers to the juvenile justice system, a role previously reserved for judges.¹⁰⁸ Judicial waiver vests discretion in more experienced, better informed, and less politicized judges, whereas offense exclusion and direct file allow less knowledgeable, politically motivated prosecutors to make adulthood determinations.¹⁰⁹

Blended Sentencing: Juvenile and Criminal Court Convergence

Juvenile courts lose jurisdiction when youths reach the age of majority or other dispositional age limit—nineteen, twenty-one, or twenty-five. As a result, judges may be unable to sentence appropriately older offenders convicted of serious crimes.¹¹⁰ Juvenile courts' time-limited opportunity to treat or punish youths provides impetus to increase their sentencing powers.¹¹¹ Blended sentences meld delinquency dispositions with threat of criminal sanctions and provide longer confinement options than otherwise available in juvenile court—to treat with the possibility of punishment.

States use several versions of blended sentences. Some allow juvenile courts to impose extended delinquency sentences; others give criminal courts power to use a delinquency disposition in lieu of imprisonment.¹¹² In some states, juvenile courts impose a delinquency disposition coupled with a stayed criminal sentence pending successful completion of the juvenile probation.¹¹³ In others, when a youth reaches the juvenile court's jurisdictional age limit, a judge decides whether he should serve the remainder of the criminal sentence.¹¹⁴ Regardless of approach, all blended sentencing laws require criminal procedural safeguards, including the right to a jury trial, to enable a judge to punish and thereby gain greater flexibility to treat. Critics charge that blended

sentences and punishment blur juvenile courts' rehabilitative mission with respect to other delinquents.¹¹⁵

Although states adopted blended sentences as an alternative to transfer, juvenile court judges frequently impose them on less serious offenders whom they previously handled as delinquents.¹¹⁶ Net-widening occurs when reformers introduce a new sanction to be used instead of another more severe sanction—e.g., blended sentences in lieu of transfer—but which judges then apply to those whom they previously treated more leniently.¹¹⁷ Evaluation of Minnesota's blended sentencing law found that judges transferred the same numbers and types of youths whom they previously waived *and* imposed blended sentences on many younger, less serious offenders whom they previously dealt with as delinquents. Judges subsequently revoked the probation of more than one-third of youths who received blended sentences, primarily for technical violations, and doubled the number of youths sent to prison.¹¹⁸ Prosecutors used the threat of transfer to coerce youths to plead to blended sentences, to waive procedural rights, to increase punishment imposed in juvenile courts, and to risk exposure to criminal sanctions.¹¹⁹ Franklin Zimring criticized blended sentencing as a prosecutorial power grab. "If the enhancement of prosecutorial power was sought and the creation of a structure of outcomes where plea bargaining was encouraged, then blended sentencing is just what the district attorney ordered."¹²⁰

Relocating Discretion: Reverse Waiver and Transfer Back

Progressive reformers created juvenile courts to remove youths from adult prisons. However, many excluded offenses carry mandatory prison sentences. As explored in more detail below, juveniles sentenced as adults are more likely to be imprisoned, to be victims of violence, to experience sexual assaults, and to commit suicide than youths confined in juvenile facilities.¹²¹ Some states allow criminal court judges to transfer back to juvenile court youths whose excluded-offense or direct-file cases originated in criminal court. Reverse waiver restores some flexibility to a prosecutor-dominated process and about half the states allow a judge to return a youth to juvenile court for trial or disposition.¹²²

Although *Kent*'s procedural requirements prompted the adoption of offense-exclusion and direct-file laws, reverse waiver relocates *Kent*-type

hearings in criminal courts in which judges review a presentence report and consider *Kent* criteria.¹²³ No reasons exist to believe that criminal court judges are better able than juvenile court judges to decide whether a youth is amenable to treatment.¹²⁴

Juveniles in Prison

In the absence of reverse waiver or blended dispositions, criminal court judges sentence transferred youths like adults. Imprisoning juveniles increases rather than reduces subsequent offending.¹²⁵ While all inmates face the possibility of abuse, adolescents' lesser size, physical strength, and social skills, and lack of sophistication increase their risk for physical, sexual, and psychological victimization.¹²⁶ Although staff- and inmate-on-inmate violence occurs in juvenile settings, youths housed in adult facilities more often are victimized and commit suicide.¹²⁷ Although we lack research on youths' prison experiences, "placements in prisons and jails put less mature, less experienced adolescents into a social environment that stresses survival and toughness. Such an arrangement seems to inevitably increase an adolescent's chances of being involved in a physical confrontation, either through efforts to establish a reputation or to resist assaults or sexual advances."¹²⁸ To prevent victimization, some states place vulnerable youths in solitary confinement for twenty-three hours a day.¹²⁹

Prisons are developmentally inappropriate places for youths to form an identity, acquire social skills, or make a successful transition to adulthood.¹³⁰ Identity formation requires positive adult relationships, healthy peer interactions, and opportunities to make decisions.¹³¹ Prison confounds these tasks where a criminal identity can be self-protective, peer relationships entail schooling for crime, decision-making authority is stripped away, and guards focus on security rather than developmental concerns. Most states put juveniles in the general inmate population, perhaps to be victimized or to learn better criminal skills.¹³²

Confining youths in prison exacts different and greater developmental opportunity costs than those experienced by adults.¹³³ The normal adolescent life course—forming an identity, finishing school, finding work, developing relationships, starting a family—is integrative and draws youths into society.¹³⁴ Completing education, finding a job, and

forming relationships impose structure and routine and create social bonds that promote desistance from offending.¹³⁵ Imprisonment disrupts normal development; ground lost may never be regained. Most adolescents sentenced to prison already exhibit social and developmental delays.¹³⁶ Young inmates are less likely than the general population to have a high school diploma or High School Equivalency Certificate.¹³⁷ Imprisonment imposes stigma and civil disabilities, discourages employers from hiring ex-offenders, undermines marriage prospects, and increases likelihood of future offending.¹³⁸ Young Black men bear the burden of stigma and exclusion most heavily.¹³⁹ Collateral consequences of criminal convictions are extensive—civic participation, public housing restrictions, ineligibility for school loan, sex offender registration, licensure, bonding, and employment restrictions, and many others.

Policy Justifications for Waiver: Unarticulated and Unrealized

States will prosecute some youths in criminal court as a matter of public safety and political reality.¹⁴⁰ Retributivist would argue that serious crimes deserve longer sentences than juvenile courts can impose. Consequentialists would punish to deter youths or other would-be offenders or to incapacitate them. Youths' immaturity, impulsiveness, and lack of self-control may frustrate these goals. *Roper, Graham, and Miller*, which I discuss in Chapter 8, concluded that youths' reduced culpability weakens retributive justification and their impaired judgment and limited self-restraint undermines deterrence.

If transfer and criminal court sentencing practices are incongruent, then some youths may fall between the cracks.¹⁴¹ Prior to get tough changes, judges transferred the largest plurality of youths for property crimes and criminal court judges typically sentenced them as if they were adult first offenders.¹⁴² Judges placed the majority on probation and imposed jail and prison sentences within the range of those available to juvenile courts on many.¹⁴³

The Get Tough Era targeted violent and drug crimes and increased the likelihood and severity of criminal sentences. Judges incarcerate transferred youths convicted of violent crimes more often and for longer sentences than youths retained in juvenile courts.¹⁴⁴ Three-quarters of those convicted of violent felonies went to prison.¹⁴⁵ For nonviolent

youths sentenced as adults, however, about half received probation and most received confinement sentences comparable to those in juvenile facilities.¹⁴⁶ Nearly half of youths tried in criminal court are not convicted or are placed on probation, fewer than 25% are sentenced to prison, and 95% are released from custody by their twenty-fifth birthday.¹⁴⁷ Many youths prosecuted as adults are not among the worst of the worst, receive sentences similar to those that juvenile courts could impose, and the vast majority return to their communities within a few years.

Deterrence

Legislators in the Get Tough Era assumed that threat of transfer and criminal punishment would deter youths. *Roper v. Simmons* questioned whether the risk of a sanction altered youths' calculus. "[T]he absence of evidence of a deterrent effect is of special concern because the same characteristics that render juveniles less culpable than adults suggest as well that juveniles will be less susceptible to deterrence."¹⁴⁸ *Roper's* intuition appears more accurate than legislators' expectations.

Studies of juvenile crime rates before and after passage of get tough laws found no general deterrent effect. New York's juvenile offender law had minimal impact on arrest rates for excluded offenses especially for youths in high-crime urban areas.¹⁴⁹ A comparison of arrest rates in Washington and Idaho before and after Idaho adopted a broad exclusion law reported that arrests there actually rose.¹⁵⁰ After Washington enacted get tough laws, no differences were observed between its arrest rates and national rates over the same period.¹⁵¹ Comparisons of arrest rates in states where juvenile court jurisdiction ended at sixteen and at seventeen years of age found no age impact on crime rates.¹⁵² Analyses of arrest rates five years before and after states adopted offense-exclusion and direct-file laws concluded that neither strategy significantly affected arrests for violent crimes.¹⁵³

Studies of special deterrence report that transferred youths had higher recidivism rates than did those sentenced as delinquents.¹⁵⁴ Jeffrey Fagan compared recidivism rates of four hundred fifteen- and sixteen-year-old boys charged with robbery and burglary in criminal court in New York with four hundred New Jersey boys tried in juvenile court

and found the former reoffended more quickly and frequently than their juvenile compatriots.¹⁵⁵ Fagan subsequently expanded the comparative research to twenty-four hundred juveniles charged with robbery, burglary, and assault and found that police rearrested those prosecuted in criminal courts more quickly and for more serious offenses than those processed in juvenile courts.¹⁵⁶

Florida researchers matched 2,738 pairs of youths tried as juveniles and adults, used several measures of recidivism after twenty-four months and seven years, and found that police rearrested direct-filed youths more often, more quickly, and for more serious offenses than those sentenced as juveniles.¹⁵⁷ A subsequent study with more equivalent comparison groups again found that police rearrested transferred youth for violent crimes more quickly and more often than those retained in juvenile court.¹⁵⁸

The Center for Disease Control's Task Force on Community Preventive Services reviewed studies that compared outcomes of youths transferred to criminal courts with those who remained in juvenile courts.¹⁵⁹ It concluded that youths tried as adults had higher and faster recidivism rates, especially for violent crimes, than their delinquent counterparts.¹⁶⁰ Any short-term public protection of incarceration is offset by developmental disruption and increased likelihood of future recidivism.¹⁶¹

Youthfulness as an Aggravating Factor in Sentencing

Although judges do not imprison all transferred youths, they sometimes treat youthfulness as an aggravating rather than a mitigating factor when they do.¹⁶² Virginia sentencing law prescribes youthfulness as an aggravating factor, a policy inconsistent with ideas about youths' reduced culpability.¹⁶³ Florida judges sentence direct-filed youths to longer terms than young adults convicted of the same crimes.¹⁶⁴ More youths convicted of murder receive life-without-parole sentences than do adults sentenced for murder.¹⁶⁵ A study in thirty-nine urban counties in nineteen states reported that transferred juveniles are more likely to be convicted and incarcerated than adult offenders.¹⁶⁶ Compared with young adult offenders, juveniles convicted of the same crimes received longer sentences.¹⁶⁷

Constructing Culpability: Accountability and Race

States prosecuted more youths in criminal court during the Get Tough Era.¹⁶⁸ They recast youths as responsible near-adults rather than as immature children.¹⁶⁹ Alfred Regnery, director of the Office of Juvenile Justice and Delinquency Prevention during the Reagan administration, described sixteen-year-olds as “criminals who happen to be young, not children who happen to commit crimes.”¹⁷⁰ Politicians’ get tough sound bites—“adult crime, adult time,” “old enough to do the crime, old enough to do the time”—depicted teenagers as responsible. They viewed their crimes as rational choices, rather than socially influenced conduct, and ignored immaturity, impulsivity, and youthful mitigation.¹⁷¹ Simplistically emphasizing rational choice ignored a century of criminological research, but justified severe penalties and accountability over a rehabilitative approach.¹⁷²

Punitive transfer laws targeted violent crimes, which Black youths commit more often.¹⁷³ Even prior to the Get Tough Era, studies reported racial disparities in judicial transfer decisions.¹⁷⁴ Subsequently, judges transferred youths of color more often than white youths charged with similar violent and drug crimes.¹⁷⁵ The vast majority of juveniles transferred to criminal court and sentenced to prison are youths of color, primarily Blacks.¹⁷⁶

Waiver Policy: What Should a Rational Legislature Do?

Expansive transfer policies adopted a quarter century ago do not further any legitimate penal goals. Equating younger and older offenders ignores developmental differences and disproportionately punishes less blameworthy adolescents. No credible evidence exists that transfer deters youths. Immature judgment, short-term time perspective, and preference for immediate gains lessen the threat of sanctions. Youths tried as adults reoffend more quickly and more seriously, thereby negating any short-term crime reduction. Transfer increases risk to public safety because criminal prosecution *per se* aggravates youths’ recidivism, regardless of the sentence imposed.

Despite offense-based get tough laws and prosecutors’ dominant role, the vast majority of juvenile justice scholars agree that *if some youths must*

be transferred, then it should occur in a judicial waiver process that is used rarely.¹⁷⁷ A state should waive only those youths whose serious *and* persistent offenses require minimum lengths of confinement that greatly exceed the maximum sanctions available in juvenile court.¹⁷⁸ A retributive policy would limit severe sanctions to youths charged with homicide, rape, robbery, or assault with a firearm or substantial injury. However, severely punishing *all* youths who commit serious crimes would be counterproductive because youths arrested for an initial violent offense desist at similar rates to other delinquents.¹⁷⁹ Chronic offenders may require sentences longer than those available in juvenile court because of persistent criminality and exhaustion of rehabilitative resources.¹⁸⁰

Legislatures should also prescribe minimum ages of eligibility for criminal prosecution. In Chapter 8, I review developmental psychological and neuroscience research that reports a sharp drop-off in judgment, self-control, and appreciation of consequences for youths fifteen years of age or younger. In Chapter 9, I review developmental and criminological research on youths' competence to exercise procedural rights, which also reports a sharp drop-off in ability to exercise legal rights among those fifteen years of age or younger. The minimum age for transfer should be sixteen years of age.

A juvenile court hearing guided by offense criteria and clinical considerations and subject to rigorous appellate review is the only sensible way to make transfer decisions.¹⁸¹ Criteria should focus on offenses, prior record, offender culpability, criminal participation, clinical evaluations, and aggravating and mitigating factors that, taken together, distinguish youths who deserve sentences substantially longer than juvenile courts can impose from those who do not. Appellate courts should closely review waiver decisions and develop substantive principles to define a consistent boundary of adulthood. Although waiver hearings are less efficient than prosecutor's charging decisions, it should be difficult to transfer youths—juvenile courts exist to keep them out of the criminal justice system. An adversarial hearing at which prosecution and defense present evidence about offense, culpability, and treatment prognoses will produce better decisions than will politically motivated prosecutors acting without clinical information.

Offense-exclusion and direct-file laws have not obviated the need for judicial discretion, which reappears as transfer back or delinquency

sanctions in lieu of imprisonment. However, offense-based laws symbolize a reorientation of juvenile jurisprudence from diversion and rehabilitation to retribution, incapacitation, and deterrence. They represent a legal and cultural reconstruction of youth from innocent immature children to responsible mature offenders. They allow politicians to express punitive vengeful sentiments without regard to their laws' iatrogenic and counterproductive impact on children and public safety.

Pretrial Detention of Delinquents

Pretrial detention involves a youth's interim custody status pending trial. When police take a youth into custody, they can release her to a parent or take her to a detention facility. There, probation officers can release a youth to her parent or detain her pending a hearing. Finally, a juvenile court judge can hold a youth in detention pending trial if she finds that the youth poses a danger to him or herself, a threat to others, or will not appear for further proceedings.¹⁸² Of youths referred to juvenile courts, states hold about 20% in pretrial detention facilities—between one-quarter and one-third of a million juveniles annually.¹⁸³ In 2011, judges detained a larger proportion of youths arrested for person offenses (25.6%) than they did for property crimes (16.8%), but because police arrested so many more youths for property than person crimes, they confined roughly equal numbers.¹⁸⁴ Rates of detention rose and peaked between 1998 and 2007, even as the absolute numbers of youths referred to juvenile courts declined. Courts detained older youths at higher rates than younger juveniles, more boys than girls, and more children of color than white youths.¹⁸⁵

In 1984, the Supreme Court in *Schall v. Martin* reviewed a New York statute that authorized preventive detention if a judge found there was a "serious risk" that the child "may . . . commit an act which if committed by an adult would constitute a crime."¹⁸⁶ The law did not specify the type of present crime, the likelihood or seriousness of a future crime, burden of proof, or criteria or evidence a judge should consider to make the prediction. Despite these flaws, the *Schall* majority held that preventive detention "serves a legitimate state objective, and that the procedural protections afforded pre-trial detainees" satisfy constitutional requirements.¹⁸⁷

The Court noted that crime prevention is an important goal, juveniles commit a substantial amount of crimes, and victims suffer the same harm regardless of a perpetrator's age.¹⁸⁸ *Schall* minimized juveniles' liberty interests. "Juveniles, unlike adults, are always in some form of custody. . . . [T]he juvenile's liberty interest may, in appropriate circumstances, be subordinated to the State's *parens patriae* interest in preserving and promoting the welfare of the child."¹⁸⁹ Detention protected juveniles from the injuries they might suffer from a victim's resistance or police arrest.¹⁹⁰ *Schall* recognized that a negative ruling would invalidate similar preventive detention laws in every state.¹⁹¹

The district court and Court of Appeals' decisions in *Schall* concluded that judges detained youths to impose pretrial punishment for unproven offenses, rather than as a crime-prevention measure. The *Schall* litigation involved the Spofford Detention Facility, which had been the subject of extensive litigation, judicial scrutiny, and critical reports.¹⁹² A previous court described it as a penal institution—inmates wore uniforms, marched in line, and staff locked them in dormitories, classes, and dining halls.¹⁹³ The Court of Appeals in *Schall* concluded that judges used detention to punish youths because they dismissed many cases before trial and returned most youths to the community after trial. By contrast, the Supreme Court described institutional conditions and release practices as collateral aspects of "legitimate governmental regulation" rather than as pretrial punishment.¹⁹⁴

The Court considered whether detention hearing procedures provided adequate protection. *Gerstein v. Pugh* required a prompt probable cause determination for arrested adults facing continued detention.¹⁹⁵ *Schall* concluded that the procedures satisfied *Gerstein* because a judge advised the juvenile of their charges, the right to remain silent, and to counsel at an initial appearance. Although the majority implied that a judge made a probable cause determination, the dissent asserted that it did not occur until three days or longer after the initial appearance, which would violate *Gerstein*.¹⁹⁶

To detain a youth, a judge must predict that whether he or she would commit a crime before the next court appearance. *Schall* rejected the district court's findings that it is "virtually impossible to predict future criminal conduct with any degree of accuracy," and insisted that judges regularly predict future crimes.¹⁹⁷ "[F]rom a legal point of view there is

nothing inherently unattainable about a prediction of future criminal conduct. Such a judgment forms an important element in many decisions, and we have specifically rejected the contention, based on the same sort of sociological data relied upon by appellees and the district court, ‘that it is impossible to predict future behavior and that the question is so vague as to be meaningless.’”¹⁹⁸ Despite the majority’s confidence in judges’ predictive powers, they declined to specify the burden of proof, criteria, or evidence they should consider.

Ends and Means: Legitimate State Objective and Adequate Procedures?

The *Schall* dissent questioned the substantive goals and procedural means used to make detention decisions. The dissenters argued that neither judges nor clinicians could reliably predict who would commit a crime in the future.¹⁹⁹ Decision makers use different methodologies—statistical or actuarial versus clinical—to make predictions. Statistical prediction relies on correlations between independent characteristics and behavior to be predicted, assesses the individual to determine whether he or she has those traits, and then makes a prediction based on the aggregate risk of people with those features.²⁰⁰ Clinical prediction relies on expert evaluation of the individual and a hypothesis about how that person might act in the future.²⁰¹ Despite *Schall*’s confidence in judges’ clinical prognostication, social scientists question its assumption.²⁰² Studies compare the relative accuracy of statistical versus clinical prediction and strongly support the superiority of actuarial instruments over professional judgments.²⁰³ The American Psychiatric Association long has disclaimed psychiatrists’ competence to predict future dangerousness because they tend to not use information reliably, to disregard base rate variability, to consider factors that are not predictive, and to assign inappropriate weights to factors.²⁰⁴ Under the best conditions, clinical predictions are wrong about two times out of three—an error rate that would result in confining many people who would not have offended.²⁰⁵ The fallibility of prediction is compounded because judges at an initial appearance often lack access to information—psychometric tests, professional evaluations, and social histories—on which clinicians would rely. *Schall*’s dissent argued that most detained youths would not

have committed crimes if released and their loss of liberty conferred little benefit to the community.²⁰⁶

Conditions of Confinement

The *Schall* majority denigrated juveniles' liberty interests—"juveniles are always in some form of custody"—and trivialized conditions of confinement. Judges confine far more juveniles in detention facilities than they subsequently commit to correctional institutions. An earlier court found that conditions at Spofford violated the Constitution—that it was a jail-like facility "fraught with problems related both to architectural layout and to maintenance," "poorly designed," and where staff and inmates physically abused juveniles.²⁰⁷

Inadequate and dangerous conditions have characterized detention facilities for decades.²⁰⁸ Get tough policies in the 1990s exacerbated overcrowding as states detained youths to impose short-term punishment or to house those awaiting post-adjudication placement.²⁰⁹ According to a recent summary of conditions of confinement,

Many detention centers are overcrowded, elevating the risks to the safety of both youths and staff. The overcrowding, high volume of juveniles (many of whom are there for very brief periods), and high rates of staff turnover make it difficult for detention centers to offer quality services. Conditions of confinement may be poor, including understaffing, insufficient supervision, poor design, or deteriorating facilities. Children of color are greatly overrepresented in detention compared with their percentages in the general population. Many detained youths have substance abuse problems and/or mental health conditions that may never have been diagnosed, let alone treated. . . . Overcrowded facilities tend to be at elevated risk for a number of other problems. These include injuries to youth and staff, more use of short-term isolation, more suicidal behavior, and higher staff turnover.²¹⁰

In *Conditions of Confinement: Juvenile Detention and Corrections Facilities*, the Office of Juvenile Justice and Delinquency Prevention reported deficient conditions, inadequate health care, poor education, lack of treatment services, and excessive use of solitary confinement and

physical restraints.²¹¹ Although *Schall* described institutional practices as equivalent to parental supervision, detention staff conduct suspicionless strip searches of female status offenders prior to their admission.²¹²

The *Schall* dissenters objected that pretrial detention disrupted life, weakened ties to family, school, and work, stigmatized youth, and impaired legal defenses. Judges convict and institutionalize detained youths more often than those released pending trial.²¹³ The dissent questioned the procedures used to detain youths because the statute did not specify the type of crime, the burden of proof, or evidence to support the prediction. Despite the majority's confidence that attorneys participated at detention hearings,

juvenile codes in certain states do not even require courts to appoint attorneys at the detention stage. . . . [E]ven when state law does afford juveniles the right to counsel at the pretrial hearing, juveniles frequently waive counsel's appearance. . . . In some jurisdictions, as many as 80 to 90 percent of youth waive their right to an attorney because they do not know the meaning of the word 'waive' or understand its consequences. And finally, when attorneys do appear at detention hearings, they are frequently untrained in juvenile court procedures, inexperienced, and overburdened.²¹⁴

Without objective criteria, a standard of proof, or time to prepare, an attorney can do little. The informality, vagueness, and subjectivity of detention proceedings lend themselves to erroneous, arbitrary, and discriminatory decisions.²¹⁵

Racial Disparities in Detention

Judicial discretion leads to racial disparities in detention.²¹⁶ To be sure, some differences reflect differences in serious offending by race. As noted in Chapter 3, police arrest Black youths for violent crimes at higher rates than white youths; juvenile courts detain a larger proportion of violent offenders than those arrested for other crimes.²¹⁷ But, after controls for present offense, prior record, and other variables, judges more frequently detain Black youths than white offenders.²¹⁸

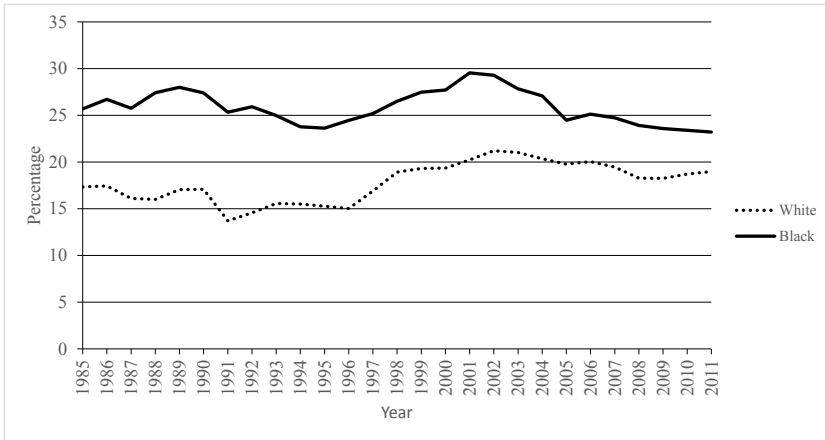


Figure 5.1. Detention for All Offenses, by Race, 1985–2011

Source: Office of Juvenile Justice and Delinquency Prevention, *Easy Access to the Census of Juveniles in Residential Placement: 1985–2011*, www.ojjdp.gov.

While race affects detention decisions, detention adversely affects youths' subsequent case processing and compounds disparities at disposition. Michael Lieber reported race effects of detention on disposition in Iowa.²¹⁹ Nancy Rodriguez reported that Arizona juvenile courts detained Black, Hispanic, and Native American youths at higher rates than they did comparable white offenders and that “youth who were detained pre-adjudication were more likely to have petitions filed, less likely to have petitions dismissed, and more likely to be removed from home at disposition.”²²⁰

Between 1985 and 2011, juvenile court judges detained about one-fifth of all youths referred to them. Figures 5.1, 5.2, and 5.3 show rates of detention by race over a quarter century. Figure 5.1 reveals that between 1985 and 2011, judges on average detained 18.2% of white youths compared with 26.0% of Black youths. Judges detain youths charged with person offenses at higher rates than youths charged with other crimes. Figure 5.2 indicates that on average, judges detained 22.4% of white youths charged with person offenses compared with 28.4% of Black youths. Figure 5.3 reports detention rates for youths charged with drug offenses. Even as detention rates for drug crimes peaked during the Get Tough Era, racial disparities persisted. On average, judges placed 17.1% of white youths in detention for drug offenses. In 1990, judges de-

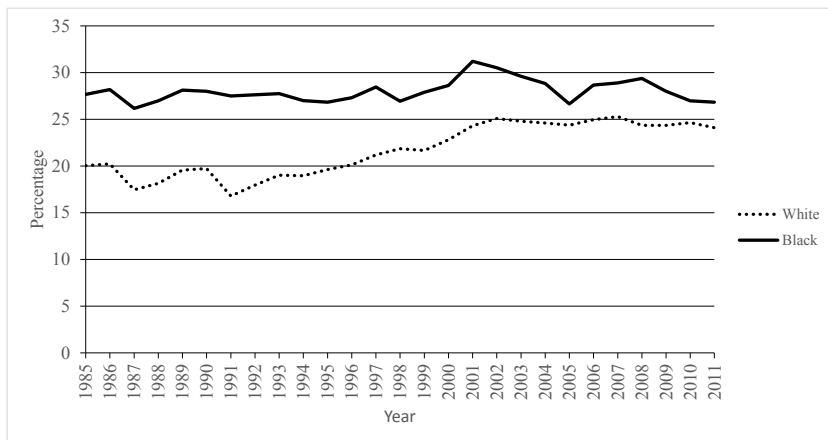


Figure 5.2. Detention for Person Offenses, by Race, 1985–2011

Source: Office of Juvenile Justice and Delinquency Prevention, *Easy Access to the Census of Juveniles in Residential Placement: 1985–2011*, www.ojjdp.gov.

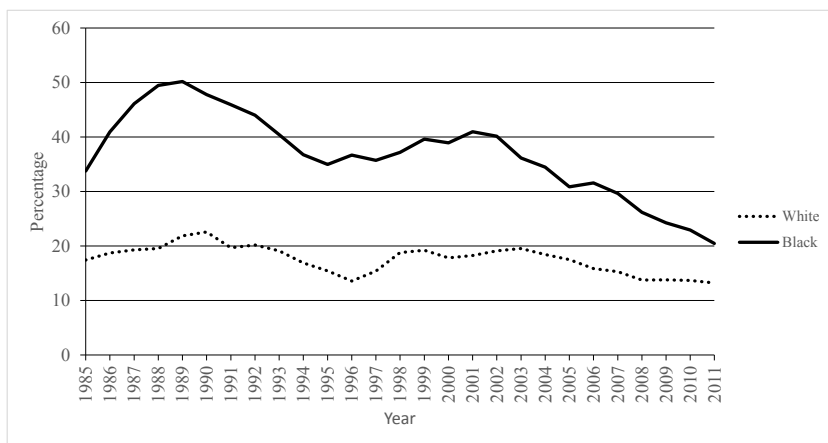


Figure 5.3. Detention for Drug Offenses, by Race, 1985–2011

Source: Office of Juvenile Justice and Delinquency Prevention, *Easy Access to the Census of Juveniles in Residential Placement: 1985–2011*, www.ojjdp.gov.

tained less than one-quarter (23.5%) of white youths for drug crimes. By contrast, they detained more than one-third (36.7%) of Black youths charged with drug offenses—more than double white youths’ rate. Between 1988 and 1991—the peak of the crack cocaine panic and the Get Tough Era—judges detained about half of all Black youths charged with

drug offenses, a rate twice that of white youths. The racial disparities for drug crimes are especially disturbing because, since the 1970s, self-report research consistently reports that Black youths use and sell drugs at *lower* rates than do white youths.²²¹ Despite these racial differences in drug use, police resource and enforcement decisions result in higher arrests rates of Blacks than whites.²²²

Reform Efforts

Beginning in the late 1980s, the Annie E. Casey Foundation launched the Juvenile Detention Alternatives Initiative (JDAI). JDAI aimed to reduce use of detention, develop alternatives to institutions, reduce overcrowding, improve conditions of confinement, and lessen racial disparities.²²³ JDAI reforms enlist justice system stakeholders to develop consensus rationales for detention, to adopt objective intake and risk assessment criteria, to use alternatives to secure detention—home detention, electronic monitoring, after-school or day-reporting centers—and to expedite cases to reduce pretrial confinement.²²⁴ JDAI screening tools are not validated actuarial prediction instruments. Rather, stakeholders develop consensus criteria about which youths are appropriate to detain based on present offense, prior record, and other factors.²²⁵ JDAI expanded from one Florida county in the 1980s to hundreds of sites in more than two dozen states. Although not all of these efforts have been equally successful, many sites have reduced the numbers of youths detained with no increases in crime or failures to appear. Despite use of objective screening tools, JDAI efforts to reduce racial disparities among detained youths have proved less successful.²²⁶

Policy Recommendations

The *Schall* dissent maintained that the harms of pretrial confinement outweighed any benefits to the juvenile or community and opined that clearer statutes and procedures could improve decision making. The *Schall* majority responded that its role was to determine whether the statute met minimum constitutional standards and noted that “we are neither a legislature charged with formulating public policy nor an ABA committee charged with drafting a model statute.”²²⁷ The legislatures

that pass laws and the judges who implement them bear primary responsibility for reform. Statutes should specify more explicit offense-based criteria. Juvenile court judges in collaboration with other stakeholders and social scientists should develop risk-assessment instruments to better identify who *might* offend in the future. Laws should presume release of all non-felony offenders and place a heavy burden—clear and convincing evidence—on the state to prove that a youth needs secure detention and that non-secure alternatives—house arrest, electronic monitoring, shelter care, day reporting—would fail. Other than youths who pose a risk of flight or who have absconded from an institution, states should reserve detention for youths charged with serious crimes—felonies, violence, or firearms—for whom, if convicted, commitment to a secure facility would likely result. States should bolster procedures with a non-waivable right to counsel and an opportunity to meet prior to the hearing.

Delinquency Dispositions: Treatment or Punishment?

What are the goals of delinquency dispositions—rehabilitation, punishment, incapacitation, deterrence?²²⁸ How do delinquency sanctions differ from criminal punishment? How do juvenile court judges decide with whom to intervene and what disposition to impose? How effective are these interventions? Progressives' rehabilitative ideal empowered judges to impose indeterminate nonproportional dispositions in a child's best interests. Despite good intentions, historians question whether they were rehabilitative either in theory or in practice.²²⁹ After *Gault*, delinquency sanctions became more punitive and Get Tough Era laws shifted them even further toward punishment.²³⁰ If rehabilitation is the justification for fewer procedural safeguards in juvenile courts than in criminal courts, then how do we know what it is or whether it occurs?

Certain markers distinguish between punishment and treatment.²³¹ Punishment involves state-imposed consequences—stigma, denunciation, or confinement—on people who violate criminal law.²³² It assumes that responsible actors make blameworthy choices and deserve prescribed penalties.²³³ Rehabilitative treatment assumes that deterministic forces caused a person's behavior and can be changed.²³⁴ Interventions are concerned with the person's future welfare rather than past crime.²³⁵

This section examines juvenile courts' dispositions. It first considers whether juvenile courts treat or punish delinquents and why that distinction matters. *Gault* rejected claims that delinquency prosecutions were civil proceedings, but *McKeiver* denied that they were criminal prosecutions. Juvenile court procedure—the process to determine delinquency—and substance—consequences imposed—rest on purported differences between treatment and punishment. The section first identifies factors to which courts look to distinguish between the two: legislative purpose clauses, sentencing statutes, sentencing practices, conditions of confinement, and intervention outcomes. It examines the impact of legislative changes during the Get Tough Era. Judged by these criteria, it argues that juvenile courts punish delinquents and that those harsher sanctions fall disproportionately heavily on minority youths. In Chapter 9, I argue that because juvenile courts punish delinquents, they require all adult criminal procedural safeguards *and* additional protections to offset their developmental limitations.

Why Does It Matter Whether Juvenile Courts Treat or Punish?

Whether juvenile courts treat or punish delinquents has procedural and substantive significances. *McKeiver* denied a jury trial based on its assumption that delinquency sanctions differed from criminal punishment, but without elaborating how. Procedurally, whether juvenile courts treat or punish would affect youths' right to a jury, protection from collateral consequences of adjudications, and use of delinquency convictions for criminal sentence enhancement. Substantively, whether they treat or punish implicates delinquency dispositions that exceed maximum sentences adults convicted of the same crime receive.²³⁶ The differences bear on juveniles' claims that conditions of confinement violate the Eighth Amendment ban on cruel and unusual punishment. Finally, the distinction affects whether the state has denied their Fourteenth Amendment Due Process Clause "right to treatment" when it confines them.²³⁷

Whether the question arises in a procedural or substantive context, courts have to decide whether sanctions are punishment or treatment.²³⁸ *Kennedy v. Mendoza-Martinez* pondered whether stripping a dual-nationality person of United States citizenship for avoiding the

draft during World War II was punishment and described factors to consider.

Whether the sanction involves an affirmative disability or restraint, whether it has historically been regarded as punishment, whether it comes into play only on a finding of *scienter*, whether its operation will promote the traditional aims of punishment—retribution and deterrence—whether the behavior to which it applies is already a crime, whether an alternative purpose to which it may rationally be connected is assignable for it, and whether it appears excessive in relation to the alternative purposes assigned are all relevant to the inquiry, and may often point in different directions.²³⁹

Allen v. Illinois relied on *Mendoza-Martinez* to decide whether an adult in a Sexually Dangerous Persons Act commitment proceeding could invoke the Fifth Amendment privilege against self-incrimination. Even though criminal charges triggered commitment proceedings, the Court concluded that the confinement was civil, denied Fifth Amendment protections, and required him to submit to clinical evaluation.²⁴⁰ The Court noted that the statutory purpose was to provide “care and treatment,” the state disavowed a punitive purpose, commitment was indeterminate, the state purportedly provided treatment, and inmates theoretically could be released after brief confinement.²⁴¹ *Allen* acknowledged that some conditions of confinement could amount to punishment, which would require criminal procedural protections, but the complainant failed to show his conditions were “essentially identical to that imposed upon felons with no need for psychiatric care.”²⁴² *Allen* distinguished *Gault*, which granted delinquents Fifth Amendment protections, by noting, “Here, by contrast, the State serves its purpose of *treating* rather than punishing sexually dangerous persons by committing them to an institution expressly designed to provide psychiatric care and treatment.”²⁴³

Justice White’s *McKeiver* concurrence highlighted differences between juvenile court treatment and criminal punishment. The criminal law punishes offenders for blameworthy conduct, whereas juvenile courts view delinquents as less culpable or responsible.

For the most part, the juvenile justice system rests on more deterministic assumptions [than the criminal justice system]. Reprehensible acts by juveniles are not deemed the consequence of mature and malevolent choice but of environmental pressures (or lack of them) or of other forces beyond their control. . . . Coercive measures, where employed, are considered neither retribution nor punishment. Supervision or confinement is aimed at rehabilitation, not at convincing the juvenile of his error simply by imposing pains and penalties. Nor is the purpose to make the juvenile delinquent an object lesson for others, whatever his own merits or demerits may be. A typical disposition in the juvenile court where delinquency is established may authorize confinement until age 21, but it will last no longer and within that period will last only so long as his behavior demonstrates that he remains an unacceptable risk if returned to his family. Nor is the authorization for custody until 21 any measure of the seriousness of the particular act that the juvenile has performed.²⁴⁴

Justice White concluded that juvenile courts' nonproportional indeterminate dispositions eschewed notions of blameworthiness and punishment.²⁴⁵

The Court's decisions—*Mendoza-Martinez*, *Allen*, and *McKeiver*—identify factors with which to distinguish between punishment and treatment: legislative purpose, indeterminate or determinate sentences, judges' sentencing practices, institutional conditions, and intervention outcomes.²⁴⁶ The Get Tough Era fostered a punitive convergence between juvenile and criminal courts' sentencing policies and practices.

Punishment vs. Treatment: Juvenile Courts' Legislative Purpose

Most states' juvenile codes contain a purpose clause to aid courts to interpret the law. In 1899, the Cook County juvenile court's purpose was "[t]hat the care, custody and discipline of a child shall approximate as nearly as may be that which should be given by its parents, and in all cases where it can properly be done the child be placed in an improved family home and become a member of the family by legal adoption or otherwise."²⁴⁷ Illinois later added the purpose to provide "such care and guidance, preferably in his own home, as will serve the moral,

emotional, mental, and physical welfare of the minor and the best interests of the community; . . . removing him from the custody of his parents only when his welfare or safety or the protection of the public cannot be adequately safeguarded without removal; and, when the minor is removed from his own family, to secure for him custody, care, and discipline as nearly as possible equivalent to that which should be given by his parents.”²⁴⁸ Many states’ juvenile codes used similar language to emphasize non-penal goals—counseling, supervision, and treatment.²⁴⁹

Since the 1970s, states have amended their juvenile codes’ purpose clauses to endorse punishment.²⁵⁰ The revised language focused on accountability, responsibility, culpability, punishment, and public safety rather than, or in addition to, a child’s welfare or best interests.²⁵¹ “[T]he intent was to shift from accountability *to* youths toward the accountability *of* youths. . . . Government’s role was, not to safeguard the interests of troubled youths, but to protect society from them.”²⁵²

As accountability became synonymous with retribution, deterrence, and incapacitation, state courts affirmed punishment as a legitimate element of juvenile courts’ treatment regime.²⁵³ The Nevada Supreme Court opined that “[b]y formally recognizing the legitimacy of punitive and deterrent sanctions for criminal offenses juvenile courts will be properly and somewhat belatedly expressing society’s firm disapproval of juvenile crime and will be clearly issuing a threat of punishment for criminal acts to the juvenile population.”²⁵⁴ After Washington adopted a just deserts juvenile sentencing framework, its supreme court observed that “sometimes punishment is treatment” and concluded that “accountability for criminal behavior, the prior criminal activity and punishment commensurate with age, crime and criminal history does as much to rehabilitate, correct and direct an errant youth as does the prior philosophy of focusing upon the particular characteristics of the individual juvenile.”²⁵⁵

Punishment vs. Treatment: Indeterminate versus Determinate Sentencing Statutes

Traditionally, juvenile courts imposed indeterminate nonproportional dispositions. If delinquency was only a symptom of a child’s needs, then what she did had little bearing on what she might need to change. The

shift from an interventionist court to a criminalized one culminates a trend that *Gault* set in motion. In 1978, the Twentieth Century Fund Task Force report, *Confronting Youth Crime*, recommended determinate and mandatory minimum sentences for violent young offenders.²⁵⁶ In 1980, the American Bar Association's *Juvenile Justice Standards Relating to Juvenile Delinquency and Sanctions* recommended that juvenile court judges' authority be "rigorously limited in type and duration according to the age and prior record of the juvenile and the seriousness of his or her offense."²⁵⁷ Proposals to impose proportional and determinate sentences reflected the impact of just deserts jurisprudence, a desire to reduce judges' discretion, and an aspiration to reduce racial disparities.

During the Get Tough Era, states amended laws to emphasize individual responsibility, justice system accountability, and determinate or mandatory minimum sentences.²⁵⁸ Some now use determinate sentencing guidelines based on age, offense, and prior record.²⁵⁹ Others impose mandatory minimum sentences or define security level placements based on a youth's offense.²⁶⁰ States' departments of corrections use offense-based administrative or parole-release guidelines to determine length of stay.²⁶¹ The National Research Council's analysis of juvenile court sentencing laws concluded that "[s]tate legislative changes in recent years have moved the court away from its rehabilitative goals and toward punishment and accountability. Laws have made some dispositions offense-based rather than offender-based. Offense-based sanctions are to be proportional to the offense and have retribution or deterrence as their goal. Strategies for imposing offense-based sentences in juvenile court include blended sentences, mandatory minimum sentences, and extended jurisdiction."²⁶² These crime-based sentences enable legislators to symbolically demonstrate their toughness by repudiating juvenile courts' commitment to treating youth.

Punishment vs. Treatment: Judicial Sentencing Practices—Offense and Race

Two sets of factors influence why juvenile court judges sentence delinquents as they do. First, states define juvenile courts' delinquency jurisdiction based on criminal law violations. As a result, the same factors that influence criminal court sentences—present offense and prior

record—strongly influence juvenile court sentences as well.²⁶³ Juvenile courts are complex bureaucracies, they routinely collect information about present offenses and prior records, and these provide easily administered criteria with which to triage serious and minor offenders and manage heavy caseloads. Judges can avoid scandal and adverse political repercussions of leniency by imposing restrictive sentences on serious or chronic offenders.²⁶⁴

The second consistent finding of delinquency sentencing research is that after statistical controls for legal variables, juveniles' race affects dispositions.²⁶⁵ Analysts attribute disparities in justice administration to several factors: differences in rates of offending by race; differential selection by justice system personnel; and juvenile courts' context—the interaction of urban locale with minority residency.²⁶⁶ As a result, juvenile courts' punitive sanctions fall most heavily on African American youths.

Delinquency case processing entails a succession of decisions by police, court personnel, prosecutors, and judges—arrest, referral, intake, petition, detention, waiver or adjudication, and disposition. The compounding effects of even small disparities produce larger cumulative differences between white youths and children of color.²⁶⁷ As indicated in Figure 5.4, Black youths comprised about 16.6% of the population aged ten to seventeen, 31.4% of juvenile arrests, 33.2% of delinquency referrals, 38.1% of juveniles detained, 40% of youths charged, and 40% of youths placed out of home.²⁶⁸ Although the greatest disparities occur at earlier less visible stages of the process, differences compound and Blacks and other racial minorities comprise the largest plurality of youth in institutions.²⁶⁹

Differential Offending

If juvenile court judges focus on legal variables—present offense and prior records—then differences in rates of offending would contribute to racial differences in dispositions. As reflected earlier in Figures 3.4 and 3.5 and by other measures of delinquency—self-reports and crime victim surveys—Black youths commit violent crimes at higher rates than white juveniles.²⁷⁰ While police arrest Black youths for drug offenses at somewhat lower rates than they do for violent crimes, self-report studies report higher rates of drug use by white youths than by Blacks.²⁷¹

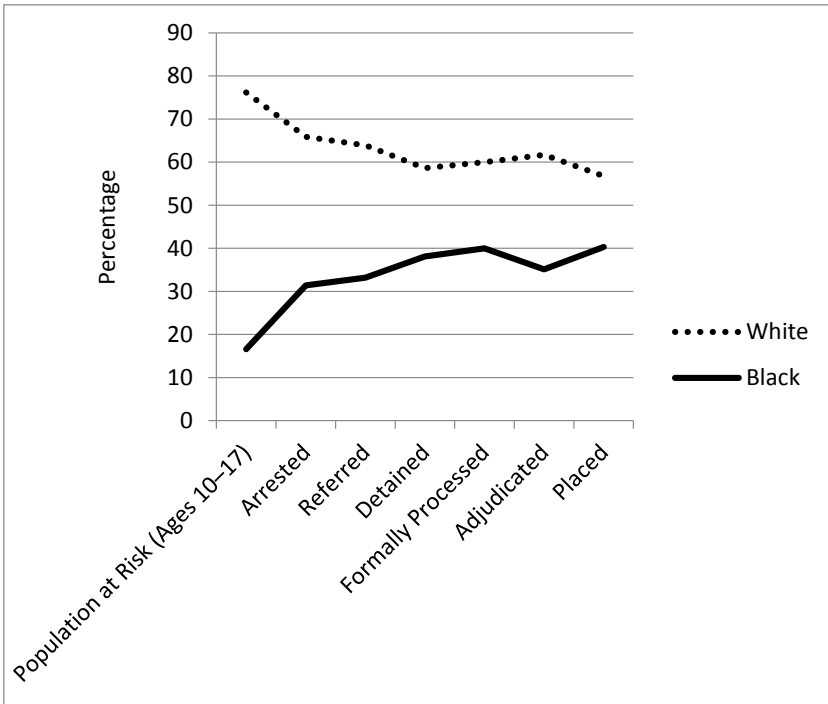


Figure 5.4. Case Processing Summary Counts, by Race, 2011

Source: Office of Juvenile Justice and Delinquency Prevention, *National Disproportionate Minority Contact Databook*, www.ojjdp.gov.

Victims more often report violent crimes to police, judges more readily confine youths convicted of those offenses, and differences in rates of violence contribute to disparities in confinement.²⁷² While present offense and prior record strongly influence judges' dispositions, a prior record reflects previous justice system decisions and masks some racial disparities.²⁷³

In Chapter 3, I attributed higher rates of violent offending by Black youth to their greater exposure to risk factors associated with criminal involvement, most of which are corollaries of poverty.²⁷⁴ Concentrated poverty, unemployment, dysfunctional families, poor supervision, harsh discipline, abuse or maltreatment, failing schools, gang-infested neighborhoods, and community disorder contribute to higher crime and violence in segregated urban areas.²⁷⁵ Some inner-city

youths may be socialized in a code of the street that emphasizes masculinity, risk taking, autonomy, and violent responses to challenges or disrespect.²⁷⁶

Differential Selection

While differences in rates of offending contribute to racial disparities, justice system personnel's decisions amplify those differences. Police stop and arrest youths of color more frequently than white youths.²⁷⁷ Factors that contribute to heightened risk of arrests include: self-fulfilling deployment of police to high-crime neighborhoods, racial profiling, aggressive stop-and-frisk practices, and youths' attitude and demeanor during encounters.²⁷⁸ After referral to juvenile court, discretionary decisions increase racial disparities and lead to more severe outcomes for Black than for white youths.²⁷⁹ As noted above, disparities in detention rates by race have prevailed for decades and pretrial detention affects subsequent out-of-home dispositions. Probation officers who decide whether or not to detain and to file formal petitions often perceive minority juveniles as more threatening than white juveniles.²⁸⁰ The National Research Council reported

pronounced differences in [probation] officers' attributions about the causes of crime committed by white and minority youth. For black children, crime was attributed to negative attitudinal traits and personality defects. Among white children, their offenses were thought to be primarily caused by external environmental factors (e.g., family dysfunction, drug abuse, negative peer influence). Furthermore, they found that these differences contributed significantly to differential assessments of the risk of reoffending and to sentence recommendations, even after adjusting for legally relevant case and offender characteristics.²⁸¹

Experimental studies examined unconscious racial stereotypes held by police and probation officers and reported that subliminal exposure to racially primed words—"ghetto," "homeboy," and "dreadlocks"—elicited more negative assessments, imputations of greater culpability, and support for harsher punishment regardless of respondents' race.²⁸² If decision makers perceive Black youths as more serious or culpable

than white offenders, their unconscious racial perceptions may produce more severe sanctions without their awareness.²⁸³

Juveniles courts' *parens patriae* ideology legitimates individualized dispositions and exposes disadvantaged youths to more extensive controls. "[Y]oung people with greater resources are more likely to have parents who intervene, hire lawyers and counselors, and take responsibility for addressing the problem, all of which will be viewed favorably by judges and probation officers."²⁸⁴ By contrast, children of color have both greater needs and greater risk of intervention because of economic inequality and their parents' inability to purchase private services.

Decision-Making Context

The structural context of juvenile courts also contributes to racial disparities. Urban courts are more procedurally formal and sentence all delinquents more severely than do suburban or rural courts.²⁸⁵ Urban courts have greater access to detention facilities, judges detain minority youths at higher rates than white youths, and detained youths receive more severe sentences than those who remain at liberty.²⁸⁶ Larger proportions of minority youths live in urban settings, experience higher rates of detention, and have their cases adjudicated in more formal courts. As a result, the structural context of juvenile courts interacts with racial demography to produce disproportionate minority confinement.²⁸⁷ As I discuss in Chapter 7, inner-city youths are more likely to attend poor-performing schools with a heightened police presence. Urban schools are more likely to suspend or expel Black males, refer them to juvenile court, and fuel the school-to-prison pipeline.

Racial Disparities of Juveniles in Confinement

Figures 5.5, 5.6, and 5.7 provide indicators of Get Tough laws' impact on racial disparities in confinement. Figure 5.5 shows the percentage of youths by race who receive out-of-home placements. Over the quarter century beginning in 1985, the proportion of white youths removed from home declined by about 10% while that of Black youths increased by 10%. In 1985, states removed 105,830 delinquents from their homes and placed them in residential facilities. The number of youths who received out-of-home placements increased steadily during the 1990s,

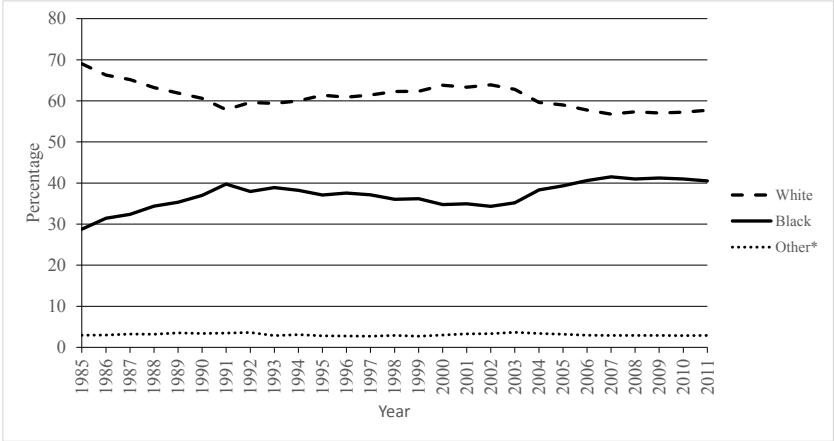


Figure 5.5. Juveniles Placed in Residential Facility, by Race
 * Includes American Indian and Asian/Native Hawaiian and Pacific Islander (NHPI).
 Source: Office of Juvenile Justice and Delinquency Prevention, *Easy Access to the Census of Court Statistics: 1985–2012*, www.ojjdp.gov.

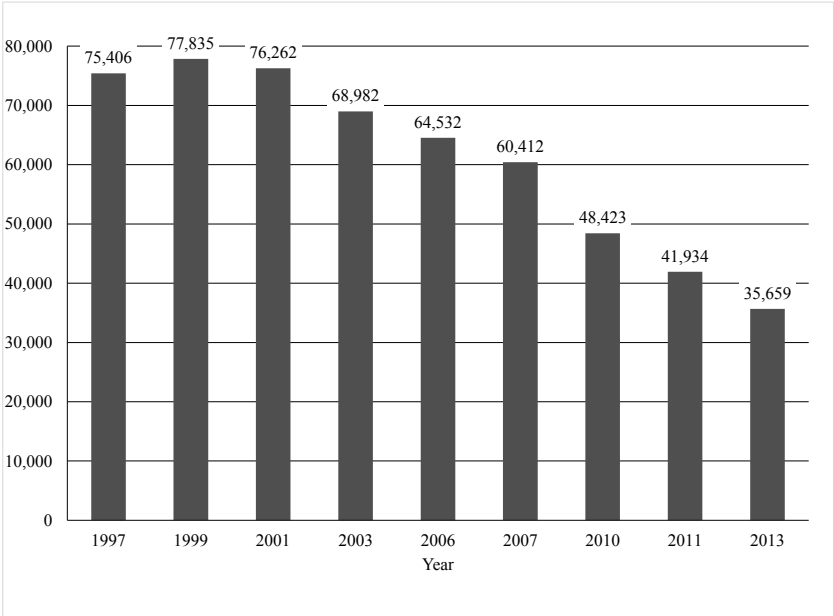


Figure 5.6. Number of Juveniles in Residential Facility, 1997–2013
 Source: Sickmund, M., Sladky, T.J., Kang, W., and Puzzanchera, C., *Easy Access to the Census of Juveniles in Residential Placement: 1997–2013*, www.ojjdp.gov.

peaked at 168,395 delinquents in 1997, a 59% increase, and reflects Get Tough Era changes and judicial sensitivity to the punitive ethos. Since the peak in the late 1990s, the number of youth removed from home has declined dramatically. In 2012, judges placed 87,540 youths in residential facilities, 21% fewer than in 1985 and 92% lower than the peak.²⁸⁸ We do not know why residential placements have declined. Perhaps lawmakers and judges moderated their commitment to punish youths or better appreciated the damage of institutional placements.

Despite the overall decline, the racial composition of youths in confinement changed substantially. As reflected in Figure 5.5, in 1985, judges removed 68.5% of non-Hispanic and Hispanic white youths, 28.5% of Black youths, and 2.9% of youths of other races from their homes. By 2012, the proportion of white youths removed from home declined to 57.8% of all youths—a 10.7% decrease—while the proportion of Black youths increased to 39.3%—an offsetting 10.8% increase.

Figure 5.6 uses a one-day count of juveniles in residential placements. One-day counts report standing population, as distinguished from annual admission and release data, which measure population flow. These data distinguish between non-Hispanic white youths and Hispanic

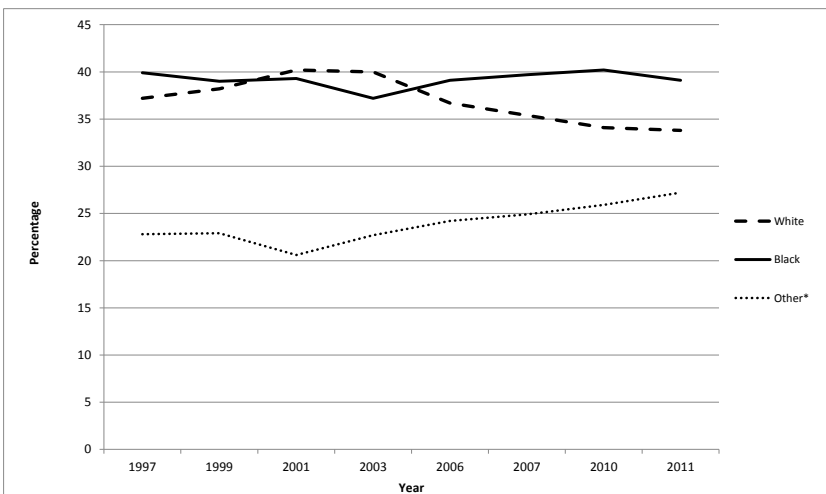


Figure 5.7. Juveniles in Residential Facility, by Race

* Includes Hispanic, American Indian, Asian, Pacific Islander, and Other.

Source: Office of Juvenile Justice and Delinquency Prevention, *Easy Access to the Census of Juveniles in Residential Placement: 1997–2011*, www.ojjdp.gov.

youths in confinement. Hispanic youths comprise more than 80% of the racial category “other,” along with Native American, Asian, and Pacific Islander youths. The numbers of youths in confinement reached their apex in the late 1990s at the peak of the Get Tough Era and have declined steadily since. The numbers of youths confined on a given day fell from 75,406 in 1997 to 35,659 in 2013, a 111% decrease.

Despite dramatic reduction in youths in confinement, the racial composition of institutionalized inmates became ever darker. During the decade, the proportion of white inmates declined from 37.2% to 33.8% of all residents, the proportion of Black inmates hovered around 40%, and the proportion of other youths of color increased.

Congress amended the Juvenile Justice and Delinquency Prevention Act (JJDPA) in 1988 to require states receiving federal juvenile justice funds to examine sources of minority overrepresentation in detention and institutions.²⁸⁹ It amended the JJDPA in 1992 to make disproportionate minority confinement a core requirement and again in 2002 to require states to reduce disproportionate minority contact.²⁹⁰ States responded to the 1988 JJDPA requirement, conducted evaluations, and reported disproportionate overrepresentation of minority youths in institutions.²⁹¹ Minority juveniles receive disproportionately more out-of-home placements, while whites receive more probationary dispositions.²⁹² Judges commit Black youths to public institutions at rates three and four times that of white youths, and send larger proportions of white youths to private residential treatment programs.²⁹³ Black youths serve longer terms than do white youths committed for similar offenses.²⁹⁴

Punishment vs. Treatment: Community-Based and Institutional Confinement

Juvenile courts’ dispositional options run the gamut from community service, probation, and placement in small local group homes that house half a dozen residents, to large correctional facilities and training schools with hundreds of inmates and prison-like custodial features—fenced perimeters, razor wire, armed guards, and locks and bars.²⁹⁵ Facilities may be privately run or administered by local or state government. Juvenile court judges place the majority (60%) of adjudicated delinquents on probation and put more than one-quarter (27%)

in residential facilities.²⁹⁶ Of those removed from home, judges place less than one-third (30.3%) in community-based group homes, about 3% in boot camps, and 7% in ranch/wilderness challenge facilities. More than two-thirds of delinquents removed from their homes are housed in facilities with more than fifty inmates and 42% are in long-term secure training schools and youth prisons.²⁹⁷ Despite the prevalence of small privately run and community-based programs, states confine the vast majority of youth (69%) in large public institutions.²⁹⁸

Since Martinson's pessimistic "What Works?," researchers have evaluated programs in community and residential settings to determine what works, how well, and at what costs. The diversity of facilities and programs and variability of populations they serve make assessing outcomes difficult. Correctional evaluations typically lack control groups, which makes it difficult to attribute positive outcomes to intervention or to sample selection bias of the youths committed to them.

Meta-analyses combine independent studies to measure effectiveness of different strategies to reduce recidivism or other outcomes.²⁹⁹ Evaluations have compared generic strategies—counseling, behavior modification, and group therapy—more sophisticated assessments and replications of brand-name programs, and cost/benefit appraisals of different treatments.³⁰⁰ A substantial literature exists on effectiveness of probation and other forms of noninstitutional treatment.³⁰¹ Community-based programs are more likely to be run by private (usually nonprofit) service providers, to be smaller and less overcrowded, and to offer more treatment services than do publicly run institutions.³⁰²

Delbert Elliot developed the Blueprints for Prevention program, which certifies programs as proven or promising. Proven programs demonstrate reductions in problem behaviors with rigorous experimental design, continuing effects after youths leave the program, and successful replication by independent providers.³⁰³ Although some proven programs treat delinquents, most programs aim to prevent school-aged youths' involvement with the juvenile justice system.³⁰⁴ Mark Lipsey's ongoing meta-analyses report that treatment strategies such as counseling and skill building are more effective than those that emphasize surveillance, control, and discipline.³⁰⁵ The Campbell Collaboration conducted meta-analyses of rigorous empirical evaluations of treatment programs for serious delinquents in secure institutions. A review

of thirty studies concluded that cognitive-behavioral treatment reduced overall and serious recidivism.³⁰⁶ Cost-benefit studies use meta-analytic methods to evaluate program costs and benefits to the individual and community—recidivism reduction, costs to taxpayers, and injury or losses to potential victims.³⁰⁷ While there is a paucity of high-quality evaluations, available research suggests that prevention programs—preschool enrichment and family-based interventions outside of the juvenile justice system—provide benefits that exceed their costs and improvements in education, employment, income, mental health, and other outcomes.³⁰⁸

Cumulatively, evaluations conclude that states can handle most delinquents safely in community settings with cognitive-behavioral models of change.³⁰⁹ The most successful Blueprints programs—Functional Family Therapy and Multisystemic Therapy—focus on altering family interactions, improving family problem-solving skills, and strengthening parents’ ability to deal with their children’s behaviors.³¹⁰ But effective programs require extensive and expensive staff training, for which most state and local agencies are unwilling to pay. Despite decades of research, “only about 5% of the youths who could benefit from these improved programs now have the opportunity to do so. Juvenile justice options in many communities remain mired in the same old tired options of custodial care and community supervision.”³¹¹

Punishment vs. Treatment: Juvenile Correctional Institutions

Conditions of confinement provide another indicator of whether inmates receive treatment or punishment.³¹² *Gault* mandated procedural safeguards because of conditions in training schools.³¹³ Accounts of early Progressive training schools corroborate *Gault*’s observation that those institutions more closely resembled prisons than clinics.³¹⁴ Cases contemporaneous with *Gault* described inmates beaten by guards, hog-tied, or becoming psychotic through prolonged isolation.³¹⁵ Recent law suits challenging institutional conditions reveal gang conflict, sexual abuse of inmates by guards, inadequate education, mental health and health care services, suicide, and inmate deaths at the hands of staff.³¹⁶

Analysts criticize training schools as sterile and unimaginative facilities, as inappropriate venues in which to treat juveniles, as schools for

crime where children learn from more delinquent peers, and as settings in which staff and residents abuse and mistreat inmates.³¹⁷ During the 1960s and 1970s, investigators conducted in-depth ethnographic research in correctional facilities.³¹⁸ Studies in different states reported similar findings—violent environments, minimal treatment or educational programs, physical abuse by staff and inmates, make-work tasks, extensive use of solitary confinement, and the like. States confined half of all youths in overcrowded facilities, more than three-quarters in large facilities, and more than one-quarter in institutions with two hundred to one thousand inmates.³¹⁹ Unfortunately, for the past quarter century, we have had no ethnographic studies of juvenile institutions. Corrections officials' recalcitrance and institutional review boards strictures have severely limited criminologists' ability to study institutions because they involve confined populations who derive no immediate benefits and minors for whom they are unable to obtain parental consent.³²⁰

I was introduced to Massachusetts's training schools in 1970. Under the leadership of Dr. Jerome Miller, the Department of Youth Services initially attempted to devolve large custodial institutions into small therapeutic communities in each residential cottage. Some cottages housed fewer than a dozen residents, provided a one-to-one staff inmate ratio, and offered group therapy, whereas in other cottages, staff physically beat inmates and did little to curb physical abuse and rape of other inmates.³²¹ In the face of staff resistance to reform, Miller closed the state's training schools, returned nearly one thousand residents to the community, and housed youths who posed a threat to the community in small, secure facilities with fifteen beds or fewer.³²² Evaluations of institutional closure and community-based alternatives indicated that quality of care improved without adversely affecting public safety.³²³ By the 1980s, get tough policies overtook the Massachusetts experiment, and it would be decades before other states replicated institutional closures and relied more heavily on community placements.

Punishment vs. Treatment: Right to Treatment

Over the past four decades, juvenile inmates have filed nearly sixty lawsuits that challenge conditions of confinement, asserting that they violate the Eighth Amendment's prohibition on cruel and unusual punishment

and deny their Fourteenth Amendment right to treatment.³²⁴ Eighth Amendment litigation is proscriptive, defines constitutionally impermissible practices, and delineates the floor below which institutional conditions may not fall. Judicial opinions from around the country describe youths housed in dungeons, beaten with paddles, drugged for social control, tear-gassed, locked in solitary confinement, housed in overcrowded and dangerous conditions, and subjected to other punitive practices.³²⁵

The Fourteenth Amendment litigation is prescriptive. *McKeiver* denied delinquents a constitutional right to a jury trial because the Court assumed that they received treatment. Juveniles claim that denial of criminal procedural protections imposes a substantive right to treatment and creates a duty on states to provide beneficial programs.³²⁶ In most cases, judges appoint a special master to mediate between inmate-plaintiffs' attorneys and state department of corrections to ameliorate unconstitutional conditions.

The right to treatment raises difficult issues of federalism and separation of powers. When inmates file constitutional claims in federal court, their suits pit federal judges against a state's department of corrections. Remedies to improve conditions require a state legislature to allocate more funds for treatment services. In response to the flood of litigation over conditions in institutions, the Supreme Court in *Youngberg v. Romeo* limited the doctrinal foundation of the right to treatment.³²⁷ *Youngberg* required reasonably safe conditions, freedom from unnecessary restraint, and minimally humane conditions, and instructed trial judges to defer to correctional professionals.³²⁸ To further discourage litigation, in 1996, Congress passed the Prison Litigation Reform Act, which restricts the power of state and federal courts to order prospective relief from conditions that violate inmates' limited constitutional rights.³²⁹

Punishment vs. Treatment: What Works?

Do treatment programs reduce recidivism, enhance psychological well-being, improve educational attainments, provide vocational skills, or boost community readjustment? There are no standard measures of recidivism—rearrest, reconviction, or recommitment—and most states

do not collect data on programs' effectiveness or recidivism, which complicates judges' ability to distinguish treatment from punishment.³³⁰ Measuring outcomes is further complicated because programs' populations vary with states' juvenile court age of jurisdiction and disposition, the crimes for which judges commit youths, and whether facilities are large or small, public or private, community-based or institutional.

Despite these limitations, evaluations of training schools provide scant evidence of effective treatment.³³¹ Programs that emphasize deterrence or punishment—institutions and boot camps—may lead to increased criminal activity following release.³³² Correctional boot camps, reflecting punitive policies of the 1990s, emphasized physical training, drill, and discipline. Despite their popularity, they did not reduce recidivism and some studies reported increases.³³³

Evaluations of training schools report that police rearrest half or more of the juveniles who have been sent to them for a new offense within one year of release.³³⁴ “There is virtually no evidence that juvenile facilities produce positive results in reducing future law-breaking behavior. Moreover, there is growing evidence that youths who more deeply penetrate the juvenile justice system, especially those who are securely confined, have the worst long-term public safety outcomes.”³³⁵ More than half of incarcerated youth have not completed the eighth grade and more than two-thirds do not return to school following release.³³⁶ Young Black men involved with the justice system who have not completed high school have bleak life prospects.³³⁷

Jamie Fader's *Falling Back* poignantly describes confined minority youths' transition from a rural correctional facility to an inner-city Philadelphia neighborhood of failing schools, high crime, aggressive policing, and lack of jobs. They encountered myriad barriers in their quest for employment. They were unable to complete an electronic application for an entry-level job, lacked “soft” or “people” skills like smiling and making eye contact with demanding customers, suffered from the spatial mismatch between their urban residence and suburban jobs, failed employer drug tests and criminal background checks, and confronted other barriers.³³⁸ Within three years of the fifteen youths' release, one was dead, half were reincarcerated, several more were on the run, and only two (14%) had avoided rearrest.³³⁹ Their experience reflects the larger structural barriers young Black men confront in segregated

neighborhoods, reared in the code of the street, who drop out of failed schools, and lack access to labor markets.

Juvenile Corrections Policy: What Would a Responsible Legislature Do?

Justice system involvement impedes youths' transition to adulthood and aggravates minority youths' social disadvantage.³⁴⁰ Like the Hippocratic oath, the first priority of juvenile court intercession should be harm reduction—to avoid or minimize practices that leave youths worse off. Franklin Zimring argues that “harm reduction creates the opportunity to use concerns about the impact of the system on minority kids as a wedge to reduce the harmful impact of the system on all processed through it.”³⁴¹

Adolescence is a developmentally fraught period of rapid growth and personality change. Most delinquents will outgrow adolescent crimes without extensive treatment and interventions should be short-term, community-based, and as minimally disruptive as possible. “The best-known cure for youth crime is growing up. And the strategic logic of diversion and minimal sanctions is waiting for maturation to transition a young man from male groups to intimate pairs and from street corners to houses and workplaces.”³⁴²

More than four decades ago, Massachusetts closed its training schools and replaced them with community-based alternatives—group homes, mental health facilities, and contracts for services for education, counseling, and job training.³⁴³ Evaluations reported that more than three-quarters of the young people overseen by the state's Department of Youth Services were not subsequently incarcerated, juvenile arrest rates decreased, and the proportion of adult prison inmates who had graduated from juvenile institutions declined.³⁴⁴

More recently, Missouri has replicated and expanded on the Massachusetts experiment. Missouri relies on continuous case management, decentralized residential units, staff-facilitated positive peer culture, and a rehabilitative environment.³⁴⁵ Although proponents claim reduction in recidivism rates, no rigorous evaluations demonstrates its effectiveness.³⁴⁶ Other states have adopted deinstitutionalization strategies. The California Youth Authority has closed five large institutions and reduced

its incarcerated population from about ten thousand juveniles to around sixteen hundred.³⁴⁷ New York's Office of Children and Family Services (OCFS) announced plans to close six youth correctional facilities after a study found that nearly 80% of young people released from its facilities were rearrested within three years.

Punishment or Prevention

During the last two decades of the twentieth century, offenses trumped offenders as get tough lawmakers shifted sentencing policy from treatment to punishment. Prosecutors' charging decisions—direct file or offense exclusion—superseded judges' assessment of amenability to treatment. Present offense and prior record dominate detention and disposition decisions. Just deserts—proportionality, determinacy, and responsibility—and punishment, incapacitation, and deterrence displaced the rehabilitative ideal. Juvenile courts' purpose clauses emphasize punishment, accountability, and public safety. States' use determinate and mandatory minimum sentences. Present offense and prior record explain most of the variance in judges' sentencing decisions. Offense criteria have redefined the meaning of rehabilitation. Previously, treatment was a welfare-oriented, client-centered endeavor in which an offense was a symptom of need and the goal was to improve offenders and deliver services. In its new guise, it is a strategy to manage risk, impose restrictions, reduce crime, and advance public safety rather than to promote offenders' welfare as an end in itself.³⁴⁸

Delinquency prevention programs provide an alternative to control or suppression and reflect the adage that “a stitch in time saves nine.” Prevention intervenes with children and youths before they engage in delinquency. Risk-focused prevention identifies factors that contribute to offending and employs programs to ameliorate or counteract them. Some interventions apply to communities or families and others to individuals at risk to become offenders.³⁴⁹

Some prevention strategies identify individual risk factors—low intelligence or delayed school progress—and provide programs to improve cognitive skills, school readiness, and social skills. The Perry Preschool Project—an enhanced Head Start program for disadvantaged Black children—aimed to provide intellectual stimulation, improve

critical thinking skills, and enhance later school performance.³⁵⁰ Cost-benefit analyses and evaluations report that larger proportions of experimental than control youths graduated from high school, received post-secondary education, had better employment records and higher incomes, paid taxes, had fewer arrests, and reduced public expenditures for crime and welfare.³⁵¹

Other delinquency prevention programs address the families in which at-risk youths live. Family-based risk factors include poor child-rearing techniques, inadequate supervision, lack of clear norms, and inconsistent or harsh discipline. Home visitation, nurse home visitation, and parent management training can produce positive outcomes in the lives of children.³⁵² Family interventions for adjudicated delinquents that operate outside of the juvenile justice system also produce positive outcomes—Multisystemic Therapy (MST), Functional Family Therapy (FFT), and Multidimensional Treatment Foster Care (MTFC).³⁵³

David Farrington and Brandon Welsh, in *Saving Children from a Life of Crime*, provide a comprehensive review of risk factors and effective interventions to prevent delinquency. They identify individual, family, and community level factors and effective programs to ameliorate delinquency. At each level, they report proven or promising programs to improve youths' lives and recommend risk-focused, evidence-based prevention programs.³⁵⁴

Peter Greenwood, in *Changing Lives: Delinquency Prevention as Crime-Control Policy*, provides a comprehensive review of prevention programs. He focuses on interventions across the developmental trajectory from infancy and early childhood through elementary-school-aged children, and into adolescence. Some prevention programs have been adequately evaluated and clearly do *not* work—for instance, Drug Abuse Resistance Education (DARE).³⁵⁵ Many prevention programs have no evidentiary support—they either have not been evaluated or used such flawed design that researchers could draw no conclusions. Greenwood uses cost-benefit analyses to evaluate various delinquency and prevention programs. While cost-benefit analyses could rationalize delinquency policy and resource allocation decisions, politicians do not embrace prevention programs because they lack a punitive component and do not demonstrate immediate impact.³⁵⁶ While highly visible crimes evoke fear and an immediate punitive response, delinquency

prevention takes longer to realize and has a more diffuse impact. Despite effective programs, delinquency prevention “holds a small place in the nation’s response to juvenile crime. Delinquency control strategies operated by the juvenile justice system dominate.”³⁵⁷

Conclusion

Progressive reformers created juvenile courts to divert youths from the criminal justice system and rehabilitate them in a separate system. Politicians in the Get Tough Era assaulted the idea that children are different, repudiated the court’s welfare role, and rejected its premise to keep youths out of prisons. States changed transfer laws to prosecute more children as adults. Despite their punitive turn, changes in juvenile justice were less extreme than the mass incarceration that overtook the criminal justice system.³⁵⁸ Rates of transfer and incarceration of delinquents increased, but imprisonment rates of young adults aged eighteen to twenty-four more than tripled during the Get Tough Era.³⁵⁹ Zimring argues that juvenile courts served their diversionary function even as the criminal justice system underwent a paroxysm of imprisonment.

[T]he political forces that produced extraordinary expansion through the rest of the penal system had been stymied in juvenile courts. In that sense, the under-eighteen population became the last significant battleground for a get-tough orientation that had permeated the rest of the peno-correctional system. . . . [A]ngry assaults on juvenile courts throughout the 1990s are a tribute to the efficacy of juvenile justice in protecting delinquents from the incarcerative explosion that happened everywhere else. The largest irony of the 1990s from a diversionary standpoint is that the juvenile courts were under constant assault not because they had failed in their youth-serving mission, but because they had succeeded in protecting their clientele from the new orthodoxy in crime control.³⁶⁰

While juvenile courts served their diversionary function, lawmakers sharply shifted their interventions from rehabilitation toward offense-based punitive policies. Progressive reformers did not expect training schools to achieve great reforms; their principal virtue was that they were not prisons. While they envisioned positive programs administered by

child welfare experts, neither the Progressives nor subsequent generations ever achieved those goals. *Gault* mandated procedural safeguards because it recognized that “a ‘receiving home’ or an ‘industrial school’ for juveniles is an institution of confinement in which the child is incarcerated for a greater or lesser time.”³⁶¹ During the last third of the twentieth century, lawmakers forsook even nominal commitment to treatment in favor of punishment. They changed juvenile codes’ purpose from care and treatment to accountability and punishment. They amended sentencing statutes to define length and location of confinement based on offense. In practice, judges focused primarily on present offense and prior record when making dispositions. Although most delinquents received probation, between 1987 and 1997, institutional confinement rose by 54%. Training schools more closely resembled prisons than clinics and seldom improved delinquents’ life trajectories. Training schools are the least effective way to respond to youths’ needs. Meta-analyses and other evaluations identify effective programs and most of them are not administered by juvenile justice personnel.

I emphasize juvenile courts’ explicitly punitive turn because it implicates their procedural safeguards. *McKeiver* denied delinquents a right to a jury and *Gault* granted only watered-down safeguards because the Court assumed that delinquents received treatment. Because juvenile courts punish youths, their justification for reduced procedural safeguards evaporates. In Chapter 9, I argue that juveniles require more procedural safeguards than adult criminal defendants to protect them from their developmental limitations, the harsh consequences of delinquency adjudications, and the collateral consequences of convictions.

Finally, the turn toward punishment—waiver, detention, and disposition—falls most heavily on Black youths. Progressive reformers intended juvenile courts to discriminate between “our children” and “other people’s children.” A century ago, the court administered a different justice system for native-born and immigrant children. The courts’ interventionist role was to assimilate and Americanize miscreant youth, and the children of the foreign born had a greater distance to travel and required more extensive controls.

A century later, juvenile courts continues to discriminate between “our children” and “other people’s children,” but now they are African American children and other youths of color. At every critical custodial

decision, Black youths receive more punitive sanctions than white youths. Differences in rates of violence by race contribute to some disparity in justice administration. But many Black youths experience very different childhoods than do most white youths. Public policies and private decisions created segregated urban areas and consigned children of color to live in concentrated poverty with criminogenic consequences. Race affects decision makers' responses to children of color—the way they see them, evaluate them, and dispose of them. It is not coincidental that the turn from welfare to punishment and from rehabilitation to retribution occurred as Blacks gained civil rights and the United States briefly flirted with integration and inclusionary rather than exclusionary racial policies.

The Girl Is a Criminal

The Impact of Get Tough Policies on Girls

During the Get Tough Era, policy makers perceived an alarming increase in girls' violence. Official statistics reported that police arrests of female juveniles for crimes against the person—simple and aggravated assault—either increased more or decreased less than those of their male counterparts and portended a gender convergence in violence.¹ Popular media amplified public perceptions of increased girl-on-girl violence with features on “bad girls gone wild,” “feral and savage” girls, and girl-gang violence.²

The perceived narrowing of the crime gender-gap might reflect gender-specific social or cultural changes that affected girls' criminality differently than boys' and caused more of them to act violently. Or the supposed increase in girls' violence might be socially constructed and reflect other get tough policies—decreased tolerance of violence, shifts in police responses to domestic violence, heightened surveillance, or changes in parental attitudes—that affected girls differently than boys.³ Comparing boys' and girls' official arrest rates with self-report and victimization surveys that do not rely on justice system data conclude that the perceived increase in girls' violence is more likely a social construction than an empirical reality.⁴ Changes in girls' arrest-proneness for violence may be attributed to three gender-specific policy changes: an increased probability to charge less serious conduct as assault, a criminalizing of domestic violence between intimates, and parents' diminished tolerance of females' acting-out behavior. While police practices may account for some changes in girls' arrests for violence, juvenile justice policies—especially the mid-1970s federal mandate to deinstitutionalize status offenders (DSO)—likely contributed as well.⁵ After federal policies were initiated to deinstitutionalize status offenders, analysts

warned that judges could bootstrap or relabel them as delinquents to retain access to secure facilities.⁶

This chapter contends that the perceived increase in girls' violence is an artifact of changes in police practices and get tough juvenile justice policies. Heightened concern about domestic violence lowered the threshold for assaults and mandated arrests in intra-family conflicts. Laws that prohibited confining status offenders with delinquent youth drove efforts to relabel them as delinquents to place them in institutions. The chapter first examines historical differences in juvenile justice responses to male and female offenders, focusing on the 1974 federal Juvenile Justice and Delinquency Prevention Act, which mandated de-institutionalization of status offenders (DSO). It next analyzes boys' and girls' arrests for simple and aggravated assault and highlights differences in crime seriousness by gender. Examining offender-victim relationships indicates that girls' violence more often occurs within family conflicts and arrests for simple assault reflect a relabeling of status offenders as delinquents. Finally, the chapter focuses on boys and girls incarcerated for simple and aggravated assault; states confine girls more frequently for minor offenses. It concludes that the justice systems' responses to girls reflect collateral damage of get tough policies.

Girls in the Juvenile Justice System

The Progressive reformers who created juvenile courts combined two visions—one interventionist and the other divisionary.⁷ They envisioned a specialized court to separate children from adults in courts, jails, and prisons—diversion—and to treat them rather than punish them for crimes—intervention.⁸ Juvenile courts' delinquency jurisdiction initially encompassed only youths charged with crimes. However, reformers soon added status offenses—noncriminal misbehavior such as incorrigibility, runaway, truancy, immorality, and indecent conduct—to juvenile courts' jurisdiction.⁹ The behaviors subsumed in the status jurisdiction enabled juvenile courts to reinforce parental authority, to reassert schools' controls over youth, and to enforce norms of childhood.¹⁰ Juvenile courts' status jurisdiction rested on the idea of childhood dependency and provided a preemptive basis to intervene.¹¹

Historically, juvenile courts responded to boys primarily for minor crimes such as theft or vandalism and to girls mainly for status offenses such as incorrigibility, immorality, or being beyond parental control—code words for being sexually active.¹² Status jurisdiction reflected Progressives' construction of childhood dependency, Victorian sensibilities, and their desire to control female sexuality.¹³ Reformers feared that “the temptations of the city would corrupt girls' natural innocence” and lead to premarital sex, unintended pregnancies, and inability to attract respectable marriage partners.¹⁴ Judges detained and confined girls largely for status offenses and at higher rates than boys.¹⁵

In the early 1970s, about three-quarters of girls in juvenile court appeared for status offenses.¹⁶ Critics argued that confining status offenders with delinquents in detention facilities and training schools discriminated against females, stigmatized them with delinquency labels that led to secondary deviance, exposed them to more seriously delinquent role models, and provided few services.¹⁷ Intervention at parents' behest exacerbated intra-family conflicts and enabled some caretakers to avoid their responsibilities.

The 1974 federal Juvenile Justice and Delinquency Prevention Act (JJDPA) prohibited states from confining status offenders with delinquents in detention facilities and institutions and withheld formula grant money from states that failed to remove them.¹⁸ In many states, judges sent girls to non-secure shelter facilities but some ran away. Judges demanded a means to keep girls safe from themselves and from sexual predators. At the behest of the National Council of Juvenile and Family Court Judges, in 1980 Congress amended the JJDPA to allow states to continue to receive federal funds *and* to permit judges to commit status offenders to institutions for violating a “valid court order.”¹⁹ The valid court order exception, which continues to the present, allows judges to bootstrap or convert status offenders into delinquents by finding them in contempt of court for violating a condition of probation—obey your parents, go to school, or stay at home.²⁰ Although the 1992 JJDPA reauthorization required states to provide gender-specific services for females, most states just collected data about girls rather than develop new programs for them.²¹

By the early 1980s, DSO initiatives produced a seeming decline in the number of female status offenders in detention and institutions.²² The

National Academy of Sciences reported reductions in confinement of status offenders in public facilities.²³ By 1988, the number of status offenders in secure facilities had reportedly declined by 95% from those held prior to the JJDPa.²⁴ However, the changes may have been more apparent than real: the number of status offenders committed to private institutions increased during the 1980s and roughly offset those removed from public institutions, a phenomenon known as trans-institutionalization.²⁵ At the same time, the number of female status offenders detained for violating a valid court order—bootstrapping—grew at an alarming rate.²⁶

Although the JJDPa prohibited states from incarcerating status offenders, it did not require states to appropriate funds or develop community-based programs to meet girls' needs. Even as policy- and lawmakers struggled to find other options, analysts warned that states could relabel them as delinquents—charge them with simple assault rather than incorrigibility—and thereby circumvent DSO.²⁷ States' failure adequately to fund community services provided continuing impetus to use the delinquency system for social control.²⁸

The punitive policies examined in Chapter 5 targeted boys, especially urban Black males, charged with violent or drug crimes.²⁹ But those punitive changes indirectly affected girls' susceptibility to arrest and prosecution for assault even though they were not the intended targets.³⁰ Girls' increased arrests for assault coincided with DSO, reflecting the juvenile system's increasingly punitive mission and its adaptive strategy to control females.

The Chimera of Girls' Violence

Police arrest and juvenile courts handle fewer females than their proportion of the juvenile population. Table 6.1 shows that in 2011 police arrested about 1.5 million juveniles. Girls comprised less than one-third (29%) of juveniles arrested and less than one-fifth (18%) of those arrested for Violent Crime Index offenses. Violent Crime Index offenses are a small proportion (4.6%) of all juvenile arrests and nearly two-thirds (59%) of them are for aggravated assaults.³¹ Girls made-up one-quarter (25%) of juveniles arrested for aggravated assaults and more than one-third (36%) of those arrested for simple assault. More than four-fifths

TABLE 6.1. Juvenile and Female Arrests for Violence, 2011

Crime	Total Juvenile Arrests for All Offenses	Percentage Female Share of Arrests
<i>Total</i>	1,470,000	29
<i>Violent Crime Index*</i>	68,150	18
<i>Aggravated Assault</i>	40,700	25
<i>Simple Assault</i>	190,900	36

* Violent Crime Index includes murder and non-negligent manslaughter, forcible rape, robbery, and aggravated assault.

Source: Office of Juvenile Justice and Delinquency Prevention, *Juvenile Arrests 2011*, www.ojjdp.gov.

(81%) of girls’ arrests for Violence Crime Index offenses were for aggravated assaults, whereas about half (54.3%) of boys’ arrests were for aggravated assaults and the remainder for murder, rape, and robbery.³²

Juveniles’ arrests for violence may reflect real differences in rates of offending by gender or they may reflect differences in how police and courts respond to boys and girls.³³ Police arrest proportionally fewer girls than boys, but their arrest patterns have diverged over the past decades. In earlier years, male and females’ offending followed similar patterns and small increases in girls’ delinquency occurred primarily for minor property rather than violent crime.³⁴

Recently, arrests of females for violent offenses have either increased more or decreased less than those of their male counterparts. Reflecting the juvenile crime decline (Figure 3.2), between 2001 and 2010 the numbers of juveniles arrested dropped about 21%, primarily because males’ arrests decreased by 24%, while females’ decreased half as much (10%).³⁵ Males’ arrests for Violent Crime Index offenses decreased substantially more than did females’. Aggravated assaults comprise nearly two-thirds (59%) of all juvenile arrests for Violent Crime Index offenses. Boys’ arrests for aggravated assaults decreased by one-third (-33%), while girls’ declined by one-quarter (-27%). By contrast, girls’ arrests for simple assaults decreased only 3%, while boys’ declined 17%.³⁶ Thus, the major change in recorded juvenile violence over the past decade is the greater decrease in boys’ arrest rate for aggravated and simple assaults than girls’.

Figure 6.1 shows changes in arrest rates per hundred thousand male and female juveniles aged ten to seventeen for Violent Crime Index offenses between 1980 and 2011. Overall, police arrested boys at much

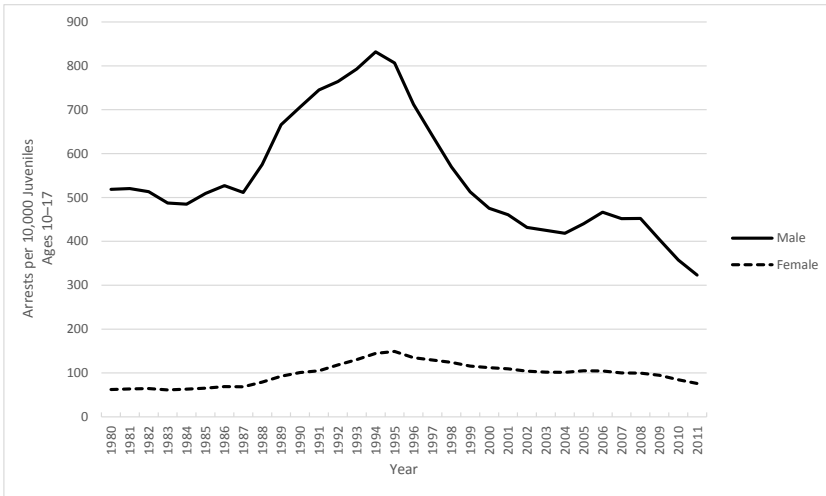


Figure 6.1. Male and Female Juvenile Arrest Rates, 1980–2011, Violent Crime Index Offenses

Source: Office of Juvenile Justice and Delinquency Prevention, *Statistical Briefing Book*, www.ojjdp.gov.

higher rates than they did girls. Arrests rates for both genders peaked in the mid-1990s, and then males' rates dropped off much more sharply than did females'. Boys' arrest rates in 2011 for Violent Crime Index offenses were more than one-third (-37.7%) lower than they were in 1980, whereas girls' arrests for these offenses *increased* 21.8% over the same period. In 1980, males' arrest rates for Violent Crime Index offenses were eight times higher than those of females, whereas by 2011, they were only four times higher. The crime drop of the past two decades primarily reflects a decline in boys' arrests.

Aggravated assaults comprise the largest component of the Violent Crime Index and simple assault constitutes the largest component of non-index violent arrests. Over the past quarter century, clear changes have occurred between boys' and girls' patterns of arrests for these offenses. As Figure 6.2 indicates, boys' and girls' arrests for aggravated assault diverged conspicuously. Girls' arrest rate in 2011 was half again larger (59.3%) than it was in 1980 (62 versus 40.3 arrests per 100,000). Although police arrested males for aggravated assault about three times as often as they did females, boys' arrest rate actually decreased 21.9% over the same period (176.5 versus 215.2 arrests per 100,000).

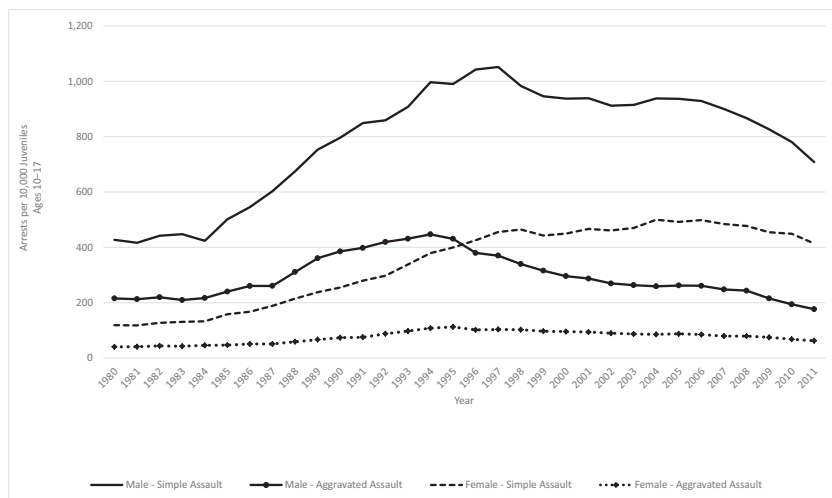


Figure 6.2. Male and Female Juvenile Arrest Rates, 1980–2011, Simple and Aggravated Assaults

Source: Office of Juvenile Justice and Delinquency Prevention, *Statistical Briefing Book*, www.ojjdp.gov.

Police arrest juveniles for simple assaults much more frequently than for aggravated assaults. Again, changes in females' arrests rates for simple assaults over the past third of a century greatly outstripped those of their male counterparts. Police arrested girls for simple assault in 2011 at a rate 3.5 times greater than they did in 1980 (413.5 versus 118.3 arrests per 100,000). Although males' simple assault arrest rate started from a much higher baseline than females', it increased by only 66% over the same period (708.3 versus 427.2 arrests per 100,000).

To gauge the relative seriousness of juveniles' arrests for violence by gender, Figure 6.3 depicts the ratios of arrest rates for simple and aggravated assaults for boys and girls. In 1980, police arrested girls for simple assaults about three times (2.9) as often as they did for aggravated assaults. Although boys started from a much higher base rate, police arrested them for simple assaults about twice (2.0) as often as for aggravated assaults. Boys' assaults are more frequently aggravated because they use weapons and physically injure their victims more often than do girls. By 2011, police arrested girls nearly seven times (6.7) as often for simple assaults as they did for aggravated assaults. By contrast, the boys' arrest ratio of simple to aggravated assaults only doubled

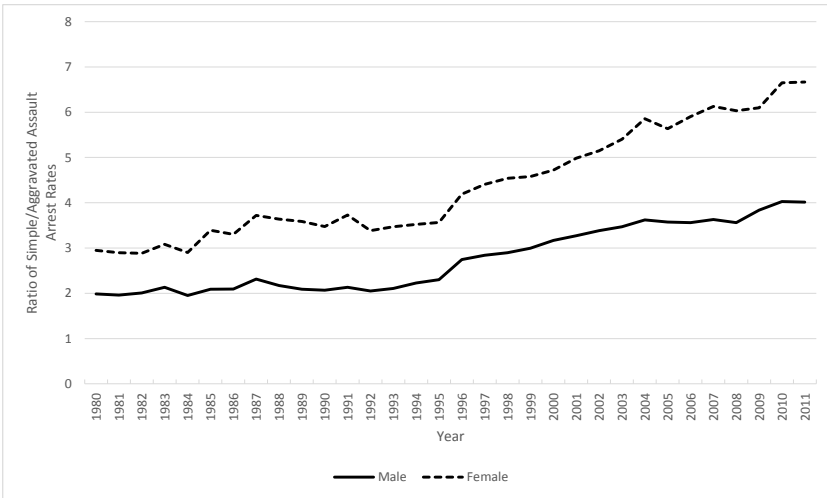


Figure 6.3. Ratios of Simple to Aggravated Assault Arrests for Male and Female Juveniles Ages 10–17, 1980–2011

Source: Office of Juvenile Justice and Delinquency Prevention, *Statistical Briefing Book*, www.ojjdp.gov.

(4.o). In short, police arrested girls for simple assault more than they had previously and their ratio increased more than boys. By all official measures—arrests, arrest rates, and simple/aggravated assault ratios—girls’ increased arrest rates for simple assaults and boys’ decreased arrest rates for aggravated assaults constitute the most conspicuous gendered changes in youth violence.

Despite these gendered changes, one must ask whether girls’ arrests reflect real changes in their underlying behavior or police reclassification of assault with a gendered dimension.³⁷ Unlike murder and robbery, which have relatively well defined elements and clearer indicators, police exercise considerable discretion when they characterize behavior as an assault, whether they classify it as a simple or aggravated assault, and the meanings of these offenses have changed over time.³⁸ Because elements of assault are not objective constants, their subjective definition may change from one observer to another.³⁹ Proactive policing of disorder and minor crimes, a lower threshold to arrest or charge those offenses, or more aggressive policing in private settings may create the appearance of a juvenile crime wave where none exists. Police exercise

considerable discretion to classify low-level offenses, and policy changes rather than actual behavior may account for girls' increased arrests for minor assaults. Zimring argues that "since 1980, there is significant circumstantial evidence from many sources that changing police thresholds for when assault should be recorded and when the report should be for aggravated assault are the reason for most of the growth in arrest rates. . . . Any reduction in the threshold between simple and aggravated assault and any shift in the minimum standard for recording an offense would have the kind of statistical impact on assault arrests that has occurred since the late 1980s."⁴⁰

Analysts compare ratios of aggravated assaults to homicide or robbery to demonstrate the malleability of classifications of assaults.⁴¹ Because arrests for aggravated assaults increased *without* any corresponding rise in arrests for homicides or for robbery—both of which may include an assault—they attribute the rise in assault arrests to changes in law enforcement policies—lower thresholds of seriousness or responses to domestic violence—rather than to real increases in assaults *per se*. Similarly, Steffensmeier compared official FBI arrest statistics with crime victimization surveys and juveniles' self-report surveys to assess whether those indicators mirrored increases in official girls' violence over the same period.⁴² These measures revealed no systematic changes in girls' rates of offending compared with boys, despite officially reported increases in girls' arrests for violence. They conclude that

[r]ecent changes in law enforcement practices and the juvenile justice system have apparently escalated the arrest proneness of adolescent females. The rise in girls' arrests for violent crime and the narrowing of the gender gap have less to do with underlying behavior and more to do, first, with net-widening changes in law and policing toward prosecuting less serious forms of violence, especially those occurring in private settings and where there is less culpability, and, second, with less biased or more efficient responses to girls' physical or verbal aggression on the part of law enforcement, parents, teachers, and social workers.⁴³

The line between status offenses and delinquency is as imprecise and malleable as the definition of assaults. Ambiguous differences between incorrigible or unruly behavior—status offenses—and disorderly con-

duct or simple assault readily lend themselves to relabeling girls' behavior. Steffensmeier argues that "female arrest gains for violence are largely a by-product of net-widening enforcement policies, like broader definitions of youth violence and greater surveillance of girls that have escalated the arrest-proneness of adolescent girls today relative to girls in prior decades and relative to boys."⁴⁴ The more than doubling (2.3) in the ratio of simple to aggravated assaults for girls over the past several decades indicates that police arrest girls for less serious violence.

Police's zero tolerance and mandatory arrest policies for domestic violence cumulatively lower the threshold for assault and lead to girls' arrests for behaviors previously addressed outside the purview of police or courts.⁴⁵ Such policies create an appearance of a girls' violent crime wave when their underlying behavior remains much more stable. Indeed, such policies "tend to blur distinctions between delinquency and antisocial behavior more generally, lump together differing forms of physical aggression and verbal intimidation as manifesting interpersonal violence, and elevate interpersonal violence (defined broadly) as a high-profile social problem (particularly among youth)."⁴⁶

Girls' Violence and Domestic Disputes

Prior to the 1980s, police viewed domestic violence as a private matter. When police responded to a domestic disturbance, they most often either counseled the offender on the spot or removed him for a cooling-off period, but rarely made arrests. That began to change in the early 1980s as spousal assault gained national attention and women's groups advocated that police take them more seriously. In 1981–82, the Minneapolis Domestic Violence Experiment randomly instructed police to either counsel domestic disputants on the spot, to separate the disputants, or to make an arrest. Researchers reported that arrest had a significant deterrent effect: arrestees had significantly fewer subsequent domestic violence calls than those in the other two conditions.⁴⁷ The study had an extraordinary impact and by the late 1980s and 1990s, police departments across the country instituted mandatory arrest policies for domestic violence.

Changing public attitudes and police practices toward domestic assaults contributed to arrests for assaults that officers previously ignored.⁴⁸

The apparent efficacy of mandatory arrests for domestic violence may have reduced tolerance for girls' delinquency.⁴⁹ "[A]n increased reliance on formal social control practices and a decreased tolerance of female delinquency by law enforcement are possible mechanisms influencing increases in arrests of girls for simple assaults, particularly because the majority of these incidents involve family conflicts."⁵⁰ Prohibitions on confining status offenders coupled with heightened sensitivity to domestic violence encourage police to arrest girls for assault rather than for incorrigibility and enable courts to circumvent DSO goals.⁵¹

Parents' differing expectations for their sons' and daughters' behavior may affect how the justice system responds to girls when they act out at home. Girls who deviate from traditional gender norms may be at greater risk of arrest for domestic violence than their brothers. "Girls who demonstrate aggression or violence, acts atypical to the female sex-type heuristics, are more likely to be judged as atypical for their sex role and therefore more in need of control than boys who show the same traits or commit the same acts."⁵²

Girls fight with family members or siblings more frequently than do boys, while males more often fight with acquaintances or strangers.⁵³ Girls are three times as likely to assault a family member as are boys.⁵⁴ Police arrested larger proportions of girls than boys for assaulting a parent which, in the past, could have been charged as incorrigible behavior.⁵⁵ A study in California found that the female share of domestic violence arrests increased from 6% in 1988 to 17% in 1998.⁵⁶ Analysts attributed growth in girls' assault arrests "to the re-labeling of girls' family conflicts as violent offenses, the changes in police practices regarding domestic violence and aggressive behavior, [and] the gender bias in the processing of misdemeanor cases."⁵⁷

Policies of mandatory arrest for domestic violence, initially adopted to restrain abusive males from attacking their partners, provide police and parents with a tool with which to control unruly daughters. A comparison of states with mandatory and discretionary domestic violence arrest laws reported higher arrest rates in mandatory than discretionary jurisdictions *and* a greater likelihood of police to arrest girls than boys for assaulting their parents.⁵⁸ Many girls charged with assault were involved a nonserious altercation with a parent who oftentimes was the initial aggressor.⁵⁹ Regardless of who instigates a domestic scuffle, it is

easier and more practical for police to arrest a youth than a parent who takes care of other children in the home.⁶⁰ As one probation officer observed, “if you arrest the parents, then you have to shelter the kids. . . . So if the police just make the kids go away and the number of kids being referred to the juvenile court for assaulting their parents or for disorderly conduct or punching walls or doors . . . the numbers have just been increasingly tremendously because of that political change.”⁶¹ Analyses of girls’ court referrals for assault report that half occurred within the family and involved conduct that previously could have been characterized as incorrigibility.⁶² Probation officers describe most girls’ assault cases as a fight with a parent at home or between girls at school over a boy.⁶³

While girls’ violence typically occurs at home or at school, boys more often commit violent acts against acquaintances or strangers. Two indicators of gender differences in offender-victim relationships support the inference that girls’ violence more often involves domestic conflicts. Obviously, homicide is not a relabeled status offense, but the offender-victim relationship provides one indicator of gender differences in violent offending. An analysis of victim-offender relationships between 2001 and 2010 reported that in more than one-third (37%) of cases, girls killed a family member, as contrasted with only 8% of boys’ homicides.⁶⁴ By contrast, boys murdered strangers more than twice as often as did girls (41% vs. 19%).

The offender-victim relationship of youths arrested for aggravated and simple assaults provides additional evidence of gender differences. The National Incident-Based Reporting System (NIBRS) includes information about offenders, victims, and their relationship.⁶⁵ More than one-quarter of girls (28%), as contrasted with less than one-fifth (18%) of boys, committed aggravated assaults against family members.⁶⁶ Similarly, police arrested girls for simple assaults within the family more frequently than boys. Girls’ increased arrests for simple assault reflect their greater likelihood to victimize family members, decreased tolerance of domestic violence, and police’s ability to classify incorrigibility as assault.⁶⁷

Juvenile courts relabeled status offenders as delinquents to retain access to institutions. A comparison of petitions filed against girls before and after Pennsylvania eliminated its status jurisdiction in the mid-1970s

reported that the proportion of girls charged with assaults more than doubled (from 14% to 29%).⁶⁸ A nationwide study of children in custody reported that the share of girls in training schools for status offenses declined from 71% in 1971 to 11% in 1987 in response to the DSO mandate, whereas the proportion of girls confined for minor delinquencies increased commensurately.⁶⁹ Moreover, states confined girls for less serious offenses than they do boys. In 1987, juvenile courts confined over half (56%) of girls for misdemeanors, compared with only 43% of boys.⁷⁰ “[T]he perceived increase in the delinquency of girls may actually reflect a relabeling of status offenses. With limited or nonexistent alternatives for girls who cannot or will not go back home, the juvenile court may be pressured to process girls as delinquents.”⁷¹

Boys and Girls in Confinement

While juvenile court judges possess broad discretion to sentence delinquents, most research has focused on racial rather than gender disparities.⁷² In the gender sentencing research that has been conducted, there have been two main strands of analysis—one that identifies chivalrous responses to girls charged with serious crimes, and another that finds paternalistic policies for those charged with less serious offenses. The former postulates that girls may receive more lenient treatment than similarly charged delinquent boys.⁷³ The latter contends that juvenile courts intervene more extensively with sexually active females and status offenders than they do with boys charged with minor offenses.⁷⁴ Earlier research consistently reported a gender double standard in which juvenile courts incarcerated more girls than boys for status offenses and more males than females for serious delinquency.⁷⁵ More recent research reports fewer gender differences in sentencing status offenders once analysts control for offense and prior record.⁷⁶ But others contend that the offenses for which researchers control—status offenses—already reflects gender bias.⁷⁷ For example, juvenile court judges used their contempt power covertly to perpetuate gender bias. They sentenced male and female status offenders who violated a valid court order differently and bootstrapped more girls into delinquents.⁷⁸ A summary of the inconsistent research findings on sentencing girls concludes that

[t]he traditional sex role model has more application to less serious types of violations, such as status offenses, for which females are given a more severe penalty than males for violating role expectation. It also has application for the sentencing of repeat offenders. Such behavior by girls is more strongly in violation of gender role expectations than it is for boys and should result in more punitive disposition for the girls. For the more serious violations of the law, the chivalry model may have the most relevance. Girls are more likely to receive leniency and protection from the consequences of the more serious crimes.⁷⁹

The offenses for which judges commit boys and girls to residential facilities provide insight into gender differences. Police arrest and juvenile courts detain and place boys in institutions at higher rates and for more serious offenses than they do girls. Juvenile courts process girls for aggravated and simple assaults at higher rates than they do for other types of offenses.⁸⁰

The Census of Juveniles in Residential Placement (CJRP) provides a one-day count of youths in confinement. Table 6.2 reports CJRP data on juveniles in residential confinement in 1997, 1999, 2001, 2003, 2006, 2007, 2010, and 2011. Over the past decade and a half, girls comprised 12.4% of all delinquents in confinement and 10.7% of delinquents confined for crimes against the person. Nearly three-quarters ($\approx 72.5\%$) of girls incarcerated for crimes against the person are confined for simple or aggravated assault. Across the census years, girls comprised about one-sixth (17.4%) of all delinquents confined for aggravated assault and nearly one-fourth (22.3%) of those confined for simple assault, the largest proportion for *any* offense.

States confine male and female delinquents for different types of offenses. In 2011, girls comprised about one in eight (12.5%) delinquents in confinement. States committed 17.1% of delinquents to residential placements for simple or aggravated assaults. However, they committed nearly one-quarter (23.7%) of delinquent girls for simple or aggravated assaults contrasted with about one-sixth (16.2%) of boys.

Reflecting changes in girls' arrests for assault, in each succeeding biennial census, the proportion of girls confined for aggravated and simple assaults increased. Even though males comprise 93% of all delinquents confined for Violent Crime Index offenses, the proportion of girls con-

TABLE 6.2. Juveniles Committed by Gender for Simple and Aggravated Assaults, 1997–2011

	1997	1999	2001	2003	2006	2007	2010	2011
<i>Total Delinquents Confined</i>	75,406	77,835	76,190	68,982	64,532	60,412	48,428	41,934
<i>Female Proportion of All Delinquents Confined</i>	11.9%	11.7%	12.9%	13.4%	12.2%	12.2%	12.3%	12.5%
<i>Number of Girls Confined for All Person Offenses</i>	2,413	2,835	3,050	2,972	2,615	2,398	1,894	1,654
<i>Percentage of Delinquents Confined for All Person Offenses Who Are Female</i>	9.1%	9.9%	11.5%	12%	11.4%	10.8%	10.4%	10.3%
<i>Number of Females Confined for Simple and Aggravated Assault</i>	1,650	2,040	2,189	2,125	1,988	1,816	1,345	1,226
<i>Percentage of Delinquents Confined for Aggravated Assault Who Are Girls</i>	14.1%	16%	18.1%	19.4%	19.4%	18.2%	17.2%	17.0%
<i>Percentage of Delinquents Confined for Simple Assault Who Are Girls</i>	20.1%	21.3%	22.9%	23.7%	24.4%	22.5%	22.6%	21%
<i>Percentage of Girls Confined for Simple and Aggravated Assaults as a Proportion of All Delinquent Girls</i>	18.4%	22.4%	22.3%	23%	20.9%	24.7%	22.8%	23.7%
<i>Percentage of Boys Confined for Simple and Aggravated Assaults as a Proportion of All Delinquent Boys</i>	15.1%	15.6%	14.9%	14.8%	14.8%	15.4%	15.2%	16.2%
<i>Aggravated Assaults as a Proportion of All Girls' Assaults</i>	42.5%	46.3%	49.1%	34.4%	36.2%	40.1%	36.5%	37.2%
<i>Aggravated Assaults as a Proportion of All Boys' Assaults</i>	62.5%	62.1%	54.6%	49.1%	52.3%	54.3%	54.9%	51.5%

Source: Office of Juvenile Justice and Delinquency Prevention, *Easy Access to the Census of Juveniles in Residential Placement: 1997–2011*, www.ojjdp.gov.

financed for aggravated assaults, as a percentage of all delinquents confined for aggravated assaults, increased from 10% in 1997 to 14.4% in 2003 and to 12.9% in 2011.⁸¹ Across all eight biennial censuses, states confined a majority of boys for aggravated assaults ($\approx 55.2\%$), rather than simple assaults. By contrast, they confined the majority of girls for simple assaults, rather than aggravated assaults ($\approx 40.3\%$). Although violent girls may violate gender norms, their confinement primarily for simple assault further suggests a relabeling of status offenses.⁸²

Conclusion

Juvenile courts evolve and adapt to change and their durability owes as much to organizational flexibility as it does to achieving rehabilitative goals.⁸³ The mutability of juvenile courts' mission—diversion, treatment, punishment—allowed personnel to maintain population stability in the face of the delinquent male crime-drop with an increase in female cases.⁸⁴ DSO coincided with the culture of control—emphases on proactive policing and aggressive responses to minor disorder.⁸⁵

Girls are the historic and contemporary exception to juvenile courts' diversionary mission. Although Progressive reformers created juvenile courts to divert young offenders from criminal courts, they added status offenses to their delinquency jurisdiction to enable them to regulate girls' "sexual precocity." Victorian concerns about sexually active young women and class-based concerns about poor women's out-of-wedlock pregnancies impelled them to regulate girls differently than boys. While the 1974 JJDPa's DSO mandate attempted to remove status offenders from institutions, juvenile court judges were unsympathetic to its diversionary thrust and quickly obtained authority to maintain control and bootstrap them into delinquents.

Paternalistic attitudes toward girls, resistance to deinstitutionalization, and broad discretion enabled police and prosecutors to charge many status offenders as minor delinquents and bring them to court at rates nearly as great as prevailed prior to deinstitutionalization.⁸⁶ Courtroom observers reported that after states decriminalized status offenses, prosecutors charged many girls with criminal offenses for behavior previously charged as status offenses.⁸⁷ Washington State temporarily decriminalized status offenses and some police and courts redefined them as criminal offenders to retain court authority over them.⁸⁸ The gendered differences in system response to simple and aggravated assaults strongly suggests that perceived girl violence reflects a criminalizing of family conflict rather than a change in girls' behavior.⁸⁹

After four decades of deinstitutionalizing status offenders, juvenile courts remain committed to controlling girls but without resources to respond to their real needs. When Congress passed the JJDPa in 1974, neither the federal nor state governments provided girls with adequate

programs or services in the community. Although 1992 JJDPa amendments included provision for gender-specific services, implementing that mandate languished. States' failure to provide alternatives to institutions creates substantial pressures within the juvenile system to circumvent DSO by relabeling girls as delinquents.

The Student Is a Criminal

Get Tough Policies and the School-to-Prison Pipeline

From their inception, public schools have served important social control functions.¹ Their responsibilities included protecting students from corrupting influences, keeping them off the streets, preventing crime, and educating and preparing them to be workers. Prior to the Civil War, advocates of compulsory education described “the ideal school as a controlled environment for the Child. The school, ideally was not merely to be a casual, unstructured institution which the child encountered from time to time; it was to be as coextensive with childhood as conditions would permit. . . . [T]he proper ‘culture’ of childhood demanded a segregation of children from adults in asylum-like institutions called schools.”² Progressives enacted compulsory attendance laws to assimilate and acculturate immigrant children and gave juvenile courts truancy jurisdiction over those who failed to attend.

The Court in *Brown v. Board of Education* began the struggle to dismantle segregated public schools. *Brown* recognized that education “is a principal instrument in awakening the child to cultural values, in preparing him for later professional training, and in helping him to adjust normally to his environment.”³ Recall from Chapter 3, as more racial minority students entered urban public schools in the decades after *Brown*, many white parents moved to racially homogenous suburbs or enrolled their children in private schools.⁴ In many urban school districts, de facto segregation has replaced de jure segregation.⁵ Indirectly, *Brown* shaped juvenile justice policies as well as education. It contributed to two education systems—one white and suburban, the other for children of color and urban—and the latter would become a pipeline to juvenile courts.

Over the past quarter century, the politics of race contributed to punitive juvenile justice policies and similar processes impelled schools to

replicate their get tough policies. Responding to the moral panic of the 1990s, states and school districts espoused punitive practices, adopted zero-tolerance policies, expanded police presence, and employed surveillance technologies. Schools' control strategies treat all students like potential criminals, disproportionately affect urban children of color, and fuel the school-to-prison pipeline.⁶

Compulsory attendance laws congregate young people in schools. Because crime rates rise sharply during adolescence, schools confront unique problems. They must provide a safe learning environment and forestall guns, drugs, and violence on campus. Efforts by schools to maintain order may compromise their educational mission just as crime control trumps social welfare in juvenile justice. Schools impose extensive regulations and physically monitor students. Officials search students, their possessions, desks and lockers, and cars under a lower Fourth Amendment search standard—reasonable suspicion rather than probable cause—than that required to search adults. School resource officers, police liaisons, and canine partners sometimes initiate or accompany school personnel who conduct searches. Metal detectors and cameras increase the scrutiny to which schools subject students.⁷

Since the 1990s, schools increasingly have relied on exclusionary sanctions—expulsions, out-of-school suspensions, and juvenile court referrals.⁸ While early-twentieth-century schools prepared workers to enter factories, Paul Hirschfield argues that contemporary discipline and security regimes “can be traced largely to deindustrialization, which shifted impacted [urban] schools and their disciplinary practices from productive ends toward a warehousing function . . . and these changes helped reorient school actors more toward the prevention and punishment of crime, and less toward the preparation of workers and citizens.”⁹

The combination of lower Fourth Amendment search standards, ubiquitous police presence, heightened surveillance, zero-tolerance policies toward criminal and school misconduct, and financial incentives to exclude underperforming students have fueled a school-to-prison pipeline. The chapter's first section reviews the law governing school searches. The Court in *T.L.O. vs. New Jersey* allowed school officials to search students under a lower standard than that required to search adults. As a result, evidence that would be inadmissible in a criminal proceeding can be used to convict delinquents. The next section ex-

amines the presence of police in schools—school resource officers (SROs). They search students under the lower Fourth Amendment standard even when engaged in law enforcement activities. Schools’ use of technology—metal detectors, cameras, and drug canines—and heightened police presence increases the likelihood of detecting wrongdoing. The third section considers schools’ zero tolerance for student deviance and exclusionary responses. In the wake of school shootings in the 1990s, Congress passed the Gun-Free Schools Act of 1994 and school officials adopted zero-tolerance policies toward criminal and school misconduct. The fourth section weighs the impact of high-stakes testing on schools’ financial incentives to rid themselves of underperforming students. The confluence of these laws and policies disproportionately affects Black male students.

Searching Students: *T.L.O. v. New Jersey*’s Watered-Down Fourth Amendment

A teacher discovered T.L.O.—a fourteen-year-old high school freshman—smoking in a bathroom in violation of a school rule that prohibited smoking except in designated student smoking areas.¹⁰ Vice Principal Choplick confronted T.L.O., who denied smoking. When he opened her purse to find cigarettes, he saw rolling papers, which he associated with marijuana use. Based on that suspicion, he searched her purse and found some marijuana, a pipe, and other evidence which he gave to the police. In addition to school sanctions, the state convicted her of delinquency based on evidence seized from her purse. After the New Jersey Supreme Court reversed her conviction, the Supreme Court considered the Fourth Amendment’s applicability to student searches.

T.L.O. first ruled that public school officials are state actors bound by the Fourth Amendment.¹¹ The Court then defined the scope of reasonable searches conducted by school officials by balancing the degree of intrusion on a student’s legitimate expectation of privacy against the school’s need to intervene. “The determination of the standard of reasonableness governing any specific class of searches requires ‘balancing the need to search against the invasion which the search entails.’ On one side of the balance are arrayed the individual’s legitimate expectations of

privacy and personal security; on the other, the government's need for effective methods to deal with breaches of public order."¹²

The Court rejected the state's argument that students had no reasonable expectation of privacy in personal items because schools pervasively regulate them. It rebuffed the state's analogy between schools and prisons and officials' claim that their need to maintain order vitiated students' expectations of privacy.¹³ It observed that students legitimately bring wallets, purses, backpacks, and other items to school and concluded that they have not "waived all rights to privacy in such items merely by bringing them onto school grounds."¹⁴

Both the majority and dissenting Justices in *T.L.O.* agreed that exigent circumstances—the need for flexible and immediate action—obviated the requirement that schools obtain a warrant before conducting a search. But when the Court balanced *T.L.O.*'s privacy interests in her purse against school officials' need to maintain order, it found that schools had "special needs" beyond those associated with law enforcement.¹⁵

While both opinions agreed that a warrant was not required, the majority and dissent disagreed about the level of suspicion needed to justify a search. Although warrantless searches ordinarily require probable cause, the majority opted for the lower reasonable suspicion search standard without explaining why it did so.¹⁶ "Determining the reasonableness of any search involves a twofold inquiry: first, one must consider 'whether the . . . action was *justified at its inception*'; second, one must determine whether the search as actually conducted 'was *reasonably related in scope* to the circumstances which justified the interference in the first place.'"¹⁷ A search would be justified at its inception if officials had reasonable suspicion to believe it would yield evidence of a crime or school rule violation. It would be reasonable in scope if officials confined their search to those items and did not use excessively intrusive methods "in light of the *age and sex* of the student and the *nature of the infraction*."¹⁸ The Court did not explain the practical meaning of those limitations—age, sex, or nature of the infraction—when it upheld a male principal's search of a young female student's purse for cigarettes. Instead, *T.L.O.* adopted a vague reasonable suspicion standard that denied students the Fourth Amendment protections adults enjoyed and deferred to school officials to administer it.¹⁹

The *T.L.O.* dissent questioned why the majority approved a reasonable suspicion standard to conduct searches “whose only definite content is that it is *not* the same test as the ‘probable cause’ standard found in the text of the Fourth Amendment.”²⁰ They argued that reasonableness provided no guidance to school officials or courts, allowed officials to conduct intrusive searches to enforce trivial rules, and effectively immunized officials from constitutional limits.²¹ For them, opening *T.L.O.*’s purse constituted a search that required probable cause.²² The Court in *Illinois v. Gates* had previously adopted a probable cause standard that it characterized as “practical,” “fluid,” “flexible,” “easily applied,” “non-technical” and “commonsense.”²³ The dissent questioned why school officials could not apply it.²⁴

For decades, the Court has struggled to define probable cause and reasonable suspicion.²⁵ It first distinguished between the two standards in *Terry v. Ohio* which allowed police to stop-and-frisk suspects based on reasonable suspicion because those actions were less intrusive than an arrest and search.²⁶ The differing standards reflect the quantity and quality of information police must possess. Probable cause demands a “fair probability that contraband or evidence of a crime will be found in a particular place.”²⁷ Reasonable suspicion requires “indicia of reliability” that an informant’s tip justifies credence.²⁸ The verbal formulae do not lend themselves to easy quantification, clear distinction, or readily administered criteria. *Gates* observed that trying to quantify probable cause or reasonable suspicion is an exercise in futility. “[P]robable cause is a fluid concept—turning on the assessment of probabilities in particular factual contexts—not readily, or even usefully, reduced to a neat set of legal rules.”²⁹

The Court’s definition of reasonable suspicion is equally unilluminating and requires “some objective manifestation that the [individual] is, or is about to be, engaged in criminal activity.”³⁰ As with probable cause, reasonable suspicion is fact-specific and flexible. It is a “common-sense, nontechnical conception[] that deal[s] with the ‘factual and practical considerations of everyday life on which reasonable and prudent men, not legal technicians, act.’”³¹ *United States v. Sokolow* described reasonable suspicion as “something more than an inchoate and unparticularized suspicion or hunch. . . . [P]robable cause means a fair probability that contraband or evidence of a crime will be found, and [reasonable

suspicion] is obviously less demanding than that for probable cause.”³² *Safford Unified School District #1 v. Redding* distinguished the two standards with the cryptic observation that “[p]erhaps the best that can be said generally about the required knowledge component of probable cause for a law enforcement officer’s evidence search is that it raises a ‘fair probability,’ or a ‘substantial chance,’ of discovering evidence of criminal activity. The lesser standard for school searches could be as readily described as a moderate chance of finding evidence of wrongdoing.”³³ The amount and reliability of information needed for reasonable suspicion is less than that to establish probable cause by some unquantifiable degree.

My criticism of *T.L.O.* is not that probable cause provides a more precise standard to search than reasonable suspicion. Rather, it is that the Court adopted a lower search standard when none was required and without giving any reasons for doing so. As a result, school officials search students and states introduce evidence against them that would be inadmissible if seized from an adult based on similar quantity and quality of information.

A quarter century after *T.L.O.*, the Court in *Safford Unified School District #1 v. Redding* found school officials violated the Fourth Amendment when they strip-searched a thirteen-year-old girl to find prescription-strength ibuprofen.³⁴ *Redding* characterized a strip search as a uniquely intrusive search that required individualized suspicion.³⁵ Despite the school’s zero-tolerance policy for drugs, *Redding* found the search unreasonable without specific reasons to believe she had hidden drugs in her underwear.

Redding brought a § 1983 civil rights action against school officials. Although the Court found the strip search violated her Fourth Amendment rights, it denied her any relief for the constitutional violation. The Court’s qualified immunity doctrine protects public officials acting in good faith from liability unless they violate “clearly established statutory or constitutional rights of which a reasonable person would have known.”³⁶ The Court has balanced the need for a damages remedy for constitutional violations against “the need to protect officials who are required to exercise their discretion and the related public interest in encouraging the vigorous exercise of official authority.”³⁷ A clearly established constitutional right is one whose contours “must be sufficiently

clear that a reasonable official would understand that what he is doing violates that right.”³⁸ Even if a teacher or principal violated a student’s constitutional rights, the employer–school district would not be liable for damages caused by their employees unless they acted pursuant to an official policy or custom to violate students’ rights.³⁹ *Redding* announced a constitutional right of imprecise contours and without any remedy for its violation.⁴⁰

School Resource Officers

The Court in *T.L.O.* did not address whether a search conducted by police rather than the vice principal would require probable cause.⁴¹ In the decades since *T.L.O.*, school resource officers (SROs) have become a ubiquitous presence. They investigate and interrogate youths, and arrest, search, and refer law violators to juvenile courts. In the 1980s, police departments began to assign officers to schools to combat drugs and in the 1990s to enhance security after several school shootings.⁴² The Gun-Free Schools Act of 1994 allocated funds to public schools to develop violence-prevention programs with local police and 1998 amendments to the Omnibus Crime Control and Safe Street Act of 1968 encouraged schools to use SROs.⁴³ Between 1999 and 2005, the Department of Justice’s Community Oriented Policing Services (COPS) awarded more than \$750 million to more than three thousand agencies to fund SRO programs.⁴⁴ Although approximately seventeen thousand SROs serve in schools nationwide, analysts have not conducted rigorous evaluations of their actual as opposed to symbolic impact on school safety.⁴⁵ Funding from COPS and other federal programs also enabled schools to invest heavily in security hardware—metal detectors, surveillance cameras, and other technologies.⁴⁶

Over the past quarter century, local police agencies have assigned SROs—armed and uniformed officers—to schools to perform traditional law enforcement duties—patrolling campus, investigating crimes, and dealing with students who violate school rules or the law.⁴⁷ Expanded use of metal detectors and canine partners to detect weapons and drugs accompanied heightened police presence and fostered a prison-like environment.⁴⁸ “Many schools became more prisonlike: locked doors, closed campuses, metal detectors, classroom lock-downs

and simultaneous locker searches, heavily armed tactical police patrols, dogs, camera surveillance, uniforms, expansive disciplinary codes, interrogations, and informers—these are some elements that contributed to the criminalization of school life.”⁴⁹ In addition to police functions, SROs collaborate with schools to increase student trust, prevent crime, and provide training and education in conflict resolution, drug abuse prevention (DARE), and the like. Comparisons of schools with and without SROs do not report that they increase positive perceptions or reduce offending, but SROs increase the numbers of students arrested and referred to juvenile courts.⁵⁰

Heightened police presence increases opportunities for Fourth Amendment issues to arise, redefines problem behavior as criminal, and leads to escalation of punishments.⁵¹ Teachers increasingly have withdrawn from enforcing school norms or law violations in favor of security personnel.⁵² By virtue of their presence, police observe and school personnel report incidents that previously would not have come to the attention of law enforcement. They introduce a law-and-order mindset that leads to arrests and referrals for behaviors that previously would not have warranted police action.⁵³ Analysts warn that “law enforcement presence in public schools, particularly when combined with zero tolerance policies, creates an acute risk of utilizing the criminal justice system to handle incidents and behaviors that had been previously dealt with through school disciplinary processes.”⁵⁴ The ubiquitous presence of security personnel significantly increases court referrals for minor offenses—simple assault or disorderly conduct—that schools previously handled internally.⁵⁵

With police as regular fixtures in public schools, courts have grappled with whether to apply *T.L.O.*’s reasonable suspicion or *Gates*’s probable cause standard when they search students. In *People v. Dilworth*, the local police department assigned an SRO to prevent and detect criminal activity, arrest offenders, and transport them to the police station. The Illinois Supreme Court characterized the officer’s search as an effort to maintain a proper educational environment and held that “reasonable suspicion, not probable cause, is the proper fourth amendment standard.”⁵⁶ Even though the SRO performed regular police functions, the court focused on where the search occurred rather than on who conducted it. The *Dilworth* dissent emphasized his law enforcement role,

described the SRO as a “police officer . . . permanently assigned to the school,” and reasoned that probable cause standard should govern.⁵⁷ Most courts apply *T.L.O.*’s relaxed standard when police search and justify the lower standard to help maintain school safety.⁵⁸ Critics contend that SROs should be held to a probable cause standard because equating them with school officials conflates their substantially different roles, disregards their expanded presence, and ignores their increased referrals to juvenile courts.⁵⁹

Schools on “Lock-Down”: Metal Detectors and Canine Partners

Threats of violence and weapons are unfortunate facts of life in many schools, especially in segregated urban areas. Schools have become high-security environments with police, metal detectors, and surveillance cameras.⁶⁰ A survey of school security practices reported that drug-sniffing dogs conducted random searches in more than 60% of high schools and officials relied on surveillance cameras in 84% of high schools.⁶¹ Another reported that 92% lock their doors during school hours and two-thirds use security cameras.⁶² Although metal detectors are common in airports and public buildings, people can choose whether or not to enter those spaces. Compulsory attendance laws require students to attend school and to submit to technological surveillance.⁶³

Many schools—especially those serving urban students of color—install metal detectors to limit weapons, a practice that implies that all students are potential criminals.⁶⁴ Courts do not require individualized suspicion to use metal detectors, which they view as minimally intrusive.⁶⁵ They routinely approve handheld metal detectors to randomly check students.⁶⁶ Schools serving low-income students are more likely to rely on metal detectors and hands-on policing than more affluent schools, which use surveillance cameras.⁶⁷ Buildings with armed guards, locked doors, metal detectors, and security cameras create an environment that feels more like a prison than a school.⁶⁸ Urban minority students socialized in a setting of electronic oversight and police presence may become alienated and mistrustful of school and the police and habituated to government surveillance.⁶⁹

When police use canines to sniff students, lockers, or cars, a dog’s alert may provide reasonable suspicion to search or it may itself constitute a

search that requires preexisting individualized suspicion. *Illinois v. Caballes* held that a dog's sniff of a car for contraband during a routine traffic stop was not a search that intruded on any reasonable expectation of privacy.⁷⁰ Because a sniff is not a search, police do not need specific suspicion before they deploy canines.⁷¹ Justice Souter's *Caballes* dissent objected that ruling that a sniff is not a search placed canines outside of Fourth Amendment regulation.⁷² Justice Ginsburg's dissent argued that dogs qualitatively changed a police-citizen encounter and required reasonable suspicion.⁷³ She warned that the ruling "clears the way for suspicionless, dog-accompanied drug sweeps of parked cars along sidewalks and in parking lots."⁷⁴

School officials regularly enlist police and their canine partners to sniff students, lockers, and cars in school lots without any suspicion.⁷⁵ A dog's alert then provides reasonable suspicion to search under *T.L.O.*'s lower reasonableness standard.⁷⁶ Courts conclude that schools' responsibility to protect students prevails whether a search for drugs and other illegal activities occurs inside the school or in its parking lot.⁷⁷

Although courts routinely uphold sniffs of students' cars and lockers, they divide over whether officials must have reasonable suspicion for handlers to direct dogs at students themselves.⁷⁸ Sniffing a person is qualitatively different from smelling a locker, luggage, or a car and the Supreme Court has not decided whether an olfactory intrusion requires either reasonable suspicion or probable cause.⁷⁹ Some courts characterize canines in classrooms as a minimal intrusion—a brief interruption applied evenhandedly to all students.⁸⁰ Other courts conclude that smelling a person is more intrusive and offensive than sniffing objects and required officials to have reasonable suspicion or probable cause to deploy dogs against students.⁸¹

Zero Tolerance

The increased presence of police and surveillance technologies coincided with schools' adoption of zero-tolerance policies toward law violations, rule infractions, and misbehavior. Zero-tolerance policies reflect a "broken windows" theory of crime control that posits that failure to punish minor violations leads to more serious crime and disorder.⁸² According to the theory, broken windows left unattended transmit a message

of societal indifference to disorder, contributing to further vandalism, serious crime, and urban deterioration. In schools, broken windows theory promotes zero-tolerance policies “by drawing a clear line, giving no quarter to disruption or disrespect, and setting high expectations . . . [to] instill the obedient and cooperative values of a former era.”⁸³ Zero tolerance mandates specific punishments for violations without regard to the seriousness of misconduct or child’s intent.⁸⁴ Schools’ embrace of uniform procedures, disciplinary guidelines that focus on offenses and reduce officials’ judgment, mirror juvenile courts’ shift from individualized treatment to nondiscretionary offense-based sanctions.⁸⁵ Zero tolerance ignores mitigating factors and replicates crime control policies of deterrence and incapacitation.

Increase in youth violence in the late 1980s and school shootings in the early 1990s prompted passage of the Gun-Free Schools Act of 1994, which required schools to expel students found on school property with firearms.⁸⁶ “Within a year, the federal prohibition was revised to ‘dangerous weapon’ rather than firearm, and the school exclusion stampede was launched. As states added drug possession, drug paraphernalia, or assaults on school personnel as a basis for suspension or expulsion, school exclusion skyrocketed.”⁸⁷ Schools adopted zero-tolerance policies for weapons, made schools drug-free zones, and suspended or expelled students for violations on or near campus.⁸⁸ These punitive changes reflected a public and political consensus that schools could suppress violence with more security and strict enforcement.⁸⁹ The increased presence of SROs can escalate a minor problem into a justice system matter and zero-tolerance policies have dramatically increased rates of suspension and expulsion of students, especially in large urban districts.⁹⁰ Despite their prevalence, zero-tolerance policies do not increase the consistency of school discipline, create school climates more conducive to learning, or deter student misbehavior.⁹¹

The school-to-prison pipeline operates both directly and indirectly.⁹² Administrators may refer students directly to juvenile court, thereby criminalizing school misconduct. Alternatively, they may suspend or expel offending students. Exclusion deprives students of the positive support and structure of school and provides time and opportunity to get in trouble.⁹³ Over the past three decades, school suspensions have doubled and factors like poverty, minority composition, and residential

mobility are associated with greater use of exclusionary sanctions.⁹⁴ Suspended students are more likely to repeat a grade, drop out, and become criminally involved and incarcerated as adults.⁹⁵

School officials increasingly refer trivial offenses for delinquency proceedings that they previously handled internally—reporting minor scuffles as assaults, cursing as disorderly conduct, or nail clippers as knives.⁹⁶ Schools suspend or expel students for misconduct they previously dealt with through detention or counseling.⁹⁷ Administrators cannot ignore acts that could be deemed criminal.⁹⁸ Fear of crime and civil liability has resulted in overly simplistic, harsh disciplinary policies without any evidence that they contribute to school safety.⁹⁹ Increased presence of police and zero-tolerance policies have reduced administrators’ discretion and had a disparate impact on urban youths of color.¹⁰⁰

Perverse Financial Incentives: High-Stakes Testing

Under No Child Left Behind (NCLB), passed in 2001, schools that receive federal funds must annually test students’ reading, language arts, math, and science and demonstrate yearly progress and among all student subgroups.¹⁰¹ A school that fails to make satisfactory annual progress may be labeled a failing school, placed on probation, or taken over by the state.¹⁰² In 2015, congress passed the Every Student Succeeds Act (ESSA) which replaced the heavily criticized NCLB. ESSA also requires states receiving federal funds to implement student assessments in their public schools, but gives states greater autonomy to measure academic performance and accountability. States historically have a poor record of addressing the educational needs of marginalized students and greater autonomy may lead to greater disparities in student achievement. ESSA does little to address racial disparities in discipline or the punitive environments in schools serving students of color.

The family wealth or poverty of children taking standardized tests strongly influences their results. Children of affluent parents enrolled in preschool, “Baby Ives,” and Montessori programs from age two will have had about twice as much schooling as children of poor parents when they start taking standardized tests around third grade.¹⁰³

NCLB and ESSA accountability provisions give schools financial incentives to narrow curricula, to “teach to the test,” and “rewards

schools for altering their student bodies. Schools that can restrict their student bodies to the better test takers will improve their scores and be financially rewarded (or at least escape punishment).¹⁰⁴ NCLB and now ESSA create financial incentives to push out, suspend, or expel academically low-performing students who may also misbehave.¹⁰⁵ “African Americans may be more likely to be punished than whites, but it is largely because they are already marginalized within the official school status system due to poor academic performance. . . . School staff may not target black students per se, but they target students who struggle academically, and such students are more likely to be African Americans.”¹⁰⁶ Under high-stakes testing, excluding disruptive or underperforming students provide quick-fix alternatives to improving schools and providing qualified teachers, counselors, and resources.¹⁰⁷ Strategies include suspending or expelling students, assigning them to alternative schools, ordering them to complete their secondary education through GEDs, and removing them from attendance records.¹⁰⁸ Schools that measure poorly in student tests and teacher qualifications are those most likely to rely on punitive disciplinary sanctions.¹⁰⁹

Segregation, Racial Disparities, and the School-to-Prison Pipeline

Although *Brown v. Board of Education* prohibited racial segregation in schools, it took another decade for Congress to pass the 1964 Civil Rights Act and provide means to enforce desegregation of public schools. Efforts to integrate urban schools precipitated massive white flight to suburbs.¹¹⁰ After a decade of progress toward integration, the 1974 Court decision in *Milliken v. Bradley* barred cross-district remedies for school segregation and led to substantial resegregation of schools—urban Black and suburban white.¹¹¹ Inequality in America operates increasingly through education, which correlates with parental socioeconomic status, education, and residence.¹¹² Residential segregation is deeply rooted, sustained by zoning regulations and home mortgage tax deductions. The Court’s decision in *Parents Involved in Community Schools v. Seattle School District No. 1* in 2007 eliminated many of the tools available to school districts to design voluntary desegregation plans.¹¹³

The vast majority of children of color attend segregated schools. Almost 94% of Black and Latino students in urban areas—a central city with more than 250,000 residents—attend “predominantly minority” schools in which the student body is 50–100% minority students.¹¹⁴ Approximately two-thirds attend “intensely segregated schools” in which only 0–10% of their classmates were white.¹¹⁵ In major urban areas, about 2.5 million students attend “apartheid schools” in which enrollment is 99–100% non-white. One-sixth of African American students and one-ninth of Latino students attend apartheid schools.

During the 1980s and 1990s, as middle-class Blacks moved to inner-ring suburbs, residential and school segregation reemerged and intensified white flight to even more distant racial enclaves.¹¹⁶ By 2012, despite increased suburbanization of non-white families, 80% of Latino students and 74% of Black students attend majority non-white schools, 43% of Latinos and 38% of Blacks attend intensely segregated schools (those with 0–10% white students), and 15% of Black students and 14% of Latino students attend “apartheid schools.”¹¹⁷

As *Brown* recognized more than sixty years ago, attending segregated minority schools adversely affects educational opportunities and students’ learning. Students who attend racially and socioeconomically diverse schools achieve higher test scores, earn better grades, graduate from high school more often, and attend and graduate from college at higher rates than comparable peers who attend schools with large proportions of poor and disadvantaged youth of color. Although students from all racial and socioeconomic backgrounds—including middle-class white students—can benefit from diverse schools, low-income disadvantaged minority youth derive the most advantage.¹¹⁸

By contrast, segregated schools suffer from high poverty levels, residential transience, rapid faculty turnover, less experienced or qualified teachers, lower academic achievement, and higher dropout rates than those enjoyed by white students. “Teacher flight from the challenges in such schools—violence and disorder, truancy, lower school readiness and English-language proficiency, less supportive home environments—means that students in these schools get a generally inferior education.”¹¹⁹ In *Savage Inequalities* and *The Shame of the Nation*, Jonathan Kozol documents the deplorable conditions under which most urban children of color attend schools. He describes in

painful and heartbreaking detail the separate and unequal education they receive.¹²⁰

For three decades, school policies have contribute to overrepresentation of Black youths in disciplinary suspensions, expulsions, and juvenile court referrals.¹²¹ Youths reared in segregated urban areas of concentrated poverty are exposed to more risk factors for criminal behavior than their more privileged white peers. Those risk factors adversely affect students' learning as well. It is difficult to concentrate, learn, or behave when they come to school hungry, ill clothed, from chaotic households and violent neighborhoods.¹²² They attend under-resourced schools that do not provide opportunities comparable with those enjoyed by their white suburban peers. States' failures to provide equal education for many urban youths is a prescription for school-leaving and justice system involvement.

Youths who perform poorly in school may become frustrated, fail to make academic progress, and become disruptive or drop out.¹²³ Dropping out of school culminates a process of disengagement that begins long before students leave. Youths from poor families who have poorly educated parents and are poor readers encounter academic failure, fall a grade or two behind in school, and exhibit behavioral problems or become chronic truants.¹²⁴ Schools' failure to support and remediate academically struggling students may cause the misbehavior that then leads to disciplinary sanctions.

In *Homeroom Security*, Aaron Kupchik summarizes the disproportionate impact of zero-tolerance policies on poor children and students of color.

[B]lack students are twice as likely to be suspended as white students and, independent of race, being poor also increases a student's probability of being suspended. Other research concludes that black students' disproportionate likelihood of receiving school punishment is influenced by the fact that they receive poor grades, are perceived as less well-behaved, and have been disproportionately sanctioned at school in the past. Evidence also suggests that students of color are more likely to be referred for discipline because teachers and other school staff perceive their behavior to be more threatening, disrespectful, and inappropriate compared to the behavior of white students.¹²⁵

In addition, parents of students who attend low-income schools have less social capital—education, white-collar jobs, two-parent households—than those who attend more affluent schools and may be less able to challenge school disciplinary practices effectively.¹²⁶

Black and Hispanic students in Texas were twice as likely as white students to be suspended, disciplined, and referred to juvenile court.¹²⁷ Although national suspension rates for all students have doubled over the past three decades, schools are three times as likely to suspend Black students as their white counterparts even for the same conduct.¹²⁸ “African American students are more than 3.5 times more likely to be suspended or expelled than their white peers and more than 70 per cent of students involved in school-related arrests or referred to law enforcement are Hispanic or African American.”¹²⁹ The U.S. Office of Civil Rights reported that one out of every six Black students had been suspended at least once, as contrasted with only one of twenty white students enrolled in K–12 public schools.¹³⁰

Jason Nance’s research controls for school size and location, school crime and disorder, neighborhood crime, and other variables, and reports that students’ race and poverty strongly predicted schools’ decisions to use surveillance and security measures—metal detectors, guards, random sweeps, and cameras.¹³¹

[L]arge, urban schools serving primarily low-income or minority students are more likely to create intense surveillance environments than other schools. . . . [S]chools with high percentage of minority or low-income students tend to rely on heavy-handed, punitive-based measures to maintain order and control crime. . . . [T]hese schools are more inclined to coerce students into compliance and to promote safety by identifying, apprehending, and excluding students that school officials perceive as being dangerous, disruptive, or low-performing.¹³²

Schools that rely heavily on surveillance create poorer learning environments and deprive impoverished students of educational opportunities more affluent students enjoy. Differences in behavior by race or socioeconomic class do not account for differences in school discipline practices.¹³³ Rather, schools serving large proportions of Black students are more likely to suspend, expel, or refer them to juvenile courts and

less likely to use reprimands, meeting with a counselor, or in-school detention than those serving predominantly white students.¹³⁴

School personnel may perceive poor Black males as troublemakers, dangerous, or a threat to their control in the classroom.¹³⁵ Poor youths of color who are not as fully socialized in white middle-class norms may respond inappropriately to criticism of their conduct.¹³⁶ Many incidents for which teachers sanction students involve subjectively defined misbehavior—disorderly conduct, insubordination, or disrespect—which can be characterized as assault but which may reflect a racialized perceptions of minority youths.¹³⁷ Perceived threat of loss of control in the classroom for infractions such as tardiness, disrespect, and defiance leads to punitive responses.¹³⁸

Once school staff and SROs identify youths as troublemakers, they may monitor them more closely, which increases the likelihood of future disciplinary action and academic failure.¹³⁹ Disproportionately sanctioning youths attending underperforming schools and experiencing higher dropout rates reinforces a negative life trajectory.¹⁴⁰ While more than three-quarters of white youths graduated from school, only about half of Black and Hispanic youths do.¹⁴¹ Fewer than one-quarter of Black male high school dropouts will find full-time employment; by their early twenties, most will be involved in criminal activity, convicted and incarcerated, and suffer economic consequences the rest of their lives.¹⁴²

By the late 1990s, the majority of young Black men who did not graduate from high school were likely to be imprisoned.¹⁴³ Hirschfield argues that whereas schools a century ago prepared youths to work in industrial factories, contemporary “criminalization practices reflect increased perceptions of troublesome students as future criminals or prisoners. The needs of such students fall outside of the traditional school disciplinary paradigm, which is tied to images of students as future workers and citizens. . . . Owing to a dominant image of black males as criminals and prisoners, many school authorities view chronically disobedient black boys as ‘bound for jail’ and ‘unsalvageable.’”¹⁴⁴ Similarly, Loïc Wacquant argues that impoverished inner-city schools have “deteriorated to the point where they operate in the manner of *institutions of confinement* whose primary mission is not to educate but to ensure ‘custody and control.’” He asserts that “the carceral atmosphere of schools

and the constant presence of armed guards in uniform in the lobbies, corridors, cafeteria, and playground of their establishment habituates the children of the hyperghetto to the demeanor, tactics, and interactive style of the correctional officers many of them are bound to encounter shortly after their school days are over.”¹⁴⁵

Conclusion

T.L.O. created a school search exception to the Fourth Amendment where none was needed. *Terry*’s stop-and-frisk authority enables teachers to conduct less intrusive investigations and *Gates*’s probable cause standard provides a workable requirement for searches. *T.L.O.*’s lower standard enables schools to subject students to a regime more suitable to prisons than to educational environments—suspicionless drug testing, surveillance, canine sniffs, and strip searches.¹⁴⁶ The Supreme Court and lower courts minimized students’ privacy interests and expanded state control and intrusion. Public and political panics about drugs and violence encouraged schools to adopt heavy-handed, counterproductive strategies that deny students any expectation of privacy. A dearth of legal protections, heightened police presence, increased surveillance, and school officials’ zero-tolerance repudiation of common sense have fostered a school-to-prison pipeline.

Schools are the incubators of future citizens and convey moral lessons by their actions. The Court in *West Virginia State Bd. of Educ. v. Barnette* emphasized that schools “educating the young for citizenship is reason for scrupulous protection of constitutional freedoms of the individual, if we are not to strangle the free mind at its source and teach youth to discount important principles of our government as mere platitudes.”¹⁴⁷ By contrast, school disciplinary practices discourage students from questioning power and encourage passivity and obedience to authority.¹⁴⁸ School practices socialize students to accept police scrutiny, surveillance cameras, and other security practices in their workplaces and communities.

Providing young people with real Fourth Amendment protection will better socialize them to participate effectively as adults in a democratic society. Although the Court insists that “students do not shed their constitutional rights . . . at the schoolhouse gate,”¹⁴⁹ *T.L.O.*’s lesson is that

we inculcate the values of citizenship by denying students basic rights. Schools that create inclusive climates in which students feel respected and rewarded for positive behavior experience less crime and disorder than do those that rely on harsh discipline and rigid security.¹⁵⁰

Local property taxes fund schools in most states. Disparities between wealthy suburban districts with high home values and fewer tax-exempt businesses and those in poor urban communities replicate and reinforce social inequality. Broader structural features define schools' behavioral expectations, instructional content, and educational strategies. Schools reproduce social inequality because skills and behaviors that have economic values are not equally distributed and not all students are similarly socialized in them.¹⁵¹

Educational opportunities in high-poverty urban schools are more limited than those in wealthier districts in physical infrastructure, academically enriched courses, highly trained teachers, extracurricular activities, and the like.¹⁵² Funding inequalities in large urban districts result in larger classrooms with fewer opportunities for individualized instruction and create more opportunities for failing students to be disruptive. Overwhelmed teachers rely on rigid discipline to maintain order. Intense surveillance and heavy security damage schools' social climate by implying distrust and suspicion and treating students as suspects.¹⁵³ It skews students' perceptions of government and normalizes surveillance.¹⁵⁴

The Criminal Is a Kid

Adolescents' Diminished Culpability

The edifice of juvenile justice is built on binary categories—either child or adult, treatment or punishment, past offense or offender future welfare. Binary categories detract from viewing the transition to adulthood as a developmental continuum and from considering how immaturity should affect punishment of youths sentenced as adults.

Penal proportionality requires a principled relationship between the seriousness of a crime—harm caused and actor's culpability—and the sentence imposed. Until recently, courts rejected juveniles' proportionality challenges and used a circular logic that a crime is serious because of the harm inflicted without regard to a youth's culpability.¹ *Harris v. Wright* rebuffed a fifteen-year-old's challenge to a sentence of mandatory life without parole for murder. "Youth has no obvious bearing on this problem: If we can discern no clear line for adults, neither can we for youths. Accordingly, while capital punishment is unique and must be treated specially, mandatory life imprisonment without parole is, for young and old alike, only an outlying point on the continuum of prison sentences. Like any other prison sentence, it raises no inference of disproportionality when imposed on a murderer."² Lower courts found no impediment to imposing lengthy or mandatory sentences on very young children as long as they possessed criminal intent.³

The Supreme Court developed its jurisprudence of youth—"children are different"—in response to get tough laws that ignored adolescents' reduced culpability. The increased numbers and immaturity of many juveniles sentenced as adults impelled the Court to review states' laws and to judicially assert that "enough is enough." Recall from Chapter 5, states annually try upward of two hundred thousand youths as adults.⁴ The predictions in the early 1990s of an impending bloodbath by super-predators propelled preemptive punitive policies.⁵ States lowered the age

for transfer, increased the number of excluded offenses, and shifted discretion from judges to prosecutors.⁶ Get tough transfer laws exacerbated racial disparities.⁷ Racial stereotypes taint culpability assessments and reduce the mitigating role of youthfulness.⁸ Children of color comprise the majority of juveniles tried in criminal court and three-quarters of those who enter prison.⁹ Over the twentieth century, Black youths comprised 70% of all juveniles executed, primarily in the South.¹⁰ States' get tough criminal laws lengthened sentences, set mandatory minimums, and imposed mandatory life without parole for homicide and other crimes.¹¹ They apply equally to juveniles as to adults; judges sentenced them as if they were adults and sent them to the same prisons.¹²

In a trilogy of cases beginning in 2005, the Court applied the Eighth Amendment prohibition on cruel and unusual punishment to juveniles. *Roper v. Simmons* prohibited states from executing offenders for murder committed prior to eighteen years of age.¹³ The Justices concluded that youths' immature judgment and lack of self-control, susceptibility to negative influence from peers, and transitory personalities reduced their culpability and precluded the most severe sentence. *Graham v. Florida* extended *Roper's* diminished responsibility rationale and prohibited states from imposing sentences of life without parole (LWOP) for non-homicide offenses.¹⁴ It repudiated the Court's Eighth Amendment doctrine that "death is different."¹⁵ *Miller v. Alabama* extended *Roper* and *Graham's* diminished responsibility rationale and barred mandatory LWOP sentences for youths convicted of murder.¹⁶ *Miller* required judges to make individualized culpability assessments and to weigh youthfulness as a mitigating factor.

Despite the Court's repeated assertions that "children are different," *Graham* provided non-homicide offenders very limited relief—"some meaningful opportunity to obtain release"—without requiring either rehabilitative services or eventual freedom. *Miller* required a judge to make an individualized assessment of a juvenile murderer's culpability but did not preclude an LWOP sentence. State courts and legislatures have struggled to implement juveniles' diminished responsibility when sentencing them as adults.

This chapter first analyzes the Court's abolition of the juvenile death penalty. *Roper* held that youths are categorically less criminally responsible than adults. However, the Court relied more on intuition—"as

every parent knows”—than on the growing body of developmental psychological and neuroscience research that bolsters its conclusion. The second section examines *Graham*’s rejection of the Court’s “death is different” jurisprudence and its reformulation of proportionality analyses to account for the doubly diminished responsibility of juveniles who did not kill. The third section analyzes *Miller*’s repudiation of *mandatory* LWOP sentences for juveniles who murder. *Miller* relied on death penalty precedents to require individualized assessments and to weigh youths’ diminished responsibility. The fourth section reviews how state courts and legislatures have struggled unsuccessfully to implement the Court’s “children are different” jurisprudence. Its limited constitutional authority to review state sentencing laws and the opinions’ broad language provide scant guidance on several critical questions. The final section proposes a Youth Discount—shorter sentences for younger offenders—to formally recognize youthfulness as a mitigating factor.

Juveniles and the Death Penalty: *Roper v. Simmons* and Diminished Responsibility

The Eighth Amendment prohibits states from inflicting “cruel and unusual punishments.”¹⁷ Prior to *Roper v. Simmons*, the Court thrice considered whether it prohibited states from executing juveniles convicted of murder. *Eddings v. Oklahoma* reversed a sixteen-year-old youth’s death sentence because the trial court failed to consider youthfulness as mitigating factor.¹⁸ In *Thompson v. Oklahoma*, a plurality of Justices concluded that offenders fifteen years of age or younger lacked sufficient culpability to warrant execution.¹⁹ In 1989, *Stanford v. Kentucky* upheld the death penalty for sixteen- or seventeen-year-olds convicted of murder and allowed juries to assess their individual culpability.²⁰

In 2005, *Roper* overruled *Stanford* and prohibited states from executing youths for crimes committed prior to age eighteen.²¹ *Roper* relied on *Atkins v. Virginia*, which barred execution of defendants with mental retardation.²² *Atkins* found a national consensus against executing them because thirty states barred the practice and few states put them to death. *Atkins* concluded that intellectually impaired defendants lacked sufficient culpability to warrant execution. *Roper* found a similar national

consensus: the number of states opposed to executing juveniles equaled that in *Atkins*; after *Stanford*, five states raised the age of death-eligibility, and only three states executed juveniles in the interim.²³

Criminal responsibility is about an actor's degree of blameworthiness for his or her harmful acts. *Roper* gave three reasons why states could not punish juveniles as severely as adults. First, their immature judgment and limited self-control causes them to act impulsively and without adequate appreciation of consequences. "[A] lack of maturity and an underdeveloped sense of responsibility are found in youth more often than in adults and are more understandable among the young. These qualities often result in impetuous and ill-considered actions and decisions."²⁴ Second, their susceptibility to negative influence from peers and inability to escape criminogenic environments reduced their responsibility. "Juveniles are more vulnerable or susceptible to negative influences and outside pressures, including peer pressure. . . . Their own vulnerability and comparative lack of control over their immediate surroundings mean juveniles have a greater claim than adults to be forgiven for failing to escape negative influences in their whole environment."²⁵ Third, their transitory personality provides less reliable evidence of blameworthiness. "[T]he character of a juvenile is not as well formed as that of an adult."²⁶ Because juveniles' character is transitional, "[f]rom a moral standpoint it would be misguided to equate the failings of a minor with those of an adult, for a great possibility exists that a minor's character deficiencies will be reformed."²⁷

For *Roper*, youths' diminished responsibility undermined retributive justifications for the death penalty. "Retribution is not proportional if the law's most severe penalty is imposed on one whose culpability or blameworthiness is diminished, to a substantial degree, by reason of youth and immaturity."²⁸ Similarly, the Court concluded that impulsiveness and limited self-control weakened any deterrent effect.²⁹

The *Roper* majority and dissents disagreed whether to impose a categorical ban or to allow juries to evaluate youths' culpability individually.³⁰ Justice Kennedy opted for a categorical ban:

The differences between juvenile and adult offenders are too marked and well understood to *risk* allowing a youthful person to receive the death penalty despite insufficient culpability. An *unacceptable likelihood* exists

that the brutality or cold-blooded nature of any particular crime would overpower mitigating arguments based on youth as a matter of course, even where the juvenile offender's objective immaturity, vulnerability, and lack of true depravity should require a sentence less severe than death.³¹

The American Psychiatric Association's *Diagnostic and Statistical Manual of Mental Disorders, Fifth Edition*, precludes clinicians' diagnoses of antisocial personality disorder—psychopathy—in people younger than eighteen because its criteria require longstanding enduring behavior patterns and adolescents' personalities continue to develop and change. *Roper* declined to let jurors make culpability assessments that psychiatrists eschew. Because a brutal murder could overwhelm the mitigating role of youthfulness, *Roper* used age as a categorical proxy for reduced culpability.

Developmental Psychology and Adolescent Culpability

Roper reasoned that immature judgment, susceptibility to peer and environmental influences, and transitional personalities reduced adolescents' criminal responsibility. But it relied more on intuition—"as any parent knows"—than on scientific evidence.³² Although several *amicus* briefs presented developmental psychological and neuroscience research, the Court did not identify on which studies or evidence it relied.

Roper—and subsequently *Graham* and *Miller*—analyzed youths' reduced culpability within a retributive sentencing framework—proportionality and deserved punishment. Retributive sentencing proportions punishment to a crime's seriousness.³³ A crime's seriousness is defined by two elements—harm and culpability—which determine how much punishment an actor deserves.³⁴ An offender's age has no bearing on the harm caused—children and adults can cause the same injuries. But proportionality requires consideration of an offender's culpability and immaturity reduces youths' blameworthiness.³⁵ Youths' inability to fully appreciate wrongfulness or control themselves lessens, but does not excuse, responsibility for causing harms.³⁶ They may have the minimum capacity to be criminally liable—the ability to distinguish right from wrong—but still deserve less punishment.³⁷ Cognitive or behavioral impairment—mental illness or retardation, emotional arousal,

youthfulness and developmental immaturity, or coercive influences—lessen a person’s capacity to make as blameworthy decisions.³⁸

Developmental psychology focuses on how children and adolescents’ thinking and behaving change with age. Developmental tasks include forming a sense of self, separating from parents, exercising greater autonomy, acquiring social skills, and attaining educational and vocational competencies in the transition to adulthood.³⁹ During adolescence, youths explore identities, create a social self, interact with groups, and develop interpersonal skills and relationships.⁴⁰ Experimenting and risk taking serve adaptive functions to reach those goals.⁴¹ Normal antisocial behavior—defying authority, lawbreaking, and risk taking—disrupts ties to parents and schools in the process of a child’s becoming independent.⁴²

By mid-adolescence, most youths reason similarly to adults.⁴³ For example, they make comparable informed-consent medical decisions.⁴⁴ But the ability to make reasonable decisions with complete information under laboratory conditions differs from the ability to act responsibly under stress with incomplete information.⁴⁵ Emotions influence youths’ judgment to a greater extent than adults’ and researchers distinguish between “cold” and “hot” cognition.⁴⁶

[A]dolescents are much less capable of making sound decisions when under stressful conditions or when peer pressure is strong. Psychosocial researchers have referred to cognition in these different contexts as *cold* versus *hot*. The traits that are commonly associated with being an adolescent—short-sightedness (i.e., inability to make decisions based on long-term planning), impulsivity, hormonal changes, and susceptibility to peer influence—can quickly undermine one’s ability to make sound decisions in periods of hot cognition.⁴⁷

Emotionally charged situations compromise adolescents’ decision making and self-control.⁴⁸ Sensitivity to rewards suppresses judicious consideration of risk.⁴⁹ As the next section explains, youths are more heavily influenced by the reward centers of the brain, which contributes to riskier decisions.⁵⁰

In response to states’ get tough frenzy, in 1995 the John D. and Catherine T. MacArthur Foundation sponsored the Research Network on Ad-

olescent Development and Juvenile Justice (ADJJ). Over the next decade, the ADJJ network conducted research on adolescent decision-making, judgment, and adjudicative competence.⁵¹ The research distinguishes between cognitive abilities and judgment and self-control—controlled thinking versus impulsive behaving.⁵² Cognitive capacities involve understanding—the ability to comprehend information—and reasoning—the ability to use information logically. Self-control requires the ability to think before acting, to choose between alternatives, and to interrupt a course in motion.⁵³ Although sixteen-year-olds’ understanding and reasoning approximate adults’, their ability to exercise mature judgment and control impulses takes several more years to emerge.⁵⁴

The ADJJ research describes the disjunction between cognitive ability and judgment as the “immaturity gap.”⁵⁵ Youths differ from adults in risk perception, appreciation of consequences, impulsivity and self-control, sensation seeking, and compliance with peers.⁵⁶ The regions of the brain that control reward seeking and emotional arousal develop earlier than do those that regulate executive functions and impulse control.⁵⁷

Immature Judgment, Impulse Control, and Risky Behavior

Higher rates of accidents, suicide, drinking and drug use, unsafe sex, and crime reflect adolescents’ greater propensity to engage in risky behavior.⁵⁸ To calculate risks, a person has to identify potential outcomes, estimate their likelihood, and make valuations of alternatives.⁵⁹ Adolescents underestimate the amount and likelihood of risks, emphasize immediate outcomes, and focus on anticipated gains rather than possible losses to a greater extent than adults.⁶⁰ They consider fewer options.⁶¹ While youths and adults take similar time to solve simple problems, the amount of time used to solve complex problems increases with age.⁶²

Youths’ perception of risk declines during mid-adolescence before increasing into adulthood. Sixteen- and seventeen-year-olds perceive fewer risks than do younger or older subjects.⁶³ They weigh costs and benefits differently, apply dissimilar subjective values to outcomes, and more heavily discount negative future consequences than more immediate rewards.⁶⁴ They have less experience and knowledge to inform decisions

about consequences.⁶⁵ They prefer an immediate albeit smaller reward than do adults, who can better delay gratification.⁶⁶

In a risk-benefit calculus, youths may view *not* engaging in risky behaviors differently than adults.⁶⁷ For adolescents, risky behavior provides access to resources, opportunities to explore adult behaviors, and chances to increase status within their peer group.⁶⁸ They crave novel sensation and excitement.⁶⁹ Emotional arousal affects both impulsivity—the inability to inhibit responses—and sensation seeking—an affirmative quest for stimulating experiences.⁷⁰ Researchers attribute youths' impetuous decisions to a heightened appetite for emotional arousal and intense experiences, which peaks around sixteen or seventeen.⁷¹ Feelings of invulnerability heighten risk propensity.⁷²

Neuroscience and Adolescent Brain Development

Neuroscience research reports that the human brain continues to mature until the early to mid-twenties. Adolescents on average do not have adults' neurobiological capacity to exercise mature judgment or control impulses.⁷³ A commonly used analogy is that a teenager's brain is like a car with a powerful, responsive accelerator but slow and weak brakes. The relationship between two brain regions—the prefrontal cortex (PFC) and the limbic system—underlie youths' propensity for risky behavior.⁷⁴ The PFC is responsible for judgment and impulse control. The amygdala and limbic system regulate emotional arousal and reward-seeking behavior.⁷⁵ The PFC performs executive functions—reasoning, planning, and impulse control.⁷⁶ These top-down capabilities develop gradually and enable individuals to exercise greater self-control.⁷⁷

During adolescence, two processes—myelination and synaptic pruning—enhance the PFC's functions.⁷⁸ Myelin is a white fatty substance that forms a sheath around neural axons and facilitates more efficient neurotransmission.⁷⁹ It acts like insulation on a wire to increase the speed of neural electro-conductivity and make communication between different brain regions faster and more reliable.⁸⁰ Synaptic pruning involves selective elimination of unused neural connections—use it or lose it.⁸¹ The gray matter or brain cell neurons that cover the top layer of the brain begin to thin and eliminate unused connections.⁸²

This promotes greater efficiency, speeds neural signals, and strengthens the brain's ability to process information.⁸³

The limbic system controls emotions, reward seeking, and instinctual behavior—the fight-or-flight response.⁸⁴ It detects rewards and threats in the environment and activates responses.⁸⁵ The PFC and limbic systems mature at different rates and adolescents rely more heavily on the limbic system—bottom-up emotional processing rather than the top-down cognitive regulatory system.⁸⁶ The developmental lag between the PFC regulatory system and the reward- and pleasure-seeking limbic system contributes to impetuous behavior driven more by emotions rather than reason.⁸⁷ The imbalance between the impulse-control and reward-seeking systems contributes to youths' poor judgment, impetuous behavior, and criminal involvement.⁸⁸

Poverty and Children's Brain Development

One in five children in the United States live in poverty and around 40% of children are poor or near-poor.⁸⁹ Brain plasticity is a physical process by which neural connections are forged and strengthened or weakened and severed as experiences reorganize neural pathways. Children's brains are biologically programmed to interact with their environment; neuroplasticity enables them to learn and adapt to their surroundings.⁹⁰ Positive and negative environmental factors affect critical functions—cognitive development, emotional regulation, impulse control, and planning—during children's brains' protracted development.⁹¹ Early stress and trauma can disrupt circuitry between the PFC and limbic system and impair children's ability to control emotions.⁹²

Neuroscience research has explored the relationship between socioeconomic status (SES) and cortical thinning—a process related to synaptic pruning.⁹³ Research on brain development reports differences among low- and high-SES children in regions of the brain responsible for language, executive function, selective attention, memory, mood dysphoria, and stress regulation with the strongest negative impact on neurocognitive abilities among the most disadvantaged children.⁹⁴

Several factors associated with poverty affect brain development: material deprivation; toxic stress; and environmental toxins.⁹⁵ Children in poverty experience heightened exposure to in utero pollutants and

toxins, nutritional deficits, high levels of stress associated with family turmoil and disruption, violence, and economic and residential instability.⁹⁶ Parents under stress of poverty may feel depressed or angry, which results in harsh and inconsistent child rearing, disrupts relationships, and less verbal communication.⁹⁷

[S]evere and chronic stress, especially if unbuffered by supportive adults, can disrupt the basic executive functions that govern how various parts of the brain work together to address challenges and problems. Consequently, children who experience toxic stress have trouble concentrating, controlling impulsive behavior, and following direction.

Extreme stress causes a cascade of biochemical and anatomical changes that impair brain development and change brain architecture at a basic level. Stress caused by unstable and consistently unresponsive caregiving, physical or emotional abuse, parental substance abuse, and lack of affection can produce measurable physiological changes in the child that lead to lifelong difficulties in learning, behavior, and both physical and mental health.⁹⁸

Environmental factors like trauma and violence in the home and chronic stress have especially toxic effects on the PFC and adversely affect cognitive abilities and self-control.⁹⁹

Compared with higher-SES youngsters, poor children's brains receive less exposure to stimulation and enrichment—parents reading to them, providing age-appropriate toys and educational resources, and engaging them in conversations—which affect cognitive development and impulse control.¹⁰⁰ While heritability accounts for most of the IQ variability among higher-SES subjects, at lower-SES levels, environmental factors explain most of the variation and suggests that “as environmental adversity increases, these variations in environment become more important determinants of cognitive development compared to genetic inheritance.”¹⁰¹ Researchers attribute neurobiological differences in brain development among low- and high-SES children to prenatal factors, cognitive stimulation, and child-rearing practices that affect language acquisition and executive function.¹⁰² Poor parents have less time and resources with which to foster children's cognitive development than do wealthier ones because of erratic work schedules, the absence of a

second parent to share child-rearing responsibilities, more dangerous and chaotic communities, and limited options to seek respite.¹⁰³ Children's early cognitive development affects how they perform in school and puts them on different life trajectories.¹⁰⁴ Both school-based and family-based interventions can provide cognitive and behavioral gains for poor children and modest increases in family income in the first few years of life can produce large differences in adult outcomes.¹⁰⁵

Limitations of Neuroscience

Neuroscience research about brain development bolsters social scientists' observations about adolescents' impulsive behavior and impaired self-control.¹⁰⁶ Despite impressive advances, neuroscientists have not established a direct link between brain maturation and behavior or found ways to individualize assessments of developmental differences.¹⁰⁷

[I]t is not possible to use brain imaging to assess immaturity in an individual adolescent, either alone or in combination with psychological assessment. . . . [T]here is not yet sufficient evidence linking age differences in specific aspects of brain structure to real-world behaviors that might mitigate adolescent culpability. It simply is not possible to point to a scan of a normally developing brain and identify a structural feature that clearly marks the brain as an "adolescent" brain rather than an "adult" brain. . . . Finally, many of the most important changes in the brain that occur over the course of adolescence and young adulthood are changes in how the brain functions, rather than simply changes in brain anatomy, or structure.¹⁰⁸

Notwithstanding these limitations, the research helps to explain why adolescents make riskier decisions and respond more robustly to peers than do adults.

Peer Group Influences

Roper attributed juveniles' diminished responsibility to greater susceptibility to peer influences. Adolescents separate from parents—individuation—and develop a sense of self—identity formation—through peer interaction.¹⁰⁹

Research across primate species suggests that peer socializing helps individuals develop adaptive behaviors—social skills, access to mates, and ability to survive without parental protection.¹¹⁰ As their orientation shifts toward peers, youths' quest for acceptance and affiliation makes them more susceptible to influences than they will be as adults.¹¹¹

Adolescents gauge their own behavior through peer comparison and adopt their friends' behavior and attitudes as their own.¹¹² Youths in a group context may engage in risky behavior out of fear of rejection or desire for approval.¹¹³ Among the most dangerous things a teenager can say to another is "you're chicken" or "I dare you."¹¹⁴ Peers increase youths' propensity to engage in unsafe behavior more often together than they would if they were alone.¹¹⁵ Their presence stimulates neural activity in the brain's reward centers and makes them more sensitive to all kinds of rewards including risky behavior.¹¹⁶

Juveniles commit their crimes in groups to a greater extent than do adults.¹¹⁷ Their ability to withstand pressure approaches that of adults only in the late teens and early twenties.¹¹⁸ Because group criminality reflects normal behavior, it provide less compelling evidence of culpability than if an adult made the same choice.¹¹⁹ Group offending increases youths' risks for prosecution as accessories to crimes they did not intend or personally commit and exposes them to the same penalties as principals.¹²⁰ All three defendants in *Roper*, *Graham*, and *Miller* committed their crimes with one or more co-offenders.

Roper recognized that juveniles' dependency on their families made them less able than adults to escape criminogenic environments.¹²¹ The opportunity to develop self-control is socially constructed, and families, schools, and communities affect children's developmental prospects and risks of criminality.¹²² Chapter 3 described structural conditions that contribute to high crime rates in inner-city neighborhoods, expose children of color to criminal subcultural norms that affluent youth do not confront, and consign them to inferior schools.¹²³

Graham v. Florida: Reframing Proportionality

Roper's diminished responsibility rationale presumably would reduce juveniles' blameworthiness for non-capital crimes as well. Prior to *Graham v. Florida*, the Court had insisted that "death is different"—"a

sentence of death differs in kind from any sentence of imprisonment, no matter how long.”¹²⁴ It did not apply death penalty jurisprudence to term-of-years sentences and appellate courts rejected juveniles’ challenges to lengthy, mandatory, or LWOP sentences.¹²⁵

Graham extended *Roper*’s diminished responsibility rationale to non-homicide offenders who received LWOP sentences. *Graham* arose at the intersection of two lines of Eighth Amendment cases. One group of cases examined whether some sentences were grossly disproportional to the seriousness of the crime. The other barred the death penalty for certain categories of offenders or offenses—those with mental retardation, juveniles, or convicted of non-homicide offenses.¹²⁶

The Court has vacillated over whether the Eighth Amendment imposed proportionality limits on non-capital sentences. *Rummel v. Estelle* held that sentencing a three-time, minor property offender to life in prison *with* the possibility of parole did not violate the Eighth Amendment.¹²⁷ Three years later, *Solem v. Helms* held that a sentence of life *without* possibility of parole for a property crime *did* violate the Constitution.¹²⁸ *Solem* focused on “(i) the gravity of the offense and the harshness of the penalty; (ii) the sentences imposed on other criminals in the same jurisdiction; and (iii) the sentences imposed for commission of the same crime in other jurisdictions.”¹²⁹ *Harmelin v. Michigan* upheld a life *without* parole sentence for a first-time drug dealer.¹³⁰ After *Harmelin*, courts rarely reviewed sentences that crossed some undefined threshold of gross disproportionality and declined to overturn long sentences for minor crimes.¹³¹

Categorical challenges to the death penalty affect entire classes of offenses or offenders. Some decisions barred execution for non-homicide crimes and some felony-murders.¹³² Others prohibited states from executing less culpable offenders—juveniles and the mentally disabled.¹³³

Graham raised “a categorical challenge to a term of years sentence”—a life without parole sentence applied to the category of juveniles.¹³⁴ *Graham* repudiated the Court’s “death is different” distinction, extended *Roper*’s reduced culpability rationale to term-of-year sentences, and “declare[d] an entire class of offenders immune from a noncapital sentence.”¹³⁵ *Graham* replicated *Roper*’s analyses and found a national consensus against imposing LWOP sentences on non-homicide juvenile offenders. Although thirty-seven states authorized LWOP sentences,

Florida imprisoned two-thirds of the 123 juveniles serving LWOP for non-homicide crimes.

Graham rested on three features—offender, offense, and sentence. It reiterated *Roper*’s rationale that juveniles’ reduced culpability warranted less severe penalties than those imposed on adults convicted of the same crime. Unlike *Roper*, *Graham* explicitly based young offenders’ diminished responsibility on developmental and neuroscience research. “[D]evelopments in psychology and brain science continue to show fundamental differences between juvenile and adult minds. For example, parts of the brain involved in behavior control continue to mature through late adolescence.”¹³⁶

Focusing on the offense, *Graham* invoked the Court’s felony-murder death penalty decisions and concluded that even the most serious non-homicide crimes “cannot be compared to murder in their ‘severity and irrevocability.’”¹³⁷ The combination of diminished responsibility and a non-homicide crime made an LWOP sentence grossly disproportional. “[W]hen compared to an adult murderer, a juvenile offender who did not kill or intend to kill has a twice diminished moral culpability. The age of the offender and the nature of the crime each bear on the analysis.”¹³⁸

Finally, the Court equated an LWOP sentence for a juvenile with the death penalty—“the sentence alters the offender’s life by a forfeiture that is irrevocable” and denies any hope of release.¹³⁹ *Graham* found no penal rationale—retribution, deterrence, incapacitation, or rehabilitation—justified the penultimate sanction for non-homicide juvenile offenders. While incapacitation might reduce future offending, judges could not predict at sentencing whether a juvenile would remain incorrigible or pose a future danger to society. Most states denied vocational training or rehabilitative services to youths sentenced to LWOP in favor of those who might return to the community.¹⁴⁰

As in *Roper*, the majority and dissenting Justices in *Graham* differed on whether to bar LWOP for non-homicide juveniles categorically or allow judges to impose LWOP on a case-by-case basis. The majority ruled categorically and denied trial judges the option. *Graham* reiterated *Roper*’s misgivings about clinicians’ ability to distinguish between most juveniles who would change and the few who might remain incorrigible. *Graham* also recognized that youths’ immaturity increased judges’ risks of error in assessing culpability.

[T]he features that distinguish juveniles from adults also put them at a significant disadvantage in criminal proceedings. Juveniles mistrust adults and have limited understandings of the criminal justice system and the roles of the institutional actors within it. They are less likely than adults to work effectively with their lawyers to aid in their defense. Difficulty in weighing long-term consequences; a corresponding impulsiveness; and reluctance to trust defense counsel seen as part of the adult world a rebellious youth rejects, all can lead to poor decisions . . . [and] impair the quality of a juvenile defendant's representation.¹⁴¹

As I explain in Chapter 9, developmental differences impair youths' competence to exercise rights, ability to work with counsel, and capacity to make legal decisions.¹⁴²

Although *Graham* adopted a categorical rule, it gave the 123 youths convicted of non-homicide crimes and serving LWOP sentences very limited relief. It required states only to provide "some meaningful opportunity to obtain release based on demonstrated maturity and rehabilitation."¹⁴³ It did not prescribe states' responsibility to provide resources with which to change or specify when youths might become eligible for parole. Parole consideration would not guarantee young offenders' release and some might remain confined for life.¹⁴⁴

Justice Thomas's dissent criticized the *Graham* majority for repudiating the Court's "death is different" jurisprudence.¹⁴⁵ He argued that trial judges could balance a crime's seriousness with a youth's diminished responsibility and decide individually whether LWOP was warranted. He chided the majority for failing to define what a meaningful opportunity to demonstrate maturity was or when it would occur.¹⁴⁶ He observed that barring LWOP sentences for non-homicide offenders but permitting it for juveniles who murdered was disproportionality based on offenses rather than offenders.

Miller v. Alabama—"Children Are Different"

When the Court decided *Miller v. Alabama*, forty-two states permitted judges to impose LWOP sentences on any offender—adult or juvenile—convicted of murder.¹⁴⁷ In twenty-nine states, LWOP sentences were mandatory for those convicted murder. Mandatory sentences precluded

consideration of actors' culpability or degree of participation, and equated juveniles' criminal responsibility with adults. Courts regularly upheld mandatory LWOP and extremely long sentences imposed on youths as young as twelve or thirteen years of age.¹⁴⁸ One of six juveniles who received an LWOP sentence was fifteen years or younger; for more than half (59%), it was their first-ever conviction.¹⁴⁹ States may not execute a felony-murderer who did not kill or intend to kill, but one-quarter to one-half of juveniles who received LWOP sentences were convicted as accessories to a felony-murder.¹⁵⁰ Although *Eddings*, *Thompson*, and *Roper* viewed youthfulness as a mitigating factor, many trial judges treated it as an aggravating factor and sentenced young murderers more severely than adults convicted of murder.¹⁵¹

Prior to the 1970s, few states imposed LWOP sentences and most relied on indeterminate sentences and parole release.¹⁵² In the 1970s, states resumed executions *and* expanded LWOP sentences.¹⁵³ During the Get Tough Era, states enacted mandatory and LWOP sentences to restrict judges' discretion and eliminated parole boards.¹⁵⁴ Death penalty abolitionists supported LWOP sentences as an alternative to execution and by 2005, forty-eight states and the District of Columbia enacted them.¹⁵⁵ Despite states' adoption of LWOP sentences, the number of murderers sentenced to death remained stable and judges imposed LWOP sentences on many defendants who would not have been death-eligible, for example, felony-murderers. Between 1992 and 2003, the number of inmates on death row rose from 2,575 to 3,374—a 31% increase—while the number of prisoners who received LWOP sentences grew from 12,453 to 33,633—a 170% increase.¹⁵⁶ By 2008, the number of LWOPs had increased to 41,095, a 330% increase.¹⁵⁷

In 2004, 2,225 people were serving LWOP sentences for crimes they committed as juveniles and the number rose to 2,500 by 2009.¹⁵⁸ Prior to 1980, judges rarely sentenced children to LWOP; now they impose LWOPs on youths three times as often as they did in 1990.¹⁵⁹ Sixteen was the average age at which juveniles committed the crimes for which they received LWOP, but judges imposed them on many younger children as well.¹⁶⁰ Judges impose LWOP on Black juveniles at higher rates than they do white youths and they comprise 60% of all youths serving LWOP.¹⁶¹ Black youths who killed a white victim were twice as likely to receive LWOP as white youths who killed a Black person.¹⁶²

Miller v. Alabama extended *Roper* and *Graham* and banned mandatory LWOP for youths convicted of murder.¹⁶³ Although Justice Thomas's *Graham* dissent claimed that the majority ruled on categories of crimes rather than characteristics of offenders, Justice Kagan responded that "none of what it said about children—about their distinctive (and transitory) mental traits and environmental vulnerabilities—is crime specific."¹⁶⁴ She postulated that "[t]he concept of proportionality is central to the Eighth Amendment," and precludes "sentencing practices based on mismatches between the culpability of a class of offenders and the severity of a penalty."¹⁶⁵

Graham equated a non-homicide LWOP sentence with the death penalty. *Miller* invoked death penalty cases that barred mandatory capital sentences and required an individualized culpability assessment before a judge could impose LWOP on a juvenile murderer.¹⁶⁶ *Miller* noted that in the fifteen states in which judges had discretion to impose LWOP sentences, only 15% of youths received them, but in the twenty-nine states in which it was mandatory, 85% received them. Justice Kagan emphasized that "children are constitutionally different from adults for purposes of sentencing" and "mandatory penalties, by their nature, preclude a sentence from taking account of an offender's age and the wealth of characteristics and circumstances attendant to it."¹⁶⁷ The Court asserted that once judges considered a youth's diminished responsibility individually, very few cases would warrant LWOP. "[W]e think appropriate occasions for sentencing juveniles to this harshest possible penalty will be uncommon."¹⁶⁸

Justice Thomas's *Miller* dissent argued that *Harmelin v. Michigan* upheld mandatory LWOP for an adult.¹⁶⁹ Justice Kagan responded that sentences valid for adults could be unconstitutional applied to children. "We have by now held on multiple occasions that a sentencing rule permissible for adults may not be so for children. . . . So if (as *Harmelin* recognized) 'death is different,' children are different too."¹⁷⁰ Chief Justice Roberts's dissent argued that no national consensus against mandatory LWOP sentences existed because most states approved them for adult and juvenile murderers.¹⁷¹ Justice Kagan responded that *Miller* did not preclude LWOP for a juvenile murderer, but required individualized assessment and consideration of youthfulness.¹⁷² The Court reiterated concerns expressed in *Thompson v. Oklahoma* that interaction

of transfer statutes and LWOP laws could produce harsher results than legislators intended because many states excluded youths charged with murder.¹⁷³ The Court in *Roper*, *Graham*, and *Miller* recognized what get tough legislators did not—“children are different”—and halted the most extreme sanctions.

Miller required judges to conduct individualized assessments and consider youthful mitigation. Like *Graham*’s ambiguous instruction to provide a meaningful opportunity to obtain release, *Miller* did not give legislators or judges practical guidance how to conduct individualized culpability assessments or consider youthfulness in sentencing decisions.

The Uncertain Meaning of *Graham* and *Miller*: Confusion and Contradiction

The Court’s recognition that children are different reflected a belated corrective to states’ punitive excesses, but its Eighth Amendment authority to regulate their sentencing policies is very limited. *Graham* and *Miller* raised as many questions as they answered. After *Miller* held mandatory LWOP unconstitutional, would courts apply the rule retroactively to more than twenty-five hundred youths sentenced prior to the decision? *Miller* did not categorically ban LWOP sentences for juvenile murderers, so how should states’ sentencing laws frame culpability assessments? What factors should judges consider when they make individualized evaluations? Does *Miller*’s ban on mandatory LWOP apply to other mandatory sentences for juveniles? Does *Graham*’s prohibition on LWOP for youths convicted of non-homicide crimes apply to those who receive very long or consecutive sentences that exceed their life expectancy? Are states obligated to provide rehabilitative resources to give youths a meaningful opportunity to change? States’ contradictory answers to these questions require a clearer approach to youth sentencing policy.

Retroactivity

When the Court announces a new constitutional rule as in *Miller*, it must decide whether to apply it retroactively to youths who previously received sentences now deemed invalid. About twenty-five hundred prisoners had received mandatory LWOP for murders committed as

juveniles and some had been confined for decades.¹⁷⁴ The Court hesitates to apply new constitutional rules retroactively because of concerns about undermining finality of judgments, federalism, and risks of overturning convictions that states could not prosecute years later.¹⁷⁵ Its retroactivity jurisprudence distinguishes between defendants who raise a constitutional issue on direct appeal and those who seek collateral relief through habeas corpus proceedings after their convictions have become final.¹⁷⁶ Its retroactivity doctrine also distinguishes between substantive rules—those that more narrowly interpret the scope of a criminal statute or place particular conduct beyond the state’s power to punish—and procedural rules—constitutionally infirm procedures that merely raise the possibility of an erroneous conviction.¹⁷⁷

After *Miller*, dozens of state and federal appellate courts considered whether it was a substantive or procedural ruling.¹⁷⁸ When the Court resolved the issue in 2016, twelve state courts had applied *Miller* retroactively as a substantive rule and five state and federal appellate courts held that it was a procedural rule and denied retroactive application.¹⁷⁹ *Montgomery v. Louisiana* resolved lower courts’ conflicting decisions, held that *Miller* announced a substantive rule, and ruled that youths who received a mandatory LWOP prior to *Miller* would be eligible for resentencing or parole consideration.¹⁸⁰ *Montgomery* concluded that “[p]rotection against disproportionate punishment is the central substantive guarantee of the Eighth Amendment and goes far beyond the manner of determining a defendant’s sentence.”¹⁸¹ *Montgomery* concluded that applying *Miller* retroactively would not undermine the finality of youths’ convictions or require states to relitigate every sentence. “A State may remedy a *Miller* violation by permitting juvenile homicide offenders to be considered for parole, rather than by resentencing them.”¹⁸²

Individualized Culpability Assessments: Judicial and Legislative Criteria

What factors should sentencing laws and trial judges consider to make culpability assessments and decide whether or not to impose LWOP? *Miller* gave lawmakers and judges minimal guidance. The factors it described—age, immaturity, impetuosity, family and home environment,

circumstances of and degree of participation in the offense, youthful incompetence, and amenability to treatment—give expression to judges’ subjective discretion.¹⁸³ State courts’ interpretations of *Miller* vary substantially. Some direct judges to consider “*Miller factors*,” or “factors in mitigation,” while others provide comprehensive lists of factors.¹⁸⁴ The California Supreme Court in *Gutierrez v. People* analyzed *Miller*’s criteria and directed sentencing judges how to fully consider each factor.¹⁸⁵ One court summarized the *Miller* inquiry and concluded that “the enumerated factors are not ends in themselves but rather are, when considered together in a reasoned manner, the useful and necessary means by which a sentencing court must determine whether transient immaturity requires some degree of leniency or irreparable corruption must be punished as severely as possible.”¹⁸⁶ While *Roper* and *Graham* emphasized that “children are different,” *Miller* enables judges to decide that “this kid is different,” emphasize callousness, maturity, or dangerousness, and impose the harshest penalty. *Miller* is difficult to implement fairly and consistently because “the framework is based on subjective criteria, whereby judges must somehow decide based on very limited evidence whether juvenile offenders have adult capacities.”¹⁸⁷ Without clear guidelines and appellate control, judges are unlikely to recognize youths’ reduced culpability.

Miller required twenty-nine states to revise mandatory LWOP statutes and provide individualized assessments.¹⁸⁸

Some states have heeded the call of the *Miller* Court and have comprehensively reconsidered LWOP and extreme custodial sentences as they apply to children. To begin, nine states have abolished juvenile LWOP, and three more have banned it for some categories of juveniles. . . . On the other end of the spectrum, some states have missed the mark by replacing mandatory juvenile LWOP with another mandatory juvenile sentence and, in some cases, still leaving juveniles exposed to an LWOP sentence. For example, two states have enacted post-*Miller* legislation that replaces mandatory LWOP with a mandatory minimum of 40 years for juveniles convicted of homicide. Other states have imposed similarly steep mandatory minimums and still permit juvenile LWOP. . . . Of the 13 states that have passed legislation in response to *Miller*, nine still permit juvenile LWOP, and none set an alternative minimum sentence at less than 25 years.¹⁸⁹

Some states adopted *Miller* factors for a judges to consider.¹⁹⁰ A few states abolished juvenile LWOP sentences entirely; others replaced them with sentences ranging from twenty-five years to life with periodic reviews, or determinate sentences of forty years to life.¹⁹¹ The Iowa Supreme Court in *State v. Sweet* categorically prohibited imposition of LWOP on juveniles convicted of murder because there was no basis on which a judge at the time of sentencing could determine that a youth would be forever incorrigible.¹⁹² Other states provide age-tiered minimum sentences for parole consideration—twenty-five years for youths fourteen or younger convicted of murder; thirty-five years for those fifteen or older.¹⁹³ None of these legislative changes approximate the American Law Institute’s Model Penal Code recommendations that juveniles should be eligible for parole consideration after ten years.¹⁹⁴

Life without Parole vs. Lengthy Aggregate Sentences

Graham barred LWOP for juveniles convicted of a non-homicide crimes, but many more youths are serving de facto life sentences—aggregated mandatory minima or consecutive terms totaling 50–100 years or more—than those formally sentenced to LWOP.¹⁹⁵ Do consecutive or multiple sentences for non-homicide crimes equal an LWOP sentence that violates the Eighth Amendment? The California Supreme Court in *People v. Caballero* found that a 110-year-to-life sentence imposed on a juvenile convicted of several non-homicide offenses did not provide a meaningful opportunity to obtain release.¹⁹⁶ The Iowa Supreme Court in *State v. Null* held that a 52-year minimum sentence based on aggregated mandatory sentences violated *Miller* because “an offender sentenced to a lengthy term-of-years sentence should not be worse off than an offender sentenced to life in prison without parole who has the benefit of an individualized hearing under *Miller*.”¹⁹⁷ *Null* also held that long mandatory minimum violated *Graham* because “The prospect of geriatric release, if one is to be afforded the opportunity for release at all, does not provide a ‘meaningful opportunity’ to demonstrate . . . ‘maturity and rehabilitation’”¹⁹⁸

By contrast, other courts read *Graham* narrowly, limit its holding to formal LWOP sentences, and uphold consecutive terms that exceed youths’ life expectancy. *Bunch v. Smith* reasoned that *Graham* involved

an LWOP sentence for a single crime and “did not clearly establish that consecutive, fixed-term sentences for juveniles who commit multiple nonhomicide offenses are unconstitutional when they amount to the practical equivalent of life without parole.”¹⁹⁹

Non-Homicide Mandatory Sentences

Although *Miller* required an individualized culpability assessment, Chief Justice Roberts’s dissent observed that there is “no clear reason that [*Miller*’s] principle would not bar all mandatory sentences for juveniles or any juvenile sentence as harsh as what a similarly situated adult would receive.”²⁰⁰ State courts divide over whether *Miller* applies to mandatory sentences that preclude consideration of youthful mitigation. Several post-*Miller* courts have approved twenty-five-year mandatory minimum sentences without any individualized culpability assessments.²⁰¹ By contrast, the Iowa Supreme Court in *State v. Lyle* found all mandatory minimum sentences violated the state constitution.²⁰² *Lyle* found no reason to prohibit mandatory sentences for murder but to deny judges’ discretion to consider mitigating evidence when sentencing juveniles for other crimes.²⁰³

Mandatory Waiver

In Chapter 5, I likened judicial transfer to the death penalty because of its low incidence, standardless discretion, repudiation of youthfulness, and inconsistency with juvenile courts’ rehabilitative premises. After *Furman v. Georgia* condemned discretionary capital punishment, states adopted mandatory death penalty provisions, which *Woodson v. North Carolina* struck down as too rigid and inflexible. *Miller* relied on *Woodson* to require individualized consideration of youthful mitigating factors. Does *Miller*’s prohibition of mandatory LWOP apply to transfer provisions—offense exclusion and prosecutorial direct file—that do not provide individualized assessments? *Miller*’s observation that “criminal procedure laws that fail to take defendants’ youthfulness into account at all would be flawed” may preclude automatic transfer laws.²⁰⁴ Offense exclusion is a mandatory sentence—the offense charged equals automatic adulthood. Prosecutorial direct file is not just a charging decision

but a sentencing decision made without any standards, knowledge of a juvenile's circumstances, formal reasons, or appellate review. Just as the Court's death penalty jurisprudence allows a defendant to present mitigating evidence to a judge to avoid execution, "a juvenile facing transfer should be able to present mitigating evidence to spare him a permanent disbarment from the benefits of childhood."²⁰⁵

Access to Rehabilitative Services

Graham required states to provide juveniles with a "meaningful opportunity to obtain release based on demonstrated maturity and rehabilitation."²⁰⁶ But many states abolished parole boards and others required inmates to serve substantial fractions of fixed-term sentences before eligibility for release.²⁰⁷ *Graham* required states to reinstate some discretionary release. Although parole will not always be granted, it is expected that most youths would be released at some point. The Court remitted to states the responsibility to develop procedures for compliance and to provide a meaningful opportunity to obtain release. State correctional systems typically denied juveniles serving life sentences access to counseling, education, and rehabilitation programs in favor of those eligible for parole. *Graham* provides a modest nudge to improve conditions of confinement and provide rehabilitative services, because absent some affirmative obligation, the Court's injunction would be meaningless.

Youth Discount

There is a straightforward alternative to the confusion and contradiction reviewed above. States should formally incorporate youthfulness as a mitigating factor in sentencing statutes. *Roper*, *Graham*, and *Miller* affirm that youthful mitigation applies both to capital and non-capital sentences.²⁰⁸ Youths who produce the same harms as adults are not their moral equals and do not deserve the same consequences.²⁰⁹ Youthful mitigation does not excuse criminality, holds juveniles accountable for their crimes, but proportions punishment to their diminished responsibility.²¹⁰ Other countries routinely recognize youthfulness as a mitigating factor as a "principle of fundamental justice."²¹¹

Categorical Recognition of Youthful Mitigation

Despite the Court's preference for individualized culpability assessments, *Roper* and *Graham* adopted a categorical prohibition because "[t]he differences between juvenile and adult offenders are too well marked and well understood to risk allowing a youthful person to receive the death penalty despite insufficient culpability."²¹² The Court feared that a judge or jury could not properly consider youthful mitigation when confronted with an especially brutal or heinous crime. Because clinicians cannot accurately distinguish between the vast majority of immature juveniles who deserve leniency and the rare youth who might possess adult-like culpability, it would not allow a jury to do so.

The Court in *Miller*, Chief Justice Roberts's concurrence in *Graham*, and the dissenting Justices in all three cases advocated for individualized assessments. *Roper* and *Graham* endorsed categorical rule rather than guided discretion even though the Justices recognized individual variability in culpability.²¹³ The Court reasoned that a rule which occasionally "under-punishes the rare, fully-culpable adolescent still will produce less aggregate injustice than a discretionary system that improperly, harshly sentences many more undeserving youths."²¹⁴

The seriousness of a crime reflects the blameworthiness of the actor's choice to cause harm.²¹⁵ Adolescents' deficits of judgment and self-control reflect common developmental processes and should provide categorical reductions of all adult sentences.²¹⁶

There are two reasons to prefer a categorical rule over individualized discretion.²¹⁷ First, judges and legislators cannot define or identify what constitutes adult-like culpability. Culpability is not an objectively measurable thing, but a subjective judgment about criminal responsibility.²¹⁸ Development is highly variable—a few youths may achieve competencies prior to eighteen years of age, while many others may not attain maturity even as adults.²¹⁹ Despite individual developmental differences, clinicians lack tools with which to assess youths' impulsivity, foresight, and preference for risk, or a metric by which to relate maturity of judgment with criminal responsibility.²²⁰ The inability to define, measure, or diagnose immaturity or validly to identify a few responsible youths could introduce a systematic bias toward overpunishing less culpable juveniles.²²¹ When there is no objective basis on which to exercise in-

dividualized discretion, case-by-case assessments are error prone, likely to reflect factors other than immaturity, contribute to racial disparities, and overpunish less blameworthy youths.²²² The law uses age-based categorical lines to approximate the level of maturity required for particular activities—voting, driving, and consuming alcohol—and restricts youths without individualized assessments of their maturity or ability to make competent decisions.²²³

The second reason to adopt a categorical rule of youthful mitigation is judges' or juries' inability to fairly weigh the abstraction of diminished responsibility against the aggravating reality of a horrific crime.²²⁴ *Roper* rightly feared that jurors could not distinguish between a person's diminished responsibility for causing a harm and the harm itself, and the heinousness of a crime trumped reduced culpability.²²⁵ When courts sentence minority offenders, unconscious racial stereotypes compound the difficulties of assessing immaturity.²²⁶ Although *Miller* requires individualized culpability assessments, states' conflicting and inadequate responses require a more workable alternative. Treating youthfulness categorically is a more efficient way to address immaturity because every juvenile exhibits some degree of diminished responsibility.²²⁷

Age as a Proxy for Diminished Responsibility

The abstract meaning of culpability, the inability to measure or compare moral agency of youths, the administrative complexity of individualization, and the tendency to overweigh harm require a clear-cut alternative. A categorical Youth Discount would give all adolescents fractional reductions in sentence lengths based on age as a proxy for culpability.²²⁸ While age may be an incomplete proxy for maturity or culpability, no better bases exist on which to distinguish among young offenders.²²⁹ *Miller* recognized that same-length sentences exact a greater penal bite from younger offenders than older ones.²³⁰ Imprisonment *per se* is more developmentally disruptive and onerous for adolescents than adults.²³¹

A statutory Youth Discount would require a judge to give substantial reductions to youths off the sentence an adult convicted of the same crime would receive. It creates a sliding scale of diminished responsibility and gives the largest reductions to the youngest offenders.²³² If tried as an adult, a fourteen-year-old would receive a sentence substantially

shorter than those an adult would receive—perhaps 10% or 20% of the adult length. A sixteen-year-old would receive a maximum sentence no more than one-third or one-half the adult length. Deeper discounts for younger offenders correspond with their greater developmental differences in judgment and self-control. A youth would need only a birth certificate to establish her eligibility for and the amount of discount. A judge can more easily apply a Youth Discount in states that uses sentencing guidelines under which the present offense and prior record dictate presumptive sentences. In less structured sentencing systems, a judge would have to determine the going rate or appropriate sentence for an adult convicted of that offense and then reduce it by the Youth Discount.

The Youth Discount's diminished responsibility rationale would preclude mandatory, LWOP, or *de facto* life sentences for young offenders.²³³ LWOP is inherently indeterminate. For youths convicted of an offense for which an adult would receive LWOP, states should apply a Youth Discount to a presumptive sentence of forty years—the average age at which adult murderers enter prison and their shorter life expectancy.²³⁴ A Youth Discount recognizes that recidivism decreases with age while the costs of confining geriatric inmates increases.²³⁵ Although some legislators may find it difficult to resist penal demagoguery, states can achieve all of their legitimate penal goals by sentencing youths to a maximum of no more than twenty or twenty-five years for even the most serious crimes. The American Law Institute's Model Penal Code recommends that

[n]o sentence of imprisonment longer than [25] years may be imposed for any offense or combination of offenses. For offenders under the age of 16 at the time of commission of their offenses, no sentences of imprisonment longer than [20] years may be imposed. For offenders under the age of 14 at the time of commission of their offenses, no sentence of imprisonment longer than [10] years may be imposed.²³⁶

Several juvenile justice analysts and policy groups have endorsed the Youth Discount as a straightforward way to proportionally reduce sentences for younger offenders. David Tanenhaus and Steven Drizin “endorse Feld’s proposals [for a youth discount] because they respect the notion that juveniles are developmentally different than adults and

that these differences make juveniles both less culpable for their crimes and less deserving of the harsh sanctions, which now must be imposed on serious and violent adult offenders.”²³⁷ In *Rethinking Juvenile Justice*, Elizabeth Scott and Laurence Steinberg conclude that “[p]roportionality supports imposing statutory limits on the maximum duration of adult sentences impose[d] on juveniles—a ‘youth discount,’ to use Feld’s term.”²³⁸ The Reporter’s Note to the Model Penal Code § 6.11A acknowledges that the framework of its recommendation for “specialized sentencing rules and mitigated treatment of juvenile offenders sentenced in adult courts, owes much” to Feld’s proposal for a Youth Discount—“a sliding scale of developmental and criminal responsibility.” The National Institute of Justice sponsored a study group that concluded that “[y]ouths’ diminished responsibility requires mitigated sanctions to avoid permanently life-changing penalties and provide room to reform.”²³⁹

The American Bar Association condemned juvenile LWOP sentences and proposed that statutes formally recognize youthfulness as a mitigating factor and provide for earlier parole release consideration.²⁴⁰ The American Law Institute’s revised Model Penal Code states that when judges sentence offenders convicted of crimes committed prior to the age of eighteen, “the offender’s age shall be a mitigating factor, to be assigned greater weight for offenders of younger ages,”²⁴¹ and that youth sanctions should rehabilitate and reintegrate young offenders rather than simply punish them.

Although a small subset of chronic or life-course persistent offenders pose a risk of future offending, *Roper* observed that “it is difficult even for expert psychologists to differentiate between the juvenile offender whose crime reflects unfortunate but transient immaturity, and the rare juvenile offender whose crime reflects irreparable corruption.”²⁴² *Graham* and *Miller* reaffirmed judges’ inability to identify future high-risk individuals at the time of their trial and sentencing.

Proportionality is a retributive concept, not a utilitarian one. *Roper*, *Graham*, and *Miller* rest firmly on retributive grounds—reduced culpability—and examined and disposed of utilitarian arguments.²⁴³ Accordingly, there is no basis on which to disregard the mitigating role of youthfulness or to allow judges to incapacitate some youths based on speculation they might be life-course persistent offenders.

Roper, *Graham*, and *Miller* emphasized that juveniles' personalities are more transitory and less fixed than adults', their crimes provide less reliable evidence of "irretrievably depraved character," and "a greater possibility exists that a minor's character deficiencies will be reformed."²⁴⁴ Adolescence is a period of rapid growth and transition and youths change more quickly and to a greater degree in the years following a crime than older offenders. Some criminal offending is normal for adolescents, major interventions may be unnecessary, and punitive sanctions may be counterproductive.²⁴⁵ Although crime rates increase rapidly among teenage males, their desistance rates are equally high as they mature into their early twenties and most will outgrow delinquency.²⁴⁶ The Progressives recognized a century ago that youths in adult institutions are vulnerable to victimization, at greater risk of psychological harm and suicide, and more likely to reoffend in the future.

A Youth Discount enables young offenders to survive serious mistakes with a semblance of their life chances intact.²⁴⁷ We can hold them accountable, manage the risks they pose, and provide them with a meaningful opportunity to reform without extinguishing their lives.²⁴⁸ A young person who committed a terrible crime at fourteen or fifteen is a very different person than the adult who remains incarcerated decades later. Because youths eventually will return to the community, states should provide resources with which to reform them as they mature.

Conclusion

Roper, *Graham*, and *Miller*'s diminished responsibility rationale recognizes youthfulness as a mitigating factor. Adolescents deserve shorter sentences than adults when they cause the same harms because of their reduced culpability. It is unjust and irrational to continue harshly punishing a fifty- or sixty-year-old person for a crime that an irresponsible child committed many decades earlier. *Roper* and *Graham* used age as a proxy for culpability because no better, more reliable or accurate bases exist on which to individualize youths' sentences. Culpability is a normative construct. It is not an objective thing and there are no tools with which to measure how much culpability a youth possesses. Proportioning culpability is a moral judgment about deserved punishment. *Roper* and *Graham* feared that individualized culpability judgments would

create a systematic bias and that judges would treat youthfulness as an aggravating rather than mitigating factor.

The Supreme Court has reached the limit of what it can accomplish through the Eighth Amendment to ameliorate harsh sentences for children. A Youth Discount provides a reasonable approximation of “what any parent knows”—kids are different and do stupid and dangerous things because they are kids. The amount by which to discount youths’ sentences is a legislative policy choice, but states can achieve legitimate penal goals with maximum sentences of twenty or twenty-five years for even the most serious crimes. It will take political courage for legislators to enact laws that recognize young offenders’ diminished responsibility. It will take bravery when a political opponent may charge a legislator with being soft on crime. The legislators who enacted unjust, disproportionate, and counterproductive transfer and sentencing laws must undo the damage they caused and adopt sensible laws for children.

The Defendant Is a Kid

Adolescents' Competence to Exercise Procedural Rights

A half century ago, the Supreme Court in *Kent v. United States* observed that “the child receives the worst of both worlds: he gets neither the protections accorded to adults nor the solicitous care and regenerative treatment postulated for children.”¹ In Chapter 5, I argued that get tough changes have transformed juvenile courts’ nominally “rehabilitative treatment” into sanctions that closely resemble criminal punishment. Here, I argue that delinquents do not receive the criminal procedural protections afforded adults prior to punishment. Two competing images of youth influence court procedures and assure that they receive the worst of both worlds. Judges and legislators sometimes depict young people as vulnerable children who need special safeguards to protect themselves from their own immaturity. At other times, they portray youths as mature and responsible and treat them just like adults. When policy makers choose between competing images of immaturity and responsibility, they ignore developmental differences that would justify stronger safeguards for youths. Instead, they treat juveniles just like adults when formal equality results in practical inequality and in other instances use juvenile court procedures that provide fewer protections than criminal defendants enjoy. These contradictory views raise questions about adolescents’ competence to exercise rights and the reliability of court judgments. The answers implicate the accuracy of fact-finding, the quality of justice, the legitimacy of collateral consequences, and the dangers of wrongful convictions.

This chapter examines juvenile court procedures and youths’ competence to exercise rights: *Miranda* rights, competence to stand trial, access to counsel, and jury trial. The first section briefly reviews policy makers’ conflicted views of juveniles’ competence to exercise rights, *Gault*’s rationale to provide procedural safeguards, and the impetus

it gave to divert and handle offenders informally. The second section analyzes juveniles' exercise of *Miranda* rights. It contrasts states' use of adult legal standards with psychological research that describes juveniles' questionable competence and vulnerability during interrogation. The third section reviews legal standards and developmental research on adolescents' competence to stand trial. The fourth section examines juveniles' competence to waive counsel, the impact of waivers on delivery of legal services, and appellate courts' inability to oversee justice administration. The fifth section examines juveniles' right to a jury trial. *McKeiver*'s denial of a jury undermines accurate fact-finding, makes it easier to convict delinquents than criminal defendants, and heightens risks of wrongful convictions. States use those flawed convictions to punish delinquents, to enhance criminal sentences, and to impose collateral consequences.

Competing Conceptions of Juveniles' Competence and Procedural Rights

A century ago, Progressive reformers created juvenile courts to divert children from criminal courts and to treat rather than punish them. Envisioned as a welfare agency, juvenile courts rejected criminal procedural safeguards and dispensed with formalities like lawyers, juries, and rules of evidence.² Questions about children's competence to stand trial or to exercise rights seldom arose because of delinquency proceedings' informality and welfare orientation.

In 1967, *In re Gault* began to transform the juvenile court from a social welfare agency into a more formal legal institution.³ The Court emphasized juvenile courts' criminal elements—youths charged with crimes facing institutional confinement, stigma of delinquency labels and records, judicial arbitrariness, and high rates of recidivism—and required proof of guilt using fair procedures. Although *Gault* did not adopt adult procedural protections, it precipitated an operational convergence between juvenile and criminal courts. Progressive reformers depicted children as immature and rejected procedures, but *Gault* viewed delinquents as competent to exercise rights in an adversarial process. Subsequent decisions further emphasized delinquency proceedings' criminal character. *In re Winship* required states to prove

delinquency beyond a reasonable doubt rather than by the civil standard of proof.⁴ *Breed v. Jones* posited a functional similarity between juvenile and criminal trials and applied the Fifth Amendment's double jeopardy clause to delinquency prosecutions.⁵ However, *McKeiver v. Pennsylvania* denied delinquents a jury trial and rejected procedural parity between delinquency and criminal proceedings.⁶ Get tough changes have eroded *McKeiver's* rationale and denial of a jury adversely affects accurate fact-finding and the presence and performance of counsel, and increases the likelihood of wrongful convictions.⁷

Progressives created juvenile courts to divert youths from the criminal justice system. *Gault's* greater procedural formality increased the administrative burden of adjudicating delinquents and provided impetus to divert some youths from juvenile courts. Formal procedures pose no impediment to juvenile courts' diversionary mission to protect youths from the harms inflicted by criminal courts, jails, and prisons.⁸ But enhanced safeguards could impede their ability to intervene with some youths for whom the state lacked adequate proof of guilt.

In 1967, the President's Crime Commission issued reports contemporaneously with *Gault* that proposed a two-track juvenile justice system—one informal, the other formal—for minor and serious offenders. It advised consensual, diversionary, and informal handling of less serious delinquents and status offenders.⁹ Those proposals reflected criminologists' concerns that juvenile courts stigmatized and labeled delinquents and supported their calls for judicious nonintervention in response to most miscreants.¹⁰ The Crime Commission's recommendation for a more formal juvenile court recognized that they intervened to control crime and protect the community and endorsed criminal procedural safeguards whenever the state proposed to remove a child from the home.¹¹

Juvenile courts handle about half of the youths referred to them informally without filing a petition or proceeding to trial.¹² Court intake workers or prosecutors perform a triage function and conduct a rapid assessment to determine whether a youth's crime or welfare require formal juvenile court attention or can be discharged or referred to others for care. Diversion minimizes formal adjudication and provides supervision or services in the community. The original juvenile court diverted

youths from criminal courts. In its current guise, diversion shifts youths who might otherwise enter the system from juvenile courts. Proponents of diversion contend that it is an efficient gate-keeping mechanism, avoids labeling minor offenders, and provides flexible access to community resources that referral after a formal process might delay. Because most youths desist after one or two contacts, it allows them to distinguish by recidivism those who need more formal controls and conserves judicial resources for those cases.

Critics of diversion contend that it widens the net of social control and exposes youths to informal supervision whom juvenile courts otherwise might have ignored. Probation officers or prosecutors who do preliminary screening of cases make low-visibility decisions that are not subject to judicial or appellate review. Many states do not use formal screening or assessment tools and discretion at intake constitutes the most significant source of racial disparities in case processing.¹³ The criteria and administration of diversion raise many significant policy concerns. But cases handled informally do not raise the procedural issues of formal adjudication and seldom result in out-of-home placements that would require greater legal safeguards.

During the Get Tough Era, states adopted harsh policies that equated the crimes and culpability of adolescents with those of adults. In Chapter 5, I analyzed juvenile courts' sentencing policies and practices, identified the differences between treatment and punishment, emphasized that they penalized delinquents, and increased youths' needs for protection from the state. Progressive reformers assumed that children were incompetent and used informal procedures. *Gault* made delinquency hearings more formal, complex, and legalistic and required youths to participate in and make difficult decisions. Developmental psychologists question whether younger juveniles possess competence to stand trial and whether adolescents have the ability to exercise *Miranda* rights or to waive counsel. The developmental psychological research reviewed in Chapter 8 indicates that younger and mid-teens exhibit substantial deficits in understanding, maturity of judgment, and competence compared with adults. Despite clear differences between youths and adults, the Court and most states do not provide additional safeguards to protect them from their immaturity and increase the likelihood of erroneous outcomes.

Procedural Fairness and Legal Socialization

Youths' interactions with the justice system can promote or undermine legal socialization and their likelihood to cooperate or comply with legal actors.¹⁴ People's perception of justice depends on the legitimacy of the process that determines the outcome and not simply whether they win or lose. People are more likely to perceive a court experience as legitimate and abide by its rules if they feel the system treated them fairly.¹⁵ Children's experience with or awareness of others' encounters with the law shape their attitudes toward authority and rules.¹⁶ Procedural justice rests on the equality and consistency of the process, the system's respectful treatment of parties, their ability to participate in and affect outcomes, and the neutrality and fairness of the fact-finder.¹⁷ Juveniles are critical consumers of justice and the ways that court personnel treat them affects their ideas about laws, their perceptions of the process, and their feelings of obligation to obey the law.¹⁸ Juvenile courts' procedures disregard youths' developmental limitations, deviate from accepted criminal procedural norms, use processes that few adults charged with a crime and facing confinement would accept, and undermine delinquents' feelings of fair treatment.

Police Interrogation of Juveniles

Police interrogation raises difficult legal and policy questions about justice administration and the relationship between the individual and the state. These questions become more acute when police interview juveniles who may be more vulnerable to interrogative pressures. The Court has decided more cases about interrogating youths than any other issue of juvenile justice.¹⁹ Although it repeatedly has questioned juveniles' ability to exercise *Miranda* rights or make voluntary statements, it does not require special procedures to protect them. Rather, *Fare v. Michael C.* endorsed the adult standard—knowing, intelligent, and voluntary—to gauge juveniles' *Miranda* waivers.²⁰

The law treats juveniles just like adults when formal equality results in practical inequality. This section examines how courts think about youthfulness when police interrogate juveniles. In most jurisdictions, the law on the books equates juveniles with adults. It then reviews de-

developmental psychological research on juveniles' competence to exercise *Miranda* rights which questions adolescents' ability to understand warnings or exercise them effectively. It examines the law in action—empirical research on how youths respond to interrogation practices designed for adults. It highlights how developmental immaturity and susceptibility to manipulation increase juveniles' likelihood to confess falsely. It concludes with proposals of policies to redress the imbalance between legal expectations and developmental limitations.

Questioning Juveniles: The Law on the Books

Supreme Court decisions about youth reflect competing images of immaturity and vulnerability versus maturity and responsibility. These conflicting images elicit rulings that support protectionist or liberationist policies. A protectionist stance provides children with additional safeguards to offset their immaturity or restricts their rights because of their presumed inability to exercise them responsibly. A liberationist perspective portrays youths as autonomous and adult-like and treats them like other responsible actors.²¹

In the decades prior to *Miranda*, the Court adopted a protectionist stance and cautioned trial judges to examine closely how youthfulness affected the voluntariness of confessions. *Haley v. Ohio* emphasized that a fifteen-year-old boy's age and inexperience increased his vulnerability and rendered his confession involuntary. "That which would leave a man cold and unimpressed can overawe and overwhelm a lad in his early teens. This is the period of great instability which the crisis of adolescence produces. . . . [W]e cannot believe that a lad of tender years is a match for the police in such a contest."²² *Gallegos v. Colorado* found that age was a special circumstance that rendered a boy's confession involuntary. "[A] 14-year old boy, no matter how sophisticated . . . is not equal to the police in knowledge and understanding . . . and is unable to know how to protect his own interests or how to get the benefits of his constitutional rights. . . . Without some adult protection against this inequality, a 14-year old boy would not be able to know, let alone assert, such constitutional rights as he had."²³ *Haley* and *Gallegos* found youthfulness, lengthy questioning, and the absence of a lawyer or parent rendered confessions involuntary. They recognized that children are not

the equals of adults and required an attorney or parent to offset their vulnerability.

In re Gault reiterated concern that youthfulness adversely affected juveniles' statements. The Court repeated that "admissions and confessions of juveniles require special caution" and reminded that "[e]ven greater protection might be required where juveniles are involved, since their immaturity and greater vulnerability place them at a greater disadvantage in their dealings with police."²⁴ Recall from Chapter 2, *Gault* granted delinquents most procedural rights—notice, hearing, counsel, and cross-examination—based on the Fourteenth Amendment Due Process Clause. However, it relied explicitly on the Fifth Amendment to give delinquents the privilege against self-incrimination. "It would be entirely unrealistic to carve out of the Fifth Amendment all statements by juveniles on the ground that these cannot lead to 'criminal' involvement. . . . [J]uvenile proceedings to determine 'delinquency,' which may lead to commitment to a state institution, must be regarded as 'criminal' for purposes of the privilege against self-incrimination."²⁵ It recognized that the Fifth Amendment contributes to accurate fact-finding *and* maintains the adversarial balance between and protects the individual from the state.

The privilege against self-incrimination is, of course, related to the question of the safeguards necessary to assure that admissions or confessions are reasonably trustworthy, that they are not mere fruits of fear or coercion, but are reliable expressions of the truth. . . . One of its purposes is to *prevent the state*, whether by force or by psychological domination, from overcoming the mind and will of the person under investigation and depriving him of the freedom to decide whether to assist the state in securing his convictions.²⁶

Gault assumed that youths could exercise rights and participate in the legal process.

Fare v. Michael C. departed from *Haley*, *Gallegos*, and *Gault*'s concerns about youths' vulnerability. *Michael C.* involved a sixteen-year-old who had several prior arrests, served time in a juvenile facility, and requested his probation officer prior to interrogation. The Court decided *Michael C.* as a *Miranda* case rather than as a juvenile interrogation case

and held that legal standard used to evaluate adults' waivers—"knowing, intelligent, and voluntary under the totality of the circumstances"—governed juveniles' waivers as well.²⁷ *Michael C.* reasoned that *Miranda* provided an objective basis to evaluate waivers, denied that children's developmental differences demanded special protections, and required them to assert rights clearly.²⁸

Miranda provided that if police question a suspect who is in custody—arrested or “deprived of his freedom of action in any significant way”—they must administer a warning.²⁹ The Court in *J.D.B. v. North Carolina* considered whether a thirteen-year-old juvenile's age affected the *Miranda* custody analysis.³⁰ The Court concluded that age was an objective factor that would affect how a young person might experience restraint.³¹ The Court noted that in other contexts it treated features of childhood such as susceptibility to influence or outside pressure as objective facts.³² An officer who knew or should have known a youth's age could properly assess how that would affect her feeling of custody.³³ *J.D.B.* recognized that juveniles could feel restrained under circumstances in which an adult might not. *J.D.B.* drew on *Roper* and *Graham*'s diminished responsibility rationale to emphasize their immaturity, inexperience, and heightened vulnerability during interrogation.³⁴

Despite *J.D.B.*'s renewed concern about youths' vulnerability, the vast majority of states use the same *Miranda* framework for juveniles and adults.³⁵ *Miranda* only requires that suspects understand the words of the warning and not collateral consequences of a waiver. Most states do not require a parent or lawyer to assist juveniles.³⁶ When trial judges evaluate *Miranda* waivers, they consider characteristics of the offender—age, education, IQ, and prior police contacts—and the context of interrogation—location, methods, and length of interrogation. The leading cases provide long lists of factors for trial judges to consider.³⁷ Appellate courts identify many relevant elements, do not assign controlling weight to any one variable, and defer to trial judges' decisions whether a juvenile made a valid waiver.³⁸ Without decisive factors, *Michael C.* provides no meaningful check on judges' discretion to find that youths waived their rights.³⁹ Many youths claim to understand their rights to avoid admitting they do not, but police and judges will not probe further to determine what they know.⁴⁰

Once judges find a valid waiver, appellate courts can only overrule them if the decision was clearly erroneous or an abuse of discretion—a very high standard. Trial judges failed to recognize that juveniles' waivers were involuntary or confessions coerced or false even when DNA evidence subsequently exonerated them.⁴¹ Judges regularly find valid waivers made by children as young as ten or eleven years of age, with limited intelligence or significant mental disorders, with no prior police contacts, and without parental assistance.⁴²

About ten states presume that most juveniles lack capacity to waive *Miranda* and require a parent or other adult to assist them.⁴³ Adopting a categorical *per se* rule—parental presence—avoids after-the-fact review to assess whether immaturity undermined a youth's waiver. Some states require a parent for juveniles younger than fourteen years, presume that those fourteen or sixteen years or younger are incompetent to waive, or oblige police to offer older youths an opportunity to consult.⁴⁴ Most commentators endorse parental presence, even though many question the value of their participation.⁴⁵

States that require parental presence make several questionable assumptions. They posit an identity of interests between parent and child. They assume that parents possess greater abilities to make legal decisions than do their children. They believe that a parent will improve a child's understanding, provide legal advice, mitigate danger of unreliable statements, reduce feelings of isolation, and lessen coercive influences.⁴⁶ Because most states do not record interviews, a parent can witness and assure the accuracy of any statement obtained.⁴⁷ They may assist police to assess a youth's understanding and competency. They provide the means through which youths might obtain counsel. In the more punitive juvenile system, courts acknowledge youths need additional safeguards to achieve functional parity with adults.⁴⁸

These protectionist assumptions and policies may not be valid. Parents' and children's interests may conflict, for example, if the juvenile assaulted or stole from a parent, victimized another sibling, or the parent is a suspect.⁴⁹ Parents may have a financial conflict of interests if they have to pay for their child's attorney. They may have an emotional reaction to their child's current arrest or chronic trouble.⁵⁰ They may expect their children to tell the truth, urge them to stop lying, or physically

threaten them to confess.⁵¹ Parents may not understand legal rights or consequences of waiver any better than their children.⁵²

The Court's "children are different" jurisprudence emphasized developmental characteristics that heighten youths' vulnerability in the interrogation room. Despite its repeated references to youth's immaturity, most states use adult standards to gauge juveniles' waivers. If youths differ from adults in understanding *Miranda*, conceiving of or exercising rights, or susceptibility to pressure, then the law establishes a standard that few can meet and enables states to take advantage of their limitations.

Developmental Psychology and Juveniles' Legal Understanding

Developmental psychologists question whether juveniles can meet an adult waiver standard. *Miranda* requires police to advise suspects of their rights, but some juveniles do not understand the words or concepts. *Miranda* did not require police to use specific language to convey the substance of the rights and police departments around the country report more than five hundred different versions of the warning.⁵³ Psychologists studied the vocabulary, concepts, and reading levels required to understand warnings and concluded that they exceed many adolescents' abilities.⁵⁴ Key words require an eighth-grade level of education and most juveniles thirteen years or younger cannot grasp their meaning.⁵⁵ Some concepts—such as a "right," the term "appointed" to secure counsel, and "waive"—require a high school education and reduce many youths' *Miranda* comprehension. Many juveniles cannot define critical words in the warning.⁵⁶ Special dumbed-down juvenile warnings are often even longer and more difficult to understand.⁵⁷ If a demanding reading level or verbal complexity makes a warning unintelligible, then it cannot serve its protective function.⁵⁸

Juveniles' Understanding of Miranda

Psychologist Thomas Grisso has studied juveniles' exercise of *Miranda* for more than four decades. He reports that many, if not most, do not understand the warning well enough to make a valid waiver.⁵⁹ He conducted his research under benign conditions—as a researcher in a

laboratory rather than an officer in an interrogation room—and used simple warnings that required only a sixth- or seventh-grade reading level. Under these favorable conditions, most adults understood the warnings, but the majority of juveniles did *not* understand well enough to make a valid waiver. Although age, intelligence, and prior arrests correlated with *Miranda* comprehension, more than half (55.3%) of juveniles, as contrasted with less than one-quarter (23.1%) of adults, did not understand at least one of the four warnings and only one-fifth (20.9%) of juveniles, as compared with twice as many adults (42.3%), grasped all four warnings.⁶⁰ Juveniles fifteen years of age or younger exhibited significantly poorer comprehension of *Miranda* rights, waived more readily, and confessed more frequently than did older youths.⁶¹ Other research reports that older youths understand *Miranda* about as well as adults, but many younger juveniles do not understand the words or concepts.⁶²

Grisso developed and validated instruments to measure adolescents' understanding of *Miranda*.⁶³ These instruments ask youths to paraphrase the four warnings, to define six key words—"right," "attorney," "consult," "appoint," "interrogation," and "entitle"—and to interpret different sentences that had the same meaning as those in the warning.⁶⁴ Juveniles consistently underperformed compared with adults and most frequently misunderstood their right to consult with an attorney and to have one present when police questioned them.⁶⁵ Although older juveniles understood comparably with adults, substantial minorities of both groups failed to grasp some of the warnings.⁶⁶

Age-related improvements in intellectual and verbal ability, attention, and *Miranda* comprehension appear in other studies.⁶⁷ A review of research concluded that "the understanding of adolescents ages 15–17 with near-average levels of verbal intelligences tends not to have been inferior to that of adults. But youths of that age with IQ scores below 85, and average youth below age 14, performed much poorer, often misunderstanding two or more of the warnings."⁶⁸ Understanding correlated with age—younger juveniles understood *Miranda* warnings less well than did mid-adolescents. One study found that 58% of eleven- to thirteen-year-olds, 33.3% of fourteen- and fifteen-year-olds, and 7.8% of sixteen- and seventeen-year-olds failed to understand one or more of the *Miranda* warnings.⁶⁹ Another study found more confusion by youths—78% of

eleven- to thirteen-year-olds, 62.7% of fourteen- and fifteen-year-olds, and 35.3% of sixteen- and seventeen-year-olds—in *Miranda* comprehension.⁷⁰ Adolescents with low IQs perform more poorly than adults with low IQs and delinquent youths typically have lower IQs than do adolescents in the general population.⁷¹ Larger proportions of delinquent youths have low IQs *and* mental disorders which interact with and further impair understanding.⁷² The higher prevalence of mental disorders compounds juveniles' cognitive limitations, although police are seldom able to assess youths' impairments when they question them.⁷³

Even youths who understand *Miranda*'s words may be unable to exercise rights. Juveniles do not appreciate the function or importance of rights as well as adults and they are less competent defendants.⁷⁴ They have greater difficulty conceiving of a right as an absolute entitlement that they can exercise without adverse consequences.⁷⁵ Juveniles view rights as something that authorities allow them to do, but which may be unilaterally retracted or withheld.⁷⁶ They misconceive the lawyer's role and attorney-client confidentiality. Youths raised in poverty exhibit poorer understanding than do middle-class youths, "because children from lower socioeconomic backgrounds are less likely to grow up believing they are entitled to rights and may have fewer opportunities to try out social roles in which they are able to assert their rights."⁷⁷ Youths with poorer understanding of rights waived them at higher rates than those with better comprehension.⁷⁸

Roper, *Graham*, and *Miller* emphasized youths' susceptibility to social influences as among the factors that reduced their culpability. *Miranda* characterized custodial interrogation as inherently compelling because police dominate the setting and create psychological pressures to comply.⁷⁹ The differing legal and social status of youths and adults render children questioned by authority figures more suggestible. We expect youths to answer questions posed by police, teachers, parents, and other adults; social expectations and children's lower status increase their vulnerability during interrogation.⁸⁰ Juveniles may waive rights and admit responsibility because they believe they must obey authority.⁸¹ They acquiesce more readily to negative pressure or critical feedback and accede more willingly to suggestions.⁸² They weigh the interviewer's approval more heavily than the negative consequences of falsely admitting responsibility.⁸³ They impulsively confess to end an interrogation, rather

than consider long-term consequences.⁸⁴ Experimental research also indicates a heightened sensitivity to peer influences.⁸⁵ Younger adolescents who initially chose to remain silent changed their decision more often than older adolescents or adults when informed that a peer made the opposite choice.

The Court requires suspects to invoke *Miranda* rights clearly and unambiguously.⁸⁶ However, members of some groups of people—juveniles, females, and racial minorities—tend to speak indirectly or tentatively to avoid conflict with those in power.⁸⁷ *Davis v. United States* recognized that to require suspects to invoke rights clearly and unambiguously could prove problematic for some. “We recognize that requiring a clear assertion of the right to counsel might disadvantage some suspects who—because of fear, intimidation, lack of linguistic skills, or a variety of other reasons—will not clearly articulate their right to counsel although they actually want to have a lawyer present.”⁸⁸ If a suspect thinks she has invoked her rights, but police disregard it as an ambiguous request, then she may feel overwhelmed by their indifference and succumb to further questioning. The Court demands a level of assertiveness contrary to the way most youths respond when confronted by police.

Police Interrogation of Juveniles: The Law in Action

Research on police interrogation reports that about 80% of adults and 90% of juveniles waive their *Miranda* rights.⁸⁹ The largest empirical study of juvenile interrogation reported that 92.8% waived.⁹⁰ Juveniles’ higher waiver rates may reflect lack of understanding or inability to invoke *Miranda* effectively.⁹¹ As with adults, youths with prior felony arrests invoked their rights more often than those with fewer or less serious police contacts. Several factors likely contribute to experienced juveniles’ higher rates of invocations. Youths who waived during prior arrests may have learned that they derived no benefit from cooperating. Those with prior felony arrests may have spent more time with lawyers and gained greater understanding of the adverse consequences of waiver.⁹²

Once officers secure a juvenile’s waiver, they question him just like an adult. They employ the same maximization and minimization strategies used with adults to overcome young suspects’ resistance and to

lead them to admit responsibility.⁹³ Maximization techniques intimidate suspects and impress on them the futility of denial; minimization techniques provide moral justifications or face-saving alternatives to enable them to confess.⁹⁴ Despite youths' greater susceptibility, police do not incorporate developmental differences into the tactics they employ.⁹⁵ Most do not receive any special training about questioning juveniles and use the same tactics as with adults.⁹⁶ Techniques designed to manipulate adults—aggressive questioning, presenting false evidence, and using leading questions—create unique dangers when employed with youths.⁹⁷

Some states require a parent to assist juveniles in the interrogation room although analysts question their protective role.⁹⁸ Parents—as adults—may have marginally greater understanding of *Miranda* than their children, but both share misconceptions about police practices.⁹⁹ Parents erroneously believed that police must contact them prior to questioning their child and incorrectly believed that police would not lie.¹⁰⁰ They did not provide useful legal advice, increased pressure to waive rights, and many urged their children to tell the truth.¹⁰¹ Parents may be emotionally upset or angry at their child's arrest, believe that confessing will produce a better outcome, or think they should respect authority or assume responsibility.¹⁰² Juveniles rarely spontaneously request parents for a variety of reasons: estrangement from them; feeling that they cannot provide meaningful assistance; embarrassment or shame about their crime; or naïve hope that their parents will not learn of their arrest.¹⁰³ If a parent is present, police either enlist them as allies in the interrogation or neutralize their presence. Officers tell parents that they want to learn what happened and recruit parents as collaborators to learn the truth to help them help their child. If parents attend their child's interrogation, then police render them as passive observers, seat them behind their child, and instruct them not to intervene.¹⁰⁴ The largest empirical study of interrogations at which parents were present reported that most did not participate after police gave their child a *Miranda* warning, sometimes switched sides to become active allies of the police, and rarely played a protective role.¹⁰⁵

Research on false confessions underscores juveniles' unique vulnerability.¹⁰⁶ Younger adolescents are at greater risk to confess falsely than older ones.¹⁰⁷ In one study, police obtained more than one-third (35%)

of proven false confessions from suspects younger than eighteen.¹⁰⁸ In another study, false confessions occurred in 15% of cases, but juveniles accounted for 42% of all false confessors and two-thirds (69%) of those aged twelve to fifteen confessed to crimes they did not commit.¹⁰⁹ Significantly, research on exonerated juveniles who confess falsely involves only the small group of youths prosecuted as adults. This reflects the seriousness of their crimes, the greater pressure on police to solve them, and the longer period available to youths and their attorneys to correct the errors.

Developmental psychologists attribute juveniles' overrepresentation among false confessors to reduced cognitive ability, developmental immaturity, and increased susceptibility to manipulation.¹¹⁰ They have fewer life experiences or psychological resources with which to resist the pressures of interrogation.¹¹¹ They are more likely to comply with authority figures, tell police what they think they want to hear, and respond to negative feedback.¹¹² Their impulsive decision making and tendency to obey authority heightens those risks, especially for younger juveniles with limited understanding.¹¹³ The stress and anxiety of interrogation intensify their desire to extricate themselves in the short run by waiving and confessing.¹¹⁴ The vulnerabilities of youth multiply when coupled with mental illness, mental retardation, or compliant personalities. Juveniles' immature brains contribute to impulsive decisions and their limited ability to consider long-term consequences increases their vulnerability to confessing falsely.¹¹⁵

Policy Recommendations

Although *Miranda* purported to bolster the adversary system and protect citizens, the warnings failed to achieve those goals. Decisions since *Miranda* have limited its scope and reduced adverse consequences when police fail to comply.¹¹⁶ *Miranda*'s assumption that a warning would empower suspects to resist pressures of interrogation is patently wrong. Post-*Miranda* research reports that the vast majority of suspects—80% of adults and 90% of juveniles—waive their sole protection in the interrogation room. Although *Miranda* recognized that the inherent coercion of custodial interrogation threatened the adversarial process, waivers provide police with an opportunity to conduct an inquisitorial

examination. Perversely, *Miranda* allows judges to focus on ritualistic compliance with a procedural formality rather than to assess the voluntariness or reliability of a statement.¹¹⁷ Judicial review of a *Miranda* waiver is the beginning *and* end of regulating interrogation.¹¹⁸

Research on false confessions underscores the unique vulnerability of younger juveniles.¹¹⁹ Police obtained more than one-third of false confessions from suspects under eighteen years of age; younger adolescents are at even greater risk than older ones.¹²⁰ *Miranda* is especially problematic for younger juveniles who may not understand its words or concepts. Their incomplete understanding, impaired judgment, and heightened vulnerability warrant greater protections than those afforded adults. Psychologists distinguish between youths' cognitive ability—capacity to understand—and competence to make mature decisions and exercise self-control. *Miranda* requires only shallow understanding of the words, which developmental psychologists conclude most sixteen- and seventeen-year-old youths possess. By contrast, psychologists report that many, if not most, children fifteen or younger do not understand *Miranda* or possess competence to make legal decisions.¹²¹

Mandatory Counsel for Younger Juveniles

Younger juveniles' limited understanding and heightened vulnerability warrant greater procedural protections—a non-waivable right to counsel. The Court in *Haley*, *Gallegos*, *Gault*, *Fare*, *Alvarado*, and *J.D.B.* excluded statements taken from youths fifteen years of age or younger and admitted those obtained from sixteen- and seventeen year-olds. The Court's de facto functional line—fifteen and younger versus sixteen and older—closely tracks what psychologists report about youths' ability to understand the warning. Courts and legislatures should adopt that functional line and provide greater protections for younger juveniles.

Psychologists advocate that juveniles younger than sixteen years of age “should be accompanied and advised by a professional advocate, preferably an attorney, trained to serve in this role.”¹²² More than three decades ago, the American Bar Association endorsed mandatory, non-waivable counsel because it recognized that “[f]ew juveniles have the experience and understanding to decide meaningfully that the assistance of counsel would not be helpful.”¹²³ Juveniles should consult with

an attorney, rather than rely on parents, before they exercise or waive rights.¹²⁴ Requiring consultation with an attorney assures a functioning legal services delivery system and an informed and voluntary waiver. If youths fifteen years of age or younger consult with counsel prior to waiver, it will limit somewhat police's ability to secure confessions. However, if younger juveniles cannot understand or exercise rights without assistance, then to treat them as if they do enables the state to exploit their vulnerability. Constitutional rights exist to assure factual accuracy, promote equality, and protect individuals from governmental overreaching. *Michael C.* emphasized lawyers' unique role in the justice system, and *Haley*, *Gallegos*, and *Gault* recognized younger juveniles' exceptional need for their assistance.

Limiting the Length of Interrogation

The vast majority of interrogations are very brief; police complete nearly all interviews in less than an hour and few take longer than two hours.¹²⁵ By contrast, interrogations that elicit false confessions are usually long inquiries that wear down an innocent person's resistance—85% took at least six hours—and youthfulness exacerbates that danger.¹²⁶ The Court recognizes that lengthy interrogations can produce involuntary confessions; *Haley* and *Gallegos* found that five or six hours of questioning rendered a statement involuntary. States should create a sliding-scale presumption that a confession is involuntary and unreliable based on length of interrogation.¹²⁷

Mandatory Recording of Interrogation

Within the past decade, legal scholars, psychologists, law enforcement, and justice system personnel have reached consensus that recording interrogations reduces coercion, diminishes dangers of false confessions, and increases reliability.¹²⁸ In recognition of the unique vulnerability of juveniles, the Wisconsin Supreme Court in *In the Interest of Jerrell C.J.* required police to electronically record all custodial interrogations.¹²⁹ About a dozen states require police to record interrogations, albeit some under limited circumstances—homicide or very young suspects.¹³⁰ Recording creates an objective record and provides an independent

basis to resolve credibility disputes about *Miranda* warnings, waivers, or statements.¹³¹ It enables a judge to decide whether a statement contained facts known to a guilty perpetrator or police supplied them to an innocent suspect.¹³² Recording protects police from false claims of abuse and enhances professionalism. It enables police to focus on suspects' responses, to review details of an interview not captured in written notes, and to test them against subsequently discovered facts. Recording avoids distortions that occur when interviewers rely on memory or notes to summarize a statement.

Police must record all interactions with suspects—preliminary interviews and interrogations—rather than just a final statement—a “post-admission narrative.”¹³³ Otherwise, police may conduct a pre-interrogation interview, elicit incriminating information, and then construct a final confession after the “cat is out of the bag.” Only a complete record of every interaction can protect against a final statement that ratifies an earlier coerced one or against a false confession contaminated by non-public facts that police supplied a suspect.¹³⁴

Competence to Stand Trial

Are delinquents competent to participate in more formal, punitive, and complex juvenile court proceedings? *Gault's* procedural rights would be of no value to youths unable to exercise them. The Court long has required that a defendant must be competent to preserve the integrity of trials, to promote factual accuracy, to reduce risk of error, and to enable defendants to play a part in proceedings.¹³⁵ *Dusky v. United States* held that a defendant must possess “sufficient present ability to consult with his lawyer with a reasonable degree of rational understanding . . . [and have] a rational as well as factual understanding of proceedings against him.”¹³⁶ *Drope v. Missouri* held that “a person whose mental condition is such that he lacks the capacity to understand the nature and object of the proceedings against him, to consult with counsel, and to assist in preparing his defense may not be subjected to a trial.”¹³⁷ The standard is functional and binary—a defendant either is or is not competent to stand trial.¹³⁸

The standard for competency is not especially onerous because the more capability it requires of moderately impaired defendants, the fewer

will meet it.¹³⁹ Juveniles must understand the trial process, have the ability to reason and work with counsel, and to rationally appreciate their situation.¹⁴⁰ If a person understands that he is on trial for committing crimes, knows he can be sentenced if convicted, and can communicate with his attorney, a court likely would find him competent.¹⁴¹ Significant mental illness—psychotic disorders such as schizophrenia—or severe mental retardation typically impair adult defendants’ ability to understand the process, make rational decisions, and assist counsel.¹⁴² However, psychotic disorders typically do not emerge until late adolescence or early adulthood and the American Psychiatric Association’s *Diagnostic and Statistical Manual* cautions against diagnosing profound illnesses in younger populations.¹⁴³ Despite that reservation, researchers report that the prevalence of mental disorders among delinquent youths are substantially higher than in the general population—one-half to three-quarters exhibit one or more mental illnesses.¹⁴⁴

Developmental psychologists assert that immaturity *per se*—especially for younger juveniles—produces the same deficits of understanding and inability to assist counsel that mental illness or retardation engenders in incompetent adults.¹⁴⁵ Youths’ developmental limitations adversely affect their ability to pay attention, absorb and apply information, understand proceedings, make rational decisions, and work with counsel.¹⁴⁶

Significant age-related differences appear between adolescents’ and young adults’ competence, judgment, and legal decision making.¹⁴⁷ Developmental psychologists report that many juveniles younger than fourteen years of age were as severely impaired as adults found incompetent to stand trial.¹⁴⁸ Thirty percent of eleven- to thirteen-year-olds and 19% of fourteen- and fifteen-year-olds exhibited deficits of reasoning and understanding comparable to that of incompetent adults.¹⁴⁹ Some older youths also exhibited substantial impairments.¹⁵⁰

Age and intelligence interacted and produced higher levels of incompetence among adolescents with low IQs than adults with low IQs.¹⁵¹ Juveniles with below-average intelligence exhibited greater impairment than did either low-intelligence adults or juveniles with normal intelligence.¹⁵² Mental retardation accounted for more than half of youths found incompetent to stand trial in Florida.¹⁵³ The MacArthur adolescent research network described in Chapter 8 reported that about

one-fifth of fourteen- and fifteen-year-olds were as impaired as mentally ill adults found incompetent; those with below-average intelligence were more likely than juveniles with average intelligence to be incompetent.¹⁵⁴ Even nominally competent adolescents may suffer from cognitive deficits—borderline intelligence, limited verbal ability, short attention span, or imperfect memory—that adversely affect understanding and decisions.

While incompetence in adults stems from mental disorders that may be transient or treatable with medication, it is less clear how to accelerate legal capacities in adolescents whose deficits result from developmental immaturity.¹⁵⁵ Competency restoration may be especially problematic for younger juveniles who never possessed relevant knowledge or understanding to begin with.¹⁵⁶ Moreover, adolescents deemed incompetent due to mental retardation may be especially difficult to remediate or restore to competence.¹⁵⁷

The Court in *Graham* noted that developmental characteristics—mistrust of adults, limited understanding of the justice system or its actors, inability to work with counsel—impaired juveniles' defenses.¹⁵⁸ Adolescents' questionable ability to work with counsel increases the risk that defenses will go unrecognized and compounds the danger they will confess falsely or enter unfounded guilty pleas.

The prevalence of mental illness among delinquents compounds their developmental incompetence. In many jurisdictions, the juvenile justice system has become a de facto mental health system as a result of inadequate mental health services for children.¹⁵⁹ Analysts estimate that half or more of male delinquents and a larger proportion of female delinquents suffer from one or more mental disorders.¹⁶⁰ Youths suffering from attention-deficit hyperactivity disorder (ADHD) may have difficulty concentrating or communicating with their attorney and those suffering from depression may lack the motivation to do so.¹⁶¹

The issue of competence to stand trial arises both for youths tried in criminal court and those prosecuted in juvenile court. For youths tried as adults, criminal courts apply the *Dusky/Drope* standard, but focus on mental illness rather than developmental immaturity.¹⁶² For youths tried in juvenile courts, about half the states have addressed competency in statutes, court rules, or case law.¹⁶³ However, most statutes consider

only mental illness or retardation as sources of incompetence rather than developmental immaturity.¹⁶⁴

Even after states recognize juveniles' right to a competency determination in delinquency proceedings, they differ over whether to apply the *Dusky/Drope* adult standard or a juvenile-normed standard. This is another instance in which states have the option to provide delinquents with adult criminal procedural safeguards or use less stringent juvenile protections. Some courts apply the adult standard in delinquency as well as criminal prosecutions because both may result in a child's loss of liberty.¹⁶⁵ "[B]ecause dispositions in juvenile proceedings, including rehabilitative dispositions, may involve both punishment and a substantial loss of liberty, the level of competence required to permit a child's participation in juvenile court proceedings can be no less than the competence demanded for trial or sentencing of an adult."¹⁶⁶ Other jurisdictions opt for a relaxed competency standard on the theory that delinquency hearings are less complex and consequences less severe.¹⁶⁷

Elizabeth Scott and Thomas Grisso advocate for a lower, watered-down standard of competence in delinquency proceedings. They contend that a youth who might be found incompetent to stand trial as an adult or if evaluated under an adult standard in juvenile court could still be found competent under a relaxed standard.¹⁶⁸ They insist that if delinquency sanctions are less punitive than criminal sentences and geared to promote youths' welfare, then they require fewer procedural safeguards.¹⁶⁹ Scott and Steinberg maintain that "if youths in delinquency proceedings do not face the *same jeopardy* that criminal defendants face, they may not need the same procedural safeguards."¹⁷⁰ However, *Breed v. Jones* clearly held that youths tried in either system confront the same legal jeopardy.¹⁷¹

The constitutional requirement of competence hinges on defendants' ability to participate in proceedings and not the punishment that may ensue.¹⁷² It focuses on the legitimacy of the trial process and not the subsequent disposition.¹⁷³ Unlike *Roper*, *Graham*, and *Miller*, which treated youths' reduced culpability categorically, competence to stand trial is an individual property.¹⁷⁴ Although delinquency dispositions, especially for serious crimes, may be shorter than criminal sentences, *Baldwin v. New York* held that no crime that carried an authorized sentence of six months or longer could be deemed a petty offense. Scott and

Steinberg argue that a rule that immunizes some incompetent youths from adjudication could undermine juvenile courts' legitimacy.¹⁷⁵ But adjudicating immature youths under their relaxed standard enables the state to take advantage of their incompetence and undermines the legitimacy of the process.

The argument for a watered-down competency standard ignores the shift to punishment described in Chapter 5. Grisso acknowledges that get tough policies include "public protection as the primary purpose of the juvenile court (relegating rehabilitation to a secondary purpose), an increase in penalties and determinate sentences, and dispositional schemes that allowed for corrections jurisdiction . . . to extend well into the adult years."¹⁷⁶ A finding of delinquency requires proof of guilt. Either defendants understand the proceedings and can assist counsel or they cannot; if they cannot perform those minimal tasks, then they should not be prosecuted in any court.¹⁷⁷ The constitutional requirement of competence undergirds the legitimacy of the trial process, assures accurate fact-finding, and prevents the state from taking advantage of an impaired defendant's limitations.¹⁷⁸

Juvenile courts do not routinely initiate competency evaluations even for young offenders and many delinquents may face charges without understanding the process or the ability to work with counsel.¹⁷⁹ Defense attorneys may be best positioned to detect whether a competency evaluation is warranted, but often fail to do so because of heavy caseloads, limited time spent with individual clients, and an inability to distinguish between generic immaturity and disabling incompetence.¹⁸⁰ Defense counsel tactically may not raise a juvenile's incompetence because of the consequent delays for competency evaluation and restoration.¹⁸¹ Justice system personnel may lack evaluation instruments or clinical personnel who can administer them in a consistent and valid manner.¹⁸² Juveniles' lack of competence to assist counsel undermines courts' ability to provide a fair trial or assure valid guilty pleas.

Access to Counsel

Gideon v. Wainwright applied the Sixth Amendment to the states to guarantee criminal defendants' right to counsel. *Gault* relied on *Gideon*, compared a delinquency proceeding to a felony prosecution,

and granted delinquents the right to counsel.¹⁸³ However, *Gault* used the Fourteenth Amendment Due Process Clause rather than the Sixth Amendment and did not mandate automatic appointment of counsel.¹⁸⁴ *Gault*, like *Gideon*, left to state and local governments the task to fund legal services. Over the past half century, penurious politicians who want to get tough on crime and avoid coddling criminals have shirked their responsibility to adequately fund public defenders' offices and undermined the quality of justice.

Gault required a judge to advise the child and parent of the right to have a lawyer appointed if indigent, but ruled that juveniles could waive counsel. Most states do not use special procedural safeguards—mandatory non-waivable appointment or pre-waiver consultation with a lawyer—to protect delinquents from improvident decisions.¹⁸⁵ Instead, they use the adult standard—knowing, intelligent, and voluntary—to gauge juveniles' relinquishment of counsel. As with *Miranda* waivers, formal equality results in practical inequality—lawyers represent delinquents at much lower rates than they do criminal defendants.¹⁸⁶

Despite statutes and court rules of procedure that apply equally throughout a state, juvenile justice administration varies with urban, suburban, and rural context and produces justice by geography.¹⁸⁷ Lawyers appear more frequently in urban courts than in more informal rural courts.¹⁸⁸ In turn, more formal urban courts hold more youths in pretrial detention and sentence them more severely. Finally, a lawyer's presence is an aggravating factor at disposition; judges sentence youths who appear with counsel more severely than they do those who appear without an attorney.¹⁸⁹ Several factors contribute to this finding: lawyers who appear in juvenile court may be incompetent and prejudice their clients' cases; judges may predetermine sentences and appoint counsel when they anticipate out-of-home placements; or judges may punish delinquents for exercising procedural rights.¹⁹⁰

Presence of Counsel in Juvenile Courts

When the Court decided *Gault*, lawyers appeared in fewer than 5% of delinquency cases.¹⁹¹ A study attributed the absence of counsel to “juvenile court judges’ actively discouraging juveniles from retaining counsel and [to] the inability of attorneys to perform their traditional

role in juvenile courts.”¹⁹² Although states amended their juvenile codes to comply with *Gault*, the law in action lagged behind the law on the books. Evaluations of initial compliance with *Gault* found that most judges did not advise juveniles of their rights and the vast majority did not appoint counsel.¹⁹³ A study of three urban juvenile courts before and after *Gault* reported that one judge did not inform juveniles of their right to counsel and a second only advised 3%.¹⁹⁴ Studies in the 1970s and 1980s reported that many judges did not advise juveniles and most did not appoint counsel.¹⁹⁵ Research in Minnesota in the mid-1980s reported that most youths appeared without counsel, that rates of representation varied widely in urban, suburban and rural counties, and that one-third of youths whom judges removed from home and one-quarter of those in institutions were unrepresented.¹⁹⁶ A decade later, about one-quarter of juveniles removed from home were unrepresented despite law reforms to eliminate the practice.¹⁹⁷ A study of delivery of legal services in six states reported that only three of them appointed counsel for a substantial majority of juveniles.¹⁹⁸ Studies in the 1990s described juvenile court judges’ continuing failure to appoint lawyers.¹⁹⁹ In 1995, the General Accounting Office confirmed that rates of representation varied widely among and within states and that judges tried and sentenced many unrepresented youths.²⁰⁰ Research in Missouri found urban, suburban, and rural variation in rates of representation and reported that an attorney’s presence increased a youth’s likelihood of receiving out-of-home placement.²⁰¹ Race, gender, and type of representation influenced sentencing severity in different court settings.²⁰²

In the mid-1990s the American Bar Association published two reports on juveniles’ legal needs. *America’s Children at Risk* reported that many children appeared without counsel and that lawyers who represented youth lacked adequate training and often failed to provide effective assistance.²⁰³ *A Call for Justice* focused on the quality of defense lawyers, again reporting that many youths appeared without counsel and that many attorneys failed to appreciate the challenges of representing young clients.²⁰⁴ Since the late 1990s, the ABA and the National Juvenile Defender Center have conducted more than twenty state-by-state assessments of access to and quality of counsel. They report that many, if not most, juveniles appeared without counsel and that lawyers who represented youths often encountered structural impediments

to effective advocacy—heavy caseloads, inadequate resources, lack of training, and the like.²⁰⁵

Waivers of Counsel and Guilty Pleas in Juvenile Court

Several factors account for why so many youths appear in juvenile courts without counsel. Public defender services may be less available or non-existent in nonurban areas.²⁰⁶ Judges may give cursory advisories of the right to counsel, implying that waivers are just legal technicalities. They may readily allow juveniles to waive counsel to ease their administrative burdens.²⁰⁷ If judges expect to impose noncustodial sentences, then they may dispense with counsel.²⁰⁸ Some jurisdictions charge fees to determine a youth's eligibility for a public defender and others base youths' eligibility on their parents' income.²⁰⁹ Parents may be reluctant to retain or accept an attorney if, as in many states, they may have to reimburse the state for attorney fees if they can afford them.²¹⁰

The most common explanation why so many juveniles are unrepresented is that they waive counsel.²¹¹ The National Academy of Sciences reported, "In Louisiana, as many as 90 percent of youth waived their right to counsel and in many other states, including Florida, Georgia, and Kentucky, more than 50 percent of youth waived that right."²¹² Judges in most states use the adult standard to gauge juveniles' waivers of counsel.²¹³ They consider the same factors—age, education, IQ, prior police contacts, or court experience—as those in *Miranda* waivers.²¹⁴ As with *Miranda* waivers, many juveniles do not understand their rights or the role of lawyers and waive counsel without consulting with either a parent or an attorney.²¹⁵ Although judges are supposed to conduct a dialogue to determine whether a child can understand rights and represent herself, they frequently failed to give any counsel advisory, often neglected to create a record, and readily accepted waivers from manifestly incompetent children.²¹⁶ Judges who give counsel advisories often seek waivers to expedite court dockets, which affects how they inform juveniles of their rights and interpret their responses.²¹⁷ As long as the law allows juveniles to waive counsel, judges can conclude that they did so validly regardless of youths' incompetence.

The research on juveniles' exercise of *Miranda* rights and adjudicative competence applies equally to their ability to waive counsel and subse-

quently to plead guilty. Even youths who understand a counsel advisory may not appreciate the importance of the right or the collateral consequences of relinquishing counsel.²¹⁸ Juveniles' diminished competence, inability to understand proceedings, and judicial encouragement to waive counsel results in delinquents being adjudicated without lawyers in larger proportions than adult criminal defendants.²¹⁹

Pleas without Bargains

Like adult criminal defendants, nearly all delinquents plead guilty and proceed to sentencing.²²⁰ Because most states deny juveniles the right to a jury trial, delinquents have very little plea bargaining leverage.²²¹ Juvenile court judges resist plea bargains by which prosecutors and defense counsel could restrict their sentencing discretion.²²² Even though pleading guilty is the most critical decision a delinquent makes, states use adult standards to evaluate their competence to enter a plea.²²³ Judges and lawyers often speak with juveniles in complicated legal language and fail to explain long-term consequences of pleading guilty.²²⁴

A valid guilty plea requires a judge to conduct a colloquy on the record in which an offender admits the facts of the offense, acknowledges the rights being relinquished, and demonstrates that she understands the charges and potential consequences.²²⁵ Because appellate courts seldom review juveniles' waivers of counsel, pleas made without counsel receive even less judicial scrutiny.²²⁶ Guilty pleas by factually innocent youths occur because attorneys fail to investigate cases; assume their clients' guilt, especially if they have already confessed; and avoid adversarial litigation, discovery requests, and pretrial motions that conflict with juvenile courts' cooperative ideology.²²⁷ Juveniles' emphasis on short-term over long-term consequences and dependence on adult authority figures increases their likelihood to enter false guilty pleas.

Counsel as an Aggravating Factor in Sentencing

Historically, juvenile court judges discouraged adversarial litigants and impeded effective advocacy.²²⁸ Lawyers in juvenile courts may put their clients at a disadvantage when judges sentence them.²²⁹ Research that controls for legal variables—present offense, prior record, pretrial

detention, and the like—consistently reports that judges removed from home and incarcerated delinquents who appeared with counsel more frequently than unrepresented youths.²³⁰ Law reforms to improve delivery of legal services actually increased the aggravating effect of representation on dispositions.²³¹

Several factors contribute to lawyers' negative impact at disposition. Juveniles' developmental limitations and incomplete understanding of a lawyer's role may undermine effective representation.²³² Juveniles may not believe lawyers' explanations of confidential communications and withhold important information to their detriment. In addition, the lawyers assigned to juvenile court may be incompetent and prejudice their clients' cases.²³³ Public defender offices may send their least capable or newest attorneys to juvenile court to gain trial experience.²³⁴ Lack of adequate funding for defender services may preclude investigations, which increases the risk of wrongful convictions.²³⁵ Defense attorneys seldom investigate cases or interview their clients prior to trial because of heavy caseloads and limited organizational support.²³⁶ Court-appointed lawyers may place a greater premium on maintaining good relations with judges who assign their cases than on vigorously defending their revolving clients.²³⁷ Juvenile courts' *parens patriae* ideology discourages zealous advocacy and engenders adverse consequences for attorneys who "rock the boat," as well as for their clients.²³⁸ Most significantly, many defense attorneys work under conditions that create structural impediments to quality representation.²³⁹ Observations and qualitative assessments in dozens of states report derisory working conditions—crushing caseloads, penurious compensation, scant support services, inexperienced attorneys, and inadequate supervision—that detract from or preclude effective representation.²⁴⁰ Ineffective assistance of counsel, for whatever reasons, is a significant factor in one-quarter of wrongful convictions.²⁴¹

Another explanation of lawyers' negative impact on dispositions is that judges may appoint them when they anticipate more severe sentences.²⁴² The Court in *Scott v. Illinois* prohibited "incarceration without representation" and limited indigent adult misdemeanants' right to appointed counsel to cases in which judges ordered defendants' actual confinement.²⁴³ Judges' efforts to comply with *Scott* may explain the relationship between initial decisions to appoint counsel and subsequent decisions to remove youths from home. In most states, the same judge

presides at a youth's arraignment, detention hearing, adjudication, and disposition and may appoint counsel if she anticipates a more severe sentence.²⁴⁴ Judges typically appoint counsel, if at all, at the arraignment, detention hearing, or on the day of trial. At these initial proceedings when the only information theoretically available is the formal charging document, how would a judge know whether she intends to incarcerate a youth later? Perhaps from prior familiarity with a case or the juvenile. Perhaps from *ex parte* communications with prosecutor or court personnel. Can an attorney provide an effective defense if the judge has already prejudged the case?²⁴⁵

Finally, judges may sentence delinquents who appear with counsel more severely than those who waive because the lawyer's presence insulates them from appellate reversal.²⁴⁶ Juvenile court judges may sanction youths whose lawyers invoke formal procedures, disrupt routine procedures, or question their discretion in ways similar to adult defendants' trial penalty—the harsher sentences imposed on those who demand a jury trial rather than plead guilty.²⁴⁷

Heavy caseloads and inadequate resources preclude effective pre-trial investigations. Courtroom cultures that discourage advocacy and appointed-counsel systems that make lawyers dependent on judges for future clients impede filing of motions and factual testing of the state's case. Waivers of counsel encourage many short-sighted youths to plead guilty at arraignments or to avoid detention, even if they have valid defenses. Court practices that appoint lawyers who meet their clients for the first time on the day of trial create a system conducive to inadequate representation and wrongful convictions.²⁴⁸

Appellate Review

Gault rejected the fifteen-year-old's request for a constitutional right to appellate review because it had not found that criminal defendants enjoyed such a right.²⁴⁹ However, states invariably provided adult defendants with a statutory right to appellate review. By not reaching the constitutional issue, the Court undermined the other rights that it granted delinquents. "The only possible way of enforcing the rules would have been through appellate review of juvenile court decisions, since judge who found their decisions constantly overturned on

procedural grounds might eventually have begun to comply with *Gault* and its progeny.”²⁵⁰

Regardless of how poorly lawyers perform, appellate courts seldom can correct juvenile courts’ errors.²⁵¹ Juvenile defenders rarely, if ever, appeal adverse decisions and often lack a record with which to challenge an invalid waiver of counsel or trial errors.²⁵² Adult defense lawyers appeal criminal cases about ten times as frequently as do juvenile defenders.²⁵³ Juvenile court culture, even among public defenders, may discourage appeals as an impediment to a youth assuming responsibility. Overwhelming caseloads make specialized appellate divisions a luxury few defender offices can afford. The vast majority of delinquents enter guilty pleas, which waive the right to appeal and further preclude appellate review. Moreover, juveniles who waive counsel at trial will be less aware of or able to pursue an appeal. The short length of most juvenile dispositions renders many appealed cases moot if the child is released before a court reviews the case. Against this backdrop, the Alaska Supreme Court observed, “We cannot help but notice that the children’s cases appealed to this court have often shown much more extensive and fundamental error than is generally found in adult criminal cases.”²⁵⁴

The lack of appeals from juvenile courts retards the development of substantive law. Appellate courts can only expand the law only if parties present issues to them. If defense counsel do not challenge judges’ decisions, then appellate courts cannot develop a body of case law. The dearth of substantive law undermines attorney’s views of juvenile courts as courts of law, discourages their presence, and limits the arguments available to creative advocates.²⁵⁵

Conclusions

The formal procedures of juvenile and criminal courts have converged in the decades since *Gault*.²⁵⁶ Differences in age and competence would suggest that youths should receive more safeguards than adults to protect them from punitive delinquency adjudications and their own limitations. States do not provide juveniles with additional safeguards to protect them from their own immaturity—mandatory non-waivable appointment of counsel or pre-waiver consultation with a lawyer. Instead, they use adult legal standards that most youths are unlikely to

meet. A justice system that recognizes youths' developmental limitations would provide, at a minimum, no pretrial waivers of *Miranda* rights or counsel without prior consultation with counsel.²⁵⁷ If, as *Gault* noted, delinquency proceeding are comparable to a felony prosecution, then no youth should face the power of the state alone and unaided. The juvenile court is a system of crime control and not a welfare agency. *Gault* rejected juvenile court judges' and social workers' benevolence as inadequate safeguards and relied instead on an adversarial process. As *Michael C.* repeatedly emphasized, lawyers play a unique role in the legal process and only they can effectively invoke the procedural safeguards that are every citizens' right. A rule that requires mandatory non-waivable appointment of counsel would impose substantial costs and burdens on legal services delivery in most states. But after *Gault*, all juveniles are entitled to appointed counsel. Waiver doctrines to relieve states' fiscal or administrative burdens are scant justifications to deny fundamental rights. A protectionist stance would recognize youths' immaturity and provide greater safeguards than adults receive to offset their developmental limitations.

States use the adult standard to gauge juveniles' waivers of counsel, even though many youths cannot meet it. High rates of waiver undermine the legitimacy of the juvenile justice system because assistance of counsel is the prerequisite to exercise of other rights.²⁵⁸ Youths require safeguards that only lawyers can provide to protect against erroneous and punitive state intervention. The direct consequence of delinquency convictions—institutional confinement—and use of prior convictions to sentence recidivists more harshly, to waive youths to criminal court, and to enhance criminal sentences makes assistance of counsel imperative. Only mandatory non-waivable counsel can prevent erroneous convictions and collateral use of adjudications that compound injustice. Lawyers can only represent delinquents effectively if they have adequate support and resources and specialized training to represent children.

Jury Trial: Fact-Finding, Government Oppression, and Collateral Consequences

States treat juveniles just like adults when formal equality produces practical inequality. Conversely, they use juvenile court procedures

that provide *less* effective protection when called upon to provide delinquents with adult safeguards. *Duncan v. Louisiana* gave adult defendants the right to a jury trial to assure accurate fact-finding and to prevent governmental oppression.²⁵⁹ By contrast, *McKeiver v. Pennsylvania* denied delinquents protections the Court deemed fundamental to criminal trials.²⁶⁰ The presence of lay citizens functions as a check on the state, provides protection against vindictive prosecutors or biased judges, upholds the criminal standard of proof, and enhances the transparency and accountability of the justice system. Despite those salutary functions, *McKeiver* insisted that “the juvenile court proceeding has not yet been held to be a ‘criminal prosecution,’ within the meaning and reach of the Sixth Amendment, and also has not yet been regarded as devoid of criminal aspects merely because it usually has been given the civil label.”²⁶¹

The *McKeiver* plurality reasoned that a judge could find facts as accurately as a jury, rejected concerns that informality could compromise fact-finding, invoked the imagery of a paternalistic judge, and disregarded delinquents’ need for protection from state overreaching.²⁶²

Concern about the inapplicability of exclusionary and other rules of evidence, about the juvenile court judges’ possible awareness of the juvenile’s prior record and of the contents of the social file; about repeated appearances of the same familiar witnesses in the persons of juvenile and probation officers and social workers—all to the effect that this will create the likelihood of pre-judgment—chooses to ignore, it seems to us, every aspect of fairness, of concern, of sympathy, and of paternal attention that the juvenile court system contemplates.²⁶³

The Court feared that jury trials would interfere with juvenile courts’ informality, flexibility, and confidentiality, make juvenile and criminal courts procedurally indistinguishable, and lead to abandonment of the juvenile court.²⁶⁴

The *McKeiver* dissenters insisted that when the state charges a delinquent with a crime for which it could incarcerate her, she should enjoy the same jury right as an adult.²⁶⁵ For them, *Gault*’s rationale—criminal charges and the possibility of confinement—required comparable procedural safeguards. The dissenters feared that juvenile courts’ informality

would contaminate fact-finding. The vast majority of delinquents, like criminal defendants, plead guilty rather than have their cases decided by juries. But the possibility of a jury trial provides an important check on prosecutorial overcharging, on judges' evidentiary rulings, and the standard of proof beyond a reasonable doubt. Despite the prevalence of guilty pleas, lawyers are supposed to evaluate cases as if they were to go to trial and practice in the shadow of the jury.²⁶⁶ The possibility of a jury trial increases the visibility and accountability of justice administration and the performance of lawyers and judges. The jury's checking function may be even more important in highly discretionary, low-visibility juvenile courts that deal with poor and dependent youths who cannot effectively protect themselves.

A few states give juveniles a right to a jury trial as a matter of state law, but the vast majority do not.²⁶⁷ As we saw in Chapter 5, in the decades since *McKeiver*, states adopted get tough provisions, revised their juvenile codes' purpose, opened delinquency trials to the public, fostered a punitive convergence with criminal courts, imposed collateral consequences for delinquency convictions, and eroded the rationale for fewer procedural safeguards. Despite the explicit shift from treatment to punishment, most state courts continue to deny juveniles a jury.²⁶⁸

In Chapter 2, I argued that constitutional procedural protections serve dual functions: assure accurate fact-finding *and* protect against governmental oppression. In this section, I argue that *McKeiver's* denial of a jury fails on both counts. First, judges and juries find facts differently and when they differ, judges are more likely to convict than a panel of laypeople. Second, the get tough changes reviewed in Chapter 5 increase the need to protect delinquents from direct and collateral consequences of convictions. Providing delinquents with a second-rate criminal court denies them fundamental fairness, undermines the legitimacy of the process, and increases the likelihood of wrongful convictions.

Accurate Fact-Finding

Winship reasoned that the seriousness of proceedings and the consequences for a defendant—juvenile or adult—required proof beyond a reasonable doubt. *McKeiver* assumed that judges could find facts

as accurately as juries. Its rejection of jury trials undermines factual accuracy and increases the likelihood that outcomes will differ in delinquency and criminal trials. Although juries and judges agree about defendants' guilt or innocence in about four-fifths of criminal cases, when they differ, juries acquit more often than do judges.²⁶⁹

Fact-finding by judges and juries differs because juvenile court judges may preside over hundreds of cases a year while a juror may participate in only one or two cases in a lifetime.²⁷⁰ The presence of jurors affects the ways in which lawyers present their cases. "Lawyers and judges accommodate juries by slowing things down and making efforts to present testimony and explain their arguments in laymen's terms. In contrast, the overtaxed judge-run juvenile system runs in high gear. Cases are whisked before the judge and presented in summary terms that make sense only to the 'regulars'—the lawyers, probation officers, and judges."²⁷¹

Several factors contribute to jurors' greater propensity to acquit than judges. As judges hear many cases, they may become less meticulous when they weigh evidence and apply less stringently the reasonable doubt standard than do jurors.²⁷² Judges hear testimony from police and probation officers on a recurring basis and form settled opinions about their credibility.²⁷³ Similarly, judges may have formed an opinion about a youth's credibility or character, or about the case itself from hearing earlier charges against her or presiding at a detention hearing.

Delinquency proceedings' informality compounds differences between judge and jury fact-finding and further disadvantages delinquents. A judge does not discuss either the law or the evidence before reaching a conclusion and lack of diverse opinions increases the variability of outcomes.²⁷⁴ Judges in criminal cases instruct jurors about the applicable law. By contrast, a judge in a bench trial does not state the law, which makes it more difficult for an appellate court to determine whether she correctly understood or applied it.²⁷⁵ Justice Blackmun, who wrote the plurality opinion in *McKeiver*, subsequently wrote the opinion in *Ballew v. Georgia*, which recognized the superiority of group decision making over individual judgments.²⁷⁶ Some group members remember facts that others forget and the give-and-take of deliberations airs competing views and promotes more accurate decisions.²⁷⁷ By contrast, the need to administer the courtroom, make evidentiary rulings,

take notes, and conduct sidebars with lawyers diverts judges' attention during proceedings.

The greater flexibility and informality of closed juvenile proceedings compounds the differences between judge and jury reasonable doubt. When a judge presides at a youth's detention hearing, she receives information about the offense, criminal history, and social background, which may contaminate impartial fact-finding.²⁷⁸ Exposure to non-guilt-related evidence increases the likelihood that a judge subsequently will convict and institutionalize her.

A finding of criminal guilt entails more than just a factual evaluation, but involves an assessment of culpability—the reasonableness of a response to provocation, the perceived need for self-defense, immaturity, and the like. Jurors carry the community's norms and sense of justice when they apply the law to the facts. Analysts attribute some differences between judges and juries to differences in how they evaluate evidence, jury sentiments about the law—equity and nullification—and sympathy for the defendant. “[W]hen juries differ with the result at which the judge would have arrived, it is usually because they are serving some of the very purposes for which they were created and for which they are now employed.”²⁷⁹ Some differences between judges and juries reflect the latter's use of a higher threshold of proof—beyond a reasonable doubt, which may require somewhat more compelling evidence.²⁸⁰ “If a society wishes to be serious about convicting only when the state has been put to proof beyond a reasonable doubt, it would be well advised to have a jury system.”²⁸¹

The youthfulness of a defendant is a factor that elicits jury sympathy and accounts for some differences between judge and jury decisions.²⁸² By contrast, juvenile court judges may be more predisposed to find jurisdiction to help a troubled youth. As one court commented, “the real danger may come . . . from the ‘kindly, fatherly or motherly judge’ who sees a youngster mired in a horrendous environment and wants to rescue the juvenile before it is too late. The temptation, often irresistible, is to remove the child from those terrible circumstances even though that may require bending the reasonable doubt standard in order to find him or her guilty of the charged offense.”²⁸³ Finally, without a jury, judges adjudicate many delinquents without an attorney, which prejudices fact-finding and increases the likelihood of erroneous convictions.

Suppression Hearing and Evidentiary Contamination

In bench trials, judges typically conduct suppression hearings immediately before or during trial, a practice that exposes them to inadmissible evidence and prejudicial information.²⁸⁴ A judge may know about a youth's prior delinquency from presiding at a detention hearing, prior adjudication, or trial of co-offenders. Similarly, a judge who suppresses an inadmissible confession or illegally seized evidence may still be influenced by it.²⁸⁵ The presumption that exposure to inadmissible evidence will not affect a judge is especially problematic where the same judge typically handles a youth's case at several different stages. An adult defendant can avoid these risks by opting for a jury trial, but delinquents have no way to avoid the cumulative risks of prejudice in a bench trial.²⁸⁶ Critics of juvenile courts' fact-finding at trial conclude that "judges often convict on evidence so scant that only the most closed-minded or misguided juror could think the evidence satisfied the standard of proof beyond a reasonable doubt."²⁸⁷ As a result, states adjudicate youths as delinquent in cases in which they could not have obtained convictions with adequate procedural safeguards.

The factual and legal issues in delinquency hearings are the same as those in criminal trials—has the state proven beyond a reasonable doubt that the defendant committed a crime? Given the importance of juries, *McKeiver* made it easier to convict a youth appearing before a juvenile court judge than to convict a criminal defendant with the same evidence before a group of detached citizens.²⁸⁸ The differences between the validity and reliability of delinquency adjudications and criminal convictions raises questions about the use of juveniles' records to enhance criminal sentences.

Preventing Governmental Oppression and Get Tough Policies

McKeiver uncritically assumed that juvenile courts treated delinquents rather than punished them, but it did not review any record to support that assumption. Rather, it asserted that juvenile courts conduct "an intimate, informal protective proceeding," even as it conceded that states seldom, if ever realized that ideal.²⁸⁹ *McKeiver* did not analyze juvenile code purpose clauses, sentencing statutes, judges' sentencing

practices, conditions of confinement, or intervention outcomes when it denied delinquents a jury.²⁹⁰ In its embrace of Progressive rhetoric, the Court did not consider whether delinquents needed protection from the state.

McKeiver itself demonstrated the need to protect youths from states' abuse of the justice process. *McKeiver* decided appeals arising in two cases: one from Pennsylvania, the other from North Carolina. Although *McKeiver* involved ordinary criminal charges of robbery and assault, the North Carolina companion case, *In re Burrus et al.*, involved *en masse* delinquency prosecutions of forty-five Black children ranging in age from eleven to fifteen years, for "willfully impeding traffic," charges arising out of "a series of [civil rights] demonstrations . . . protesting school assignments and a school consolidation plan."²⁹¹ *Burrus* exemplified the use of the criminal law to punish youthful activism during the civil rights movement. "The police and courts often criminalized and punished the pro-civil rights activities of white and black youths and young adults."²⁹² In the South in the 1960s, judges adjudicated delinquent and institutionalized hundreds of Black youths for participating in civil rights demonstrations.²⁹³

The Court long has recognized that juries serve a special role to prevent governmental oppression and protect citizens facing punishment. In our system of checks and balances, lay-citizen jurors represent the ultimate restraint on abuses of governmental power, which is why the jury trial is the only procedural safeguard listed in three different places in the Constitution. The Court in *Baldwin v. New York* explained that "[t]he primary purpose of the jury is to prevent the possibility of oppression by the Government; the jury interposes between the accused and his accuser the judgment of laymen who are less tutored perhaps than a judge or panel of judges, but who at the same time are less likely to function or appear as but another arm of the Government that has proceeded against him."²⁹⁴ In *Duncan v. Louisiana*, decided three years before *McKeiver*, the Court held that the Sixth Amendment guaranteed a jury right in state criminal proceedings to assure accurate fact-finding *and* to prevent governmental oppression. *Duncan* emphasized that juries inject community values into the law, increase the visibility of justice administration, and check abuses by prosecutors and judges.

Providing an accused with the right to be tried by a jury of his peers gave him an inestimable safeguard against the corrupt or overzealous prosecutor and against the compliant, biased, or eccentric judge. If the defendant preferred the common sense judgment of a jury to the more tutored but perhaps less sympathetic reaction of the single judge, he was to have it. Beyond this, the jury trial provisions . . . reflect a fundamental decision about the exercise of official power—a reluctance to entrust plenary powers over the life and liberty of the citizen to one judge or to a group of judges. Fear of unchecked power . . . found expression in the criminal law in this insistence upon community participation in the determination of guilt or innocence.²⁹⁵

The year after *Duncan*, *Baldwin v. New York* again emphasized the jury's role to prevent government oppression by interposing lay citizens between the state and the defendant.²⁹⁶ *Baldwin* is especially critical for juvenile justice because an adult charged with any offense that carries a *potential* sentence of confinement of six months or longer enjoys a right to a jury trial. Although *Scott v. Illinois* limited the right to counsel to cases in which a court *actually* incarcerated defendants, *Baldwin* granted the right to a jury whenever the *authorized* sentence exceeded six months.²⁹⁷ States' delinquency statutes typically authorize indeterminate dispositions for the duration of minority or for a term of years, which means that *Baldwin* would extend the jury right to most delinquency proceedings.

McKeiver feared that granting delinquents jury trials would also lead to public trials.²⁹⁸ *Gault* recognized that confidential proceedings "hide youthful errors from the full gaze of the public and bury them in the graveyard of the forgotten past," but acknowledged that juvenile courts regularly provided information about youths' contacts to the military, government agencies, the FBI, and private employers.²⁹⁹ In other cases, the Court subordinated juvenile courts' desire to protect youths' privacy to newspapers' right to publish lawfully obtained information and to criminal defendant's right to confront and cross-examine witnesses about their delinquency records.³⁰⁰

Justice Brennan's concurring-dissenting opinion in *McKeiver* reasoned that a public trial could provide equivalent safeguards of a jury—preventing government oppression—by making proceedings

visible and accountable. *In re Oliver* recognized that public trials protected defendants against the abuses of secret proceedings and enabled citizens to observe justice administration. “The knowledge that every criminal trial is subject to contemporaneous review in the form of public opinion is an effective restraint on possible abuse of judicial power.”³⁰¹ Greater visibility might induce juvenile court judges to appoint counsel routinely and assure the public about the fairness of proceedings.

Many get tough reforms adopted in the 1990s increased the visibility and accountability of juvenile courts. About half the states authorized public access to all delinquency proceedings or to felony prosecutions.³⁰² States limited confidentiality protections to hold youths accountable and put the public on notice of who poses risks to the community.³⁰³ Punitive legislators anticipated that greater visibility might temper judges’ inclination toward leniency. The newfound openness obviates *McKeiver*’s concerns about public trials.

Punitive Juvenile Justice and McKeiver’s Questionable Validity

Kent, *Gault*, and *Winship* recognized that juvenile courts often failed to rehabilitate youths. *Kent* noted that “studies and critiques in recent years raise serious questions as to whether actual performance measures well enough against theoretical purpose to make tolerable the immunity of the process from the reach of constitutional guaranties applicable to adults. . . . [J]uvenile courts . . . lack the personnel, facilities and techniques to perform adequately as representatives of the State in a *parens patriae* capacity, at least with respect to children charged with law violation.”³⁰⁴ *Gault* noted that “[n]either sentiment nor folklore should cause us to shut our eyes” to the stigma of a delinquency conviction, high rates of recidivism, breaches of confidentiality, and conditions of confinement.³⁰⁵ *Winship* equated the risks of delinquency and criminal cases and concluded that judicial intervention “cannot take the form of subjecting the child to the stigma of a finding that he violated a criminal law and to the possibility of institutional confinement on proof insufficient to convict him were he an adult.”³⁰⁶ The Court recognized juvenile courts’ penal character well before the Get Tough Era and states’ explicit endorsement of punishment.

The vast majority of states deny delinquents the right to a jury and youths have challenged *McKeiver*'s half-century-old rationale in light of get tough changes. Most state appellate courts have rejected their claims with deeply flawed analyses.

Some courts simply reach conclusions without even attempting to identify the presence or absence of the punitive sanction. Others fail to distinguish punishment from rehabilitation by applying overly broad definitions of rehabilitation, conflating the concept of punishment into that of rehabilitation, causing the court to state such things as "treatment is often disguised punishment" and "punishment . . . does as much to rehabilitate . . . an errant youth as does the prior philosophy of focusing upon the particular characteristics of the individual juvenile." Still others apply an overly broad definition of punishment, unduly emphasizing the significance of the conditions of a given sanction as they impact its recipient, resulting in conflating the concept of rehabilitation into that of punishment.³⁰⁷

In short, few courts engage in the careful analysis required to distinguish treatment from punishment that would trigger the right to a jury.

The Wisconsin Supreme Court in *State v. Hezzie R.* reviewed get tough changes that lengthened delinquency sentences to secure confinement for several years, expanded collateral consequences, and repealed a statutory right to a jury trial.³⁰⁸ Despite numerous punitive changes, the majority concluded that the amendments attempted to "balance the rehabilitative needs for care and treatment of each juvenile, with holding the juvenile accountable for his or her acts, and protecting the public."³⁰⁹ The *Hezzie R.* dissent analyzed the legislative purpose, sentencing provisions, and collateral changes, and concluded that not only has the juvenile code "shifted treatment of juvenile offenders in Wisconsin 'closer to' the criminal sphere, it has dramatically crossed the constitutional line. . . . [The juvenile code] is a criminal code in purpose and effect and cannot be deemed a civil code designed solely to rehabilitate the juvenile. . . . We must either restore the juvenile court's primary rehabilitative approach or restore the constitutional right of juveniles to trial by jury."³¹⁰

Several other states rejected juveniles' challenges to get tough changes. The Louisiana Supreme Court considered the impact of get tough amendments—open hearings, mandatory sentences, delinquency convictions to enhance criminal sentence—but concluded that “notwithstanding the changes in the juvenile justice system . . . there remains a great disparity in the *severity of penalties* faced by a juvenile charged with delinquency and an adult defendant charged with the same crime.”³¹¹ Again, once a penalty crosses *Baldwin's* six-month *authorized sentence* threshold, further severity is constitutionally irrelevant. Juveniles in Pennsylvania requested a jury in response to get tough changes which they argued had transformed the juvenile court from a benevolent welfare institution “into a more punitive system, much more akin to the adult criminal justice system.”³¹² The Pennsylvania Supreme Court concluded that a delinquency trial “remains an informal protective proceeding,” and uncritically asserted that “much of the reasoning of the plurality in *McKeiver*, despite the changes in society and the juvenile system . . . remains valid and compelling in reference to the juvenile court system of today.”³¹³

By contrast, the Kansas Supreme Court in *In re L.M.* used the analytical tools discussed in Chapter 5 to distinguish treatment from punishment and concluded, “These changes to the juvenile justice system have eroded the benevolent *parens patriae* character that distinguish it from the adult criminal system.”³¹⁴ While acknowledging that other states had declined to extend delinquents a right to a jury trial, the court concluded that the Kansas juvenile code “has lost the *parens patriae* character” of earlier juvenile laws and has been “transformed into a system for prosecuting juveniles charged with committing crimes.”³¹⁵

Juvenile and criminal courts perform similar social control functions—responding to and sanctioning lawbreakers. To claim that they intervene solely to rehabilitate youths who commit crimes is disingenuous. As critical consumers of justice, juveniles readily perceive the hypocrisy of a court finding that they committed a crime, albeit obscured by euphemisms, and imposing a sanction that they experience as penal without providing them the procedural rights afforded adults. “[A]dolescents are very sensitive to perceived injustice, and unfair treatment by the legal system may accentuate antisocial tendencies, whereas fair official responses to wrongdoing may enhance respect

for and obedience to law and reduce the likelihood of reoffending.”³¹⁶ Youths know what a real trial involves based on courtroom dramas and publicized criminal trials. The contrast between their expectations of justice and fairness—a jury trial and a zealous defense lawyer—and a juvenile bench trial fosters a sense of injustice, delegitimizes the process, and impedes rehabilitation.

Delinquency Convictions to Enhance Criminal Sentences

Apprendi v. New Jersey ruled that “any fact that increases the penalty for a crime beyond the statutory maximum, *other than the fact of a prior conviction*, must be submitted to a jury and proved beyond a reasonable doubt.”³¹⁷ The Court exempted the “*fact of a prior conviction*” because criminal defendants enjoyed the right to a jury trial and proof beyond a reasonable doubt which assured validity and reliability of prior convictions.³¹⁸ *Apprendi* emphasized the jury’s role to uphold *Winship*’s standard of proof beyond a reasonable doubt. While *McKeiver* approved jury-free delinquency convictions to impose rehabilitative dispositions, they would *not* be adequate to punish a youth.

Criminal courts’ use of delinquency convictions raises several issues. Juvenile courts historically restricted access to records to avoid stigmatizing youths.³¹⁹ But criminal courts need to know which juveniles’ delinquent careers continue into adulthood to incapacitate them, punish them, or protect public safety.³²⁰ A strong relationship exists between age and crime—the age-crime curve—and rates for most offenses peak in mid- to late adolescence.³²¹ Although most youths desist after one or two contacts, chronic or life-course persistent offenders continue into adulthood.³²² A record of persistent offending, whether as a juvenile or as an adult, provides the best evidentiary basis for incapacitation or enhanced punishment.³²³

Historically, criminal courts lacked access to delinquency records because of juvenile courts’ confidentiality, the physical separation of juvenile and criminal court staff who maintain the records, and the difficulty of maintaining systems to track offenders and compile histories across both systems.³²⁴ Juvenile courts’ sealing or expunging delinquency records impede their use to identify young career offenders for enhanced sentences.³²⁵

Courts long have noted the policy conflict between confidentiality and punishing repeat offenders, but assert the importance of delinquency records to distinguish errant offenders from chronic lawbreakers. “These pubescent transgressions, when considered along with adult offenses, help the sentencing judge to determine whether the defendant has simply taken one wrong turn from the straight and narrow or is a criminal recidivist.”³²⁶ Despite a tradition of confidentiality, states have long used delinquency convictions in sentencing for subsequent crimes.³²⁷ *United States v. Williams* reasoned that delinquency convictions could be used to enhance criminal sentences, even though they were originally obtained to treat youths using less rigorous procedures.³²⁸ The defendant in *United States v. Johnson* challenged the U.S. Sentencing Guidelines’ policy to equate juvenile confinement with adult imprisonment to calculate the criminal history score.³²⁹ *Johnson* recognized that states confined delinquents for different reasons than they imprisoned criminals, but concluded, “It is a method, rough to be sure, of measuring relative culpability among offenders and the likelihood of their engaging in future criminal behavior.”³³⁰ The dissent in *Johnson* decried equating juvenile confinement for treatment with adult imprisonment for punishment as irrational.

Unlike criminal punishment, which might be imposed in pursuit of retributive as well as rehabilitative objectives, the focus of juvenile confinement traditionally has been primarily, or even exclusively on reforming and treatment the offender. . . . [W]hile the purposes of confinement in the juvenile and adult sphere may occasionally converge, they have never been congruent. Two-thirds of the states continue to employ the offender-specific rehabilitation model, and in all states the initially distinct emphases of the juvenile and adult criminal systems have led to the development of a very different set of procedures and standards for confinement and incarceration.³³¹

Giving youths fewer procedural safeguards to rehabilitate them and then using those less reliable convictions to punish them more severely seems contradictory and unfair.

Some states use juvenile records on a discretionary basis. Many state and federal sentencing guidelines include some delinquency convictions

in defendants' criminal history score.³³² California's three-strikes law counts juvenile felony convictions as strikes for sentence enhancements.³³³ Some states' guidelines weight delinquency convictions less heavily than criminal convictions because of concerns about the reliability of juvenile court procedures.³³⁴ Other do not distinguish between juvenile and adult convictions and count both equally. Sometimes, criminal courts may not know the exact offense of which a youth was convicted because juvenile courts adjudicate youths delinquent rather than find them guilty of specific crimes.³³⁵

There are two reasons why states should not equate delinquency and criminal convictions for sentence enhancements. First, as we saw in Chapter 8, even though juveniles may cause the same physical injury or property loss as older actors, their choices are less blameworthy and should not be weighted the same. Even if nominally convicted of the same crime, their reduced culpability makes their crimes less serious and nonequivalent. Second, use of delinquency records to enhance criminal sentences raises questions about the procedures used to obtain those convictions. Juvenile courts in many states adjudicate half or more delinquent without counsel, including many convicted of felonies. The vast majority deny juveniles the right to a jury trial. Because judges in bench trials apply *Winship's* reasonable doubt standard less stringently, some youths would have been acquitted with adequate safeguards.³³⁶

Apprendi reaffirmed the jury's role to assure the reliability of fact-finding. But its exception for "the fact of prior conviction" created a conundrum for appellate courts. Although sentencing policies to incapacitate chronic offenders support using delinquency records to sentence criminals, the denial of a jury right and questionable waivers of counsel call into question the reliability of those convictions. Federal and state courts are divided whether *Apprendi* allows judges to use delinquency convictions to enhance criminal sentences.³³⁷

In *United States v. Tighe*, the federal trial judge imposed a mandatory minimum fifteen-year sentence rather than a ten-year maximum sentence based on a prior record that included a delinquency conviction obtained without a jury right.³³⁸ The Court of Appeals reversed and reasoned that *Apprendi's* exception for prior convictions "was rooted in the concept that prior convictions have been, by their very nature, subject to the fundamental triumvirate of procedural protections intended to

guarantee the reliability of criminal convictions: fair notice, reasonable doubt and *the right to a jury trial*.”³³⁹ By contrast, *United States v. Smalley* considered the same facts and issues presented in *Tighe*, but reached the opposite result.³⁴⁰ While *Apprendi* identified the procedural safeguards that clearly established reliable prior convictions—notice, right to a jury, and proof beyond a reasonable doubt—*Smalley* reasoned that they were not essential prerequisites to a valid conviction. “[W]e think that it is incorrect to assume that it is not only sufficient but necessary that the ‘fundamental triumvirate of procedural protections’ . . . underly [*sic*] an adjudication before it can qualify for the *Apprendi* exemption.”³⁴¹ *Smalley* concluded that *Gault* and *Winship*’s procedural safeguards were more than adequate to ensure the reliability that *Apprendi* requires.³⁴² *Smalley* did not examine *McKeiver*’s reasons to provide less rigorous safeguards or the contradiction between using procedurally less rigorous convictions obtained for a benign purpose subsequently to punish. For *Tighe*, a jury distinguished criminal trials from other proceedings and non-jury delinquency convictions simply failed to ensure such reliability. *Tighe*’s understanding of the jury’s role appears more consistent with *Apprendi*’s jurisprudence than *Smalley*, which relied only on *McKeiver*.³⁴³

Juveniles have raised *Apprendi* challenges to states’ use of delinquency convictions to enhance criminal sentences.³⁴⁴ State appellate court rulings reflect the *Tighe/Smalley* split of opinion about the reliability of delinquency convictions. *State v. Brown* emphasized that *McKeiver* denied a jury right because delinquents received “non-criminal treatment” and held that “because juveniles do not have a right to a jury trial in these proceedings, juvenile adjudications cannot be used to enhance adult felony convictions. . . . [J]uvenile adjudications . . . are sufficiently reliable, even without a jury trial, to support dispositions within the juvenile justice system. However, *Apprendi* has raised the issue of whether these adjudications, rendered without the right to a jury trial are sufficiently reliable to support enhanced sentencing for adults.”³⁴⁵ By contrast, *State v. Hitt* reasoned that because juveniles received all the procedural safeguards to which the Constitution entitled them, courts could use valid prior convictions to enhance subsequent sentences. “The *Apprendi* Court spoke in general terms of the procedural safeguards attached to a prior conviction. It did not specify *all* procedural safeguards nor did it require *certain* crucial procedural safeguards.”³⁴⁶ Until the Court clarifies

Apprendi, defendants in some states or federal circuits will serve longer sentences than those in other jurisdictions based on flawed delinquency convictions.

The use of delinquency convictions to enhance criminal sentences further aggravates endemic racial disparities in justice administration.³⁴⁷ Recall from Chapter 5, at each stage of the juvenile justice system, racial disparities compound, cumulate, and contribute to disproportionate minority confinement. As a result, Black youths acquire more extensive prior delinquency records than do their white counterparts.³⁴⁸ Those prior records contribute to racial disparities in waiver to criminal court and commitments to prison. Judges sentence more Black youths with a prior record to prison than similarly situated white youths, perhaps because judges make stereotypic assumptions based on racial stereotypes.³⁴⁹ Richard Frase's magisterial analysis of racial disparities in criminal sentencing in Minnesota concludes that "seemingly legitimate sentencing factors such as criminal history scoring can have strong disparate impacts on nonwhite defendants."³⁵⁰

Collateral Consequences of Delinquency Convictions

The denial of a jury adversely affects rules of evidence, timing of suppression hearings, and appointment of counsel and raises questions about the reliability of convictions. In addition to direct penalties—institutional confinement and enhanced sentences as juveniles or as adults—extensive collateral consequences follow from delinquency convictions. Although state policies vary, they may follow youths for decades and affect future housing, education, and employment opportunities.³⁵¹ Upon arrest, states may enter juveniles' fingerprints, photographs, and DNA into databases accessible to law enforcement and other agencies.³⁵² Some states' get tough reforms opened delinquency trials and juvenile records to the public. Media access to court proceedings, information available to the public, and print or televised reports on the Internet can create a permanent and easily accessible record of a youth's delinquency.³⁵³ Even if not released to the public, criminal justice agencies, schools, childcare providers, the military, and others may have access to juvenile court records automatically or by petition to the court.³⁵⁴ In most jurisdictions, expungement of delinquency records is not

automatic and requires a youth to file a petition, which the court may or may not grant depending on the seriousness of the offense and the time that has elapsed since the conviction.³⁵⁵ Youths may have their privilege to drive suspended or revoked, which impairs their ability to attend school, get to work, and participate in court-ordered services.³⁵⁶ Delinquency convictions may affect youths' ability to obtain professional licensure, to receive government aid, to join the military, to obtain or keep legal immigration status, or to live in public housing.³⁵⁷

As noted in Chapter 7, crimes committed in school or even off campus may lead to suspension or expulsion.³⁵⁸ School administrators may place returning youths on probation, assign them to an alternative school, or prohibit them from participating in extracurricular activities. Youths applying to college must acknowledge arrests, suspensions, or expulsions, which may adversely affect their admission.³⁵⁹ Delinquency adjudications may make youths ineligible for scholarships or federal grants. Adjudication may cause a youth—and his family—to be evicted from public housing.³⁶⁰ A delinquency conviction may prevent a youth from possessing a firearm as an adult.³⁶¹ Juveniles convicted as adults suffer all the disabilities imposed on criminals; those found guilty of a felony may lose the right to serve on a jury or to vote even before they are eligible to register.³⁶² The erosion of juvenile courts' confidentiality labels youths as criminals and undermines *McKeiver's* rationale to deny a jury.

Sex Offender Registration

The response to juvenile sex offenders is among the most onerous collateral consequences of delinquency adjudication.³⁶³ In *An American Travesty*, Franklin Zimring argues that despite developmental differences between juveniles and adults, states' sex-offender laws assume that "adolescent and adult sexual behavior should be judged by the same standards of culpability, clinical significance, and indications of future danger to the community."³⁶⁴ He argues that sex-offender laws assume a pathological sexual orientation, specialization in sex offenses, a fixed proclivity to commit sex offenses, and a high likelihood of future sex offending. These assumptions are of questionable validity for many

adults and even more inapposite for most juveniles engaged in sexual activity.³⁶⁵ “[T]he sexual behavior of juvenile sexual offenders differs from the sexual behavior of nondelinquents in its delinquent characteristics rather than its sexual characteristics.”³⁶⁶ Juveniles adjudicated for a sexual offense are less likely to be arrested as adults for sexual offenses than are delinquents convicted of other crimes.³⁶⁷ Applying laws created to punish adults who sexually exploit children to adolescents engaged in consensual underage sex, is an instance of “the felonization of adolescent sex . . . based on an invalid analogy with adult behavior.”³⁶⁸

Although adolescent sex offending is less likely to be driven by stable personality characteristics than is adult sex offending, the federal Adam Walsh Child Protection and Safety Act—also known as the Sex Offender Registration and Notification Act (SORNA)—requires states to implement registration and notification standards for individuals convicted as adults or juveniles for certain sex offenses.³⁶⁹ States may subject youths convicted of a sex offense to a lifetime registration requirement including a duty to register annually and immediately following any change of address.³⁷⁰ States limit where registered offenders can live, work, or attend school. Failure to register is a separate crime for which they may be imprisoned. Some jurisdiction require neighborhood notification based on the belief that potential victims and communities require protection against sexual threats.³⁷¹ They may have their DNA collected and stored in a database accessible to the FBI and other state law enforcement agencies.³⁷² Although the Court has deemed sex-offender registration as civil in nature, adolescents experience mental distress, community harassment, and social isolation, which impedes reintegration into the community.³⁷³

Reforming Court Procedures to Prevent Wrongful Convictions

Recent developmental psychological and neuroscience research has taught us much more than we previously knew about how children think, act, and differ from adults. It reinforces the recognition that youth are less competent than adults and provides rationale for a separate juvenile justice system. Progressive reformers designed juvenile courts without procedural safeguards or substantive constraints on judges’ discretion to pursue the rehabilitative ideal. But a century later, get tough

statutory changes have transformed them into second-rate criminal courts that provide neither therapy nor justice.

Since *Gault*, the procedural as well as substantive convergence between juvenile and criminal courts has placed greater demands on juveniles' competence to exercise rights. The increased formality reflects juvenile courts' shift from rehabilitating youths to protecting public safety and punishing offenses. Despite these changes, most states do not provide delinquents formal or functional protections comparable to those of adult criminal defendants. Juveniles waive their *Miranda* rights and right to counsel under an adult standard—knowing, intelligent, and voluntary—that is unlikely to discern whether they understand and are competent to relinquish those rights. Denial of juries calls into question the accuracy and reliability of delinquency adjudications for initial dispositions and collateral uses. Get tough changes heighten juveniles' need for protection from the state and collateral consequences that may follow them well into adulthood. Despite criminalizing juvenile justice, states do not provide procedural safeguards to protect delinquents from their own immaturity, or give them the criminal procedural safeguards that afford some protection from punishment by the state. Instead, juvenile courts assure that youths continue to “receive the worst of both worlds”—treating juveniles just like adults when formal equality rebounds to their disadvantage and providing less effective juvenile procedures when they provide an advantage to the state.

I argued in Chapter 2 that juvenile courts' procedural deficiencies stem in part from the Supreme Court's decision to base delinquents' rights on the Fourteenth Amendment Due Process Clause rather than the Sixth Amendment of the Bill of Rights. Theoretically, due process analysis could allow the Court to find “special circumstances” based on youths' immaturity to provide more procedural protections for delinquents than for criminal defendants. But fundamental fairness is a vague foundation and enabled *McKeiver* to deny the right to a jury trial despite *Duncan's* recognition of its critical importance to protect citizens.

The Constitution defines the minimum procedural baseline below which states may not fall. Most of the details of juvenile justice administration are statutory, should recognize that “children are different,” and could provide greater assistance. State legislators passed get tough laws to punish delinquents and simultaneously eroded the meager

protections of juvenile courts—closed and confidential proceedings, limited use of delinquency convictions, and the like. State legislators failed to appropriate adequate funds for legal services and fostered crippled public defenders incapable of providing delinquents with effective assistance of counsel. Delinquents need well-funded, well-trained attorneys to advise them, protect their interests, and defend against punitive state intervention. A half century after *Gault*, many juveniles in many states are still waiting for a lawyer to advocate on their behalf.

Epilogue

Opportunities and Obstacles

Juvenile courts emerged in response to structural changes more than a century ago and spread throughout the nation during the first decades of the twentieth century. Economic modernization and the social construction of childhood provided the context within which Progressives created new institutions to control children. Over the century, the juvenile court's diversionary mission—to protect children from the harms of the criminal justice system—explains its endurance despite its inability to achieve its interventionist goal.

Over the past half century, the politics of race has shaped juvenile courts and evoked two contradictory responses. Initially, the Warren Court's due process revolution aimed to end Southern apartheid, enhance civil rights, and protect minority citizens. *Gault* extended some procedural rights to delinquents as part of the Court's broader civil rights agenda. Thereafter, Republican politicians pursued a Southern strategy to appeal to Southern, suburban, and blue-collar white voters' negative racial attitudes. By the 1980s and 1990s, structural, economic, and racial demographic changes led to a Black underclass living in concentrated poverty and a rise in drug crime, gun violence, and murder. Politicians campaigned to get tough and crack down on "youth crime," which the public understood as code for young Black males.¹ They inverted Progressives' conception of youthful innocence and immaturity into an alternative vision of adult-like super-predators. Punitive transfer laws and delinquency sanctions transformed juvenile courts into procedurally deficient, second-class criminal courts.

During the Get Tough Era, politicians ignored that children differ from adults in competence and culpability. Although they are less able to exercise rights, states use adult legal standards, posit a fictitious equality, and place youths at a procedural disadvantage. Judges readily allow delinquents to waive counsel in an increasingly complex punitive system.

When juveniles are represented, their lawyers often fail to provide effective advocacy. Five decades after *Gault*, states have yet to put the *justice* in juvenile justice.

For the past three decades, states have transferred more and younger juveniles to criminal court for prosecution as adults. Politicians characterized them as criminally responsible and disregarded youths' reduced culpability. *Roper*, *Graham*, and *Miller* finally recognized that children's immature judgment and impaired self-control diminished their responsibility and barred the harshest punishments. Other than death or LWOP, however, criminal court judges punish transferred juveniles just like adults, ignore developmental differences, and disproportionately penalize Black youths. Despite substantial declines in youth crime, the punitive legacy of the 1980s and 1990s remains in place. Belated judicial recognition that children are different and softening of punishment in a few states marks, at best, a modest retreat from repressive policies.

For a century, juvenile courts have discriminated between "our children" and "other peoples' children." Progressive reformers had to choose between fundamental reforms to alter conditions that caused crime—poverty, inequality, and discrimination—or to apply Band-Aids to children effected by them. Impelled by class and ethnic antagonism, they avoided broad structural changes and chose to save children. A century later, we face the same choices and continue to evade our responsibilities to other peoples' children.

The prevalence of violent crime in segregated inner-city areas reflect private and public policy decisions stretching back decades that created and reinforce economic inequality, concentrated poverty, and racial isolation. Political discussions about poverty, welfare benefits, income inequality, and crime function as proxies for conversations about race. Conservative politicians exploit white voters' racial animus and Americans engage in a subterranean discourse using code words and misleading images.² They identify long-term poverty and associated problems—unemployment, drug abuse, crime, out-of-wedlock childbirth, school-leaving, and the like—primarily as a condition of African Americans separate from the American mainstream to avoid addressing them.³ The perception that juvenile courts' clients are young criminals of color enables politicians to withhold resources either to improve their life conditions or to provide real justice.

Juvenile Justice Reform

This is an opportune time to adopt sensible juvenile justice policies. The dramatic drop in juvenile crime reduces its salience as terrorists and immigrants have supplanted super-predators on the political agenda. Advances in developmental psychology and neuroscience increase understanding of children's behavior. Youth advocacy groups create pressures on courts and legislatures and foundations sponsor projects to implement evidence-based programs.

The Crime Drop

Since the mid-1990s, rates of youth crime—especially violence and homicide—have declined precipitously. Despite alarmists' dire predictions that a cohort of super-predators would terrorize communities, those fears never materialized.⁴ Several factors may have contributed to the youth crime drop.⁵ Some point to a reduction in the size of the cohort of fifteen-to-twenty-four-year-old males.⁶ Others attribute it to economic growth and low unemployment in the 1990s, although the relationship between macro-economic factors and crime rates, especially for those at the bottom, remains unclear.⁷ Some attribute it to a period effect or cultural contagion. While drug markets and gun violence contributed to the rise in homicide, more youths who came of age in the 1980s and 1990s and witnessed the carnage of their older peers rejected that lifestyle.⁸ Some argue that changes in police practices—shifts toward community-oriented, problem-solving, and zero-tolerance policing—or aggressive stop-and-frisk contributed to crime decline.⁹ Get tough advocates claim that mass incarceration increased the justice system's deterrent and incapacitative effects, although analysts find only a modest relationship between imprisonment and crime rates.¹⁰ Others attribute it to structural changes in cities—urban development, gentrification, new housing and businesses—although those developments seldom affect the neighborhoods of the targets of get tough policies.¹¹ No single factor caused the crime decline of the 1990s, which makes it equally difficult to predict whether it will endure.¹² But it has alleviated the moral panic that sparked punitive laws—most of which remain in place—and allows for more sensible policies.¹³

Developmental Psychology and Neuroscience

Roper, Graham, and Miller relied on developmental psychology and neuroscience research to affirm that “children are different” and to prohibit the most extreme sentences. They emphasized immature judgment and limited self-control to explain adolescents’ impetuosity and diminished responsibility. Brain-scanning technologies enable neuroscientists to examine how brain structure and circuitry change between puberty and adulthood.¹⁴ Although neuroscientists have not established causal connections between brain structure and behavior or the relationship between aggregate studies and individual’s actions, adolescents’ immature brains help explain their poor judgment and impulsive behavior.¹⁵

Youth Advocacy and Foundation-Sponsored Reforms

In response to get tough policies, dozens of youth advocacy and policy groups emerged to oppose punitive sentencing, litigated to reform and restrict transfer policies, and lobbied to implement the right to counsel and to raise to eighteen the age of juvenile court jurisdiction. They challenged juvenile court judges’ abuses of discretion and conditions of confinement in institutions.¹⁶ They used developmental psychology and neuroscience research to generate media coverage about how children differ from adults and the iatrogenic effects of harsh policies.¹⁷

The MacArthur Foundation Network on Adolescent Development and Juvenile Justice studied adolescent culpability, competence, and treatment responsivity to inform juvenile justice policies.¹⁸ In 2004, the MacArthur Foundation initiated Models for Change reforms in sixteen states. In four states—Illinois, Louisiana, Pennsylvania, and Washington—juvenile justice stakeholders agreed to implement developmentally informed policies to serve as models for system changes elsewhere.¹⁹ In twelve states, the foundation funded programs to reduce racial disparities, increase access to mental health services, and improve delivery of legal services. The Annie E. Casey Foundation launched the Juvenile Detention Alternatives Initiative (JDAI) in 1992 to reduce the overuse and abuse of secure detention.²⁰ JDAI initiatives in over one hundred sites in nineteen states have reduced total detention populations by one-third and the number of minority youths in detention by

one-quarter.²¹ The Robert Wood Johnson Foundation has invested in juvenile justice reform efforts through its Reclaiming Futures initiatives. The Haywood Burns Institute has focused on reducing disproportionate minority confinement and developed analytical tools to rationalize decision making.

Policy Prescriptions

The time is right to reform juvenile courts' jurisdiction, jurisprudence, and procedures. Chapters 5–9 describe policies to improve justice administration within the constraints of the current system. Judges should make waiver decisions in an adversarial hearing rather than prosecutors via charging decisions. Sentences of youths convicted as adults should be substantially reduced—a Youth Discount—to reflect diminished culpability. Risk assessment instruments and other JDAI strategies could reduce pretrial detention and disproportionate minority confinement. Juvenile court interventions should keep youths in their communities and avoid out-of-home placements and secure confinement to the greatest extent possible and use evidence-based programs to rehabilitate and reintegrate them. Gender-appropriate strategies should deal with girls in the community rather than use the pretext of minor misconduct to incarcerate them. Schools should eschew prison-like environments—with pervasive police presence, surveillance technology, and mindless rule enforcement—in favor of more restorative policies, focus on inclusion rather than exclusion, and emphasize dropout prevention and reentry programs. The procedural safeguards of juvenile courts should be greatly enhanced to compensate for adolescents' limited competence: automatic competency assessment for children younger than fourteen years of age, mandatory presence of counsel during interrogation for those younger than sixteen, and mandatory non-waivable counsel for youths in court proceedings. Delinquents should enjoy the right to a jury trial to assure reliability of convictions and to increase the visibility and accountability of judges, prosecutors, and defense lawyers. States should strengthen appellate oversight of delinquency proceedings. Records of youths should be easily sealed or expunged to reduce impediments to education and employment. Collateral consequences of delinquency convictions should be eliminated.²²

I wrote *Bad Kids: Race and the Transformation of the Juvenile Court* (1999) at the peak of the Get Tough Era. My proposal to abolish the juvenile court reflected despair over the unalloyed punitiveness and racism of delinquency sanctions, the limited efficacy of treatment, and juvenile courts' procedural deficiencies. *The Evolution of the Juvenile Court* echoes that despondency, but with a new prescription to strengthen juvenile courts' diversionary mission. Although most states' juvenile courts' jurisdiction extends to youths under eighteen years of age, North Carolina sets the boundary at sixteen and ten states set it at seventeen.²³ Developmental psychology and neuroscience research reviewed earlier strengthen the case to raise the age of jurisdiction to eighteen in every state. Indeed, it would be appropriate to extend to young adults aged eighteen to twenty-one some of the protections associated with juvenile courts—shorter sentences like a Youth Discount, rehabilitative treatment in separate facilities, protected records, and the like. Many European countries' criminal laws provide separate young adult sentencing provisions and institutions to afford greater leniency and use of rehabilitative measures.²⁴

Most youths involved with the juvenile justice system will outgrow their youthful indiscretion without heroic interventions. We can facilitate desistance by reinforcing the two-track system—one informal, one formal—proposed by the President's Crime Commission a half century ago. For youths who require services, diversion to community resources provides a more efficient and flexible alternative to adjudication and disposition. If states explicitly forgo home removal, then juvenile courts can use summary processes like noncriminal traffic courts to make dispositions. *Scott v. Illinois* prohibits incarceration without representation. *Alabama v. Shelton* prohibits probation revocation and confinement of a defendant who was not represented in the original proceeding.²⁵ *Baldwin v. New York* affords a jury to any person facing the prospect of six months incarceration. By foregoing home removal or incarceration, states can administer a streamlined justice system for most youths. Diversion raises its own issues because low-visibility discretionary decisions contribute to racial disparities at the front end.²⁶ States can adopt formal criteria, risk assessment instruments, data collection, and ongoing monitoring to rationalize decisions and reduce disparities. Finally, an ounce of prevention is worth a pound of cure. Prevention programs

that target at-risk youths, families, and communities have demonstrated efficacy, provide cost/benefit returns, and would reduce the number of youths referred to juvenile courts in the first instance.

States should strengthen procedural safeguards for serious young offenders whom the state seeks to remove from home or confine. Although delinquency sanctions are shorter than those imposed by criminal courts, it is disingenuous to claim that they do not pursue deterrent, incapacitative, and retributive goals.²⁷ Apart from those who pose a risk of flight, states should reserve secure detention for youths whose offense and prior record indicate that they likely would be removed from home if convicted. For youths facing confinement, juvenile courts *are* criminal courts and requires criminal procedural safeguards including the right to a jury. As a result of developmental immaturity, children require greater protections than adults—counsel at interrogation and mandatory non-waivable counsel at trial. Increasing protections and costs of formal adjudication provide financial and administrative incentives to divert more youths.

For the most serious young offenders, the maximum penalties that juvenile courts can impose may fall short of the minimum sanctions serious offenders deserve or the public will tolerate. In most states, juvenile courts' disposition age jurisdiction continues until age twenty-one or older.²⁸ Developmental psychologists report a sharp drop-off in culpability and competence among youths fifteen years of age and younger. Sixteen should be the minimum age at which judges could transfer any youths and even then that power should be used sparingly. With an appropriately crafted Youth Discount, there would be few crimes other than murder for which juvenile courts' dispositions would be inadequate.

While local, state, and federal agencies can implement many reforms to enhance juvenile justice administration, improving the lives of juvenile courts' clients requires addressing "root causes" of crime and racial disparities. The political economy—social and economic inequality—produces profound disparities in income, health, housing, education, employment, and exposure to criminogenic conditions that no justice system reforms can overcome. Although poverty has a devastating impact on all youths, larger proportions of Black youngsters and other children of color are exposed to these disadvantages.

Impediments to Reform: Politics and Political Economy

Today in the United States, we have essentially two childhoods. The one experienced by mostly White and Asian children is one of abundance and opportunity. It is a childhood rich with educational opportunities and excellent school systems. The other childhood experienced by almost half of all African-American and Latino children is one of low income, jobs that provide limited health care, and schools that track children to bleak futures. The schools these children attend are too often underfunded, poorly staffed, and signal failure from the start.²⁹

Juvenile courts do not cause delinquency in the first instance. Given limited resources and authority, they can only marginally improve the life chances of many youths whom they serve—poor, developmentally challenged, and children of color mired in social disadvantage. Jamie Fader’s *Falling Back* concludes that the “the juvenile justice system is ill equipped to restructure the labor market to create better jobs, allow young people the financial freedom to invest in higher education, dismantle racial discrimination or residential segregation, or fix families struggling with poverty or addiction,” and instead it attributes youths’ criminality to individual deficits and poor decisions.³⁰ Emphasizing youths’ criminality elicits public hostility and contributes to their perceived disposability. Most of the causes of delinquency are rooted in social structure—concentrated poverty, economic inequality, hyper-segregation and racial isolation, spatial mismatch between skills, jobs, and employment opportunities, failing schools, and the like. No justice system can remedy these conditions.

Child Poverty in the United States

Poverty is the biggest single risk factor for successful child development.³¹ It affects every dimension of a child’s life beginning in utero. Within their first few years, many African American and Hispanic babies born with similar potential as white and Asian infants begin to experience very different life courses and outcomes. Poverty affects how their parents raise them, their access to healthcare, exposure to hunger and inadequate nutrition, residential instability, the safety of

their communities, the quality of schools they attend, and their likelihood of justice system involvement.³² It adversely affects their life trajectories—lower educational achievement, early school leaving, delinquency, unmarried childbirth, and family dysfunction.³³ It stunts cognitive development and verbal ability, adds to poor language skills, and contributes to later school failure.³⁴ Children from impoverished homes bring to schools higher rates of truancy, disorder, and residential transience, and lower levels of English proficiency.³⁵ Every adverse indicator of child development—suicide, mental illness, drug abuse, homelessness, teenage pregnancy, school-leaving, crime, and violent victimization—correlates with living in poverty.³⁶ Youths involved in the justice system—Black, white, or Hispanic—share similar characteristics: impoverished childhoods, abuse or neglect, family instability, poor schools, limited social and job skills, and drug and alcohol use.³⁷

Although poverty is the leading risk factor for children's positive development, it does not affect all children as equally or as intensely. Figure E.1 reports rates of child poverty by race over the past four decades. Historically and currently, Black children are at much greater risk to live in poverty than their white counterparts. Although child poverty rates fluctuate somewhat with larger economic trends, over the past four decades, about one in five children in the United States has lived in poverty.³⁸ However, the fluctuation around 20% obscures profound differences in poverty rates by race. For white children, the poverty rates is about half the overall average and for Black and Hispanic children, it is about double the overall average. "The poverty rate for African-American and Latino children ranges between 35 and 40 percent. The majority of African American children are born to single parents (more than two-thirds) and their child poverty rates is close to 60 percent."³⁹ As a consequence, about one in nine white children live in poverty compared with four in ten Black children.

As a result of deindustrialization and changes in family structure, more children live with an unmarried single parent, typically a mother.⁴⁰ In the United States, living in a single-parent female-headed household is a prescription for child poverty regardless of race.⁴¹ However, more than two-thirds of Black children were born outside of marriage; more than half live in a single-parent household in poverty.⁴² In 2006, more than two-thirds of all Black children were born to unmar-

ried mothers, compared with one-half for Hispanic children, and one-quarter for White children.⁴³ The level and intensity of poverty that Black children experience is much more severe than that of poor white children. Black children are seven times more likely than white children to live in high-poverty neighborhoods and twelve times more likely to live in racially segregated ones.⁴⁴ In addition to the direct connection between single parenthood and poverty, children from low-income households without fathers present are more likely to become school dropouts, earn less money as young adults, and more likely to form single-parent households themselves.⁴⁵

Children growing up in segregated neighborhoods of concentrated poverty experience great trauma. They are more likely to encounter environmental hazards and exposure to toxic pollutants—e.g., the lead-contaminated water in Flint, Michigan. Poverty adversely affects brain and cognitive development and socio-emotional functioning, and causes behavioral problems and depression. Children of color living in concentrated poverty are much more likely to attend segregated, inferior schools taught by demoralized teachers in deteriorated physical facilities with large classes that will seldom overcome the disadvantages they present. The school-to-prison pipeline responds to children's misfortune and misbehavior with suspension, expulsion and referral to the juvenile justice system. Bruce Western's *Punishment and Inequality in America* describes the devastating impact of mass incarceration on Black men who do not finish high school. Arrest, a criminal record, and confinement increases unemployment and makes them more likely to commit additional crimes. Social disadvantage contributes to criminality; justice system involvement worsens offenders' life chances with direct and collateral consequences.⁴⁶

In *Our Kids: The American Dream in Crisis*, Robert Putnam addresses the questions of whether children from different social and economic backgrounds have roughly equal life chances and how their prospects have changed in recent decades.⁴⁷ He uses parental education—college graduate versus high school degree or less—as a proxy for socioeconomic class. He compares differences in family structure, parenting practices, economic stability, school quality, and neighborhoods of children like himself reared in the prosperous post-World War II era with those of youths today. As described in Chapter 3, in those days, working

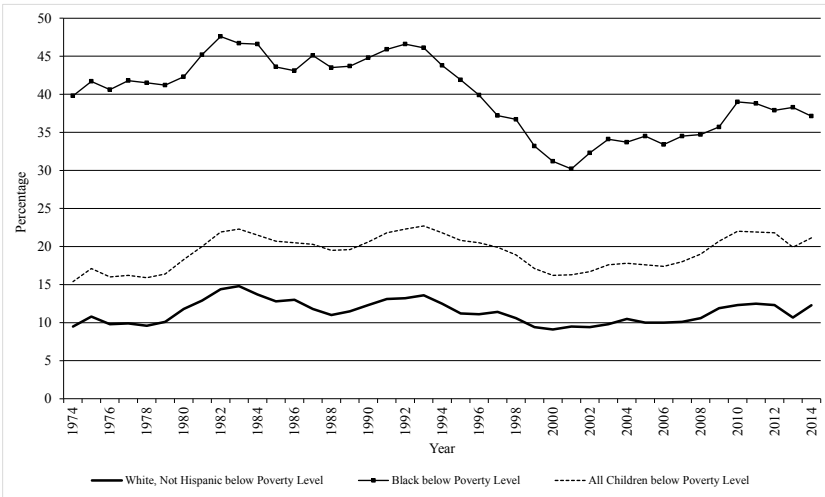


Figure E.1. Percentage of Children in Poverty, by Race

Source: U.S. Census Bureau, "Income and Poverty in the United States: 2014," www.census.gov.

men with a high school education could support a family and expect a brighter future for their children. Putnam concludes that opportunities for social and economic mobility have declined because children of affluent families today enjoy many more advantages than did affluent children of his generation, but primarily because conditions of poor children today are much worse than were their counterparts of the previous generation.⁴⁸ The top third of U.S. society invest more in family life, community networks, and civic activities than did their parents, while those in the bottom third fall further behind as families fracture, household economies decline, and adults and children disengage from mainstream society.

The decline in manufacturing jobs that began in the 1970s caused the earnings gap between high school- and college-educated workers to grow rapidly. Inequality increasingly operates through education, which correlates closely with parents' education and socioeconomic status. Over the past quarter century, the net worth of college-educated households with children increased by 47% while that of high school-educated households fell by 17%.⁴⁹ Parental wealth provides affluent children with an informal social safety net that poorer children lack.⁵⁰ Residential, educational, and class segregation create separate and unequal worlds in which to raise children. Many members of the upper middle class do

not know how poor children live or recognize the growing opportunity gap between their children and other people's children.⁵¹

Parental education and income affect family formation and child-rearing practices. Daniel Patrick Moynihan's dire report on *The Negro Family* warned that Black male unemployment would lead to family instability, out-of-wedlock childbirth, and child poverty. Subsequent decades reveal that the relationship between employment and family formation are not race-based but class-based and affect all people. Among the college-educated upper third of Americans, women marry later, have fewer unintended pregnancies, and divorce less frequently.⁵² By contrast and regardless of race, today's high school-educated women are less likely to have married their child's father, more likely to have unintended pregnancies, bear children at a younger age, and experience greatly reduced economic prospects.⁵³

Class-based differences in parenting styles—a function of education and socioeconomic status—affect infants' and children's early brain development, cognitive abilities, and behavior.⁵⁴ Early interaction with caring, consistent adults fosters healthy brain development, lays the foundation for verbal and mathematical skills, and fosters socio-emotional skills—grit, sensitivity, optimism, self-control, and emotional stability.⁵⁵ By contrast, children who are physically or emotionally abused or neglected experience toxic stress, which causes biochemical and anatomical changes that harm brain development and contribute to learning, behavior, and physical and mental health problems later in life.⁵⁶ Poor parents have less time to foster their children's cognitive development than their wealthier counterparts.⁵⁷ A poor single mother working a minimum-wage job who gets to work via public transportation or in an unreliable car and comes home exhausted does not have the luxury of affluent parents to read to her child, engage in vocabulary-rich conversations, or buy books and computer learning programs.⁵⁸

Income inequality and class-based residential segregation contribute to differences in educational outcomes. Residential segregation is deeply rooted and sustained by zoning regulations and home mortgage tax deductions; people strongly resist efforts to reduce class-based segregation. Residential segregation contributes to de facto class/race-based school segregation. Affluent parents provide their children with preschool en-

richment programs and they start formal education with more schooling than their poorer counterparts. The quality of schools that affluent children attend differ greatly from the racially and economically segregated urban schools.⁵⁹ As a result, children of poor, less educated parents are handicapped at the start and have fewer resources with which to overcome obstacles.⁶⁰

Child Poverty Is the United States' Public Policy

Harsh as it may sound, child poverty is the United States' public policy. A much larger proportion of children in America live in poverty—one in five—than in any other Western industrialized nation. Children are the poorest Americans—one in five are below the poverty level, including one in four infants and toddlers under three, more than fifteen million in total—and more than one-third live in families with incomes half the federal poverty level.⁶¹ Children comprise the largest age group in poverty and the macro-structural and family demographic changes of the past third of a century have exacerbated their disadvantage.

The United States' child poverty rate is double or triple that of most European countries—France (11.4%), Germany (10.5%), Ireland (10.4%), the United Kingdom (9.4%), and the Netherlands (6.3%). It is four times that experienced by children in the Nordic countries—Norway (5.0%), Denmark (4.5%), and Finland (3.7%).⁶² Child poverty rates have been relatively stable in almost all advanced countries, *except* in the United States where they have increased over the past quarter century.⁶³ Not surprisingly, countries that spend more on social welfare and have lower levels of income and wealth inequality also have lower crime rates and levels of imprisonment.⁶⁴

As international comparisons demonstrate, in affluent societies child poverty is not an inevitable social condition or the result of natural scarcity. It is the consequence of public policies that produce and reinforce social and economic inequalities and national priorities to prefer the elderly and wealthy over the young, the poor, and families.⁶⁵ Earned income is the single best antidote to child poverty and influenced by many government policies: tax code, housing subsidies, minimum wage, strategies to promote growth and full employment, job training and education for economically marginalized and underskilled workers.⁶⁶

Comparative research attributes the significant differences in national child poverty rates to different levels and mixes of income packaging through government expenditures.⁶⁷ Compared with other developed nations, the United States provides fewer resources or income transfers to reduce child poverty, especially for female-headed households whose children are the most vulnerable.⁶⁸ Poor children today are comparatively poorer than poor children in the recent past, more likely to experience chronic and persistent poverty, and more likely to be isolated from non-poor children in schools and communities.⁶⁹

What Ought to Be Done?

What do European countries do that produces such dramatically lower child poverty rates than the United States? The root causes of child poverty in the United States are structural and political—the consequences of political-economic policies, wealth and income inequality, and racial barriers.⁷⁰ A society committed to children's welfare would assure that all children, regardless of their parents' circumstances, have a fair start and a meaningful chance to succeed. In the United States, means-tested and time-limited welfare programs for poor people effectively blame them for their own penury and put the onus on them to establish eligibility for grudging public assistance.⁷¹ To hold young children responsible for their parents' shortcomings offends basic decency and morality.⁷²

The roots of inequality and child poverty lie in political decisions to favor certain classes and interests over others. Reagan-era tax policies favored capital ownership over labor, shifted the tax burden from the very wealthy to lower-income workers, and contributed to growing wealth and income inequality.⁷³ A family with a \$200,000 home mortgage receives a housing subsidy of more than \$3,000 a year from the interest tax deduction—a tax transfer of nearly \$100 billion per year—while poor people who rent receive nothing.⁷⁴ The earnings cap on Social Security income—\$118,500 in 2016—exempts the wealthy from paying their proportional share and constitutes a regressive tax.⁷⁵ As a result of many wealth-skewed policy decisions, the top 1% possesses more wealth than the bottom 90% combined.⁷⁶ Public policies give much to those who have a great deal, do little for the vast majority, and are leading to a caste system of haves and have-nots exacerbated by racial disparities.

Parents shoulder a socially valuable but increasingly expensive burden to raise children and in the long run all citizens benefit from their sacrifices. Unlike in the United States, a child raised in a single-parent household in a Western European country is much less likely to live in poverty.⁷⁷ In *Poor Kids in a Rich Country*, Lee Rainwater and Timothy Smeeding compare the circumstances of low-income American children with their counterparts in other rich countries and assess the impacts of public policies to reduce child poverty and inequality. Three policies account for that difference—a children’s allowance, paid parental leave, and publicly supported childcare.⁷⁸ European democracies provide a social safety net for poor children through direct income support programs to lift children out of poverty.⁷⁹ Most European countries provide a universal children’s allowance—cash and tax benefits—that puts income assistance directly into the hands of families.⁸⁰ Family leave and childcare policies reduce child poverty by encouraging maternal employment. Paid parental leave allows women to take time off from work to bond with their children and yet retain their attachment to the workforce.⁸¹ In the absence of paid leave, many women drop out of the economy, which leads to income loss and erosion of skills.⁸² Public childcare subsidies and services enable women with children to reenter the labor market with confidence.⁸³ A \$1,000 increase in public spending for childcare reduces child poverty in single-mother households by 6%.⁸⁴ A comparison of eighteen countries’ policies concluded that modest increases in family income, paid parental leave, and subsidized childcare substantially reduces child poverty rates.⁸⁵

Why What Ought to Be Done Won’t Be Done

Child poverty is the root cause of many of the differences in rates of crime and violence by race. It derives from economic inequality, residential segregation, concentrated disadvantage, unemployment, and limited social capital. The historic legacy of institutional and individual racism frustrates efforts to reduce child poverty. Racial disparities “are the product of politics—of how key politicians, other public figures, interest groups, the media and social movements choose to draw from that past, reinvent that past, and discard pieces of the past as they adjust their political strategies to the political, social, and economic realities of the present.”⁸⁶

Even though white children comprise the largest number of children in poverty and would benefit most from programs to alleviate it, too many white people and public officials resist structural reforms to aid the poor because Blacks and other children of color would benefit disproportionately.⁸⁷ Progressive Era child-saving reforms—juvenile courts, child labor, and compulsory school attendance—reflect the high value we once placed on children. But they and we are more ambivalent about poor children, especially poor children of color, because of their inevitable connection with poor adults whom we expect to be self-sufficient. Welfare policies long have distinguished between the deserving and undeserving poor; racialized attitudes about welfare and the undeserving poor depict Blacks as lazy and with less commitment to work. Conservative politicians prefer to attribute poverty and crime to peoples’ bad decisions and bad values, rather than to structural conditions.⁸⁸ Conservatives historically oppose childcare programs yet insist that welfare mothers work, subsidize tax cuts for the wealthy on the backs of the middle class, and regard children born into poor families simply as unfortunate, rather than as a collective responsibility to ensure society’s future. While Americans invest resources, lavish affection, and want only the best for their own, they view other people’s children—especially those of other races or classes—with suspicion, hostility, and as potential threats to their own children’s well-being.⁸⁹

A half century ago, the Kerner Commission warned that America was “moving toward two societies, one black, one white—separate and unequal” and predicted that failure to ameliorate income and racial inequality would “make permanent the division of our country in two societies; one largely Negro and poor, located in the central cities; the other predominantly white and affluent located in the suburbs.”⁹⁰ Deindustrialization transformed cities and left an even darker legacy than that of which the Kerner Commission warned—hyper-segregation, concentrated poverty, erosion of public education, and political battles over race subsumed in cultural conflicts.

Confronting issues of political economy and racial and economic inequality requires political will and leadership, which unfortunately we greatly lack. How do we create a political environment capable of enacting child-friendly policies?⁹¹ Conservatives in particular, but Americans in general, place greater emphases on individual behavior and cultural

factors, than on structural inequality to explain differences in people's circumstances. A culture that attributes crime, poverty, and unemployment to individual deficiencies does not engender strong support for programs and policies to eradicate inequality.⁹² But the only way to reduce the levels of violence in urban communities and racial disparities in justice administration is to address the profound inequality and concentrated poverty that cause them. This requires the public and politicians to make alleviating unconscionable rates of child poverty, failed urban schools, and minority unemployment a national priority. It requires changing political economy and social structure rather than applying Band-Aids to damaged individuals. It requires policies and programs to address residential segregation, inadequate housing, concentrated poverty, and unequal access to quality public education. It requires a strong commitment to alleviate child poverty through universal programs.⁹³ Enacting laws to alleviate the root causes of inequality requires appreciating that children are a public good and that investments in them today are necessary for society's tomorrow.⁹⁴

After more than four decades of studying juvenile justice, I feel sadness and anger that the plight of two generations of children has worsened. The great gulf between the enormous problems our children face and our political leaders' unwillingness to address them fills me with despair. It is my fervent hope that future, more enlightened generations of Americans will look back with shame on the contemporary child abuse inflicted by the state. Although the words were spoken in a different context and addressed a different evil, the indictment is the same. "Until this moment . . . I think I have never really gauged your cruelty or your recklessness. . . . Little did I dream you could be so reckless and so cruel as to do an injury to that lad. . . . It is, I regret to say, equally true that I fear he shall always bear a scar needlessly inflicted by you. If it were in my power to forgive you for your reckless cruelty I would do so. I like to think I am a gentleman, but your forgiveness will have to come from someone other than me. . . . Have you no sense of decency, sir? At long last, have you left no sense of decency?"⁹⁵

NOTES

INTRODUCTION

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- 11 Wilson 1987.
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CHAPTER 1. THE PROGRESSIVE JUVENILE COURT

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- 3 Wiebe 1967; Rothman 1980; Gilens 1999.
- 4 Gilens 1999:14.
- 5 Grubb and Lazerson 1982; Feld 1999:26.
- 6 Wolcott 2005:5.
- 7 Grubb and Lazerson 1982; Hofstadter 1955; Higham 1988.
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- 9 Massey and Denton 1993:19–20.
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- 16 Tanenhaus 2012:421.
- 17 Feld 1999:22–33; Aries 1962; Ward 2012:20.
- 18 Aries 1962:365–404.
- 19 Aries 1962.
- 20 Kett 1977; Lasch 1977; Degler 1980; Ward 2012:20–21.
- 21 Kett 1977:111–43; Degler 1980.
- 22 Kett 1977; Platt 1977; Feld 1999:29.
- 23 Kett 1977:138; Berger and Berger 1984:7; Degler 1980.
- 24 Degler 1980; Berger and Berger 1984:7; Feld 1999:33.
- 25 Platt 1977:75–83.
- 26 Ward 2012:23; Wolcott 2005.
- 27 Hofstadter 1955; Wiebe 1967; Kolko 1963 (economic regulation); Rothman 1980:5–13 (criminal and juvenile justice); Trattner 1970 (child labor); Trattner 1984:108–54 (urban welfare); Tiffin 1983:141–61 (child welfare); Muhammad 2010:27.
- 28 Bledstein 1976:85–92.
- 29 Bledstein 1976:85–92; Sutton 1988:124.
- 30 Garland 2001:39.
- 31 Ward 2012:19.
- 32 Rothman 1980:50.
- 33 Allen 1964:129–30.
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- 35 Lieberman 1980:135.
- 36 Feld 1999:33; Grubb and Lazerson 1982:49.
- 37 Katz 1986; Schlossman 1977:17.
- 38 Grubb and Lazerson 1982:27.
- 39 Ward 2012:25.
- 40 Wiebe 1967:169.
- 41 Scott and Steinberg 2008:64.
- 42 Ward 2012:26–27.
- 43 Cremin 1961:127–28 (compulsory school attendance laws); Tiffin 1983:141–61 (child welfare legislation); Trattner 1970:119–42 (child labor laws); Wolcott 2005:13 (policing juveniles); Nellis 2016:11–12.
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- 73 Beckett 1997:8.
- 74 Scott and Steinberg 2008:7 (emphasis added).
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- 107 Rothman 1980; Feld 1999:68; Schlossman 1977; Ryerson 1978; Garland 1990:235; Manfredi 1998:31.
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CHAPTER 2. THE DUE PROCESS REVOLUTION AND THE JUVENILE COURT

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- 24 Feld 1999:85.
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- 27 Massey and Denton 1993:45–46.
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- 30 Klarman 2004:64.
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